

A B I O G R A P H Y
OF THE
S I G N E R S
OF THE
DECLARATION OF INDEPENDENCE,
AND OF
WASHINGTON AND PATRICK HENRY.
WITH
AN APPENDIX,
CONTAINING THE
Constitution of the United States
AND OTHER DOCUMENTS.

BY L. CARROLL JUDSON,
A MEMBER OF THE PHILADELPHIA BAR.

"The proper study of mankind is man."

PHILADELPHIA:
J. DOBSON, AND THOMAS, COWPERTHWAIT & CO.
1839.

A BIOGRAPHY
OF THE
SIGNERS
OF THE
DECLARATION OF INDEPENDENCE,
AND OF
WASHINGTON AND PATRICK HENRY.
WITH
AN APPENDIX,
CONTAINING THE
Constitution of the United States
AND OTHER DOCUMENTS.

BY *L. CARROLL JUDSON*,
A MEMBER OF THE PHILADELPHIA BAR.

"The proper study of mankind is man."

PHILADELPHIA:
J. DOBSON, AND THOMAS, COWPERTHWAIT & CO.
1839.

The Project Gutenberg eBook of A Biography of the Signers of the Declaration of Independence, and of Washington and Patrick Henry

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: A Biography of the Signers of the Declaration of Independence,
and of Washington and Patrick Henry

Author: L. Carroll Judson

Release date: March 20, 2017 [eBook #54394]

Most recently updated: October 23, 2024

Language: English

Other information and formats: www.gutenberg.org/ebooks/54394

Credits: Produced by Richard Hulse, Charlie Howard, and the Online Distributed Proofreading Team at <http://www.pgdp.net> (This file was produced from images generously made available by The Internet Archive)

*** START OF THE PROJECT GUTENBERG EBOOK A BIOGRAPHY
OF THE SIGNERS OF THE DECLARATION OF INDEPENDENCE,
AND OF WASHINGTON AND PATRICK HENRY ***

A BIOGRAPHY
OF THE
SIGNERS
OF THE
DECLARATION OF
INDEPENDENCE,
AND OF
WASHINGTON AND PATRICK
HENRY.
WITH
AN APPENDIX,

CONTAINING THE

Constitution of the United States

AND OTHER DOCUMENTS.

BY L. CARROLL JUDSON,
A MEMBER OF THE PHILADELPHIA BAR.

“The proper study of mankind is man.”

PHILADELPHIA:
J. DOBSON, AND THOMAS, COWPERTHWAIT & CO.
1839.

Entered according to the Act of Congress, A. D. 1839, by TIMOTHY CALDWELL, in the Clerk's Office of the District Court for the Eastern District of Pennsylvania.

E. G. DORSEY, PRINTER,
LIBRARY STREET.

CONTENTS.

	PAGE.
Declaration of Independence,	<u>9</u>
Thomas Jefferson,	<u>13</u>
John Hancock,	<u>25</u>
Benjamin Franklin,	<u>30</u>
Roger Sherman,	<u>38</u>
Edward Rutledge,	<u>45</u>
Thomas M’Kean,	<u>49</u>
Philip Livingston,	<u>55</u>
George Wythe,	<u>58</u>
Abraham Clark,	<u>61</u>
Francis Lewis,	<u>64</u>
Richard Stockton,	<u>66</u>
Samuel Adams,	<u>70</u>
Dr. Benjamin Rush,	<u>78</u>
Oliver Wolcott,	<u>83</u>
George Read,	<u>85</u>
Thomas Heyward,	<u>88</u>
Robert Morris,	<u>92</u>
John Witherspoon,	<u>97</u>
Thomas Lynch, Jr.	<u>102</u>
Matthew Thornton,	<u>105</u>
William Floyd,	<u>108</u>
William Whipple,	<u>112</u>
Francis Hopkinson, Esq.	<u>115</u>
Josiah Bartlett,	<u>117</u>
Arthur Middleton,	<u>122</u>
James Wilson,	<u>126</u>

Charles Carroll, of Carrollton,	<u>132</u>
William Williams,	<u>136</u>
Samuel Huntington,	<u>139</u>
George Walton,	<u>142</u>
George Clymer,	<u>146</u>
Carter Braxton,	<u>152</u>
John Morton,	<u>155</u>
Richard Henry Lee,	<u>158</u>
Stephen Hopkins,	<u>164</u>
Robert Treat Paine,	<u>170</u>
George Taylor,	<u>174</u>
Francis Lightfoot Lee,	<u>177</u>
Thomas Stone,	<u>181</u>
Lewis Morris,	<u>184</u>
John Hart,	<u>188</u>
Button Gwinnett,	<u>191</u>
William Ellery,	<u>195</u>
Lyman Hall,	<u>200</u>
John Penn,	<u>203</u>
Elbridge Gerry,	<u>208</u>
William Paca,	<u>215</u>
George Ross,	<u>219</u>
Benjamin Harrison,	<u>223</u>
Cæsar Rodney,	<u>230</u>
Samuel Chase,	<u>236</u>
William Hooper,	<u>248</u>
Thomas Nelson,	<u>253</u>
James Smith,	<u>260</u>
Joseph Hewes,	<u>267</u>
John Adams,	<u>273</u>
George Washington,	<u>292</u>
Patrick Henry,	<u>303</u>

APPENDIX:

Washington's Farewell Address to the People of the United States,	<u>313</u>
A Declaration by the Representatives of the United Colonies of North America, setting forth the causes and necessity of their taking up arms,	<u>325</u>
Articles of Confederation,	<u>330</u>
Constitution of the United States,	<u>337</u>
Amendments to the Constitution,	<u>348</u>
The Declaration of Independence as originally written by Thomas Jefferson,	<u>350</u>

ADVERTISEMENT.

The proprietor of this book, now verging on four score years, presents it to the public with an anxious hope that it will be instrumental in doing much good. To place within the reach of all classes of persons who desire it, the history of the venerable sages who wisely conceived, nobly planned and boldly achieved the independence of these United States, is believed to be a matter of great importance, especially to the rising generation.

Of those who signed the Declaration penned by Jefferson—the Articles of Confederation adopted by the Continental Congress, and the Federal Constitution—not one survives to aid in directing the destinies of our country. Like leaves in autumn they have descended to the earth—the winter of death has shut them from this world for ever. But they have left their bright examples, their shining lights, their luminous beacons, to guide their successors in the path of duty and of safety.

Having had the pleasure of seeing all the signers of the declaration before they made their last bow and retired from the stage of action, and having had the satisfaction of a personal acquaintance with many of them, the proprietor has long felt a strong desire to have the history of the prominent traits of their lives and characters reduced to a single portable and cheap volume, that should not be an onerous tax upon the purse or the memory. Such a volume is now presented to the American public, carefully and impartially prepared—plain in style, simple in arrangement and republican in its features.

If all obey the precepts suggested, and imitate the examples delineated upon the following pages, our republic will continue to rise sublimely, until it reaches an eminence of power and grandeur before unknown among the nations of the earth.

That this may be the happy lot of our country, and that our free government may be preserved in its native purity, is the sincere and ardent

wish of the proprietor.

TIMOTHY CALDWELL.

Philadelphia, February 22, 1839.

PREFACE.

The present is emphatically an era of books. The march of mind is onward and upward, bold and expanding. The soaring intellect of man, rising on the wings of investigation and experiment, is seizing upon the elements in all their varied forms, threatening to unveil and reduce to subjection the whole *arcana* of nature. The flood gates of science are opened, and its translucent stream, rushing through the magic channel of the press, is illuminating the world with rays of light, as multiform in their hues as a rainbow. Like that beautiful phenomenon, some of them attract the delighted gaze of many for a brief period, then vanish from view for want of reflectives, or dissolve in thin air for want of stamina—an ominous hint to the present writer.

He, however, has not aimed at brilliancy or high refinement in composition, nor has he attempted to create a literary GEM to induce admiration. He has aimed at brevity in the impartial statement of plain matters of fact, avoiding verbiage and extracting the essence of the history of the sages of '76. His work is not designed for the diffusive crucible of the critic, or the empirical hauteur of the cynic. To make a *useful* book has been the ultimatum of his efforts. It has been his constant purpose to incite a love for moral rectitude, a veneration for unsophisticated religion and pure patriotism, and a lively interest in the perpetuity of our union as a free people, by reflecting the precepts and examples of the revolutionary patriots upon the mind of the reader, from the truth-telling mirror of their history. To preserve, in its pristine purity, the liberty they purchased with years of toil, streams of blood and millions of treasure, is a duty imposed upon us by the law of nature, and by the great Jehovah. To imprint this deeply and strongly upon the heart of every reader, the author has interspersed many practical remarks, and, in some instances, compared the past with the present time.

If the amputating knife, the scalpel and the probe have occasionally been used, a sincere desire to do good has prompted their application. To

remove the unsound parts of the body politic—should be a desideratum with every freeman. By shrinking from this duty, we jeopardize our elective franchise and court the domination of designing men, who smile that they may betray, and flatter that they may destroy.

The author has laboured to be concise without being obscure, to inform the understanding without burdening the memory. He has introduced many apothegms, intending to improve the mind and mend the heart. The causes that led to the revolution, its interesting progress, its happy termination and the formation of our federal government, are all amply delineated. The character of each of the individuals who signed the declaration, and of the illustrious Washington and the bold Patrick Henry, is fully portrayed. The most prominent acts of their lives are also clearly exhibited. But few of the biographettes are encumbered with documentary extracts, although they will be found sufficiently full for all ordinary purposes.

To write the biography of fifty-eight individuals, all engaged in the accomplishment of a single object, although that object may be shrouded in refulgent glory—and preserve an interesting variety without being prolix or verbose, is a task no one can realize without attempting it—a task that the author does not claim the credit of having performed. To compensate for any want of diversity, the reader will find all the important facts contained in more expensive, ponderous and voluminous works, placed in so small a compass, that they may be referred to with greater facility than in them.

In the order of the names, it seems most appropriate to place the author of the Declaration of Independence first. In some instances, a character of high classic attainments has been placed by the side of one whose literary advantages were extremely limited, that the reader, when admiring the dazzling splendour of the former, may contemplate the equal patriotism and substantial usefulness of the latter. The names of Messrs. Gwinnett and Ellery, are placed by the side of each other because of the contrast in their demise.

The Appendix is considered an important affixion, and renders the work more full and complete. The Farewell Address of Washington is one of the happiest productions ever penned by mortal man. It should be read often, not only by the young, but by *all*—the rich and the poor—the public

officer and the private citizen. It should be rehearsed in every school and declaimed in every lyceum.

The Constitution of the United States should also be better known; it should be familiar to every farmer and mechanic, that it may be better understood and more faithfully adhered to.

Finally, to carry the reader back to first principles, and point plainly and clearly to the land marks of '76, as fixed by the signers of the declaration of our independence, and to rouse the patriot to a just sense of our blood-bought privileges and the necessity of preserving them pure and undefiled, has been the constant aim of the author.

If his humble, but honest and earnest efforts shall prove instrumental in adding one inch of time—one happy hour to our political existence, or in strengthening one single link of the golden chain of the glorious UNION of these United States, he will deem the months of severe labour devoted to the preparation of this work—AS TIME WELL SPENT.

L. CARROLL JUDSON.

Philadelphia, February 22, 1839.

Declaration of Independence,

BY THE THIRTEEN UNITED STATES OF

AMERICA,

IN CONGRESS ASSEMBLED,

JULY 4, MDCCLXXVI.

“When, in the course of human events, it becomes necessary for one people to dissolve the political bands which have connected them with another, and to assume among the powers of the earth, the separate and equal station to which the laws of nature and of nature’s God entitle them, a decent respect to the opinions of mankind requires that they should declare the causes which impel them to the separation.

“We hold these truths to be self-evident:—that all men are created equal; that they are endowed by their Creator with certain inalienable rights; that amongst these are life, liberty, and the pursuit of happiness. That to secure these rights, governments are instituted among men, deriving their just powers from the consent of the governed; that whenever any form of government becomes destructive of these ends, it is the right of the people to alter or to abolish it, and to institute new government, laying its foundation on such principles, and organizing its powers in such form, as to them shall seem most likely to effect their safety and happiness. Prudence, indeed, will dictate that governments long established should not be changed for light and transient causes; and accordingly, all experience hath shown, that mankind are more disposed to suffer, while evils are sufferable,

than to right themselves by abolishing the forms to which they are accustomed. But when a long train of abuses and usurpations, pursuing invariably the same object, evinces a design to reduce them under absolute despotism, it is their right, it is their duty, to throw off such government, and to provide new guards for their future security. Such has been the patient sufferance of these colonies, and such is now the necessity which constrains them to alter their former systems of government.

“The history of the present king of Great Britain is a history of repeated injuries and usurpations, all having in direct object the establishment of an absolute tyranny over these states. To prove this, let facts be submitted to a candid world.

“He has refused his assent to laws the most wholesome and necessary for the public good.

“He has forbidden his governors to pass laws of immediate and pressing importance, unless suspended in their operation till his assent should be obtained; and when so suspended, he has utterly neglected to attend to them.

“He has refused to pass other laws for the accommodation of large districts of people, unless those people would relinquish the right of representation in the legislature, a right inestimable to them, and formidable to tyrants only.

“He has called together legislative bodies at places unusual, uncomfortable, and distant from the depository of their public records, for the sole purpose of fatiguing them into compliance with his measures.

“He has dissolved representative houses repeatedly for opposing, with manly firmness, his invasions on the rights of the people.

“He has refused, for a long time, after such dissolutions, to cause others to be elected; whereby the legislative powers, incapable of annihilation, have returned to the people at large, for their exercise; the state remaining, in the meantime, exposed to all the dangers of invasion from without and convulsions within.

“He has endeavoured to prevent the population of these states; for that purpose obstructing the laws for naturalization of foreigners; refusing to

pass others to encourage their migrations hither, and raising the conditions of new appropriations of lands.

“He has obstructed the administration of justice, by refusing his assent to laws for establishing judiciary powers.

“He has made judges dependent on his will alone for the tenure of their offices, and the amount and payment of their salaries.

“He has erected a multitude of new offices, and sent hither swarms of officers to harass our people, and eat out their substance.

“He has kept among us, in times of peace, standing armies, without the consent of our legislatures.

“He has affected to render the military independent of, and superior to, the civil power.

“He has combined with others to subject us to a jurisdiction foreign to our constitution and unacknowledged by our laws, giving his assent to their acts of pretended legislation.

“For quartering large bodies of armed troops among us:

“For protecting them, by a mock trial, from punishment for any murders which they should commit on the inhabitants of these states:

“For cutting off our trade with all parts of the world:

“For imposing taxes on us without our consent:

“For depriving us, in many cases, of the benefits of trial by jury:

“For transporting us beyond seas to be tried for pretended offences.

“For abolishing the free system of English laws in a neighbouring province, establishing therein an arbitrary government, and enlarging its boundaries, so as to render it at once an example and fit instrument for introducing the same absolute rule into these colonies:

“For taking away our charters, abolishing our most valuable laws, and altering fundamentally the forms of our governments:

“For suspending our own legislatures, and declaring themselves invested with power to legislate for us in all cases whatsoever.

“He has abdicated government here, by declaring us out of his protection, and waging war against us.

“He has plundered our seas, ravaged our coasts, burnt our towns, and destroyed the lives of our people.

“He is, at this time, transporting large armies of foreign mercenaries to complete the works of death, desolation and tyranny, already begun, with circumstances of cruelty and perfidy scarcely paralleled in the most barbarous ages, and totally unworthy the head of a civilized nation.

“He has constrained our fellow-citizens, taken captive on the high seas, to bear arms against their country, to become the executioners of their friends and brethren, or to fall themselves by their hands.

“He has excited domestic insurrections amongst us, and has endeavoured to bring on the inhabitants of our frontiers the merciless Indian savages, whose known rule of warfare is an undistinguished destruction of all ages, sexes, and conditions.

“In every stage of these oppressions, we have petitioned for redress, in the most humble terms; our repeated petitions have been answered only by repeated injury. A prince, whose character is thus marked by every act which may define a tyrant, is unfit to be the ruler of a free people.

“Nor have we been wanting in attentions to our British brethren. We have warned them, from time to time, of attempts by their legislature to extend an unwarrantable jurisdiction over us. We have reminded them of the circumstances of our emigration and settlement here. We have appealed to their native justice and magnanimity, and we have conjured them, by the ties of our common kindred, to disavow these usurpations, which would inevitably interrupt our connexions and correspondence. They, too, have been deaf to the voice of justice and of consanguinity. We must, therefore, acquiesce in the necessity which denounces our separation, and hold them, as we hold the rest of mankind—enemies in war—in peace, friends.

“We, therefore, the representatives of the United States of America, in general Congress assembled, appealing to the Supreme Judge of the world for the rectitude of our intentions, Do, in the name, and by authority of the good people of these colonies, solemnly publish and declare, that these United Colonies are, and of right, ought to be, free and independent States:

—that they are absolved from all allegiance to the British crown, and that all political connexion between them and the state of Great Britain, is and ought to be, totally dissolved; and that, as free and independent States, they have full power to levy war, conclude peace, contract alliances, establish commerce, and to do all other acts and things which independent states may of right do. And, for the support of this declaration, with a firm reliance on the protection of Divine Providence, we mutually pledge to each other, our lives, our fortunes, and our sacred honour.”

JOHN HANCOCK.

NEW HAMPSHIRE.

*Josiah Bartlett,
William Whipple,
Matthew Thornton.*

MASSACHUSETTS.

*Samuel Adams,
John Adams,
Robert Treat Paine,
Elbridge Gerry.*

RHODE ISLAND.

*Stephen Hopkins,
William Ellery.*

CONNECTICUT.

*Roger Sherman,
Samuel Huntington,
William Williams,
Oliver Wolcott.*

NEW YORK.

*William Floyd,
Philip Livingston,
Francis Lewis,
Lewis Morris.*

NEW JERSEY.

*Richard Stockton,
John Witherspoon,*

*Francis Hopkinson,
John Hart,
Abraham Clark.*

PENNSYLVANIA

*Robert Morris,
Benjamin Rush,
Benjamin Franklin,
John Morton,
George Clymer,
James Smith,
George Taylor,
James Wilson,
George Ross.*

DELAWARE.

*Cæsar Rodney,
George Read,
Thomas M'Kean.*

MARYLAND.

*Samuel Chase,
Thomas Stone,
Charles Carroll, of Carrollton.*

VIRGINIA.

*George Wythe,
Richard Henry Lee,
Thomas Jefferson,
Benjamin Harrison,
Thomas Nelson, Jr.
Francis Lightfoot Lee,
Carter Braxton.*

NORTH CAROLINA.

*William Hooper,
Joseph Hewes,
John Penn.*

SOUTH CAROLINA.

Edward Rutledge,
Thomas Heywood, Jr.
Thomas Lynch, Jr.
Arthur Middleton.

GEORGIA.

Button Gwinnett,
Lyman Hall,
George Walton.

BIOGRAPHY.



THOMAS JEFFERSON.

When the Great Ruler of the universe resolved to set his people free from Egyptian bondage, he raised up able and mighty men, to effect his glorious purposes. These he endowed with wisdom to plan, and energy to execute his noble designs. There is a most striking similarity between the history of the Israelites, bursting the chains of slavery riveted upon them by Pharaoh; and that of the American colonies, in disenthraling themselves, by the aid of Heaven, from the oppressions of the British king. Like Moses, Washington led his countrymen through the wilderness of the revolution, and planted them, when the journey was terminated, upon the promised land of freedom and independence. Like Moses, he placed his trust in the God of Hosts, and like him, he was aided and sustained by a band of sages and heroes, unrivalled in the history of the world.

In the front of this band stood THOMAS JEFFERSON, who was born at Shadwell, Albemarle county, Virginia, on the 24th of April, 1743. His ancestors were highly respectable, and among the early emigrants to the Old Dominion. They were true republicans, in affluent circumstances, and exercised an influence that radiated to a considerable extent. Thomas was the son of Peter Jefferson, a man much esteemed in public and private life. The feelings imbibed from him by this son, were conspicuous at an early age, and decidedly of a liberal character. From his childhood, the mind of Thomas Jefferson assumed a high elevation, and took a broad and expansive view of men and things. He was educated at the college of William and Mary, at Williamsburg; and was always found at the head of his class. For assiduity and untiring industry in the exploration of the fields of science, he had no superior. He analyzed every subject that came under his investigation, closely and carefully; passing through the opening avenues of literature with an astonishing celerity. His mind became enraptured with the history of classic Greece and republican Rome, and, in early youth, his political opinions appear to have been distinctly formed,

and opposed to every kind of government, tinged with a shade of monarchy or aristocracy.

After having completed his collegiate course, he commenced the study of law under chancellor Wythe, whose liberal views were well calculated to strengthen and mature those already preponderating in the mind of Jefferson. With regard to the oppressions of the mother country, and the justice and necessity of resistance by the colonies, their kindred bosoms were in unison. By a thorough investigation of the science of law and government, Jefferson soon became prepared to enter upon the great theatre of public action, and into the service of his injured country. Planting himself upon the broad basis of Magna Charta, encircling himself within the pale of the British constitution, he demonstrated most clearly, that the ministry of the crown had long been advancing, with rapid strides, beyond the bounds of their legitimate authority, by exercising a tyrannical power over the American colonies, not delegated to them by the monarchy they corruptly represented. So conclusive and luminous were his expositions of chartered rights on the one hand, and of accumulating wrongs on the other, that he soon became the nucleus of a band of patriots, resolved on deeds of noble daring—*on liberty or death*.

At the age of twenty-two, he was elected to the provincial legislature, and commissioned a justice of the peace, which gave him an opportunity of disseminating his liberal principles to a considerable extent. He proclaimed himself the unyielding advocate of equal rights, and had engraved upon his watch seal as his motto, “Resistance to tyrants is obedience to God.”

By his eloquence and unanswerable reasoning, he soon kindled the flame of opposition in old Virginia, which increased as tyranny advanced; and, in 1769, assumed the shape of a resolution, offered and advocated by Mr. Jefferson in the legislature, *not to import a single article from Great Britain*. The boldness and firmness with which he maintained his position, astonished the adherents of the crown, and gave a fresh impetus to the glorious cause then in embryo. With ample pecuniary means, with talents unsurpassed, his soul illumined with the fire of patriotism, his indignation roused against the hirelings of the king, his sympathies excited by the sufferings of his country, Mr. Jefferson was well calculated to become one of the master spirits of the revolution; one of the giant champions of

universal freedom; a pillar of fire in the cause of liberty, flashing terror and dismay into the ranks of his enemies.

The plan of organizing committees of correspondence throughout the colonies, was devised by him in the early part of 1773, and proved eminently useful in producing unity of sentiment and concert of action among the patriots. About that time, he wrote and published "A Summary View of the Rights of British America," which also set forth the wrongs inflicted upon his countrymen, in bold and glowing colours. This he addressed to the king in respectful, but plain and impressive language, in the following eloquent strain. "Open your breast, Sire, to liberal and expanded thought. It behooves you to think and act for your people. The great principles of right and wrong are legible to every reader: to peruse them, needs not the aid of many counsellors. The whole art of government consists in the art of being honest," etc.

So exasperated was Lord Duninore on perusing this article, that he threatened to arrest its author for high treason. Written and published during the session of the legislature of which Mr. Jefferson was an influential member, and finding that resolutions had been passed by the representatives, quite as treasonable in their character as the publication in question, his lordship immediately dissolved the farther action of that body.

The following year, the British ministry, in answer to petitions for redress of grievances, sent to the assembly of the Old Dominion, a series of propositions that *they* termed conciliatory, but which, in truth, added insult to injury. Their hypocrisy and fallacy were unmasked and exposed by Mr. Jefferson, in a masterly strain of eloquent and withering logic and sarcasm, that carried conviction to a large majority of his colleagues. They were referred to a committee, which reported an answer, drawn by the author of the declaration of independence, similar, in its main features, to that much admired document, which was immediately adopted. The ball of resistance was put in motion, the electric fluid of patriotism commenced its insulating powers in the north and in the south; and, extending from sire to son, from heart to heart, the two streams met in the centre, and rising in grandeur, formed the beautiful and luminous arch of FREEDOM, with its chord extending from Maine to Georgia, its versed sine resting upon the city of Penn. Under its zenith, at the city of Philadelphia, the continental congress convened, in which Thomas Jefferson took his seat on the 21st of June,

1775. Although one of the youngest members of that venerated assemblage of sages and patriots, he was hailed as one of its main pillars. Known as a man of superior intelligence, of liberal sentiments, of strict integrity, of stern republicanism, and of unbending patriotism, his influence was strongly felt and judiciously exercised. From the beginning, he advocated a separation from the mother country, and met, at the threshold, every argument that was urged against it. He considered that allegiance to the crown had been dissolved by oppression, and the original contract cancelled by American blood. Submission was no longer a virtue; the measure of wrongs was filled and overflowing; public sentiment demanded the dissolution of the gordian knot; and a voice from heaven proclaimed, “*let my people go.*”

The following year, the declaration of independence was proposed, and Mr. Jefferson appointed chairman of the committee to draft a form. He was requested, by his colleagues, to prepare the important document. He performed the task with a boldness of design, and beauty of execution, before unknown and yet unrivalled. The result of his labour is before the world. Admiring nations have united in applauding the declaration of our rights, penned by Jefferson, and sanctioned by the continental congress on the 4th of July, 1776. As a master piece of composition, as a clear and lucid exposition of the rights of man, the principles of free government, the sufferings of an oppressed people, the abuses of a corrupt ministry, and the effects of monarchy upon the destinies of man, it stands unequalled. Pure in its origin, graphic in its delineations, noble in its features, glorious in its career, benign in its influence, and salutary in its results, it has become the chart of patriots throughout the civilized world. It is the *ne plus ultra*^A of a gigantic mind, elevated to a lofty eminence by the finest touches of Creative Power; displaying its boldest efforts, its brightest conceptions, its holiest zeal, its purest desires, and its happiest conclusions. It combines the attributes of justice, the flowers of eloquence, the force of logic, and the soul of wisdom. It is the grand palladium of equal RIGHTS, the polar star of rational LIBERTY, the Magna Charta of universal FREEDOM, and has crowned the name of its author with laurels of immortal fame.

^A Nothing beyond—the utmost point.

In the autumn of 1776, Mr. Jefferson, in conjunction with Dr. Franklin and Dr. Deane, was appointed a commissioner to the court of France, for the purpose of forming a treaty of alliance. Ill health of himself and family, and an urgent necessity for his services in his native state, induced him to decline the proffered honour, and also to resign his seat in congress.

He was immediately elected a member of the first legislature of Virginia convened under its new constitution, and was looked upon as one of the main bulwarks of her future safety. After taking his seat in that body, his first business was, to demolish the superstructure of the judicial code, that had been reared, either by, or under the supervision of the British parliament. Although sustained and aided by able and willing colleagues, the great work of revision fell most heavily upon him. The first bill he introduced was aimed at the slave trade, and prohibited the farther importation of negroes into Virginia. This act alone is a triumphant confutation of the accusation often reiterated against Mr. Jefferson, *that he was an advocate of slavery*. To its *principles* he was always opposed, and submitted to it *practically* only by entail. That he struck the first blow at the unhallowed trade of importing human beings for the purpose of consigning them to bondage, is a fact beyond dispute. That this was the first grand step towards a correction of the most cruel features of the *traffic*, will not be denied. To transfer those born in America, from one state to another, bears no comparison to the heart-rending barbarity of dragging the African from his native home.

He next introduced and effected the passage of bills destroying entails, the rights of primogeniture, the church as established by the English law; and also various others, calculated to assimilate the entire system of jurisprudence in the state, to its new and republican form of government; amounting, in all, to one hundred and twenty-six, most of which were passed, and form the present much admired statutory code of Virginia.

In 1779, he was called to the gubernatorial chair of the Old Dominion, surrounded by dangers and perils on every side. The British troops, headed

by the proud Tarleton and the traitor Arnold, were spreading death and destruction over the state, and contemplated the capture of Jefferson, to cap the climax of their triumphant victories. Terror and dismay were depicted on the faces of the more timid patriots, whilst many of the bolder spirits were much alarmed at the approach of these merciless foes. But the energy and vigilance of the governor were found equal to every emergency. He rallied the bone and sinew of old Virginia, who “with hearts of oak and nerves of steel,” checked the enemy in their bold career of indiscriminate slaughter. He imparted confidence and vigour to the desponding, and roused them to bold and noble action. He dispersed the dark and gloomy clouds that hung over his bleeding state, and inspired the friends of liberty with fresh and cheering hopes of ultimate success. So highly were his services appreciated during the eventful period of his administration, that the members of the legislature entered upon their records an *unanimous* vote of thanks to him, for the able and efficient manner he had performed his public duties, expressing their high opinion of his superior talents, strict rectitude, and stern integrity.

In 1783, Thomas Jefferson again took his seat in congress, and became one of its brightest ornaments. The chaste and moving address from that body to Washington, when he surrendered his commission, was from the soul-stirring pen of Jefferson. He was chairman of the committee appointed to form a plan of territorial government for the extensive regions of the then “far west.” True to his favourite principle of finally emancipating the sable African, he introduced a clause prohibiting slavery after the year 1800, in any of the territories, or states that should be formed from them.

In May, 1784, Mr. Jefferson was appointed a minister plenipotentiary, to aid Messrs. Adams and Franklin, in the important duties of negotiating treaties of commerce with several European nations. He embarked in July following for France, and arrived there on the 6th of August. During his stay he visited several of the foreign courts, but spent the largest portion of his time in Paris. He commanded the highest respect and esteem wherever he went. He was made a welcome guest in the halls of literature, legislation, and jurisprudence. He was received with marked distinction by courtiers and kings, and effected much towards the promotion of the commercial interests of the infant Republic he so ably represented.

He was at Paris when the French revolution commenced, and was often consulted by the leading members of the national convention, relative to the best course to be pursued, in order to establish their government upon the firm basis of republicanism. So far as was consistent with his situation, he gave his opinion freely in favour of rational liberty.

On the 23d of November, 1789, he returned to his native land, and was received with great enthusiasm and affection by his fellow citizens. Soon after his arrival, he was induced to resign his commission as minister to France, and accept the responsible situation of Secretary of State under President Washington. The appointment showed the sagacity of the chief magistrate, and proved a lasting blessing to our country. Familiar with every principle of government; comprehending, at one bold view, the requisites necessary to perfect and perpetuate the new confederation, he was enabled to propose amendments to the constitution that were subsequently adopted, with some suggested by others; and to do much to beautify and reduce to harmonious system, the new order of things. Well versed in the usages of diplomacy, international law, and the policy of European courts, he was prepared to plant the permanent landmarks of foreign intercourse that have guided our nation to the present time in safety, and raised her to a degree of greatness before unknown, in so short a period. A reciprocity of commerce and honourable peace with foreigners, and a rigid neutrality with belligerents, carefully avoiding ambiguous or entangling alliances, were some of his leading principles. To submit to nothing that was clearly *wrong*, and to ask for nothing but what was unquestionably *right*, was a doctrine of Jefferson, forcibly inculcated in his able correspondence with the French ministers, during the brief period of their republic. The motto is still nailed to the flag staff of the star spangled banner, and is handed down from sire to son in its native purity.

To the domestic concerns of his country he devoted a laborious and laudable attention. He insisted upon the adoption of a uniform system of currency and of weights and measures, and suggested many other improvements, predicated upon plain and enlightened premises, and all designed to advance the best interests of the American system. He pointed to the importance of securing and protecting fisheries, and of encouraging enterprise in all the branches of industry. He demonstrated the advantages of every species of commerce, and the necessity of preventing others from

monopolizing such sources as legitimately belonged to the United States. He showed, in a masterly exposition of existing facts, the increasing policy of European courts, in restricting the intercourse of America, and their evident designs of engrossing trade. He submitted to congress an able and elaborate report, showing great foresight, close observation, and deep investigation, relative to the privileges and restrictions of the commercial intercourse of this with other countries. It received great attention, was a subject of long and animated discussion in congress, and became the foundation of a series of resolutions introduced by Mr. Madison, embracing the doctrines it contained, and forming the great line of demarcation between the *old* school federal and republican parties.

Having served his country long and faithfully, and having contributed largely in placing her on the high road of prosperity and freedom, Mr. Jefferson retired from public life on the 31st of December, 1793, and, for a season, enjoyed the more substantial comforts of the domestic circle at Monticello. He took especial care to impart comfort to all around him, and treated his slaves in the kindest manner, thus reducing to practice the mode of treatment towards them he had so often alluded to in theory. The education of his children, the cultivation and improvement of his estate, and the resumption of scientific research, gave to him an exhilarating consolation he had long desired, and which is never found in the arena of public business and political bustle.

His manner of life at the period alluded to, is happily described by the Duke de Liancourt, a distinguished French gentleman who visited him at Monticello, and who wrote a narrative of his tour in the United States.

“His conversation is of the most agreeable kind, and he possesses a stock of information, not inferior to any other man. In Europe, he would hold a distinguished rank among men of letters, and as such he has already appeared there. At present he is employed with activity and perseverance in the management of his farms and buildings, and he orders, directs, and pursues, in the minutest detail, every branch of business relating to them. I found him in the midst of harvest, from which the scorching heat of the sun does not prevent his attendance. His negroes are nourished, clothed, and treated as well as white servants could be. Every article is made on his farm; his negroes being cabinet makers, carpenters, and masons. The children he employs in a nail manufactory, and the young and old negresses

spin for the clothing of the rest. He animates them all by rewards and distinctions. In fine, his superior mind directs the management of his domestic concerns, with the same ability, activity, and regularity, which he evinced in the conduct of public affairs, and which he is calculated to display in every situation of life.”

During his recess from the toils of public life, Mr. Jefferson was unanimously elected president of the American Philosophical Society, a circumstance that was highly gratifying to him. It afforded him much pleasure to occupy the chair that had been long and ably filled by his revered friends, the illustrious Franklin and the philosophic Rittenhouse. He proved himself, in every way, worthy of the honour conferred. After a repose of three years, Mr. Jefferson was again called upon by his fellow citizens to mount the theatre of public action. President Washington had proclaimed his determination to retire to the peaceful shades of Mount Vernon, and leave the presidential chair to a new incumbent. The people had become divided politically, and each party determined to nominate a candidate for the high and responsible station about to become vacant. Mr. Jefferson was selected by the democrats, and Mr. Adams by the federalists. The election resulted in the choice of Mr. Adams for President, and of Mr. Jefferson for Vice President. As the presiding officer of the Senate, he discharged his duty with dignity and impartiality. Familiar with parliamentary rules, he was uniformly prepared to decide such questions as came before him, promptly, and generally to the satisfaction of the members.

At the next presidential election, he was again a candidate in opposition to Mr. Adams. The mountain waves of party spirit rolled over the United States like a mighty torrent. Each party presented a bold front regardless of danger, pressed on by a rear rushing to conflict. The political campaign terminated in favour of the democrats, who returned an equal number of votes for Mr. Jefferson as President, and Aaron Burr as Vice President. This singular circumstance imposed the election of the chief magistrate upon the House of Representatives. To defeat the election of the great leader of the popular party, some of his opponents voted for Mr. Burr. A most spirited contest ensued, and thirty-five ineffectual ballotings were made. The ambition of the latter gentleman for promotion, at last so much subsided, as to induce him to withdraw from a farther contest with the man of the

people's choice; and, on the thirty-sixth ballot, Mr. Jefferson was duly elected President, and Mr. Burr Vice President; the former by a majority of eight votes.

The following extract from his inaugural address will show with what sentiments he entered upon the performance of his arduous duties.

“Equal and exact justice to all men, of whatever state or persuasion, religious or political; peace, commerce, and honest friendship with all nations; entangling alliances with none; the support of the state governments in all their rights, as the most competent administrations for our domestic concerns, and the surest bulwarks against anti-republican tendencies; the preservation of the general government in its whole constitutional vigour, as the sheet anchor of our peace at home and safety abroad; a zealous care of the right of election by the people, a mild and safe corrective of abuses which are lopped by the sword of revolution where peaceable remedies are unprovided; absolute acquiescence in the decisions of the majority, the vital principles of republics, from which there is no appeal but to force, the vital principle and immediate parent of despotism; a well disciplined militia our best reliance in peace, and for the first moments of war till regulars may relieve them; the supremacy of the civil over the military authority; economy in the public expense, that labour may be lightly burthened; the honest payment of our debts and sacred preservation of the public faith; encouragement of agriculture and of commerce as its handmaid; the diffusion of information and arraignment of all abuses at the bar of public reason; freedom of religion, freedom of the press, and freedom of the person under the protection of the habeas corpus; and trial by juries impartially selected. These principles form the bright constellation which has gone before us, and guided our steps through an age of revolution and reformation. The wisdom of our sages and blood of our heroes have been devoted to their attainment. They should be the creed of our political faith, the text of civic instruction, the touchstone by which to try the service of those we trust, and should we wander from them in moments of error or of alarm, let us hasten to retrace our steps and to regain the road which alone leads to peace, liberty, and safety.”

Here is a statesman's chart, drawn by one of the ablest navigators that ever stood at the helm of government. His soundings were frequent; his observations were made with mathematical exactness; he combined

experience with science, and traced his lines with boldness and precision. To follow its directions is to ensure safety.

Based upon these principles, practically carried out, the administration of Jefferson became popular, peaceful, and prosperous. He knew the reasonable desires of the people, and exerted his noblest energies to provide for them. He knew that the art of governing harmoniously, consisted in an enlightened honesty, and acted accordingly. He anticipated the future wants of the rising and expanding republic over which he presided, and proposed, in his annual and special messages to congress, wise and politic measures to meet them. So satisfactory was his course to his fellow citizens, that he was re-elected to a second term, by a majority of one hundred and forty-eight.

His inaugural address, on that occasion, enforced the same principles contained in his first, and manifested a deep and growing interest in the welfare and prosperity of his country. As his belief in a Supreme Power has been questioned by some, the following extract, containing the same sentiment found in all his writings where this subject is alluded to, may correct those who are labouring under an error on this important point. Hear him, after invoking the aid of congress in the affairs of the nation: "I shall need, too, the favour of that Being in whose hands we are, who led our forefathers, as Israel of old, from their native land, and planted them in a country flowing with all the necessities of life; who has covered our infancy with his providence, and our riper years with his wisdom and power."

If all who profess the religion of the cross, discarded sectarianism and honoured unsophisticated *practical* piety as much as did Thomas Jefferson, the prospect of christianizing the world would soon burst upon us with refulgent brightness. The partition walls of various creeds, drawn from the same pure fountain, and coloured by fancy and construction, would be dissolved by heaven-born charity, and the superstructure of the Redeemer's kingdom would rise from their mouldering ruins in majesty sublime.

Soon after Mr. Jefferson entered upon the duties of his second term, a portentous storm darkened the horizon of his country, charged with the forked lightning of discord. In consequence of being disappointed in obtaining the presidential chair amidst the confusion he created when Mr. Jefferson was first elected, and superseded by Mr. Clinton as vice president

at the expiration of four years, Aaron Burr mounted upon the whirlwind of his wild ambition, and attempted the formation of a new republic in the Spanish provinces on the Mississippi; apparently aiming at an ultimate division, if not dissolution of the United States. Although he was acquitted, after being tried for high treason, owing to his deep cunning in not committing the *overt* acts necessary to convict, yet the dark stigma of a traitor is marked upon the splendour of his brilliant talents, in traces so deep, that time, nor angels' tears, can never remove it. Like a comet, propelled by its own centrifugal force from its constitutional orbit, he fell to rise no more, and our country was preserved from his Catiline grasp.

About the same time, France and Great Britain were at war, both of which, and more especially the latter, had repeatedly insulted the American flag under various but unwarranted pretences. Redress was promptly demanded, and measures pursued to obtain it. Anxious to preserve the peace of his country, but determined to vindicate her rights and maintain her dignity, Mr. Jefferson, whilst he prosecuted a vigorous negotiation for the arrangement of a friendly intercourse and the adjustment of existing differences, prepared for the final alternative of war. He knew well the importance to England of the importing and exporting trade, and as a means of bringing her to honourable terms, recommended to congress the embargo law, which was passed on the 22nd of December, 1807. This measure was violently assailed by the opponents of the administration. It, however, had a salutary effect upon the British government, and caused a relinquishment of the most odious features of the assumptions of power that had been set up, followed by more conciliatory propositions on the part of England, for a final settlement of all difficulties and wrongs. Thus situated were the foreign relations of the United States when the second term of Mr. Jefferson expired, at which time he bid a final farewell to public life, and left the destinies of his beloved country in other hands. He had been an efficient and faithful labourer in the vineyard of American liberty for nearly forty years; he left it richly covered with foliage and fruit; in the full bloom of its vigour and health; enclosed by the palisades of honesty and truth; and adorned with the crowning glory of patriotism and philanthropy.

On the 3d of March, 1809, Thomas Jefferson surrendered the responsibilities of chief magistrate, ceased to be the active statesman, withdrew from the political arena, and again became a private citizen,

surrounded by the halo of his country's gratitude, consoled by the approbation of a pure conscience, and cheered by the plaudits of admiring millions.

From that time forward, he declined all public honours, and remained in peaceful retirement till the day of his death, seldom leaving his favourite Monticello. But he did not enter upon a life of inglorious ease. The same innate activity that had marked his brilliant career from his youth, the same nobleness of mind and energy of character that had raised him to the loftiest pinnacle fame could rear, still prompted him to action. He immediately reduced his time to a harmonious arrangement, and his whole business to the most perfect system. He uniformly rose before the sun, and held a supervision over all the concerns of his plantation. The various publications from his pen, during the period of his retirement, show that he laboured arduously in the fields of science and philosophy. For the promotion of literature and general intelligence he opened an extensive correspondence with men of letters, in this country and in Europe. He considered the diffusion of knowledge, among the great mass of the human family, the greatest safeguard against tyranny and oppression, the purest source of earthly bliss, and the surest passport to freedom and happiness.

Acting from this impulse, he submitted the plan of a University to the legislature of Virginia, to be erected at Charlottesville, a town situated at the foot of the mountain that reared its romantic scenery in front of his mansion. It was to be built with funds raised by donations from individuals and from the state, himself to be a liberal contributor. The plan of the buildings, the course of instruction, the mode of discipline, the duties and accountabilities of the officers and instructors, were all devised and drawn by Mr. Jefferson, and were so much admired and approved by the members of that legislative body, that they passed an act authorizing its adoption, and appointed its author Rector, to carry the design into effect. Upon the completion of that object he then devoted all necessary time, and *more* money than strict prudence called for. It became the doating object of his old age, and his strongest efforts were exerted in its accomplishment. These were crowned with success, and he had the happiness to live and see the University completed and filled with students. The course of instruction was designed to prepare the scholars for the general routine of business, both public and private, without being strictly classical. The library was

selected by him with great judgment and care, and was confined to what may be termed *useful* books, treating upon subjects necessary to be understood by every citizen, to prepare him to discharge properly the duties he owes to himself, his family, his country, and his God. A catalogue, written by the hand of Jefferson, is still there, and carefully preserved. He exercised a parental care over this institution as long as his physical powers would permit; and was often seen viewing it with an exquisite pleasure and an honest pride. Much of his time was devoted to visitors, to whom his hospitality was liberally and kindly extended. Thousands of his own countrymen paid their grateful respects to him, and Europeans of distinction thought their tour in the United States incomplete, until they took by the hand the PATRIOT, the SAGE, the PHILOSOPHER, and the PHILANTHROPIST of Monticello. To delight, to instruct, and to please, he was peculiarly calculated. He was familiar with every subject; his mind united the vigour of youth with the experience of age; the strength of a giant with the innocence of a babe. The broad expanse of the universe, the stupendous works of nature, the Pierian fields of science, the deep recesses of philosophy, and the labyrinthian avenues of the intellect of man, seemed spread before him like a map of the world. He was an encyclopedia of the age he adorned, a lexicon of the times he enlightened, and one of the brightest diadems in the crown of his country's glory.

With calm dignity and peaceful quietude, Mr. Jefferson glided down the stream of time towards the ocean of eternity, until he reached the eighty-fourth year of his age. Forty-four years had rolled over his head, since his amiable companion, the daughter of Mr. Wayles, an eminent lawyer of Virginia, had slumbered beneath the clods of the valley. One of two interesting daughters, the only children he ever had, was also resting in the silent grave. The charms of earth began to fade before him, and he felt sensibly that he was fast approaching the confines of another and a better world. The physical powers and mechanical structure of his frame were fast decaying; the canker worm of disease was doing its final work; and the angel of death stood over him with a keen blade, awaiting Jehovah's signal to cut the thread of life, and set the prisoner free. Early in the spring of 1826, his bodily infirmities increased, and from the 26th of June to the time of his decease, he was confined to his bed. He then remarked to his physician, "my machine is worn out and can go no longer." His friends who attended him, flattered themselves that he would again recover, but *he* was

convinced that his voyage of life was about to close, and that he would soon cast his anchor in the haven of rest. To those around him he said, “do not imagine that I feel the smallest solicitude as to the result. I do not indeed *wish* to die, but I do not *fear* to die.” To his last moments, he manifested a peculiar anxiety for the future prosperity of the university which he had founded, regarding it as the youngest child of his old age. Assured that it would receive the fostering care of the state, he could say, now Lord, dismiss me. On the 2nd day of July, his body became extremely weak, but his mental powers remained as clear as a crystal fountain. He called his family and friends around him, and, with a cheerful countenance and calm dignity gave directions for his funeral obsequies. He requested that he might be interred at Monticello, without pomp or show, and that the inscription upon his tomb should only refer to him as “The author of the Declaration of Independence, of the Statutes of Virginia securing religious freedom, and as the father of the University.” He then conversed separately with each of his family: to his surviving daughter, Mrs. Randolph, he presented a small morocco case, which he requested her not to open until after his death, and when opened, was found to contain a beautiful and affectionate poetic tribute to her virtues.

The next day, being told it was the 3d of July, he expressed a desire that he might be permitted to inhale the atmosphere of the 50th anniversary of our national freedom. His prayer was granted, the glorious 4th of July, 1826, dawned upon him, he took an affectionate leave of those around him, and then raising his eyes upward, articulated distinctly, “I resign myself to God, and my child to my country,” and expired as calmly as an infant sleeps in its mother’s arms, without a murmur or a sigh. Thus lived and thus died THOMAS JEFFERSON, universally esteemed in life, and deeply mourned in death by a nation of freemen; deeply lamented by every patriot in the civilized world.

In person, he was slender and erect, six feet two inches in height; light and intelligent eyes; noble and open countenance; fair complexion; yellowish-red hair, and commanding in his whole appearance. In all the relations of public and private life, he was a model of human talent and rigid integrity, rarely equalled and never surpassed. His whole career was calm and dignified. Under all circumstances his coolness, deliberation, and equanimity of mind, placed him on a lofty eminence, and enabled him to

preserve a perfect equilibrium, amidst all the changing vicissitudes and multiform ills that flesh is heir to. He kept his passions under complete control, and cultivated richly the refined qualities of his nature. His philanthropy was as broad as the human family; his sympathies were co-extensive with the afflictions of Adam's race. He was born to be useful; he nobly fulfilled the design of his creation.



JOHN HANCOCK.

Biography is a subject of such thrilling interest, that the memory of most men, in every age and nation, who have rendered themselves eminent, either in the cause of virtue or vice, glory or infamy, has been handed down on the pages of history. Among the unlettered nations of the earth, we find the exploits of their heroes and sages recorded with hieroglyphics, in wild simplicity; or find their names interwoven in the wild and more romantic tales of mysterious tradition. When graced with truth and impartiality, the subject is not only interesting, but calculated to enrich our minds, by producing a desire to emulate the examples of the great and good, and by pointing out to us the paths of error, that lead us to disgrace and ruin. The interest felt in the history of an individual, depends much upon the manner the biographer performs his important and responsible duty, but more upon the sphere of action and the magnitude of the cause in which the individual has been engaged. The *cause* in which JOHN HANCOCK, the subject of this brief sketch, was engaged, is one deeply interesting to every philanthropist, and more especially to every American. It was the cause of humanity and equal rights, opposed to cruelty and oppression; the cause of American Independence, opposed to British tyranny. The *part* he acted, was alike creditable to his head and heart; his fame is enrolled on the bright list of the illustrious patriots of the revolution.

He was a native of Massachusetts, born near Quincy, in 1737. His father, of the same name, was a clergyman, eminent for his piety, and highly esteemed by the parishioners under his charge. He died during the infancy of his son, and left him under the guardianship of his paternal uncle, who treated him with all the tenderness of a father, and continued him at school until he graduated at Harvard College in 1754. His uncle was a merchant of immense wealth, and, on the completion of his studies, placed him in his counting-house, that he might add to his science a knowledge of business, of men, and of things. In 1760, he visited England, saw the mortal remains of George II. laid in the silent tomb, and the crown placed upon the head of

his successor. He continued in the business of his uncle until the age of twenty-seven, when his patron and benefactor died, leaving him his vast estate, supposed to be the largest of any one in the province.

He was, for many years, one of the select men of Boston; and, in 1766, was elected a member of the General Assembly of Massachusetts. He there exhibited talents of a superior order, which attracted the attention, excited the admiration, and gained the esteem of his colleagues. They also excited the jealousy and irony of his enemies, who soon put him in the crucible of slander and persecution; but, after a long trial, he came out like gold seven times tried; he was weighed in the scale of justice, and not found wanting.

As a proof of the high estimation in which he was held when in the assembly, he was placed on the most important committees of that body, and was uniformly chairman. He was also elected speaker, but the governor, who was jealous of his liberal principles, put a veto upon his appointment.

His intelligence had led him to investigate the laws of nature, of God, and of man; he arrived at the conclusion, that men are endowed by their Creator with certain inherent privileges, that they are born equal, and they of right are and should be free. He drank deep from the fountain of liberal principles, and was among the first to repel the blind and cruel policy of the mother country, and rouse his fellow men to a sense of impending danger.

Although deeply interested in commercial business, and more exposed to the wrath of kingly power than any individual in the province, he boldly placed himself at the head of associations for prohibiting the importation of goods from Great Britain. The other provinces caught the fire from these examples; and, to these associations may be traced the preliminaries of the tragic scene, that resulted in the emancipation of the enslaved colonies of the pilgrim fathers.

As an evidence that John Hancock was a leading patriot at that time, the first seizure that was made by the revenue officers, under pretence of some trivial violation of the laws, was that of one of his vessels. The excitement produced by this transaction was so great, that a large number collected to rescue the property. It was moved under the guns of an armed ship, ready charged, to repel any attack. But the popular fury rose like a thunder gust from the western horizon; they rushed to the onset; brought away the vessel, razed to the ground some of the houses occupied by the

custom-house officers, and burnt, in triumph, the boat of the collector. This fire was, for a time, smothered by the mantle of authority, but it was never extinguished; it was the fire of Liberty. It only required to be fanned by the impolitic oppression that eventually blew it into curling flames.

To prevent the recurrence of a similar scene, several regiments of British troops, with all their loathsome vices fresh upon them, were quartered amongst the inhabitants. This was like pouring pitch on a fire to extinguish it. The stubborn and independent spirits of Boston were not to be *awed* into subjection. The consequences were tragical. On the evening of the 5th of March, 1770, a party of these soldiers fired upon, and killed a number of the citizens, who had collected to manifest their indignation against those they *hated* more than they *feared*. Had an earthquake shook the town to its very centre, the agitation could not have been greater. Had it been melting before devouring flames, the commotion could not have increased.

The tolling of bells; the groans of the wounded and dying; the shrieks of widows, mothers, and orphans; the flight of soldiers; the rush of the inhabitants; the cry of vengeance, urged on by popular fury; all combined to render it a scene of confusion and horror, upon which imagination dwells and sickens; beneath which, description quails and trembles; at the sight of which, humanity bleeds at every pore. It is a commentary, strong and eloquent, upon the impropriety of quartering soldiers amongst citizens, of maintaining civil law by military force, and of intruding upon the *sanctum* ^B *sanctorum* of private and domestic peace.

^B Holy or sacred place.

On the following day, a meeting of the inhabitants was held; a committee was appointed, at the head of which were Hancock and Samuel Adams, instructed to request the governor to remove the troops from the town. He at first refused, but finding, under existing circumstances, that discretion was the better part of valour, he ordered their removal. This, with

promises that the offenders should be brought to condign punishment, prevented further hostilities at that time.

The awful and imposing solemnities of interring those who were killed, was then attended to. Their bodies were deposited in the same tomb; tears of sorrow, sympathy, and a just indignation, were mingled with the clouds as they descended upon the butchered victims; and the event was, for many years, annually commemorated with deep and mournful solemnity. A *te deum* and *requiem* were chanted to their memory, and the torch of liberty was replenished at their tomb.

At one of these celebrations, in the midst of the revolution, John Hancock delivered the address. A few brief extracts will give the reader some idea of the feelings and sentiments that pervaded his bosom, and of his powers as an orator and a statesman.

“Security to the persons and property of the governed, is so evidently the design and end of civil government, that to attempt a logical demonstration of it, would be like burning a taper at noon day, to assist the sun in enlightening the world. It cannot be either virtuous or honourable to attempt to support institutions of which this is not the great and principal basis.”

“Some boast of being friends to government: I also am a friend to government, to a righteous government, founded upon the principles of reason and justice; but I glory in avowing my eternal enmity to tyranny.”

He then proceeded to portray, in vivid colours, the wrongs inflicted by the mother country, and urged his fellow citizens to vindicate their injured rights.

In speaking of the Boston massacre, his language shows the emotions of his heaving bosom, the feelings of his indignant soul.

“I come reluctantly to the transactions of that dismal night, when, in such quick succession, we felt the extremes of grief, astonishment, and rage; when Heaven, in anger, suffered hell to take the reins; when Satan, with his chosen band, opened the sluices of New England’s blood, and sacrilegiously polluted her land with the bodies of her guiltless sons.

“Let this sad tale never be told without a tear; let not the heaving bosom cease to burn with a manly indignation at the relation of it through

the long tracts of future time; let every parent tell the story to his listening children, till the tears of pity glisten in their eyes, or boiling passion shakes their tender frames.

“Dark and designing knaves, murderous parricides! how dare you tread upon the earth which has drunk the blood of slaughtered innocence shed by your hands? How dare you breathe that air, which wafted to the ear of heaven the groans of those who fell a sacrifice to your accursed ambition? But if the labouring earth doth not expand her jaws; if the air you breathe is not commissioned to be the minister of death; yet, hear it and tremble! the eye of heaven penetrates the darkest chambers of the soul, and you, though screened from human observation, must be arraigned, must lift your hands, red with the blood of those whose death you have procured, at the tremendous bar of God.”

His boldness greatly exasperated the adherents of the crown, and every artifice was put in requisition to injure his growing popularity. Amongst them, was his nomination by the governor, who had uniformly been his enemy, to the council, hoping, by this stratagem, that he would, by his acceptance, turn the populace against him. By a prompt refusal he defeated the intrigues of his enemies, and riveted himself more strongly on the affections of those who favoured liberal principles, rendering himself more obnoxious to the king’s officers. He was at this time captain of the governor’s guard, and was immediately removed. As a testimony of respect to him, his company; composed of the first citizens of Boston, dissolved themselves at once.

The tocsin of the revolution was now sounded from the heights of Lexington; American blood had again been shed by British soldiers; the people heard the dread clarion of revolution; thousands rushed to the rescue; the hireling troops fled; in their flight, they found the messengers of death stationed on their whole route; retribution met them at every corner; the trees and fences were illumined by streams of fire from the rusty muskets of the native yeomanry; and many of Briton’s proud sons slumbered in the arms of death on that memorable, that eventful day.

The governor, on the reception of this news, issued his proclamation in the name of his most Christian Majesty, George the III., declaring the province in a state of rebellion, but graciously offering pardon to all

returning penitents, excepting John Hancock and Samuel Adams, who had also rendered himself obnoxious by his patriotic and independent course. A secret attempt was made to arrest them, but was foiled. These two philanthropists were preserved to aid in the glorious cause they had boldly and nobly espoused, and to become shining lights in the blue arch of liberty, and bright examples of patriotism to future generations. Their proscription by the governor only served to endear them still more to their friends and their bleeding country. In 1774, John Hancock was unanimously elected President of the Provincial Congress of Massachusetts; and, in 1775, he was called to preside over the Continental Congress. He accepted this appointment with diffidence, there being many of its number much his senior, and of eminent talents. He, however, succeeded in discharging the arduous duties assigned him, with fidelity and great ability, and to the satisfaction of his colleagues and his country.

His was the only name affixed to the Declaration of Independence when it was first published and presented to the fearless patriots for their approval; and it stands first in bold relief, on a thousand facsimiles, scattered through the world. It stands at the head of a list of sages, whose names are enrolled in unfading glory, and will be handed down to the remotest ages of time, unsullied and untarnished.

Impaired in his health and worn down by fatigue, Mr. Hancock resigned his station in Congress in October, 1777, having presided over that august body for two years and a half, with a credit to himself, gratifying to his friends, and advantageous to the cause of human rights.

Soon after he returned home, he was elected to a convention of his native state to form a constitution for its government. His experience and talents were of great service in producing a truly republican instrument. In 1780, he was elected the first governor under the new constitution, and continued to fill the gubernatorial chair for five years, when he resigned. After two years he was again elected, and continued to fill this station, with dignity and usefulness, during the remainder of his life. During his administration over the destinies of his dear native state, there were many difficulties to overcome, many evils to suppress. The devastations of the war had paralyzed every kind of business; reduced thousands from affluence to poverty; polluted the morals of society; and left a heavy debt to be liquidated. Many conflicting interests were to be reconciled; many

restless spirits were to be subdued; and many visionary theories were to be exploded. Insubordination, arrayed in a faction of 12,000 men, threatening to annihilate the government, was the most prominent evil to be removed. Abuses and riots were of frequent occurrence; the civil authorities were disregarded; and it was found necessary to call out the militia to preserve order. By the prudent management of Governor Hancock, these difficulties were adjusted, the clamour of the people hushed, their complaints silenced, order restored, and but few lives sacrificed at the shrine of treason.

For a time, the governor, by his firm and determined course, incurred the displeasure and enmity of many prominent men; but when reason resumed her station, and prosperity began to alleviate the burdens that had been so strongly felt, their ire was appeased, the sour feelings of party spirit lost their rancour, and admiration and esteem for his sterling virtues and talents, and the long and arduous services he had rendered his country and his state, disarmed his enemies of their resentment, and produced uniform love and esteem.

He used his best exertions in favour of the adoption of the federal constitution, and, to cap the climax of his well earned fame, he left a sick bed on the last week of the session of the Assembly of his state, and, by his vote and influence, induced them to accept and sanction that important instrument of confederation, that has thus far held us in the bonds of union, strength, and power.

Governor Hancock now had the satisfaction of seeing prosperity spread its benign influence over the whole infant republic, and her institutions, laws, trade, manufactures, commerce, and agriculture, based on the firm pillars of freedom and eternal justice. His long nursed vision was reduced to a happy reality; he felt that he could die in peace; and, on the 8th of October, 1793, his soul took its flight suddenly and unexpectedly, to join the kindred spirits that had gone before, to enter upon the untried scenes of the eternal world. He continued to serve his country to the last, and, if a particle of malice against him lingered in the dark bosom of any man, it was buried with him in the tomb. Governor Hancock was amiable in his private character; highly honourable in his feelings; gentlemanly in his deportment; fashionable in his style of living; fond of innocent amusements, but free from corrupting vices; liberal and charitable; a friend to the poor, the oppressed, and the distressed; diligent in business; open and frank in his

disposition; a faithful companion; a public spirited citizen, and a consistent man.



BENJAMIN FRANKLIN.

The name of BENJAMIN FRANKLIN, conspicuous upon the pages of European and American biography, ever commands peculiar respect and veneration. It is surrounded with a rich variety, as rare as it is instructive and interesting.

Franklin was born at Boston, on the 17th of January, 1706, exactly ninety years before my humble self. His father was among the puritans who fled before persecution, and sought repose in the wilds of Massachusetts. His parents were poor, but honest and esteemed. Poverty is ever inconvenient, but has not always been a disgrace. Honesty and industry were formerly the brightest stars on the escutcheon of fame.

Franklin manifested a taste for improvement at an early age, and exhibited talents of a superior order. His pious parents encouraged his education as far as their limited means would permit, and were anxious to see him prepared for the pulpit; but necessity compelled his father to take him from school at the age of ten years, and place him in his shop, to aid him in the prosecution of the Chandler business. But this did not paralyze his native genius. Original in every trait of his character, eccentric in his manner, and the child of nature and experiment, he commenced the study of practical philosophy, amidst candle wicks, tallow, and soap. He went through the experiments of ascertaining the precise quantity of sleep and food requisite to supply the wants of nature, and the kind most conducive to health. At this early age, he adopted rules of temperance, frugality, and economy, worthy of imitation, and adorned with all the system of mature age. He also accustomed himself to meet and bear disappointments with philosophic fortitude. He continued to improve his mind by reading, for which he had an insatiable thirst. Nothing passed by him unnoticed, and his expanding genius drew philosophy from nature, from things, and from men. He reasoned, analyzed, moralized, and improved, from every thing he saw. Hence the vast expansion of his gigantic genius, comprehending at one bold

view, through after life, the philosophy of mind, of nature, of science, of art, of government, of society, and all the relations of creation, from the dust under his feet, through the myriads of animalculæ in a drop of water, up to the bright seraphs of the skies. A mind like his could not long be confined in a chandler's shop. Open and honest in his disposition, he communicated his wish of moving in some other sphere, to his father. After an examination of the various trades, and working a short time with a cutler, he was bound to his brother, to learn the art of a printer. He soon became master of his profession, and left a shining example for all apprentices, by adding to his industry in business the improvement of his mind during every leisure hour—a happy prelude to his glorious and useful career through future life.

So intensely bent on the acquisition of knowledge was Franklin, that he often preferred his book to his meal, and studied whole nights, in defiance of the commands and entreaties of Morpheus. As he was paid a weekly sum for his board, he adopted a course of simple vegetable diet, by which he saved money to purchase books. He manifested a correct taste and a sound judgment in the selection of authors and subjects. Among them, he studied with admiration and attention the *Memorabilia* of Xenophon, and became one of the closest imitators of Socrates, in his mode of reasoning and habits of life, to be found on record. Before he became versed in the rules of propriety, he often gave offence by the bold and obstinate manner in which he advanced and maintained his opinions.

He now commenced his literary career; and, as is most usually the case with young authors, he offered his first sacrifice to Calliope, in a strain of rhyming ideas. His poetry was applauded, but his father, who was a man of sound judgment, cured him of his poetic mania, by turning his verses into ridicule; at the same time encouraging him to improve his talents by writing prose. Suspicious of his own ability, fearing the shafts of criticism, he managed to have several of his productions published in the paper edited by his brother, in so clandestine a manner, that no one could know the author. When he found they met with general admiration, his vanity, as he says, did not let the world long remain ignorant of the writer.

Being flattered by praise and attention from others, he began to feel his importance, which resulted in an open rupture between him and his brother, to whom he was an apprentice. For some time, he endured a course of harsh treatment, but at length resolved to free himself from the chains of bondage.

He soon found an opportunity of embarking for New York, where he arrived in safety. Not being able to obtain business there, he bent his course towards the city of Philadelphia, on foot, and alone. On his arrival there, he had but one solitary dollar left; was a stranger, and only seventeen years of age; and, without business, must soon be dependent on the cold charities of the world for his bed and board. On entering Market street, his eccentric appearance excited the gaze of the multitude, as much as his towering talents subsequently did the gaze of the world. He had a roll of bread under each arm, and, approaching the Delaware, he sat down and feasted upon his bread and the pure water from the river. His pockets were projected to an enormous size with the various articles of his wardrobe, and, on the whole, his corpulent appearance was not in bad keeping with old Boniface.

Although there were but two printing offices in Philadelphia, he succeeded in obtaining employment in one, as compositor. He now reduced all his theories of economy to successful practice, maintaining himself at a trifling expense, pursuing a correct and industrious career, which gained for him the esteem of all his acquaintances. Among others, his talents attracted the attention of Sir William Keith, then Governor of the province, who invited him to his house and treated him with great kindness.

The governor was a man whose liberality in *promises*, often went beyond the means of his *purse*. Anxious to see his young friend placed in more auspicious circumstances by his benefaction, he proposed to set him up in business, and sent him to London, with letters of high commendation, to obtain the necessary materials for his new enterprise. On his arrival there, he was much chagrined to find that no pecuniary arrangements were made by his new benefactor, and he found himself in a strange land without money to enable him to return. But this was only another lesson of experience, in whose school he delighted to study; and, instead of sitting down under the weight of disappointment and dejection, he soon obtained employment, and, by his skill and industry, gained the confidence and esteem of all his new acquaintances. After residing there for eighteen months he took passage for Philadelphia on the 22nd of July, 1726. On his way home he concocted a set of rules to govern his actions through future life, of the following substance:

I resolve to be frugal; to speak truth at all times; never to raise expectations not to be realized; to be sincere; to be industrious; to be stable;

to speak ill of no man; to cover, rather than expose the faults of others; and to do all the good I can to my fellow men.

Upon this foundation of native granite he built a superstructure, as beautiful and enduring as the proudest memorials of Greece and Rome.

He arrived at Philadelphia on the 11th of October, and engaged with the merchant, who owned the goods brought in by the ship in which he came, as a clerk. The same industry and success attended him in the counting-house that cheered him at the press, showing clearly that his talents were of a rare and rich variety. His future prospects in this new department brightened before him, but were suddenly prostrated by the death of his employer, which threw him back into his former trade. For a few months he worked for his old master, but finding a partner who had more money than skill, they commenced business on their own account. His industry and exertions were now put in full requisition: he manned his own wheelbarrow in collecting materials for business, and put nature on short allowance, until he should acquire enough to be free from debt. His industry, punctuality, and correct deportment, gained him many valuable and influential friends, through whose patronage he was enabled to extend his business, and shake off his partner, who had become worse than worthless, by embarrassing and retarding the business of the firm. Up to this era in his life, Franklin had been emphatically fortune's foot-ball. His life had been a complete checker-board of changing vicissitudes, blasted hopes, and keen disappointments. But, amidst all the stormy trials that had tossed his youthful bark to and fro, surrounded by the foaming torrents of vice, he never became tarnished by corruption, or degraded by the commission of a base or mean action. The moral principles deeply planted in his bosom by parental instruction during his childhood, were as lasting as his life; a happy illustration of the good effects of faithfulness in parents towards their children.

Having now become liberated from his partner in business, he began to feel the necessity and propriety of choosing another, to fill up the vacuum in his side, and share with him the joys and sorrows that awaited him on this mundane sphere of action. Accordingly, in 1730, he entered into a partnership for life with a widow lady, whose maiden name was Read, and for whom he had contracted an attachment previous to her first marriage. In him she found a kind husband, and in her he found a much more agreeable partner than his former one.

Philanthropy predominated in the heart of Franklin; to better the condition of his fellow men, was pleasure to his soul. The rules governing the “Junto,” formed by him, and now merged in the Philosophical Society, show a superior knowledge of human nature, and of the duty men owe to the creature and the Creator. They breathe universal charity, kindness, benevolence, and good will to all mankind. Among them is one for the suppression of intemperance, a prophetic prelude to the exertions of the present day in this cause.

Franklin had profited by the experience of the past, and was now enabled to steer clear of the numerous rocks and quicksands of error, on which so many are ruined and lost. Although he rode in many a storm, prosperity beamed upon him from this time onward, through a long life of usefulness. His new partner smiled upon him, his friends esteemed him, and in the pleasures of the present, past pains were forgotten.

In 1732, he commenced the publication of “Poor Richard’s Almanac,” which he continued until 1737, circulating 10,000 copies annually. Although under an humble title, it was a work of great merit, being replete with maxims and rules calculated for every day use in the various relations of life. It gained great celebrity in Europe, and was translated into various languages.

About this time he commenced the publication of a newspaper, which was conducted with great ability, free from all scurrility, and a messenger of truth. Would to God the same could be said of *all* the public prints of the present day.

He continued to pursue his studies, until he added to general science a knowledge of the French, Italian, Spanish, and Latin languages. By the “Junto” a small library was commenced, which formed the first stepping stone to the present city collection. He wrote and published a highly interesting pamphlet on the necessity of a paper currency, and added much to his literary fame by the production of various essays, written in his truly original style. He filled, successively and successfully, the situation of state printer, clerk of the General Assembly, and post-master of Philadelphia. He used unwearied exertions to increase municipal improvement in the city, by the organization of fire companies, lighting and improving the streets, regulating the watch, and reducing every thing to that system, order, and

harmony, so congenial to his mind. He was the patron and father of the Philosophical Society, the Pennsylvania University and Hospital; and contributed, in every way he could, to advance the glory and prosperity of his adopted home, and the happiness and peace of his fellow citizens. All the important enterprises, both in the city and province, during these days of his towering fame, were either originated by him, or were more rapidly advanced by his wisdom and counsel; and scarcely any project was undertaken without his approving sanction.

In 1741, he commenced the publication of a “General Magazine,” which contained much useful matter, but was less acceptable than his previous writings, being in part devoted to the litigated points of divinity.

The mechanic arts were also much improved by him. He brought to their aid philosophy and chemistry, and combined them with science, economy, and nature. He improved the chimneys, constructed a stove, and proposed many useful and economical corrections in domestic concerns, from the garret to the cellar, from the plough to the mill. Science acknowledged his master spirit, the arts hailed him as their patron, the lightning bowed in subjection to his magic rod, and nature claimed him as her favourite son.

In 1744, he was elected a member of the provincial assembly, where he was continued for ten successive years. Although not a popular speaker, his clear head and sound judgment, as a legislator and a statesman, gave him an influence over that body before unknown.

During the years he was serving his country in the assembly, he also served in the fields of experimental philosophy, and explained many of the mysterious phenomena of nature, that spread his fame to the remotest bounds of the civilized world. His discoveries in electricity alone, were sufficient to have immortalized his name. He was the first man on record who imparted magnetism to steel—melted metals, killed animals, and fired gunpowder by means of electricity; and the first who conceived and reduced to practice, the method of conducting lightning from the clouds to the points of steel rods, and, by them, harmless to the ground. All the elements and fluids, the air, sea, and land, underwent the close investigation of his vast, his philosophic mind.

In 1758, he was sent to Carlisle to conclude a treaty with the Indians; and in the following year, to Albany, to meet a congress of commissioners, to arrange means of defence against the threatened hostilities of the French and savages. He there submitted a plan that met with the unanimous approbation of the commissioners, but was so republican in its features, as to be rejected by those who had at heart the interests of their king more than the happiness of the colonists.

On the decease of the deputy post-master general of America, Franklin succeeded him, and raised the department from a state of embarrassment and expense, to a fruitful source of revenue to the crown.

About this time difficulties arose between the proprietors and government in the province of Pennsylvania, which were finally referred to the mother country for adjustment, and Franklin was sent to England in June, 1757, as advocate for the province. With his usual industry and address, he performed the duties of his mission, the difficulties were adjusted, and in 1762, he returned, received a vote of thanks from the assembly, and a compensation of five hundred pounds. He was now variously employed in regulating the post-office department, making treaties with the Indians, and devising means of defence on the frontiers: every department of government feeling his beneficial influence. New difficulties arose between the assembly and the proprietors, and, in 1764, Franklin again sailed for England, with instructions to obtain the entire abolishment of proprietary authority. On his arrival there, he was called upon to perform more important and perilous duties. The plan for taxing the colonies had been long agitated, and was now matured by the British ministry. This project Franklin had opposed from the beginning, and he was now arraigned to answer numerous accusations brought against him by the enemies of liberty. On the 3d of February, 1766, he appeared before the House of Commons to undergo a public examination. He was found equal to the task; his enemies were astounded at his logic, boldness, dignity, and skill; and his friends were filled with admiration at the able manner he confuted every accusation, and defended the rights and interests of his native country. Amidst the attacks of artifice and insolence of power, he stood unmoved, and firm as a marble statue. He remained in England eleven years as the agent of the colonies, opposing the encroachments of the crown upon the rights of Americans; and, during the whole time, all the

combined efforts of malice, flattery, and intrigue, were unable to ensnare or intimidate him. He became acquainted with the etiquette, corruptions, and devices of diplomacy; but never bent his knee to Baal, or kissed the hand of a crowned head.

Matters had now arrived at a crisis that induced his departure for his long neglected home. His personal safety in England, and the need of his public services in his own country, admonished him to return. He accordingly embarked, and arrived at Philadelphia in the beginning of May, 1775. He was received with marked attention and esteem, and immediately elected to the continental congress, adding new lustre and dignity to that august body, and enrolling his name among the signers of the Declaration of Independence. Notwithstanding he had used every exertion to reconcile difficulties with Great Britain, and believed his country was yet too weak to achieve its independence, his course was now onward, resolved, with his patriotic colleagues, on liberty or death.

The talents of Franklin were now had in constant requisition, both by his own state and in the general congress. He was always selected to meet the agents of the crown, who were at various times commissioned to offer terms of inglorious peace. They always found in him the firm uncompromising advocate of liberty; the shrewd and wary politician; the bold and zealous defender of the rights of his bleeding country. The disasters of the American army during the campaign of 1778, induced congress to apply to France for assistance. All eyes were turned on Franklin to perform this important mission. In October, 1776, he embarked upon this delicate embassy, and, after a most vigilant intercession, succeeded in concluding a treaty of alliance with that nation, on the 6th of February, 1778, to the great joy of himself and his suffering countrymen. When the news of this alliance reached England, the ministry were much alarmed, and despatched messengers to Paris to endeavour to induce Franklin to enter into a compromise. All was in vain. To Mr. Hutton and others, who came to him with the olive branch of peace, he replied: "I never think of your ministry and their abettors, but with the image strongly painted in my view of their hands red and dropping with the blood of my countrymen, friends and relations. No peace can be signed by those hands, unless you drop all pretensions to govern us, meet us on equal terms, and avoid all occasions of future discord."

He met all their intrigues at the threshold, and they became convinced that the hardy yeomanry of America were not to be dragooned, flattered, or driven from the bold position they had assumed. During the numerous interviews he had with these emissaries, (I can call them by no milder term,) Franklin was cautioned by Mr. Heartley to beware of his personal safety, which had been repeatedly threatened. He thanked his friend and assured him he felt no alarm, that he had nearly finished a long life, and that the short remainder was of no great value. He ironically remarked: "Perhaps the best use such an old fellow can be put to, is to make a martyr of him."

If it required much skill and perseverance to *negociate* an alliance with France, it required more to *preserve* it. A republican form of government is ever repugnant to kingly power. That the French in America would imbibe liberal principles, was a matter of course. That the thrones of Europe would be endangered on their return, was truly predicted. By this course of ingenious reasoning, the British ministers exerted a powerful influence against the continuation of the alliance. But the eagle eye of Franklin penetrated, anticipated, and frustrated all their dark schemes of intrigue; and, in the event, they were compelled to comply with his terms of peace, acknowledge the independence of the colonies, and retire, defeated, disgraced, and humbled. In the arduous duties of settling definitive preliminaries of peace, Franklin was aided by Messrs. Adams, Jay, and Laurens. These duties were closed, and a definitive treaty concluded with Great Britain and the United States at Paris on the 3d of September, 1783.

Although anxious to be discharged from further public service, it was not until 1785, that Franklin was permitted to return to his beloved country, where he could breathe the pure air of republican freedom, no longer polluted by kingly power. During this time he had concluded treaties between the United States and the kings of Sweden and Prussia. On his departure from Europe every mark of respect was paid to him by kings, by courts, by the literati, and by all classes of society that the most towering ambition could desire. He was clothed with the mantle of love and unfading glory. His reputation was perched sublimely on the loftiest pinnacle fame could rear. He had been a pillow of fire to the American cause, and a pillar of smoke to the enemies of human rights.

At the age of eighty years, borne down by fatigue and disease, he returned to Philadelphia. He was hailed with enthusiastic joy, esteem, and

respect by all the friends of liberty, from the humblest citizen up to the illustrious Washington.

Notwithstanding his advanced age, and his great anxiety to retire from the public gaze, he was soon appointed Governor of Pennsylvania—and subsequently, in 1787, elected a delegate to the convention that framed the federal constitution. Many of the bright traits of that matchless instrument received their finishing stroke from his master hand. Early in 1790, his infirmities of body confined him to his room, but his immortal mind remained unimpaired. When approaching rapidly the confines of eternity, he still looked with anxious solicitude upon the interests of the young republic. He still continued to benefit mankind by his writings and counsels. Some of the strongest and most vivid productions from his pen were written during his confinement. His diseases continued to increase, and on the 17th of April, 1790, calm and resigned, cool and collected, peaceful and happy, he resigned his spirit into the hands of his Creator—quitted this vale of tears, and slumbered, quietly and sweetly, in the arms of death—in the full faith of rising to a glorious immortality in realms of bliss beyond the skies.

By his will he prohibited all pomp and parade at his funeral. He was anxious that the plain republican manner of his long and useful life, should be strictly observed in the mournful obsequies of his interment. He was buried on the 21st of April, in the north-west corner of Christ Church yard, where a plain marble slab, even with the surface of the earth, points to where he lies. With his, moulders the dust of his wife, with whom he had lived in harmony and peace. No other inscription is upon the tomb except his and her name.

His death was deeply lamented throughout the civilized world. Congress ordered mourning to be observed throughout the United States one month. The event was solemnized, and many eulogies pronounced in France. The National Assembly decreed that each of its members should wear a badge of mourning on the occasion for three days. The sensations produced there by his death, were as imposing and interesting, and celebrated with as much devotion as those recently witnessed in our own country on the death of La Fayette.

In reviewing the life of this great benefactor of mankind, we find a richer variety to admire than in that of any individual upon the historic

page. In whatever station he moved he was a luminary of the first magnitude. He entered upon the stage of action at a time when the world needed just such a man; and continued upon it just long enough to finish all he had begun. He was found just equal to every work he undertook, and always stopped at the golden point of the finishing stroke—a modest hint for me to close. You who profess to admire his virtues, talents, and usefulness, prove your sincerity by imitating his examples.

ROGER SHERMAN.

The man who has been rocked in the cradle of letters from his childhood; who has become familiar with general science, the classics, and philosophy; who has had a father to aid, and friends to caress him; whose path has been smoothed by uninterrupted prosperity—and does not ascend the ladder of fame, is either untrue to himself, or destitute of native talent. With all the advantages of an education lavished upon him, he sinks into obscurity, and the fond anticipations and future hopes of a doting parent, set in gloom.

When, on the other hand, we see a man, whose opportunities for acquiring an education during childhood and youth carried him not far beyond the confines of the spelling book; a man, who had no father or guardian to warn him against the quicksands of error or point him to the temple of science; his intellect enveloped in the rude attire of nature's quarry at the age of twenty; when we see such a man bursting the chains that bind his mental powers—divesting himself of the dark mantle of ignorance—unveiling his native talents, and shining in all the beauty of intelligence and greatness—we are filled with admiration and delight.

Such a man was ROGER SHERMAN, the great-grandson of Captain John Sherman, who came from England to Watertown, Massachusetts, in 1635. Roger was born in Newton, Massachusetts, on the 19th of April, 1721. His father, William Sherman, was a respectable farmer, with means too limited to educate his son, and, at an early age, bound him to a shoemaker. Like Franklin, at the age of nineteen, he wandered from his master to seek his fortune, and like him, he had a genius that no shop could confine, no obstacle intimidate, or difficulty paralyze. The course of his mind was onward, upward; like a new and blazing star, illuminating the horizon as it rose. Nature designed him to be great and good; he obeyed her dictates.

He went to New Milford, in Connecticut, where he followed shoemaking three years, living within the strictest rules of economy,

contributing from his earnings to the support of a widowed mother, with a family of small children. The education of his young brothers and sisters, also received his attention. Every leisure moment he devoted to books, often having one open before him when using his lap stone. With each succeeding day, his mind expanded, unfolding beauties rich and rare. Every obstacle to the pursuit of knowledge, melted before his untiring industry; he ascended the hill of science with a firm and steady pace.

In June, 1743, he removed his mother and her family to New Milford, and entered into the mercantile business with an elder brother—still pursuing his studies as opportunities permitted. He soon stored his capacious memory with a fund of rich and useful information, that ultimately placed him on the pinnacle of public esteem and usefulness. About that time, he made a public profession of religion, which he adorned through subsequent life. In 1745, he was appointed surveyor of Litchfield county, having made himself familiar with mathematics. Like his contemporary and friend, Benjamin Franklin, he made the calculations of an almanac several years, for a publisher in New York.

At the age of twenty-eight, he married Miss Elizabeth Hartwell, of Staughton, Massachusetts, who died in 1780, leaving seven children. He subsequently married Miss Rebecca Prescott, who lived to have eight children, all of whom, with those by his first wife, he carefully trained in the ways of wisdom and virtue. He also supported his mother, and a maiden sister whose health was poor, until death relieved them, at an advanced age, from the toils of life.

In the prosecution of his literary pursuits, he turned his attention to the study of law, in which he made astonishing proficiency. In 1754, he was admitted to the bar, better prepared to act well his part and do justice to his clients, than many who are ushered into notice under the high floating banners of a collegiate diploma.

The following year he was appointed a justice of the peace and elected a member of the colonial assembly; an honour that was conferred upon him during the remainder of his residence at that place. He was highly esteemed by his fellow citizens. His reputation as a lawyer and statesman stood high, and his private worth enabled him to exercise a salutary influence upon those around him. For industry, sound logic, prudence, and discretion, he

stood unrivalled in the colony. Strong common sense, the true helm of human action, marked his whole career; rendering him substantially and extensively useful to his fellow men and his country. He was a philanthropist of the highest order, a patriot of the purest water.

In 1759, he was appointed a judge of the county court of Litchfield, and discharged his official duties with great faithfulness and impartiality, correcting vice and promoting virtue.

Two years after, he removed to New Haven, where he was appointed justice of the peace, elected to the assembly, and, in 1765, was placed upon the judicial bench of the county court. He received the degree of master of arts from Yale College, of which he was treasurer for many years, fulfilling the trust with scrupulous honesty and fidelity.

In 1766, he was elected a member of the executive council, which was hailed as an auspicious event by the friends of liberal principles. The mother country had manifested a disposition to impose unjust taxation upon the Americans. It required discernment, experience, nerve and decision, to comprehend and oppose the corrupt plans of an avaricious ministry. The colonies had borne the main burden of the French war, in which they had sacrificed large sums of money and fountains of their richest blood. After years of incessant toil, the foe had been conquered, an honourable peace for England obtained, the frontier settlements in a measure relieved from danger, and the soldier again became the citizen.

Whilst their rejoicings on that occasion were yet on the wings of echo, oppression from the crown threatened to blast their fond anticipations of happiness and repose, and bind them in chains, more to be dreaded than the tomahawk and scalping knife.

This colony had furnished more money and men, and lost more of her bravest sons in the French war than any other with the same population. Mr. Sherman had been an active member of the assembly during the period of its prosecution, and remembered well the sacrifices that had been made to gratify the king. He understood perfectly the rights of his own country and those of the crown. He was eminently prepared to discover approaching danger and sound the alarm. He was well calculated to probe the intrigues and venality of designing men, although the Atlantic rolled between him and them.

Mr. Grenville, who was at the head of the British ministry, determined to reduce his long-nursed theory of taxing the American colonies, to immediate practice. The alarm was immediately spread. Appeals for redress, petitions, and remonstrances, numerous signed, were forwarded to parliament; but all in vain. Reason and justice were dethroned and mercy banished from her seat. The car of oppression moved onward; the stamp act was passed; the indignation of the colonists was roused. After much exertion and excitement, *this* law was repealed, to the great joy of the Americans; but they soon found that the storm was only lulled to gather new strength, and pour down its wrath upon their devoted heads with tenfold fury. The year following a duty was laid upon tea, glass, paper, and paints. High toned chords were then touched, and their reverberation reached the heart of every freeman. The tea was hurled into the ocean and the law set at open defiance. This spirited opposition induced a repeal of these duties, except on the first named article. This exception was death to the colonial power of England; to America, freedom. Popular fury increased; kindred spirits united to repel the injury, determined to defend their liberty, regardless of consequences. Amidst these commotions, Mr. Sherman remained undaunted at his post, watching, with a calm and prophetic mind, the moving elements. Although elevated to the bench of the superior court, he remained in the executive council, a firm and consistent advocate of his country's rights; a lucid delineator of Britain's wrongs. He viewed the gathering clouds as they rolled in fury; he saw the lightning of revenge streaming fearfully, without the tremor of a muscle, coolly awaiting the event, relying on Heaven, trusting in God.

High handed and tyrannical measures were now adopted by Parliament. Laws were passed, violating the chartered rights of the colonists, subversive of reason, humanity, and justice. A volcanic storm gathered; the British lion prowled in anger: the Albion Goliath buckled on his armour; the shining steel dazzled in the sun; the sword of vengeance was drawn; colonial blood was spilt; popular fury was roused; allegiance was dissolved; America was free.

At this momentous, this thrilling crisis, a band of sages and patriots assembled at Philadelphia, to devise means for the safety of their bleeding country. In the front rank stood Roger Sherman, in all the dignity of his native greatness. He was a member of the first continental Congress, and

remained firm and unwavering at his post, during the trying scenes of the revolution, the formation of the new government, and the adoption of the federal constitution. With a gigantic mind, improved and enlarged by a rich fund of useful knowledge, inured to all the toils and intricacies of legislation, the history of his country and of nations spread upon his memory, the ingratitude and insults of a foreign monarch preying upon his soul, he was prepared to render his country services, equalled by few, exceeded by none.

His capacity was equal to every emergency: he shrunk from no duty; discharged every responsibility assumed; moving, with the mathematical precision of a planet, within the orbit of sound discretion. He was familiar with men and things, acquainted with the *minutiæ* of human nature, traced causes and results to their true source, and viewed, with a philosophic eye, the secret springs of human action; the *arcana* of economies was open before him; he solved problems, demonstrated principles, placing them in the full blaze of illustration, as irresistible as the pages of Euclid. Such was the self-taught Roger Sherman.

The session of 1775 was one of great labour, anxiety, and embarrassment. None but “hearts of oak, and nerves of steel,” could have sustained the tremendous shock, the fearful onset. An army was to be raised and organized, military stores provided, fortifications erected, rules of government adopted, plans of operation matured, internal enemies encountered, and legions of Britain’s bravest veterans to be repelled. To meet these emergencies, the members of Congress had hearts full of courage, but a treasury empty and bare. A forlorn hope was before them—a revenging foe on their shores. But they had resolved on liberty or death. Nor did they “split on the rock of resolves, where thousands live and die the same.” They met the fury of the king, encountering his vials of wrath with a firmness, wisdom, and patriotism, before unknown; placing them above all Greek, all Roman fame. Their course was onward towards the goal of FREEDOM. No threats of vengeance dismayed them—the shafts of terror fell harmless at their feet.

In 1776, with the colonies bleeding at every pore; a picture of sad reverses before them; a conquering enemy sweeping over their land like a destructive torrent; the streams purpled with the blood of their brethren; the cries of widows and orphans ringing in their ears; the sky illuminated by the

streaming blaze of their towns; this band of patriots conceived the bold and towering plan of independence—a plan that stamped their heads, their hearts, their names, with immortal fame.

Early in the summer, Messrs. Sherman, Adams, Franklin, Livingston and Jefferson, were appointed a committee to draft a declaration of rights. After much deliberation, it was prepared, reported, and, on the memorable 4th of July, 1776, received the hearty sanction of the Continental Congress, amidst the transporting joys of freemen, who hailed it as the bright, the morning star; to them, a prelude of future bliss; to tyrants, a burning meteor, threatening to devour them.

Illustrious in all their actions, the signers of the declaration were eminently so, when, assuming their native dignity, they rose, in all the majesty of greatness, bursting their servile chains; cutting asunder the cords of oppressive allegiance; sublimely passing the grand Rubicon; and, in view of an approving Heaven and an admiring world, declared their country free and independent. The era was one of resplendent glory, sacred to the cause of human rights, enduring as the tablet of time, brilliant as the meridian sun. The sages whose signatures grace the chart of our liberty placed themselves on the loftiest spire fame could rear. By their own consciences, by their countrymen, by Heaven, and in view of gazing millions, they stood approved, applauded, and admired.

No member of the Continental Congress had studied more closely and comprehended more clearly finance and political economy than Judge Sherman. His mind was moulded in system, his plans were judicious, and his habits frugal. He was a practical man and conversant with every department of government. He was an efficient member of the board of war, ordnance, and the treasury. In short, he was placed on the most important committees during the long and bloody struggle of the revolution. His plans for replenishing the treasury, regulating expenditures, and disbursing moneys, were based on rules of economy and frugality, corresponding with the emergency of the times. Fraudulent contractors shrunk before his penetrating scrutiny; speculations upon government were often paralyzed by his torpedo touch; and he guarded, with an eagle eye and a father's care, the interests of the young republic.

In the estimation of Washington, the members of Congress, and of the nation, the talents of Roger Sherman, for sterling integrity and substantial usefulness, were second to none among the bright constellations that illuminated the memorable era of '76. In those days the ladder of fame was firmly based on honest merit and modest worth. It required no stump speeches or bar-room harangues to gain popular favour. The tree was judged by its fruit; *principles* and not *men*, were the political land marks. It was also a time of labour. Inglorious ease was not known in the legislative halls; long written speeches were not read to the speaker and walls of the house: the business of the nation was the order of the day; that business was done faithfully, promptly, and effectually. Posts of honour were then posts of duty; profit was out of the question. The motives and actions of the revolutionary sages and heroes were not based on the seven principles of five loaves and two fishes, but on love of country, social order, and human rights.

By the citizens of his own state the virtues and talents of Mr. Sherman were held in high estimation. In addition to his congressional honours, they continued him a member of council during the war. In 1784, when New Haven received a city charter, he was elected mayor, filling the office with dignity and usefulness to the close of his life, when not absent on more important public duties.

At the termination of the war, he, in conjunction with Judge Law, was appointed to revise the judicial code of Connecticut, which duty was performed with great ability, and to the satisfaction of all concerned. He was a member of the general convention that framed the federal constitution. From a manuscript found amongst his papers, it appears that this instrument of union received many of its original features from Mr. Sherman. To his conceptive mind and practical wisdom, we are much indebted for the towering greatness and unparalleled prosperity we so eminently enjoy, and which will endure so long as we are faithful to ourselves. With all the local and conflicting interests of the colonies spread open to his view, he was enabled to exercise a salutary influence in reconciling difficulties between the members, that, for a time, threatened to hurl back the elements of government into original chaos, and prostrate the fair fabric of liberty.

By examining the profound discussions, the variety of opinions, the multifarious interests, the intense anxiety, the agony of soul, and sacrifices of private views that characterized the formation of the federal constitution, we discover wisdom, discretion and patriotism of the purest, loftiest kind, shining in all the grandeur of bold relieve.

Based upon the declaration of rights, it forms a superstructure towering in sublimity above all others, radiating its heart-cheering influence over sixteen millions of freemen, revered at home, respected abroad, and without a rival in the annals of legislation.

Judge Sherman did much to remove the objections made against this important document by the people of his own and adjoining states. He showed them clearly, and convinced them fully, that to effect and perpetuate the union, private feeling and interest must yield to public policy and public good; and that each state should strive to produce an equilibrium in the government of the whole. The wisdom of the sages who framed, and by their continued exertion and salutary influence effected the adoption of the Constitution of the United States, deserves our admiration quite as much as when they guided our nation through the storms of the revolution. It is often easier to acquire a particular object than to properly enjoy and preserve it.

Judge Sherman was elected a member of the first congress under the new government, and resigned his judicial station that he might take a seat in that body. His influence had great weight in the national legislature. His exertions to promote the interests of his country were unremitting. Traces of his magnanimity and prophetic policy are upon the journals, and in many of the early laws of our country.

Upon many subjects members differed, and, in some instances, much warmth and acrimony were exhibited. On such occasions, Mr. Sherman was peculiarly happy in his exertions to produce reconciliation. He was emphatically a peace maker.

At the expiration of his representative term, he was elected to the United States Senate, of which he was a member when he closed his useful career, and bade a long adieu, a final farewell, to earth and its toils. He died on the 23d of July, 1793, in the full enjoyment of that religion he had honoured and practised in all the changing scenes of his eventful pilgrimage. He had lived the life of a good man, his closing scene was calm,

happy, and serene. He could triumph over death and the grave, reaching forward to receive the enduring prize of immortal glory. He could approach the dread tribunal of the great Jehovah, smiling and smiled upon; and enter into pure and unalloyed bliss, lasting as the rolling ages of eternity.

Thus closed the valuable and useful life of Roger Sherman. He had been a faithful public servant nearly forty years. He had participated in all the trying scenes of the revolution; he had seen his country burst into being, a nation of freemen. He had aided in effecting a consolidation of the government; he had seen the dawnings of prosperity. In all the important measures of the state of his adoption, and of the American nation, he had taken an active and important part, from the commencement of the French war to the time of his death.

As a Christian, he was esteemed by all denominations, for his consistent piety and liberal charity. With him, sectarianism was not religion; for him it had no charms. His philanthropy was as broad as creation; it reached from earth to Heaven. He made himself acquainted with the abstrusest branches of theology, and was an esteemed correspondent of several celebrated divines.

In the history of Roger Sherman, we behold one of nature's fairest sheets of purest white, covered with all the sublime delineations that dignify a man, and assimilate him to his Creator. His life was crowned with unfading laurels, plucked from the rich soil of genuine worth and substantial merit. No ephemeral flowers decked his venerable brow. A chaplet of amaranthine roses surmounts his well-earned fame. The mementos of his examples are a rich boon to posterity, and, whilst religion and social order survive, the virtues of this great and good man will shine in all the majesty of light. His private character was as pure as his public career was illustrious. He buried none of his talents; he fulfilled the design of his creation.

By his example it is plainly demonstrated, that man is the architect of his own fortune. By industry and perseverance, with the aid of books, now accessible to all, young apprentices and mechanics may surmount the Alpine summit of science, and take their stations, with superior advantages, by the side of those who have become enervated within the walls of a college. No one in our land of intelligence is excusable for growing up

under the dark shades of ignorance. The sun of science has risen, and all who will, may bask in its genial rays. The field of knowledge and path to glory are open to all. The means of acquiring information are far superior to those enjoyed by Sherman and Franklin. Let their bright and shining examples be imitated by Columbia's sons, and our happy republic will live for centuries. Let ignorance, corruption, and fanaticism predominate, and the fair fabric of our freedom, reared by the valour, and cemented by the blood of the revolutionary patriots, will tremble, totter, and fall. Chaos will mount the car of discord, sound the dread clarion of death, and LIBERTY will expire amidst the smoking ruins of her own citadel. Remember that "knowledge is power," wealth "the sinews of power," and that honesty, virtue, and integrity are the regulators of them both. Remember that intrigue, fanaticism, and faction may prostrate, at one bold stroke, the fairest, noblest work of years.

EDWARD RUTLEDGE.

The thrilling subject of American Independence is ever welcome to the patriot and philanthropist. The annual celebration of the event is calculated to perpetuate a kindred feeling and a kindred love of liberty. The time *may* arrive when the *day* may not be celebrated, but to the end of time the *event*, and the names of those who achieved it, will be handed down on the historic page with pride and veneration. The names of the Signers of the Declaration, like those of the twelve Apostles, are surrounded by a wreath of glory unfading and untarnished. Among them we find that of EDWARD RUTLEDGE, who was born in Charleston, S. C., in November, 1749. His father, Dr. John Rutledge, was a native of Ireland, who married Sarah Hert, a lady of high accomplishments, piety and good sense. Edward lost his father at an early age, and, like those of many great and good men, his mind was moulded by his mother. After passing through the usual routine of an education, he commenced the study of law with an elder brother, who stood high at the Charleston bar. Whilst he stored his mind with Coke and Bacon, he paid great attention to elocution. In 1769 he went to England, became a student at the temple, made himself familiar with the practice of courts, with the rules of parliament, with the policy, designs and feelings of the British ministry, and cultivated an acquaintance with the celebrated orators and statesmen Chatham, Mansfield and others. In 1773, he returned, richly laden with stock for future use. He commenced a successful practice, uniting an expressive countenance, a good voice, a rich imagination, elegance of action, an honourable mind, and a good heart, with strong native talent, improved by superior advantages and untiring industry.

He soon acquired a merited eminence as a bold, discreet and able advocate. He was peculiarly happy in his exertions excited by the spur of the moment, a talent always useful to a lawyer, and eminently useful to a statesman during a revolutionary struggle. His lamp was always trimmed and burning, and with true Irish zeal and eloquence, he was always ready to

enter the arena where duty called him. He had a warm heart for the weak and oppressed.

It was self-evident that talents like his were well calculated to promote the cause of emancipation, and Mr. Rutledge was among the first selected members to the continental congress in 1774. This alone was sufficient to place him on the list of imperishable fame; for none but men of superior merit, known fortitude, and of pure patriotism, were selected to represent their country's rights and repel a monarch's wrongs. Such a man was Edward Rutledge. With the ardour of an Emmet, he united great prudence and discretion. By his open frankness of expression he incurred the displeasure of the crown adherents, but imparted the holy flame of patriotism to the friends of liberty in a pre-eminent degree.

With all his ardour and zeal he was a friend to order and opposed to mobocracy. He acted from enlightened and liberal principles, aiming to build every superstructure on the firm basis of reason and justice. To this nobleness of design, conceived and adhered to by all of the signers of the declaration, may be attributed the lofty dignity that pervaded that august body. Revolution is a tornado where prudence seldom enters to neutralize its baneful effects; but when such men as those who constituted the first American congress in Philadelphia combine, men who could command the whirlwind of passion, and conduct the lightning of revenge by the silken cords of reason, and the steel rods of unbending patriotism to a desired and useful destination, revolution is stripped of its bane and is crowned with unfading glory. Such were the signers of the declaration—such was the American revolution. We find Mr. Rutledge associated with several important committees of the continental congress, and among them he was appointed with John Adams and Benjamin Franklin to meet Lord Howe, when he came clothed with authority to offer humiliating terms of peace. No three men could have been selected whose combined talents were better calculated to inspire awe and respect. They were received and treated with marked attention by his lordship, who became convinced, that under the direction of such spirits as these, the rebels would conquer or die. They detested his offers of pardon, for who had they injured? They disclaimed all right of the crown to their allegiance; it had been sacrificed at the shrine of an ambitious ministry. Freedom was their motto—Liberty their watchword, and their terms *Independence or death*. They had resolved “to do or die.”

As a sound, judicious and able statesman, Mr. Rutledge stood high; his brow was also decked by laurels in the field. He had long commanded a company in the ancient battalion of artillery. When the British landed at Port Royal in 1779, he led his company to the attack with the skill and courage of a veteran. At no battle during the revolution was more personal bravery displayed than at this, nor was the enemy, at any time, more chagrined at a total defeat by raw militia. It was a mystery to them to find in the same man, the statesman, the soldier and the hero. He was at a subsequent period elected colonel. During the investment of Charleston by the enemy in 1780, he was again in the field, but was unfortunately taken prisoner, sent to St. Augustine, and not exchanged for nearly a year. Before his return the dark clouds began to recede, and the horizon of liberty was slowly illuminated by the rays of hope.

He returned to his native state and aided in restoring the civil government that had been paralyzed by the cruel conquering arm of the crown. He was a member of the enraged assembly who met at Jacksonborough in 1782, and with his recent injuries and those of his friends bleeding fresh before him, he sanctioned the bill of pains and penalties, that, under other circumstances, would not have received his approval, and which, during the time it remained in force, he used every exertion to meliorate.

Among those who had been tortured by persecution was his venerable mother, who had been taken from her peaceful home in the country and confined in Charleston, then occupied by the British; a high compliment to her talents and patriotism, placing her on the list of fame with the matrons of Greece and Rome.

During the whole of the doubtful and protracted struggle of the revolution, Mr. Rutledge remained its steady and zealous advocate, and gave his best exertions in its behalf. After its termination, he again returned to the bosom of his friends and the labours of his profession. His private worth took deep root in the affections of the community, and he had the confidence and esteem of a large circle of acquaintances.

In organizing the new government of his native state, he acted a useful and consistent part. Many difficulties were to be overcome, many clashing local interests to be reconciled, and many measures and laws adopted, to

restore an equilibrium in private and public concerns. A great commotion existed between debtors and creditors; specie was out of the question; the paper currency was nearly annihilated, and many who felt that they had shaken off the British yoke, were about to fall into the hands of relentless creditors, who, when prompted by avarice, are as destitute of mercy as the pirate is of compassion. Instances are on record in our own country, (I blush as I write,) where some of those very veterans who bled for our boasted freedom, have been incarcerated in a prison by the cold inquisitorial creditor, for sums so trifling that shame would hide its face to name them.

In this dilemma, Mr. Rutledge was among those who proposed and passed a law, making property a lawful tender for debts; a law purely republican, but so obnoxious to avarice, that most men, who are aristocrats just in proportion to the amount of wealth they acquire above the wants of life, oppose it.

He also favoured the instalment law, and used his best exertions to meliorate the condition of the poor as well as the rich, by the enactment of laws based upon humanity and justice. He took an active part in most of the legislation of the state, and when the federal constitution was presented for consideration, he was, taking it as a whole, its warm and zealous advocate. Purely republican in principle, he was always opposed to slavery, deeming it a national curse. He was untiring in his labour—emphatically a working man. Dr. Ramsay remarks of him, “For the good obtained and the evil prevented, his memory will be long respected by his countrymen.”

As I have before remarked, he was a friend to order and law, and when any measure was consummated by legislative action, or by any public functionary duly authorized to act, he delighted in seeing it fulfilled to the letter. Although he was in feeling with the French when difficulties arose between them and England, he reprobated strongly the conduct of M. Genet and the French Directory. He was not a party man, but was always actuated by a sense of duty, and a pure desire for the prosperity of his country. His was the stern, unflinching moderation, calculated to awe a mob, paralyze a faction, and preserve, pure and undefiled, that lofty patriotism which commands esteem and respect.

In 1798 he was elected governor of his native state. Soon after, disease fastened its relentless hands upon him, and handed him over to the king of

terrors in the mid career of his term. During the legislative session of 1800, his illness increased so rapidly that he felt an assurance that his dissolution was rapidly approaching, and was desirous of returning to Charleston, that he might yield up his breath where he first inhaled the atmosphere. The constitution required the presence of the governor during the sitting of the legislature, and so scrupulous was he to fulfil its letter, that he determined to remain unless both branches passed a resolution sanctioning his absence. The subject was submitted, but on some debate arising from the partisan feeling then prevalent, the application was immediately withdrawn, and he remained until the legislature adjourned. He was barely able to reach his home, when he laid down upon the bed of death and yielded to the only tyrant that could conquer his patriotic spirit, on the 23d of January, 1800. The same fortitude that had characterized his whole life, was strongly exhibited during his last illness, and did not forsake him in his dying hours. His loss was severely felt and deeply lamented by his mourning fellow-citizens. In the death of this good man, his native state lost one of its brightest ornaments, one of its noblest sons.

Governor Rutledge stood high as an orator. He appears to have understood well the machinery of human nature, and knew well when to address the *judgment* and when the *passions* of his audience. In exciting the sympathy of a jury, he had no equal at the Charleston bar. He also knew how, where, and when to be logical; and, what is all-important in every man, either in the public or private walks of life, he knew *how*, *when*, and *where* to speak, and *what* to say. His private worth and public services were highly honourable to himself, consoling to his friends and beneficial to his country. His usefulness only ended with his life; his fame is untarnished with error; his examples are worthy of imitation, and his life without a blank.

By his first wife, Harriet, daughter of Henry Middleton, one of his colleagues in congress, he had a son and daughter, the latter of whom remained in Charleston, the former, Major Henry M. Rutledge, became one of the pioneers of Tennessee. God grant that he may imitate the virtues of his venerable father, and fill the blank our country experienced in the death of the wise, the judicious, the benevolent, the philanthropic, the patriotic, and the high minded EDWARD RUTLEDGE.

THOMAS M'KEAN.

But few men have contributed more to fill the measure of the glory and prosperity of their country, than the subject of this brief sketch. He was a native of Chester county, Pennsylvania, and born on the 19th day of March, 1734. He was the son of William M'Kean, who immigrated from Ireland when quite young. He placed Thomas, at an early age, under the tuition of the Rev. Francis Allison, then principal of one of the most celebrated Seminaries of the Province, and a gentleman of profound science and erudition. The talents of Thomas soon budded and blossomed like the early rose of spring. His mind was moulded for close application to study; his proficiency was truly gratifying to his teachers and friends, and gave high promise of unusual attainments. He became a thorough linguist, a practical mathematician, and a moral philosopher. He was a faithful student, and left the seminary, a finished scholar and an accomplished gentleman, esteemed and respected by his numerous acquaintances.

He then commenced the study of law under David Kinney, Esquire, at New Castle, Delaware. He explored the vast field of this science with astonishing and unusual success, and was admitted to the bar under the most favourable auspices. He commenced practice at the same place, and soon acquired a lucrative business and a proud reputation. He extended his operations into the province of his nativity, and was admitted in the Supreme Court of Pennsylvania, in 1757. His strict attention to business and his superior legal acquirements, obtained for him an extensive and just celebrity. Although he had become the eloquent advocate and able lawyer, he was still a close and industrious student. He continued to add to his large stock of knowledge, with the same avidity and to greater advantage, than when he commenced his scientific career. He did not fall into the error that has prevented some lawyers of strong native talent from rising above mediocrity: *that when their practice begins their studies end*. This is a rock on which many have been shipwrecked in all the learned professions. The laws of nature demand a constant supply of food in the intellectual as well

as in the physical world. The corroding rust of forgetfulness will mar the most brilliant acquirements, of literature, unless kept bright by use; and much study is requisite to keep pace with the march of mind and the ever varying changes in the field of science, constantly under the cultivation of the soaring intellect of man. It maybe said, that the grand basis of the law is as unchanging as the rock of adamant. To this I answer: its superstructure is an increasing labyrinth, and, unless the progress of the work is kept constantly in view, those who enter, strangers to its meanderings, will find themselves in a perplexing situation.

In 1762, Mr. M’Kean was elected a member of the Delaware assembly from New Castle county, and was continued in that station for eleven successive years, when he removed to the city of Philadelphia. So much attached to him were the people of that county, that they continued to elect him for six succeeding years after his removal, although he necessarily declined the honour of serving. He was claimed by Delaware and Pennsylvania as a favourite son of each, under the old regimen, and did, in fact, serve both after changing his residence, by being elected to the continental congress from the state of Delaware, being then Chief Justice of Pennsylvania, the former state claiming him, probably, because he still retained his mansion, furnished by himself, in New Castle, where his business frequently called him.

In 1779, he attempted to take final leave of his constituents in Delaware, and on that occasion, as a large meeting was convened for the purpose, made a most animating, patriotic and thrilling speech; portraying, in glowing colours, the bright prospects that were dawning upon the infant republic, and the certainty of being able to maintain the independence of the United States. After he retired, a committee waited upon him, with the novel request, that he would name seven gentlemen, suitable to be elected to the assembly. He desired them to report his thanks for the confidence they expressed in his judgment, and assured them there were not only *seven* but *seventy* then in the meeting, fully qualified to represent the people, and begged to be excused from *naming* any gentlemen, lest he should give offence. A second time the committee called and insisted on the selection by him, with the full assurance that he would give no offence. He then named seven candidates, and had the gratification to learn that they were all elected. An unlimited confidence in his abilities and integrity, was strongly

felt by his constituents, he continued to represent them in congress during the eventful period of the war.

In 1765, he was a member of the Congress of New York, sent from Delaware. He was one of the committee that drafted the memorable address to the House of Commons of Great Britain. His patriotism, love of liberty, and unbending firmness of purpose; were fully demonstrated in that instrument, as well as in the acts of his subsequent life. He was a republican to the core, and despised the chains of political slavery, the baubles of monarchy, and the trappings of a crown. He was for LIBERTY or death, and scorned to be a slave.

On his return, the same year, he was appointed judge of the court of common pleas, quarter sessions, and orphans' court, of New Castle county. The stamp act was then in full *life*, but not in full *force*: Judge M'Kean directed the officers of the courts over which he presided not to use stamped paper, as had been ordered by the hirelings of the British ministers. He set their authority at utter defiance, and was the first Judge, in any of the colonies, who took this bold stand. That circumstance alone, trifling as it may now seem to some readers, was big with events, and was an important entering wedge to the revolution, and stamped his name, in bold relieve, on the tablet of enduring fame. He had talent to design and energy to execute. From that time forward, in all the leading measures of the struggle for liberty, he was among the leading patriots.

He was a prominent member of the congress of 1774, that convened at Philadelphia. From that time to the peace of 1783, he was a member of the continental congress, and the only one who served during the whole time. He was a strong advocate for the declaration of independence, and most willingly affixed his signature to that sacred instrument. When it came up for final action, so anxious was he that it should pass *unanimously*, that he sent an express after Cæsar Rodney, one of his colleagues, the other, Mr. Read, having manifested a disposition to vote against it. Mr. Rodney arrived on the 4th of July, just in time to give his vote in favour of the important measure, and thus secured its unanimous adoption. Notwithstanding the arduous duties that devolved on Mr. M'Kean, as member of congress, member of several committees, and chief justice of Pennsylvania, all of which he discharged satisfactorily—so ardent was his patriotism, so devoted was he to promote the cause he had nobly espoused, that he

accepted a colonel's commission, and was appointed to the command of a regiment of associators, raised in the city of Philadelphia, and marched to the support of Gen. Washington, with whom he remained until a supply of new recruits was raised. During his absence, his Delaware constituents had elected him a member of the convention to form a constitution. On his return he proceeded to New Castle, and, in a tavern, without premeditation or consulting men or books, he hastily penned the constitution that was adopted by the delegates. Understanding the wants and feelings of the people, well versed in law and the principles of republicanism, and a ready writer, he was enabled to perform, in a few hours, a work that, in modern times, requires the labours of an expensive assembly for nearly a year. How changed are men and things since the glorious era of '76! How different the motives that now impel to action, and how different the amount of labour performed in the same time and for the same money. Then all were anxious to listen! now nearly all are anxious to speak. Then, legislators loved their country *more*, and the loaves and fishes *less*, than at the present day.

On the 10th of July, 1781, Judge M'Kean was elected president of congress, which honour he was compelled to decline, because his duties as chief justice of the Supreme Court of Pennsylvania would necessarily require his absence some part of the time during the session. He was then urged to occupy the chair until the first Monday of November, when the court was to commence. To this he assented, and presided until that time, with great credit to himself and to the satisfaction of the members of that august body. On his retiring from the chair, the following resolution was unanimously passed on the 7th of November, 1781:

“Resolved, That the thanks of congress be given to the Honourable Thomas M'Kean, late president of congress, in testimony of their approbation of his conduct in the chair, and in the execution of public business.”

His duties upon the bench of the Supreme Court of Pennsylvania, which commenced in 1777, were often of the most responsible and arduous character. He did not recognise the power of the crown, and held himself amenable, in the discharge of his official functions, only to his country and his God. An able jurist and an unyielding patriot, he punished, at the hazard of his own life, all who were brought before him and convicted of violating the laws of the *new* dynasty. No threats could intimidate or influence reach

him, when designed to divert him from the independent discharge of his duty. His profound legal acquirements, his ardent zeal, his equal justice, his vigorous energy and his noble patriotism, enabled him to outride every storm, and calm the raging billows that often surrounded him. He marched on triumphantly to the goal of LIBERTY, and hailed with joy the star spangled banner, as it waved in grandeur from the lofty spires of the temple of FREEDOM. He beheld, with the eye of a sage, a philosopher, and a philanthropist, the rising glory of Columbia's new world. He viewed, with emotions of pleasing confidence, the American eagle descend from ethereal regions, beyond the altitude of a tyrant's breath, and pounce upon the British lion. With increasing vigour and redoubled fury, the mighty bird continued the awful conflict, until the king of beasts retreated to his lair, and proclaimed to a gazing and admiring world, AMERICA IS FREE!! Angels rejoiced, monarchs trembled, and patriots shouted aloud—AMEN!! The grand Rubicon was passed, the torch of England's power over the colonies had expired in its socket, and the birth of a new nation was celebrated by happy millions, basking beneath the luminous rays and refulgent glories of LIBERTY and FREEDOM! The harvest was past, the summer ended, and our country saved. The mighty work of political regeneration was accomplished, the independence of the United States acknowledged, and an honourable peace consummated.

Judge M'Kean, in common with his fellow patriots, heroes and sages, then sat down under his own fig tree, to enjoy the full fruition of his long and faithful labours in the cause of equal rights. He continued to discharge the important duties of chief justice until 1799, illuminating his judicial path with profound learning, impartial decision, and sound discretion. His legal opinions, based as they generally are, upon the firm pillars of equal justice, strict equity, and correct law; given, as they were, when our form of government was changing, the laws unsettled, our state constitution but just formed, and the federal constitution bursting from embryo—are monuments of fame, enduring as social order, revered, respected, and canonized.

He was a member of the convention that formed the constitution of Pennsylvania adopted in 1790, and exercised an influence in that body that was of the most salutary kind. In 1799 he was elected governor of the key-stone state, and contributed largely in adding new strength and beauty to the grand arch of our union. For nine successive years he wielded the destinies

of the land of Penn, commencing at a period when the mountain waves of party spirit were rolling over the United States with a fury before unknown. But amidst the foaming and conflicting elements, Governor M'Kean stood at the helm of state, calm as a summer morning, firm as a mountain of granite, and guided his noble ship through the raging storm, unscathed and unharmed. His annual messages to the legislature for elegance and force of language, correct and liberal views of policy, and a luminous exposition of law and rules of government, stand unrivalled and unsurpassed. The clamours of his political enemies he passed by as the idle wind; the suggestions of his friends he scanned with the most rigid scrutiny. Neither flattery or censure could drive him from the strong citadel of his own matured judgment. The good of his country and the glory of the American character, formed the grand basis of his actions.

The fawning sycophant and the brawling demagogue, he spurned with contempt. By honest means alone he desired the advancement of the party that had elevated him. Open and avowed principles, fully proclaimed and strictly carried out, were by him submitted to the people, frankly and cordially, without prevarication or disguise. He was a politician of the old school, when each party had plain and visible landmarks, distinctive names, and fixed principles. Political chemists had not then introduced the modern process of amalgamation, producing a heterogenous mass, that defies the power of analyzation, scientific arrangement, or classical separation.

Governor M'Kean respected those of his political opponents who opposed him from an honest difference of opinion, and numbered among them many personal friends. He was free from that narrow-minded policy, based upon self, that actuates too many of those of the present day, who assume the high responsibility of becoming the arbiters of the minds of their fellow men. His views were expansive and liberal, broad and charitable. He aimed at distributing equal justice to all, the rich and poor, the public officer and private citizen. He was free from that contracted selfishness that prefers present aggrandizement to future good. To lay deep the foundations of lasting and increasing prosperity for his own state and for our nation, was the object of this pure patriot, enlightened statesman, and able jurist. Her vast resources, her wide spread territory, her majestic rivers, her silvery lakes, her mineral mountains, her rich valleys, her rolling uplands, her beautiful prairies, her extensive seaboard, her enterprising sons

and virtuous daughters, were arrayed before his gigantic mind, and passed him in grand review. He was firmly convinced that she had only to be wise and good to be great and happy. To this end he embraced every opportunity, both in public and private life, to inculcate, by precept and example, those great principles of moral rectitude, inflexible virtue, purity of motive, and nobleness of action, that alone can permanently preserve a nation. He cast a withering frown upon vice in all its borrowed and alluring forms, and exerted his strongest powers to arrest the bold career of crime and corruption. He was a terror to evil doers, and inspired confidence in those who did well. His administration was prosperous and enlightened, and when he closed his public duties, the bitterness of his political opponents was lost in the admiration of his patriotism, virtue, impartiality, consistency, and candour.

In 1808 he retired from the ponderous weight of public business, that he had so long and honourably borne. He had devoted a long life to the faithful service of his country, and was covered with laurels of imperishable fame. He stood approved at the bar of his own conscience, his country, and his God. He had acted well his part, and had contributed largely in raising the American character to a proud elevation among the nations of the earth. Thus highly stood Governor M'KEAN, when he bid a final adieu, a last farewell to the public arena, and retired to the peaceful city of Penn, to breathe his life out sweetly there. He outlived all the animosities that a faithful minister of the laws unavoidably creates for a time, and on the 24th of June, 1817, at his residence in Philadelphia, resigned his spirit to Him who gave it, and entered upon the untried scenes of a boundless eternity, to reap the rich reward of a life well spent.

His private character was beyond reproach, unsullied as the virgin sheet. His person was tall and erect, his countenance bold, intelligent, and commanding; his manners urbane, gentlemanly, and affable; his feelings noble, generous, and humane; and his conduct open, frank, and republican. He never shrunk from what he deemed duty, and was always actuated by a desire to promote the interest of the human family and the general good of mankind. He was a refined philanthropist, an acute philosopher, an enlightened statesman, an impartial judge, an able magistrate, and a truly great and good man.

PHILIP LIVINGSTON.

Men often engage in transactions and designs, that produce results in direct opposition to those anticipated. Thus, religious persecution scattered the primitive Christians into various parts of the earth, and, instead of annihilating the doctrines of the Cross, they were more widely spread and diffused through the world. For the enjoyment of the liberty of conscience, the emigrants to New England left their native homes; for the same reason, the Huguenots of France fled before the withering blasts of the revolution of the edict of Nantes in 1685, many of them settling in the city of New York. To the persecuted and oppressed, America was represented as a land of rest, and emigrants poured in upon our shores from France, Holland, Germany, England, Ireland, and Scotland; among whom were many eminent for piety, intelligence, and liberal principles. To the latter place, we trace the ancestor of the subject of this brief sketch. The great grandfather of Philip Livingston was an eminent divine in the church of Scotland, and, in 1663, emigrated to Rotterdam, a city of the Netherlands, in South Holland, where he died nine years after. His son Robert emigrated to America, and obtained a grant for the manor along the Hudson river, which is remarkable for the beauty of its location and the richness of its soil.

He had three sons, Philip, the father of the present subject, Robert, grandfather of Chancellor Livingston, and Gilbert, the grandfather of the Rev. Dr. John H. Livingston, who stood high as a scholar and divine. The subject of this memoir was his fourth son, born at Albany, 15th of January, 1716.

Mr. Livingston was among the few, who, in those days, received a college education. After his preparatory studies, he entered Yale College, and graduated in 1737. In common with most of the descendants of that celebrated family, he was blessed with strong native talent, which he improved by an excellent education. With principles firmly based on religion and moral rectitude, he was eminently prepared to commence a

career of usefulness. In those days of republican simplicity, graduates from college, instead of riding rough shod over those whose literary advantages were less, believing themselves forever exonerated from the field, the shop, and the counting-house, thought it no disparagement to apply themselves to agricultural, mechanical, and commercial pursuits. Among them, we find Mr. Livingston extensively and successfully engaged in mercantile business, in the city of New York. Reposing full confidence in his integrity, which was then a necessary passport to public favour, his fellow citizens elected him to the office of Alderman in 1754, in which he continued during nine successive years, contributing largely to the peace and prosperity of the city. In 1759, he was a member of the colonial assembly, which had important duties to perform; Great Britain being at war with France, which brought the colonists in contact with the Canadian French and Indians. Twenty-thousand men were to be raised by the colonists to guard the frontier settlements, and, if practicable, to carry the war into the territory of the enemy.

The province of New York furnished 2680 men, and 250,000 pounds, to aid in the proposed object.

Mr. Livingston took an active and judicious part in these deliberations, and also introduced laws for the advancement of commerce, agriculture, and various improvements; manifesting a sound judgment and liberal views. He was an active member of the committee on foreign relations, who wisely selected the celebrated Edmund Burke, to represent their interests in the British parliament. From the lucid communications of Mr. Livingston, that celebrated statesman and friend to America, was made thoroughly acquainted with the situation, feelings, and interests of the colonists.

After the dissolution of the general assembly by the decease of George II., Mr. Livingston was again elected in 1761, a member of the one under the new dynasty. In 1764, he wrote an answer to the message of lieutenant-governor Colden, pointing out, in respectful, but bold and convincing language, the oppressions and infringements of the British ministry upon the rights of the Americans.

He soon became a nucleus, around which a band of patriots gathered, and eventually formed a nut too hard to be cracked by all the hammers of the crown. The consequence of the bold stand taken by many of the

members, in defence of their dear bought privileges, was the sudden dissolution of the assembly by the governor, whenever he discovered a majority in favour of liberal principles.

In 1768, the assembly consisted of the brightest luminaries of talent then in the colony, who elevated Mr. Livingston to the honourable and distinguished station of Speaker. Discovering that a majority of the new assembly were unwilling to be slaves and tools, the governor, Sir Henry Moore, dissolved them, and ordered a new election. He succeeded in obtaining a majority of creatures like himself, but a sufficient number of whigs were elected to watch the interests of the people, and hold the minions of the crown in check and awe. Although Mr. Livingston, from disgust at the procedure of the governor and his adherents, had declined being a candidate in the city of New York, he was returned from the manor, and, on mature deliberation, took his seat as a member, although opposed, at first unsuccessfully, because he was not a resident of the district that elected him, in which predicament a large majority of the members were found involved: they therefore concluded not to run the risk of having their own glass houses broken, for the sake of demolishing that of Mr. Livingston. During this session, he offered a resolution setting forth the grievances of his countrymen, which gave great umbrage to the adherents of the crown. This determined them to expel him on the ground at first assumed, which was effected by a vote of 17 to 6; twenty-one of the twenty-four members being similarly situated, not residents of the districts they represented.

A wider field was now opened before him. He was elected to the first Congress at Philadelphia, and became a brilliant star in that enlightened and patriotic body. He was one of the committee that prepared the spirited address to the British nation, that roused from their lethargy those whose attention had not been called to the all-important subjects then in agitation, involving a nation's rights and a nation's wrongs.

He was continued a member of Congress, and, when the grand birthday of our independence arrived, Mr. Livingston aided in the thrilling duties of the occasion, invoked the smiles of Heaven upon the new born infant, and gave the sanction of his name to the magna charta that secured to it a towering majesty and grandeur before unknown.

He was also a member of the association that recommended and adopted a non-intercourse with the mother country; president of the provincial Congress assembled at New York, to devise measures for their protection, and was one of those who framed the Constitution of his native State, which was adopted in 1777. Under that he was chosen a Senator, and attended the first session of the legislature of the empire State. The same year he was elected to Congress, then in session at York, Pennsylvania, having retired before their conquering foe. Deeply afflicted with a hydrothorax, (dropsy of the chest,) he felt that his mortal career was fast drawing to a close. It was in the Spring of 1778, when the dark mantle of gloom and misfortune hung over the bleeding colonies.

Under these circumstances, he was willing to devote his last expiring breath, as he had much of his estate, to the service of his beloved country. He addressed a valedictory letter to his friends at Albany, bade them a last farewell, urged them to remain firm in the cause of liberty, and trust in God for deliverance; clasped his lovely wife and children to his bosom, commended them to Heaven for protection, and looked upon them with a heart full of tenderness for the last time on this side of eternity. They were then at Kingston, where they had fled for safety and protection from a brutal soldiery.

On the 5th of May he took his seat in Congress, and, on the 12th of June, he yielded to the only monarch that could subdue his patriotic heart—relentless death. He was buried the same day under all the mournful honours due to his great worth and merit, deeply lamented by every friend to the American cause. Although he was deprived of the kind offices of his own family in his last moments, he had a friend who had been his stay and support in every hour of trial, and now smoothed the pillow of death. Religion had been his companion through life; in the hour of dissolution, it was his support; angels waited for the transit of his immortal soul; Heaven opened wide its gates to let the patriot in; the king of glory decked him with laurels of bliss; enrolled his name on the book of life; and crowned him with that peaceful rest which is the reward of a pure heart and a virtuous life.

His private character was a continued eulogy upon virtue, philanthropy, benevolence, urbanity, integrity, nobleness, honesty, patriotism, consistency,

and all the leading qualities that render man dignified on earth, and fit for Heaven.



GEORGE WYTHE.

The name of every patriot who aided in gaining the liberty we now so permanently enjoy, is remembered and repeated with veneration and respect. A particular regard is felt for those whose names are enrolled on that bold and noble production, the Declaration of Independence. Their names, with many others who espoused the cause of freedom, will glide down the stream of time on the gentle waves of admiration and gratitude, until merged in the ocean of eternity. This single act has placed them on the list of immortal fame.

Among them was GEORGE WYTHE, a native of Elizabeth city in Virginia, born in 1728, of respectable parents. His father was a thriving farmer, and his mother a woman of unusual worth, talents and learning. His school education was limited, and, like Washington, Lafayette, and a large proportion of great men, he was indebted to his mother for the most of his learning and the early impressions of noble and correct principles.

From her he acquired the Latin and Greek languages; by her he was led to the pure fountains of science, and to her he was indebted for the formation of his youthful mind.

Unfortunately for him death snatched away, nearly at the same time, both his parents, leaving him still in his minority without a hand to guide or a voice to warn him against the allurements of pleasure and the seductions of vice.

His father left him a fortune, which, by prudence and frugality, was sufficient to render his circumstances easy and comfortable. But like too many *only* sons, his father had not inured him to business habits; he was soon led astray—he was captivated by amusements—and from that time until the age of thirty, his time was spent in pursuit of the phantoms of pleasurable diversions, and in idle company, neglecting both study and business.

Like the prodigal, he then came to himself—returned to the paths of virtue, studied the profession of the law, was admitted to the bar, and soon became one of its brightest luminaries—one of its most eminent members. During the remainder of his life, he pursued the paths of wisdom most scrupulously, and showed to his friends and the world that a young man, although led astray by the prowling wolves of vice, *can* burst the chains that bind him—redeem his character—correct his habits—and become a useful and virtuous member of society. So did George Wythe; go thou and do likewise. He felt most keenly, regretted most sincerely, but redeemed most nobly the misspent time of his younger days. If this should chance to meet the eyes of any man under similar circumstances, let me say to him—imitate the striking example of George Wythe. Perhaps no man ever maintained the professional dignity of the bar better than him, or was more highly esteemed by his most intimate acquaintances. He was scrupulously honest, and would never proceed in a case until convinced justice required his services. If, by any deception, a client induced him to embark in a suit that he subsequently discovered was unjust, he refunded his fee, and abandoned his cause.

His virtuous habits, extreme fidelity, judicial acquirements, and extensive knowledge, gained for him public confidence and esteem. He was for a long time a member of the House of Burgesses, and under the new government he received the appointment of Chancellor of Virginia, which office he filled with honour to himself and usefulness to his native state until the day of his death. As a legislator he was highly esteemed for talent, integrity and independence. He was not the tool of party, he stood upon his own bottom, and depended upon his own judgment. In 1764, on the 14th of November, he was appointed a member of the committee to prepare a petition to the King, a memorial to the House of Lords, and a remonstrance to the House of Commons on the impropriety and injustice of the proposed stamp act.

The remonstrance was from the able pen of Mr. Wythe, and was drawn in language so bold and strong, that it alarmed many of his colleagues, and underwent considerable modification to divest it of what they deemed a tincture of treason. He understood and properly appreciated the true dignity of man, and was not born to succumb or quail beneath the tyranny of a haughty monarch or an aspiring ministry. He was a prominent and active

member of the House of Burgesses in 1768, when Virginia blood and Virginia patriotism were roused, and passed the memorable resolutions asserting their exclusive right to levy their own taxes; accused ministers and parliament of violating the British constitution; and denied the right of the crown to transport and try persons in England for crimes committed in the colonies.

In passing these resolutions parliamentary rules were dispensed with—they went through with the onward course of an avalanche, the members anticipating the proroguing power of the governor, who, on hearing of their tenor, immediately dissolved the house. But he was half an hour too late, they had passed their final reading and were entered upon the records, and beyond his power to veto or expunge.

This step of the governor was unfavourable to the interests of the crown, and the people proudly and boldly returned all the old *patriotic* members to the next session, with several new ones of the same stamp. During the recess, the love of liberty and liberal principles had increased in their bosoms, and they had imparted the same sentiments to their constituents.

Among the new members was Thomas Jefferson, who had been the pupil of Mr. Wythe—had imbibed his principles, and now stood forth a bold and prominent champion of liberty and equal rights.

From this time onward Mr. Wythe continued to oppose parliamentary oppression and vindicate the rights of his country. At the commencement of the revolutionary movements he joined a volunteer corps, shouldered his musket, determined to vindicate in the field the principles he had inculcated in the legislative hall. But his talents as a statesman did not permit him to move long in this sphere of action, and in August, 1775, he was called to take a seat in that congress which, in less than a year from that time, proclaimed to the astonished Britons and to the world, the freedom and emancipation of the colonies, affixed their names to the Declaration of Independence, resolved that it should prove either the chart of liberty or the warrant of death—appealing to heaven for the justice of their cause.

In 1776, in November, Messrs. Wythe, Pendleton, and Jefferson were appointed to revise the laws of Virginia, and although much other business devolved upon them, they prepared and reported to the general assembly

one hundred and twenty-six bills by the 18th of June, 1779. The new code commenced the revision at the time of the revolution in England, and brought it down to the establishment of the new government. It underwent the revision of Mr. Wythe, was truly republican, and does great honour to the heads, hearts and learning of the committee.

In 1777 he was chosen speaker of the House of Delegates; the same year a judge of the High Court of Chancery, and subsequently, under a new organization of the judiciary, sole chancellor. A more impartial judge never graced the bench than George Wythe. Nothing could induce him to swerve from the strictest rules of justice, and as a profound jurist and expounder of the law, he stood pre-eminent. He was elected to the professorship of the law in the college of William and Mary, where he continued with success until his increasing duties compelled him to resign. He was one of the members of the Virginia legislature at the adoption of the Federal Constitution.

He put in full practice his principles of liberty by emancipating his slaves, and providing them with the means of support. One of them, who died prematurely, he had not only given a common education, but had taught him Latin and Greek, determined upon a developement of African talent.

In his private character Mr. Wythe was amiable, modest, charitable and humane. He sought to improve the society in which he moved, and used great exertions to guard young men against the purlieu of vice. He was industrious, temperate, practically a christian, and above reproach. He died suddenly from the effects of poison on the 8th of June, 1806, universally esteemed, beloved and regretted. It is believed the poison was administered by *George Wythe Sweny*, a grandson of his sister, who expected to arrive sooner by his death at the enjoyment of a part of his estate, but which fortunately was prevented by a codicil made just before his decease. Although the ungrateful wretch could not be reached by the laws of his country, the circumstances were so strong against him that he was stamped by the public mind with the black, the awful, the enduring stigma of a *murderer*.

Jefferson in delineating the character of the instructor of his youth, remarks: "No man ever left behind him a character more venerated than

George Wythe. His virtue was of the purest kind; his integrity inflexible, and his justice exact; of warm patriotism, and devoted as he was to liberty and the natural and equal rights of men, he might be truly called the Cato of his country, without the avarice of a Roman; for a more disinterested person never lived. Such was GEORGE WYTHE, the honour of his own and a model of future times.”

ABRAHAM CLARK.

Many of the most useful men who have at various periods of time figured upon the great theatre of human affairs, have ascended the ladder of fame without the aid of a collegiate education. A clear head, a strong mind, a matured judgment, and a good heart are the grand requisites to prepare a man for substantial usefulness. Without these, you pour upon him the classic stream in vain; it is like water poured upon the sand, it moistens and invigorates for the moment, then sinks and leaves the surface dry and unproductive. The advantages of a liberal education I most cheerfully acknowledge; that a man may become eminently useful without it, is a fact beyond dispute. To the long list of names conspicuous upon the pages of history for patriotism, philanthropy and eminent usefulness, and not recorded on the books of any of the high places of learning, that of ABRAHAM CLARK may be justly added.

He was born at Elizabethtown, Essex county, N.J., on the 15th of February, 1726, of respectable parents. He was the only son of Thomas Clark, who held the office of Alderman, at that time usually bestowed upon men of merit and distinction. He was a farmer, a man of good sense, and instilled into the mind of his son the enduring principles of moral rectitude that governed his actions and framed his character in after life. Abraham received what is termed a good English education, and was designed by his father for the pursuit of agriculture. Of a slender frame and of a delicate constitution, he was never able to endure hard labour, but continued to superintend the business on the farm which his father left him, when not absent on public duty. He made himself familiar with mathematics, and attended to the business of surveying and conveyancing. He also made himself acquainted with the elementary principles of law, and became a safe counsellor, imparting his legal advice gratuitously, often saving his friends from entering into the vexatious labyrinth of litigation, acting the part of a peace maker between the contending parties. He was called "the poor man's counsellor," and did much to allay disputes and produce harmony in his

neighbourhood. He was often selected as arbitrator in different counties to settle disputed titles of land. His decisions were uniformly based on correct legal principles and impartial justice. His knowledge and judgment became so much respected that he was appointed by the General Assembly to settle the claims to undivided commons. He filled the office of sheriff and was appointed clerk of the assembly, acquitting himself with ability and credit in both stations. As he became known to the public his talents were highly appreciated, not because they kindled to a blaze calculated to excite the huzzas of the multitude, but because they were surrounded by the halo of pure patriotism, strict justice, moral worth, and undeviating rectitude.

When the storm of oppression was poured upon his native land by the mother country, Mr. Clark was among the first who openly contended for equal rights and liberal principles. Cool, reflecting, and deliberate, he had the confidence of his fellow citizens, and exercised over them a wise and salutary influence. His actions flowed from the pure fountain of a good heart, guided by a clear head and a matured judgment. The subject of British injustice towards the American colonies he weighed impartially, and felt most keenly. He was an active and bold leader in the primary meetings of his native colony, opposing coolly but firmly, the audacious and unreasonable claims of the crown. He was a prominent member of the Committee of Safety, and contributed largely, by precept and example, to the consolidation of that phalanx of sages and veterans who resolved on liberty or death. He had a peculiar tact in rousing his fellow citizens to proper action, always moving within the orbit of reason and sound discretion.

He richly merited and freely received the confidence of the friends of equal rights. In June, 1776, he was appointed a member of the Continental Congress, where he nobly sustained the high reputation he had already acquired for good sense and unalloyed patriotism. To such men as Mr. Clark the cause of American independence owed its ultimate success. Revolution is too often the offspring of faction, and although successful in annihilating the powers assailed, leaves its ambitious actors to sink in a tenfold corruption. Demagogues may kindle to a flame the angry passions of the multitude, but it requires such men as Franklin, Clark, Sherman, Washington, &c., to guide these streams of mental fire, and conduct them harmless in their course. Although the American revolution did not

originate in faction, the zeal of many of its able advocates naturally carried them beyond the safe line prescribed by prudence and wisdom. Upon such men the salutary influence of Mr. Clark was happily exercised, and in a manner which gained for him their esteem and conferred lasting benefits on our common country. To those who have discernment and skill to guide the ship of state clear from the rocks and shoals of error, and avoid the breakers of rashness, intrigue and corruption, although they cannot make a flowery speech that will cost our nation thousands of dollars,—to such men, I say, we owe our political safety and existence. These are they who will preserve, to the utmost of their powers, the silken cords of our union. They are the neutralizers of the inflammatory gases that proceed from the fiery craniums of many of our legislators, who are more classical than discreet, more in the forum than in the committee rooms, more anxious to promote *their party* than the *glory of our country*.

On the memorable Fourth of July, 1776, Mr. Clark fearlessly enrolled his name with that patriotic band of sages who pledged “their lives, their fortunes, and their sacred honours,” to support the bleeding cause of liberty, and defend their country from tyranny and oppression. For this strong and important measure he had long been prepared, from a firm conviction that no reasonable or honourable terms would be sanctioned by the ambitious and haughty ministry of Great Britain. He was fully convinced, that chains and fetters awaited his native land, unless the cords of allegiance were severed at one bold stroke. He therefore sanctioned the Declaration of Independence by his vote and signature, and was rewarded by an approving conscience and the plaudits of his fellow citizens, who elected him to the national legislature during seven successive years, except 1779, when he was in the state legislature. Having a retentive memory, and being a practical man, of untiring industry, he was acknowledged by all to be one of the most useful members of the Continental Congress. From 1783 to 1788, he was a member of the legislature of his own state, and so great was his influence that every act which excited public attention was attributed to him. An act to regulate the practice of lawyers, curtailing their fees in some measure, was emphatically called “*Clark’s Law*.” As a matter of course those opposed to particular measures emanating from him became his political enemies.

Mr. Clark was a warm advocate for the Convention that framed our National Constitution, and was appointed one of its members, but was prevented from attending by sickness. In 1788, he was again elected to Congress, but the following year his political enemies succeeded, for the first time, in defeating him. He was then called to the important station of commissioner to settle the accounts of his native state with the general government. At the ensuing election he was again elected to Congress, of which he remained a member until his death, which was caused by a *coup de soleil*, (stroke of the sun,) in the autumn of 1794, closing his career in two hours after the commencement of the attack, in the 69th year of his age. MR. CLARK was a consistent christian, a pure patriot, and an honest man. He was a faithful public sentinel, a kind and charitable friend, an honourable and generous enemy, and died esteemed and regretted by all who knew him. His character is worthy of the highest encomiums, his examples of the closest imitation.

FRANCIS LEWIS.

The patriots, sages and heroes of the American revolution, were composed of men from different countries and of various pursuits. One feeling seems to have pervaded the bosom and influenced the actions of all—the love of LIBERTY. This mainspring to action was confined to no business or profession; all classes who loved their country and hated chains, flew to the rescue. Self-interest, to a greater extent than is usual, lost its potent charms, and thousands upon thousands pledged their lives and fortunes to defend their bleeding country against the merciless attacks and exorbitant demands of an unyielding and uncompromising foe. No class of men better understood the injustice of the mother country towards her infant colonies than those engaged in commerce. Many bold, daring and intelligent spirits left the counting-house for the field or the legislative hall. Among them was FRANCIS LEWIS, who was born at Landaff, in the shire of Glamorgan, in South Wales, in March, 1713. His father was an Episcopal clergyman; his mother was the daughter of the Rev. Dr. Pettingal, of the same religion, who officiated at Caernarvonshire, in North Wales.

Francis was an only child, and left an orphan at the age of five years. A maternal aunt named Llawelling, who resided at Caernarven, became his guardian. She had him early instructed in her native language, the Cymraeg, which he retained through life. He was then sent to Scotland to reside with a relative, where he obtained the ancient and pure Celtic. From there he was transferred to the Westminster school in London, where he made great proficiency and became a good classical scholar. He then entered the counting-house and became familiar with the whole routine of commercial transactions, which prepared him to pursue his business successfully through a long, active, and useful life. When he arrived at the age of twenty-one he inherited a small fortune, which he laid out in merchandise, and in the spring of 1735 arrived with it at New York. He found his stock too large for that city, entered into partnership with Edward Annesley, leaving with him a part of the goods, proceeding himself with the residue to

Philadelphia. At the end of two years he settled permanently in New York, and married Elizabeth Annesley, the sister of his partner. To these ancestors, we trace the numerous and respectable families now residing in the state of New York of the same name.

The commercial transactions of Mr. Lewis frequently called him to Europe, the principal ports of which he visited. He also visited the Shetland and Orkney Islands, and was twice shipwrecked on the coast of Ireland.

At the commencement of the French war he was the agent for supplying the British army with clothing. At the sanguinary attack and reduction of Oswego by the French troops under General Dieskau, Mr. Lewis was standing by the side of Colonel Mersey, who had command of the fort, when he was killed. He became a prisoner and was held a long time by the Indians, enduring every hardship they could impose short of death. As a small compensation for his sufferings and losses the British government, on his return, granted him five thousand acres of land.

He was among the early and determined opposers to the pretensions of the crown in their mad career of taxation and oppression. He was a distinguished and active member of the colonial congress that assembled at New York in the autumn of 1765, to devise and mature measures to effectuate a redress of injuries and grievances. They prepared a petition to the King and House of Commons, and a memorial to the House of Lords. Their language was respectful, but every line breathed a firm determination no longer to yield to injury and insult. The chrysalis of the revolution was formed at that time. The eruptions of the volcano occasionally subsided, but as the crater again sent forth the lava of insubordination, its volume increased until the whole country became inundated by the terrific flood of war, tinged by the purple current from the veins of thousands.

In 1771, Mr. Lewis visited England and made himself familiar with the feelings and designs of the British ministry. From that time forward he was fully convinced that the infant colonies in America could never enjoy their inalienable rights until they severed the parental ties that bound them to the mother country. On all proper occasions he communicated his views to the friends of liberty, and did much on his return to rouse his fellow citizens to a just sense of impending danger.

When it was determined to convene the Continental Congress at Philadelphia, the minds of his friends were fixed upon Mr. Lewis as a man eminently qualified to represent their interests in that august body. On the 22nd of April, 1775, he was unanimously elected a member by the delegates convened for the purpose, and immediately repaired to the key stone city and entered upon the important duties assigned him. The following year he was continued in that proud station, and affixed his name to the chart of American Independence. His long experience in commercial and other business, united with a clear head, a patriotic heart, a matured and reflecting mind, richly stored with general intelligence, rendered him an influential and useful member of the Continental Congress. As an active and judicious man on business committees, he stood pre-eminent. As a warm and zealous advocate of his country's rights, he stood unrivalled. He was continued a member of the national legislature until he obtained leave of absence in April, 1779, except a short interval in 1777.

He suffered much in loss of property, which was wantonly destroyed by the conquering foe. Not satisfied with this, the British seized the unprotected wife of Mr. Lewis and placed her in close confinement, without even a bed on which to repose her delicate frame—without a change of clothes, almost without food, and exposed to the unmanly and disgraceful insults of more than barbarian wretches. In this painful situation she remained for several months, when she was finally exchanged through the exertions of General Washington, under the direction of Congress, for a Mrs. Barrow, the wife of a British pay-master. The consequence of this base imprisonment, was the premature death of Mrs. Lewis.

At the close of the war, Mr. Lewis was reduced from affluence to poverty. He had devoted his talents and property in the cause of liberty, and what was more, the partner of his youth, the mother of his children, had been sacrificed at the shrine of oppression. Notwithstanding these misfortunes, the evening of his life was made comfortable by his enterprising children, and on the 30th day of December, 1803, calm and resigned, he closed his eventful and useful life in the 90th year of his age. He left a well earned fame that will survive, unimpaired, the revolutions of time. His private character was a fair unsullied sheet, as pure and amiable as his public career was useful and illustrious. As a man of business he stood in the foremost rank, and was the first merchant who made a shipment of

wheat to Europe, he was indeed a pioneer in the transporting trade. His examples in private and public life are worthy of imitation, and justly deserve our high admiration.



RICHARD STOCKTON.

Among the great variety of characters who signed that master piece of composition, the Declaration of Independence, were men of the highest literary attainments, ornamented by the most refined manners, the strictest virtue, and the noblest patriotism. Amidst these stars, the man of whom I now write, shone with peculiar lustre and brightness. He was the son of John Stockton, born in October, 1730, near Princeton, in New Jersey. His great grandfather, of the same name, came from England in 1670, purchased near 7000 acres of land within two miles of Princeton, and, in 1682, effected the first European settlement made in that part of the State. On this estate, the Stockton family continued to reside and prosper, until driven off by the British army under Lord Howe, forming the nucleus to a large circle of the most worthy and valuable citizens.

Under the instruction of the celebrated principal of the West Nottingham Academy in Maryland, Rev. Doctor Samuel Finley, the talents of young Richard budded, blossomed, and unfolded their beauty; to the great satisfaction of his teacher, and admiration of his parents and friends. From early youth, he manifested a comprehensive and powerful mind. From this Seminary, he was transferred to the College at Newark, where he completed his education, and received the merited honours of the first annual commencement at Nassau Hall, in 1748, under its highly talented and pious President, the Rev. Mr. Burr. At the early age of eighteen, he commenced the study of law under David Ogden, who then stood at the head of his profession in the province. He applied himself closely to his studies for six years, when he was admitted as an Attorney, and two years after, advanced to the grade of Counsellor at Law. He then established himself at his paternal seat, and soon rose to the highest rank, and stood unrivalled at the New Jersey bar. His fame as an advocate and counsellor rose, expanded, and spread; and he was frequently called from his native state, to manage suits of high importance. In 1763, he was honoured with the degree of sergeant at law. In 1766, he closed his professional business,

crowned with the fair laurels of his brilliant career, and richly rewarded for his toil and labours. He committed it to his brother-in-law, Alias Boudinot, Esq., who was then on the flood tide of a successful practice.

In June of that year, anxious to further enrich his mind, he embarked for London, and was safely wafted across the Atlantic, to the great European metropolis. His fame had been previously spread through that country, his visit had been anticipated, and he was received by the high dignitaries of Great Britain with the most flattering and marked attention. He was presented at the Court of St. James by one of the cabinet members, and delivered to the King an address from the trustees of the College of New Jersey, expressive of their joy at the repeal of the stamp act.

During his stay, he rendered material services to this college, among which, was his influence inducing Doctor Witherspoon to accept of its presidential chair, to which he had been elected, and which he had declined; thus adding another to the list of high minded and talented patriots, who nobly conceived, boldly prosecuted, and gloriously consummated the emancipation of the colonies.

During his visit, he communicated freely with the statesmen of England who were friendly to their brethren in America, and confirmed them more strongly in their opinions of the impolitic course pursued by the ministry towards the colonies.

In February following he visited Edinburgh, where he received the most flattering attentions from those in power, being complimented by a public dinner and the freedom of the city. On this occasion, he delivered an eloquent and appropriate speech, fully sustaining his reported fame, fully answering their fondest and highest anticipations. His company was courted by the most scientific gentlemen of that seat of learning, and he was made a welcome and honoured guest at the tables of every nobleman upon whom he could call.

During his stay in the United Kingdom, he visited Dublin, where he received the hearty Irish welcome so characteristic of that warm hearted nation, and every attention that could render his reception flattering and agreeable. The oppressed situation of that unfortunate nation, convinced him more strongly of the tyranny of the British ministry, and the fate that

awaited his native country, by yielding to their imperious and humiliating demands. This visit prepared him for future action.

Mr. Stockton was astonished to find so few in England who understood the situation or character of the colonists in America; and the English were equally astonished to find so great a man from the western wilderness. Misapprehension often produces the most fatal consequences, both to individuals and nations. The comprehensive mind of this discerning philanthropist readily predicted the result of this ignorance, and he accordingly embraced every opportunity for dispelling this dark mist that hung over the land of his ancestors. With many, he succeeded in opening their eyes to the true and relative situation of the two countries; but when the powers that stand at the helm of a nation are wading in corruption, breathing the atmosphere of tyranny, charged with sordid avarice, thirsting for an extension of power, delighting in slavery and oppression, they dethrone reason, bid defiance to justice, trample law under their feet, and, if possible, would dethrone the great Jehovah to accomplish their designs. Thus infatuated were the British ministry when they turned a deaf ear to the petitions and remonstrances of the American colonists, and the wise counsels of the ablest statesmen that then illuminated their parliament.

Having been more than a year absent from “sweet home,” Mr. Stockton began to make arrangements for his return. His mind had become greatly enriched and embellished by the numerous advantages of his varied intercourse with men of science and eminence. He had listened to the forensic eloquence and powerful arguments of Blackstone, and the other celebrated pleaders at Westminster Hall. He had treasured in his capacious mind, the clear and erudite decisions of the learned and profound judges, who then graced the judicial bench. He had witnessed the enrapturing powers of Chatham, and the logical genius of Burke. He had become familiar with the highly polished and fascinating manners of Chesterfield, and had seen Garrick in the zenith of his glory. Thus richly laden, he spread his sails to the gentle breeze, and, in twenty-six days, he was wafted to the shores of his native land, where he arrived in September, 1767. He was received with demonstrations of the liveliest joy by his fellow citizens, and of the kindest affection by his immediate friends and connections.

Two years after he was elevated to a seat in the supreme judiciary and executive council, in consequence of the high opinion entertained of his

talents by the King.

In 1774 he was appointed a judge of the supreme court, being associated with his old friend and preceptor, David Ogden. During this time he greatly improved and embellished his plantation, and was surrounded by all the comforts and enjoyments this world can give. But how uncertain are the joys of this mundane sphere. The revolutionary storm was gathering. The dark clouds were rolling on the winds of fury. An awful crisis had arrived. He was a favourite of the crown. The flames of revenge were concentrating like the raging fire on a prairie, and it became necessary for him to choose whom he would serve. The influence he wielded made the decision one of high importance to his king and his country. In view of the prospect as presented to human eyes, all that is based on self, urged him to maintain allegiance to the mother country. But he knew that country well. He knew and loved his own better. The pomp of courts had no charms for him; he was a republican, a patriot, a friend to liberty; in her cause he enlisted; under her banners he took his stand, willing to sacrifice his property, kingly favour, and his life, in defending the sacred rights of his bleeding, his injured fellow citizens.

He carried with him his friend, the Rev. Dr. Witherspoon, both of whom were elected, in June, 1776, to the Continental Congress at Philadelphia, vested with full power to unite in such measures as that body might deem necessary and expedient to adopt under existing circumstances. Mr. Stockton, after listening to the arguments several days, stood forth, an eloquent and bold advocate, for the declaration of independence, brandishing the amputating knife fearlessly in public and in private.

Nor did he stand alone. The members of that august body soon acquired the art of cutting *five* and *six*. They forged and finished a blade, pure as damask steel, and placed it in the hands of their venerable President, John Hancock. *Liberty* dipped her golden pen in the font of FREEDOM, and recorded the names of the memorable fifty-six upon the shining tablet of enduring fame. At one bold stroke the cords of parental authority were cut asunder. America was redeemed, regenerated, and free. Heaven smiled its approbation, angels shouted their joy, nations gazed with admiring wonder, and every patriot responded a loud—AMEN.

The extensive information, matured experience, soaring talent, and powerful eloquence of Mr. Stockton, rendered him one of the most useful and efficient members of that Congress. His knowledge of law and political economy, of human nature, human rights, and of men and things, enabled him to command the respect and admiration of all his colleagues. He performed every duty assigned him with zeal, industry, and dignity. In the autumn of 1776, Mr. Stockton and George Clymer, of Pennsylvania, were sent to inspect the northern army, with full power to provide for its wants and correct any abuses that might exist. This duty they discharged in the most satisfactory manner, both to the officers of the army and to Congress.

Soon after his return he was under the necessity of removing his family to save them from the brutality of the approaching enemy. Whilst performing this important duty he was taken prisoner by the British, dragged from his bed, and, in the most brutal manner, conveyed to New York, consigned to the common prison, deprived of every comfort, left twenty-four hours without any provisions, and then received but a very small and coarse supply; in direct violation of the laws of nations and humanity, and of all the rules of civilized warfare. This base treatment impaired his health, and laid the foundation of disease that terminated in death. His capture was effected by the information of a tory, who was subsequently indicted and punished for the act.

This abuse of one of their members, roused the indignation of Congress. General Washington was directed to send a flag of truce to General Howe, and ultimately obtained the release of Mr. Stockton. Simultaneous with this event, his property was devastated by a merciless soldiery, his papers and extensive library burnt, and his plantation left a desolate waste.

Thus oppressed by want and disease, he was unable to again take his seat in Congress, but was ever ready to give counsel and advice, and was often consulted. His opinions had great weight, and in this way his country continued to be benefitted long after disease had fastened its iron hand upon him. Among his complicated afflictions he had a cancer upon the neck, which rendered his situation painful in the extreme. He endured his sufferings with christian fortitude until the 28th of February, 1781, when death relieved him from his burden of afflictions, and assigned him a place amongst the peaceful dead. He died at his native residence, near Princeton,

in the 51st year of his age, mourned, *deeply* mourned, by all his numerous acquaintances and by his country.

Thus prematurely ended the brilliant career of one of Columbia's noblest sons. He was a man of general science and universal knowledge. He was the first chief justice of his native state under the new constitution. As a lawyer he stood pre-eminent; as a judge he was impartial, sound, and lucid; as a statesman, able, discreet, and wise; as a patriot, firm, fearless, and devoted; as a gentleman, polished, urbane, and graceful; as a citizen, liberal, peaceful, and generous; as a friend, true, sympathetic, and charitable; as a husband, kind, affectionate, and provident; as a father, faithful, tender, and instructive; as a christian, open, frank, and consistent; as a man, honest, noble, and brave; and as a whole, he was an ornament in society, an honour to his country, and a blessing to mankind.

SAMUEL ADAMS.

It is a fact worthy of remark, that many of the most eminent sages of the American revolution were devoted and consistent professors of christianity, and some of them ministers of the cross. They all seem to have been actuated by motives pure as Heaven, and influenced alone by the demands of imperious duty, based upon the inalienable rights of man. They were not prompted to action from a love of conquest or of military glory. Their pilgrim fathers fled from the clanking chains of servile oppression, and planted the standard of civilization in the new world, that they might enjoy FREEDOM in its native purity, and transmit the rich behest to their offspring. The principles of rational liberty were enforced upon the minds of each rising generation, and when tyranny reared its hydra head, they readily recognised the monster, and resolved, nobly resolved, to drive from their shores the invading foe.

Among the revolutionary sages who boldly espoused the cause of equal rights, was SAMUEL ADAMS, who was born in Boston, Massachusetts, on the 22nd of September, 1722. He was a man of middle size, well formed, with a countenance beaming with intelligence, indicating firmness of purpose and energy of action. His parents were highly respectable, and descended from ancestors who had always moved in the first rank of society, and were among the early emigrants to this western world. His father was for many years a member of the Assembly of Massachusetts, and by him, this, his eldest son, was early taught those liberal principles that he so fearlessly and triumphantly vindicated during his subsequent career.

When but a child, Samuel Adams exhibited the index of a strong and enquiring mind, and talents of a high order. Under the guidance and instruction of Mr. Lovell, an eminent teacher of that day, he was prepared to enter upon his collegiate studies. He was remarkable for his close application, and rapid progress in the exploration of the field of science. He soared above the allurements that too often lead the juvenile mind astray,

and made his books his highest pleasure. His powers of intellect unfolded their variegated hues like a blooming amaranth, and shed a pleasing lustre around him, gratifying to his friends and creditable to himself.

Being of a serious turn, his father placed him in Harvard College, believing him destined for the gospel ministry. He ascended the hill of science with a steady and rapid pace, and gained the esteem and admiration of all around him. During his whole course, he subjected himself to reproof but once, and that for remaining too late in the arms of Morpheus, by reason of which he did not arrive in time to attend morning prayers. At the age of eighteen, he received the degree of bachelor of arts; and, three years after, that of master of arts, although much of his time had been devoted to the investigation of theology, which apparently had been the absorbing topic of his thoughts during the last years he was in college: the subject of his discourse, when he took his final degree, showed that other ideas had also received his attention. It was this: *“Is it lawful to resist the supreme magistrate, if the commonwealth cannot otherwise be preserved.”* In a masterly manner he maintained the affirmative of this proposition, and with enrapturing eloquence and unanswerable logic, unfolded the beauties of that liberty for which he subsequently pledged his life, his fortune and his sacred honour. From that time he seems to have abandoned the idea of clerical orders, and to have turned all the powers of his gigantic mind to the disenthralment of his country. From that time forward he became a bold and constant advocate of equal rights, and a valiant opposer of British wrongs. By rigid economy he had saved a sum of money from the stipend allowed him by his father when in college; this he devoted to the publication of a pamphlet from his own pen, entitled “The Englishman’s Rights.” This was one of the entering wedges of the revolution, and awakened a spirit of enquiry that eventually kindled the flame of opposition to the increasing oppressions of the crown that consumed the power of monarchy over Columbia’s soil.

Anxious that his son should embark in some permanent business, the father of Samuel Adams obtained for him a situation in the counting-house of Thomas Cushing, an eminent merchant of that period, preparatory to his engaging in commercial affairs; but for that sphere of action nature had not designed him; his mind became absorbed in the pursuit of political knowledge, international law, and the rights of man.

About the time he entered the counting-house, he formed a club of kindred spirits, for the purpose of political discussion and enquiry. Mr. Adams and some of the other members furnished political essays for a newspaper called the Independent Advertiser, which were so severe in their strictures upon the conduct of the creatures of the crown, that the association obtained the name of the "Whipping Post Club." The hirelings of the king treated these essays with derision, and passed them by as idle wind; upon the great mass of the people they had a different influence. Stamped upon their face with plain truth, sound reasoning and uncontroverted facts, they operated upon British power like the sea-worm upon a vessel, silently and slowly, but with sure destruction. They contributed largely in perforating each plank of the proud ship of monarchy, then riding over the American colonies, until she sank to rise no more. They served as the kindling material of that blazing fire that ultimately illumined the horizon of liberty and lighted the pilgrim patriots to the goal of freedom. "Behold how great a matter a little fire kindleth."

During the administration of Shirley, Mr. Adams wrote several spirited essays against his course and policy, and portrayed, in glowing colours, the dangers of concentrating civil and military power in the same individual.

After remaining for a time with Mr. Cushing, his father furnished him with a liberal capital, and he commenced business for himself. By losses, arising from the pernicious credit system, he was soon stripped of all his stock in trade. By the death of his father he was left, at the age of twenty-five, to take charge of the paternal estate and family. In the discharge of that duty, he proved that he was *competent* to manage pecuniary matters, by bringing his mind to bear upon the subject. The estate was considerably involved and under an attachment when he undertook his trust, from which he entirely relieved it. This accomplished he again bestowed his attention almost entirely upon politics. He became celebrated as a keen, sarcastic, and ready writer, and laid deep the foundations of his fame as a statesman. He analyzed every point at issue between his own and the mother country, and exposed the corruptions of the British ministry to public gaze in all their pristine deformity. He soon became one of the most popular whigs in his native state, and was hailed as one of their boldest leaders. From his boyhood he had advocated their cause, and despised the chains of slavery. So strongly did the whig party become attached to him, that many of its

members who were not personally acquainted with him contributed liberally to relieve him from pecuniary embarrassments, which arose from devoting his time exclusively to political matters. No man had examined more closely, or understood better, the relative situation of Great Britain and her American colonies. He measured every circumstance upon the scale of reason, and based his every action upon the sure foundation of immutable justice. He was not rash and inflammatory—always appealing to the judgment and understanding—endeavouring to allay rather than excite the passions of men. He was a friend to order, opposed to sudden bursts of popular fury, and to every thing calculated to produce riotous and tumultuous proceedings. He took a philosophic view of the chartered rights guaranteed to his country, and of the infringements upon them.

Organized and systematic opposition against the unwarranted encroachments of the crown, emanating from the great majority of the sovereign people, was the plan he proposed; to be manifested first by petition and remonstrance, and, in the last resort, by an appeal to arms. Upon the expansive basis of republican principles he took his stand; calm and undismayed he maintained his position. When the offensive stamp act was promulgated, he exposed its odious features; and when the climax of oppression was capped by the imposition of taxes upon various articles of daily consumption, for the support of a corrupt and corrupting foreign ministry, which denied the right of representation to the colonies, Samuel Adams proclaimed to his countrymen, that the time had arrived when forbearance was no longer a virtue, and that forcible resistance had become their imperious duty. He showed conclusively that the parliament of Great Britain had violated the constitution that should have guided their deliberations. Americans had in vain claimed protection under its banner, its sacred covering was snatched from over their heads, they were left exposed to the insults of foreign officers who were throwing the coils of tyranny around them. To be slaves or freemen was the important question. Being a member of the general assembly and clerk of the house, he was enabled to exercise a salutary and extensive influence. With great ardour and zeal, he united prudence and discretion. From the time he was elected in 1765, he remained in the assembly of his native state until he was chosen a member of the Continental Congress. He exerted the noblest powers of his mind to prepare the people for the approaching crisis, and kindled a flame of patriotic fire that increased in volume as time rolled on. He was the first

man who proposed to the people of Massachusetts the non-importation act, the committees of correspondence, and the congress that assembled at Philadelphia in 1774. Nor did he confine his exertions or limit his influence to New England alone; he corresponded with the eminent patriots of the middle and southern states, and contributed largely in producing unity of sentiment and concert of action in the glorious cause of liberty throughout the colonies. Over his own constituents he held a magic influence. At the sound of his voice the fury of a Boston mob would instantly cease; he could lead the lion of faction with a single hair. The people knew well he would maintain what was clearly right, and submit to nothing, willingly, that was clearly wrong.

When the affray of the first of March, 1770, between the British soldiers and some of the citizens of Boston occurred, the influence of Mr. Adams prevented the further effusion of blood, *after* the populace had been roused to vengeance by the death of several of their companions. He addressed the assembled multitude, and proposed the appointment of a committee to wait upon Lieutenant Governor Hutchinson, and request the immediate removal of the soldiers, then quartered upon the town. The plan was approved, and Mr. Adams was made the chairman of the committee. His excellency at first refused the request, but found that fatal results would follow if he persisted. The chairman met all his objections fearlessly, and confuted them triumphantly, and told him plainly, that an immediate compliance with the request of the people would alone prevent the most disastrous consequences, and that the Lieutenant Governor would be held responsible for the further waste of human life. The troops were removed to the castle, and peace restored.

Every exertion was used by the adherents of the crown to induce Mr. Adams to relinquish his whig principles, and accept of golden honours under the King. Governor Gage sent a special messenger, Colonel Fenton, to him, to induce him to bow his knee to the throne. After finding that England was not rich enough to buy him, he threatened to have him arrested and sent beyond the seas to be tried for high treason. He listened with more apparent attention to this last suggestion, and, after a pause, asked Colonel Fenton if he would truly deliver his reply to Governor Gage. On receiving an affirmative assurance, he rose from his chair, and assuming an air of withering contempt, he said "I trust I have long since made my peace with

the KING OF KINGS. No personal consideration shall induce me to abandon the righteous cause of my country. Tell Governor Gage, it is the advice of Samuel Adams to him, *no longer to exasperate the feelings of an insulted people.*”

This reply roused the ire of the royal governor, and when he subsequently issued his proclamation, offering a free pardon to such of the rebels as would return to what *he* termed their duty, he excepted Samuel Adams and John Hancock. The two patriots received this mark of distinction as a high commission from the throne, directing their future course. They received it as a *carte blanche*, that left them as free as mountain air in all their actions. No bribe could seduce, or threat divert Mr. Adams from the patriotic path he had marked out. He placed his trust in the Rock of Ages, and enjoyed the rich consolations of an approving conscience, and the unlimited confidence and cheering approbation of the friends of equal rights. These were more dearly prized by him than all the royal honours within the gift of kings.

Mr. Adams was from that time forward marked out as an object of vengeance by the British authorities. He was one of the causes that hastened on the final commencement of open hostilities. The object of the king’s troops in proceeding to Lexington on the memorable 19th of April, 1775, was to arrest Samuel Adams and John Hancock, and obtain their papers. Apprised of their business, General Joseph Warren despatched an express late in the evening to the two patriots, warning them of the approaching danger. In a few moments after they received the information, the British troops entered the house in which they were, from whom they narrowly escaped. In a few short hours the dark curtain rose, and the revolutionary tragedy commenced. The last maternal cord was severed, the great seal of the original compact was dissolved in blood, and the covenants of the two parties were fully cancelled.

Mr. Adams remained in the neighbourhood; and the next morning, as the day dawned, and the sun rose without a cloud to dim its rays, he remarked to a friend, “this is a glorious day for America.” He viewed the sacrifice as an earnest of future blessings and ultimate happiness.

To rouse the people to action, now became the sole business of this devoted friend of his bleeding country. Having been a member of the

Congress that met at Philadelphia the previous year, he was well convinced, from the feelings then expressed by the members from all the colonies, that the simultaneous efforts of those opposed to the usurpations of the crown, would be exerted in the common cause against the common enemy. They only waited for the grand signal to action; this had now been given; the tocsin of war had been sounded; the requiem of battle had been sung; its heart piercing notes were wafted far and wide on the wings of echo, and were responded to by millions of patriotic souls, resolved on liberty or death, victory or the grave. Mr. Adams mourned deeply the death of his friends who were the martyrs of that tragical, yet glorious day; but rejoiced that their funeral knell would shake to its very centre the temple of British power in America, and that their blood would cry to Heaven for vengeance, and incite to vigorous and triumphant action, the hardy sons of the new world. The event gave to his own mind new powers of propulsion, and nerved him with fresh vigour to meet the fiery trials that were in reserve for him. As dangers increased he became more bold in his propositions to the people to maintain their rights; as the wrath of his enemies grew hotter against him, he became more highly appreciated by the populace, and was uniformly styled, *Samuel Adams the Patriot*. His fame and his influence expanded with each revolving day; his friends were animated by his counsels and eloquence; his foes were astounded and chagrined at the boldness of his career. In the assembly of his own state, he effected the passage of a series of resolutions deemed treasonable by the royal governor, by locking the door and keeping the key himself to prevent the proceedings of the house from being known in time for the adherents of the crown to defeat them. In the Congress of 1776, he was among the first to propose and strongly advocate the declaration of independence; and always contended it should have followed immediately after the battle of Lexington. He demonstrated all his propositions in a clear, calm, dignified and logical manner; and always planted himself upon the firm basis of reason and justice. He was extremely zealous, but not rash; he was ardent and decisive, but wise and judicious. When the Declaration of Rights was adopted by the Continental Congress, on the 4th of July, 1776, he most cheerfully affixed his name to that sacred instrument without the least hesitation. He had been an able and eloquent advocate of the measure; he had long cherished and fondly nursed the project of an unequivocal separation from the mother country, and rejoiced at the final consummation of his ardent desires.

During the darkest periods of the revolution, he was calm and cheerful, and did much to banish despair from the minds of the desponding. In 1777, when Congress was obliged to fly to Lancaster, and a dismal gloom was spread over the cause of the patriots like the mantle of night, several of the leading members were convened, in company with Mr. Adams, and were conversing upon the disasters of the American arms, and concluded the chance for ultimate success was desperate. Mr. Adams replied, "If this be *our* language, it is so indeed. If we wear long faces, they will become fashionable. Let us banish such feelings, and show a spirit that will keep alive the confidence of the people. Better tidings will soon arrive. Our cause is just and righteous, and we shall never be abandoned by Heaven, while we show ourselves worthy of its aid and protection." At that time there were but twenty-eight members in Congress, and Mr. Adams remarked, "it was the *smallest*, but *truest* Congress they ever had."

Shortly after that trying period, the rays of hope dawned upon them, the news of the surrender of Burgoyne removed the long faces, and put a new aspect upon the American cause. The friends of liberty were reanimated; their hearts were enlivened by fresh courage; the anchor of hope held them more firmly to their moorings. The arrival of Lord Howe, the Earl of Carlisle, and Mr. Eden, with what *they* termed the olive branch of peace from Lord North, also created a new excitement. Mr. Adams was on the committee appointed to treat with these messengers of the king. On examining the terms proposed, the committee found that the pretended olive branch had been plucked from the Bohon Upas of an overbearing and corrupt ministry, and promptly replied, through Mr. Adams, "Congress will attend to no terms of peace that are inconsistent with the honour of an independent nation." This answer was as unexpected to the royal trio, as it was laconic and patriotic. The grand Rubicon had been passed, the city of chains had been abandoned, and nothing could induce the sages of '76 to look back, or tarry on the plain of monarchy.

In 1779, Samuel Adams and John Adams were appointed by the committee of which they were members, to draft a constitution for the state of Massachusetts, under the new form of government. They ably performed the duty assigned them—the convention sanctioned the document they submitted with but few amendments, and adopted it for the future government of the state. The same gentlemen also prepared for the

convention an address to the people on that occasion, which also met the approval of that body, and was responded to, with high approbation, by the hardy yeomanry of that state.

Mr. Adams was also a member of the convention of his native state, convened in 1787, to act upon the Constitution of the United States, then submitted for consideration. Some of its features appeared objectionable to him, but he cautiously avoided any opposition, lest he should endanger its final adoption, which he considered the best policy, securing for it future amendments. He was most particularly opposed to the article that rendered the states amenable to the national courts. After listening to the arguments for and against it, he submitted certain amendments, which were approved by the convention, and when it was finally sanctioned by a majority of the members, these amendments were submitted with it, and recommended for the future consideration of Congress, and some of them have since been adopted.

From 1789 to 1794 Mr. Adams was lieutenant-governor of Massachusetts, and from that time to 1797 was governor of that state. He performed the executive duties with great ability, and contributed largely in raising his native domain to a flourishing condition and dignified standing. He watched over all her interests with a parental care, and viewed her rising greatness with an honest pride. He had seen her sons writhing under the lash of oppression, and the bones of her daughters bleaching in the wind. He now beheld the people independent and happy, prosperous and virtuous. He could now depart in peace. His infirmities and age admonished him to retire from the great theatre of public action, on which he had so long been a prominent actor, and having filled the gubernatorial chair for three years, he bid a final farewell to political life, approved by his country, his conscience and his God. His health continued to decrease gradually with each returning autumn, and on the 3d of October, 1803, his immortal spirit left its tenement of clay, and soared aloft, on wings of faith, to mansions of bliss beyond the skies, where flow rivers of joy for evermore. He died, rejoicing in the merits of his glorified Redeemer, who had triumphed over death and the grave. He had fought the good fight of faith, as well as that of LIBERTY; and felt a full assurance of receiving a crown of glory at the hands of King Immanuel.

Amidst all the turmoils of political and revolutionary strife, Mr. Adams never neglected religious duties. When at home, he was faithful to the family altar, and uniformly attended public worship when practicable. He was a consistent every-day Christian, free from bigotry and fanaticism, not subject to sudden contractions and expansions of mind, rather puritanical in his views, yet charitable in his feelings, and not disposed to persecute any one for the sake of opinion. He adorned his profession of Christianity by pure moral conduct, and the most scrupulous honesty, during his whole life. As a public man and a private citizen, he was highly esteemed, and richly earned a place in the front rank of the fathers of the American revolution. He placed a low value upon riches, and died poor, but not the less esteemed because of his poverty. He placed a high value upon common school education, and a *proper* estimate upon the higher branches of science. He was strongly in favour of teaching the great mass of the people the rudiments of an English education, even should it be at the expense of the classics. General intelligence, widely and thoroughly disseminated, he considered one of the strongest bulwarks to preserve the independence of a nation against the innovations of intriguing and designing men, who regard *self* more than the glory of their country. He took a liberal, expansive, and philosophic view of every subject he investigated, and formed his conclusions only from a close conviction that they were based upon correct premises and sound common sense. In the cause of freedom he laboured incessantly, from his youth through a long life, and was ever ready to throw himself in every breach made by the creatures of the crown upon the rights of his country. At town meetings, in the formation of independent societies, in the columns of a newspaper, in the assembly of his own state, and in the national legislature, he always filled a broad space and moved in a large circumference. He was pure in his motives, bold in his plans, open and frank in his sentiments, firm in his purposes, energetic in his actions, and honourable in his course. He wielded an able pen, varying his style to suit every occasion. But few of his productions have been preserved. His answer to Thomas Paine's writings against Christianity, is perhaps superior to any thing that has been written on the subject. His four letters on government, published in 1800, show a clear head, a good heart, and a gigantic mind. His political essays, penned before and during the revolution, were soul-stirring appeals, and contributed largely in rousing the people to a defence of their inalienable rights.

As an orator, he was eloquent, chaste, and logical, always rising with the magnitude of his subject. It was only on great occasions that his powers were *fully* developed; but on *all* occasions he was listened to with profound attention. He always spoke sensibly and to the point, addressing the understanding rather than the passions.

His manners were urbane, plain, and unaffected; his mode of living frugal and temperate; his attachments strong, sincere, and uniform; his whole life was one continued chain of usefulness, devoted to the good of his fellow men, the liberty and prosperity of his country, and the happiness of the human family. Let his example be imitated, and our Union may long be preserved from the iron grasp of ambitious partisans and the fatal snares of designing demagogues: let them be discarded, and it will prove a rope of sand, the temple of our LIBERTY will crumble and moulder with the dust of SAMUEL ADAMS.

DR. BENJAMIN RUSH.

A sacred halo surrounds this name, as imperishable as the pages of history. In the service of his country, and in the pursuit of his profession, BENJAMIN RUSH filled the measure of his glory. His revered memory is cherished by many surviving friends; his fame will be chaunted by millions yet unborn.

He was a native of Bristol, Bucks county, Pennsylvania, born on the 24th of December, 1745. His ancestors immigrated to this country under the auspices of William Penn, as early as 1683. His father was a highly respectable agriculturalist, and died when this son was but a child. At the age of nine years, Benjamin was placed under the tuition of his maternal uncle, the Rev. Dr. Samuel Finley, whose literary attainments were of a high order, and who was subsequently elected president of the college at Princeton, New Jersey. Young Rush continued under the instruction of this accomplished teacher until he was fourteen, when he entered Princeton college, then under the direction of President Davis. Like an expanding flower courting the genial warmth of spring, the talents of this young freshman rapidly unfolded their rich lustre beneath the shining rays of the sun of science. So astonishing was his proficiency, that in one year after he commenced his collegiate course, he received the degree of bachelor of arts; a high compliment to his former instructor, a merited tribute to his own industry, acquirements and genius. During his brief stay at Princeton, he gained the friendship of all around him, and was esteemed one of the most eloquent public speakers among the students. With the best wishes of the professors and his classmates, he left them the following year, and commenced the study of medicine with Dr. John Redman, then one of the most eminent practitioners in the city of Penn. The same industry that had marked his previous course, made him a favourite son of Æsculapius. The same urbanity and modesty that had made him a welcome guest in every circle in which he had previously moved, constantly gained for him new and influential friends. After pursuing his study with great assiduity for six

years under the instruction of Dr. Redman, he entered the medical university of Edinburgh, in Scotland, where he reaped the full benefit of the lectures of the celebrated professors Munro, Cullen, Black and Gregory; and received the degree of doctor of medicine in 1768. Although then laden with an unusual store of knowledge in the healing art, his investigating mind led him to explore still farther the important field of science before him, and reduce to practice, under the superintendence of able practitioners, his vast stock of theory. He accordingly went to London, where he was admitted to practice in the hospitals of that city. He soon became eminent as a bold and successful operator, a skilful and judicious physician. After remaining there nearly a year, he visited Paris, and, in the spring of 1769, returned to the warm embrace of his connections and friends, and commenced his useful career in the city of Philadelphia.

His professional fame had preceded him, and his superior acquirements were immediately called into action. In addition to an extensive practice, he was elected one of the professors of the medical school that had recently been organized by Drs. Bond, Kuhn, Morgan and Shippen. This mark of distinction was conferred upon him within a few months after his return. Upon a substantial basis he continued to build an honest and enduring fame, participating in all the passing events that concerned his country's good and his country's glory; at the same time discharging his professional duties promptly and faithfully.

Although he had apparently been absorbed in the study of medicine, it was soon discovered that he had made himself familiar with the relative situation of the mother country and the American colonies. He had closely examined the unwarranted pretensions of the former, and the aggravated grievances of the latter. His noble soul was touched by the sufferings of oppressed humanity, and warmed by the patriotic fire of FREEDOM. He became a bold and able advocate in the cause of liberty, a firm and decided opposer of British tyranny, a strong and energetic supporter of equal rights. Mingling with all classes through the medium of his profession, his influence was as extensive and multiform, as it was useful and salutary. The independence of his country was the desire of his heart; to see her regenerated and free, was his anxious wish. So conspicuous a part did he act in the passing scenes of that eventful period, that he was chosen a member

of the Congress of 1776, and sanctioned the declaration of independence, by affixing his name to that sacred instrument.

The year following, he was appointed physician-general of the military hospital for the middle department, and rendered himself extensively useful during the whole of the revolution. He was ever ready to go where duty called, and exerted his noblest powers in the glorious cause he had espoused, until he saw the star spangled banner wave in triumph over his native land, and the incense of LIBERTY ascending to Heaven, in sappharine clouds, from the altar of FREEDOM.

This great work accomplished, he desired to be occupied only by his profession. For a time, his services were diverted from this channel, by his being elected a member of the convention of Pennsylvania to take into consideration the adoption of the federal constitution. Having examined the arguments as they progressed in the national convention that formed it, he was fully prepared to enter warmly and fully into the advocacy of that instrument. When it received the sanction of a majority of the States, the measure of the political ambition of Dr. Rush was filled. He retired from that kind of public life, crowned with laurels of immortal fame, that will bloom and survive, until patriotism shall be lost in anarchy, and the last vestige of liberty is destroyed by the tornado of faction. The only station he ever consented to fill under government subsequently was that of cashier of the United States Mint.

From that period forward, he devoted his time and talents to the business of his profession, to the improvement of medical science, and the melioration of the ills that flesh is heir to.

In 1789, he was elected professor of the theory and practice of physic, as the successor of Dr. Morgan, and in 1791 he was appointed to the professorship of the institutes of medicine and clinical practice, and upon the resignation of Dr. Kuhn, in 1806, he was honoured by the united professorships of the theory and practice of physic and of clinical medicine, which stations he ably filled until death closed his useful career.

Besides those already mentioned he performed many duties in various associations formed for benevolent purposes. He was president of the American Society for the Abolition of Slavery, vice president of the Philadelphia Bible Society, president of the Philadelphia Medical Society,

one of the vice presidents of the American Philosophical Society, and a member of several other philanthropic institutions both in this country and in Europe. For many years he was one of the physicians of the Pennsylvania Hospital, and took a deep interest in its prosperity and welfare. Wherever he could be useful by counsel, influence, or action, he was sure to be found. To soothe the troubled bosom heaving with anguish, to alleviate the suffering patient writhing under pain, to supply the pinching wants of the poor and needy sinking under adversity, afforded Dr. Rush more pleasure than to have been placed on the loftiest pinnacle of political fame; a richer joy than to have been the triumphant chieftain of a conquered world.

Amidst his multifarious duties he arranged his time with so much system and order as to produce a routine of harmonious action. His professional duties, his books, and his pen, were all attended to in proper time. He wrote numerous literary, moral, and philosophical essays, and several volumes on medical science, among which were his “Medical Inquiries and Observations,” and a “History of the Yellow Fever.” He spent much time in the investigation of that fatal disease, and in endeavouring to arrive at the best mode of treatment. In this, as well as in many other cases, the lancet was his anchor of hope. During the prevalence of any disease his exertions to alleviate distress and arrest its progress, were unremitting and indefatigable. He obeyed the calls of the poor and needy as promptly as those of the rich and affluent. He was particularly attentive to those who had employed him when prosperity cheered their onward course, and were subsequently prostrated by adversity. He was not a sunshine friend.

He was the man whose liberal mind
Wished general good to all mankind;
Who, when his friend by fortune's wound,
Fell tumbling headlong to the ground,
Could meet him with a warm embrace,
And wipe the tears from off his face.

A pious and exemplary Christian, he poured the balm of consolation into the wounds of the desponding heart as freely as he administered to alleviate the pains of the body. His counsels were full of wisdom and benevolence, and rescued many a frail bark from total shipwreck. His soul-cheering advice and enlivening presence drove despair from many an

agonized mind, imparting fresh vigour by administering the elixir of hope and the tonic of perseverance.

Blessed with a vigorous constitution, Dr. Rush was able to discharge his numerous duties until a short time previous to his death, which occurred on the 19th of April, 1813. Although advanced in years new honours continued to gather around him; new fields of usefulness were constantly opening before him; the lustre of his fame had scarcely arrived at its high meridian; the zenith of his glory would unquestionably have reached a loftier summit had his life and health been spared a few years longer.

As the news of his death spread, a universal sorrow pervaded all classes; funeral sermons were preached, eulogies pronounced, and processions formed throughout the United States, as a faint tribute to the memory of the departed sage, patriot, scholar, and philanthropist. When the sad tidings reached England and France, the same demonstrations of respect were manifested there; the tears of sympathy and mourning for departed worth stood trembling in many European eyes. In the halls of science on both sides of the Atlantic, Dr. Rush was well known, and held in the highest estimation. By our own country his loss was most keenly felt; by the civilized world, deeply lamented. The graves of but few men have been moistened by as many tears from the high and the low, the rich and the poor, as that of Dr. BENJAMIN RUSH. His fame is based upon substantial merit; his name is engraven in deep and indelible traces upon the hearts of his countrymen; his reputation is written on the tablet of history in letters of gold by the finger of justice, dipped in the font of gratitude, and will endure, unscathed and unimpaired, until the last trump shall proclaim to the astonished world, TIME SHALL BE NO LONGER.

The private character of this great and worthy man, was as unsullied and pure as his public career was brilliant and useful. His heart was richly stored with the milk of human kindness; his benevolence sometimes carried him beyond his professional income in donations to the poor, to churches, seminaries of learning, and to other objects calculated to benefit mankind.

He was temperate in his habits, neat in his apparel and person, social and gentlemanly in his intercourse with society, urbane and courteous in his manners, interesting and instructive in his conversation, modest and

unassuming in his deportment. He was a warm and affectionate companion, the widow's friend, and the orphan's father.

In size he was above the middle stature, rather slender, but well proportioned. His mouth and chin were well formed, his nose aqueline, his eyes blue and animated, with a high and prominent forehead. The diameter of his head, from back to front, was unusually great. His combined features were commanding and prepossessing, his countenance indicated a powerful and gigantic intellect.

When attacked by the disease which terminated in death, he was aware that a rapid dissolution awaited him. He was fully prepared to enter upon the untried scenes of another and a brighter world; he could look back upon a life, well spent; he had run a noble race, and was then ready to finish his course, resign his tabernacle of clay to its mother dust, and his immortal soul to Him who gave it.

OLIVER WOLCOTT.

The unqualified and unrestrained oppressions emanating from crowned heads and exercised with impunity in former times, have been shorn of half their terrors by modern light and intelligence. As the genial rays of liberty illuminate the minds of the human family, thrones will be held by a more slender tenure, and monarchies will become more limited if not completely annihilated. In Europe, kingly power has been vibrating for the last century, as if shaken by an earthquake. The love of freedom has never been extinguished in the old world; the same feelings that prompted the pilgrim fathers to tempt the dangers of this western hemisphere, still pervade the bosoms of millions who are writhing under the goring lash of potent sceptres.

When our forefathers planted themselves upon the shores of America many of them appear to have understood clearly the principles of a republican government, as appears from the articles of association entered into by several and distinct settlements. Among those who commenced their superstructure upon the foundation of equal rights, the name of Wolcott stands conspicuous. It is closely associated with the history of New England for the last two centuries. Henry Wolcott, the patriarch ancestor of this eminent family, was a native of England, and settled in Dorchester, Massachusetts, as early as 1630. In 1636, he, with several others, founded the town of Windsor, in Connecticut, and established a commonwealth, based on republican principles, consisting of Windsor, Hartford, and Weathersfield.

The revised constitution of Connecticut is substantially the same as the one penned by Roger Ludlow, and adopted by this infant colony; a high compliment to the pilgrim fathers—a proud memorial of their virtue and intelligence.

During the perils of the Indian wars, during the difficulties with the Canadian French, and through all the various vicissitudes that have

pervaded New England down to the present time, the descendants of Henry Wolcott have acted a conspicuous part in the field and in the legislative hall.

OLIVER WOLCOTT, the subject of this brief sketch, was the youngest son of Roger Wolcott, who was appointed governor of Connecticut in 1751. Oliver was born the 26th of November, 1726, and graduated at Yale College at the age of twenty-one years. The same year he was commissioned to command a company which he raised and marched to the defence of the northern frontier, where he remained until the peace of Aix-la-Chapelle. He then returned, applied himself to the study of medicine, until he was appointed the first sheriff of the county of Litchfield, formed in 1751. In 1755 he married Laura Collins, an amiable and discreet woman of great merit. In 1774 he was appointed counsellor, which station he filled for twelve successive years. He was also chief judge of the common plea court, and, for a long time, a judge of the court of probate. As a military officer he rose from the grade of captain to that of major-general. In the summer of 1776, he commanded the fourteen regiments raised by Governor Trumbull to act with the army in New York. He headed his brigade at the memorable battle that resulted in the capture of Burgoyne and revived the drooping cause of the bleeding colonies. He was uniformly consulted on important military movements, and was listened to with great confidence and respect. From its commencement he was a zealous and ardent supporter of the revolution.

In 1775 he was appointed by congress a commissioner of Indian affairs for the northern department, a trust of high importance at that time. During the same year his influence was happily exerted in reconciling disputes between the neighbouring colonies relative to their respective boundaries. Amiable and persuasive in his manners, aided by a sound discretion and a correct sense of justice, he was well calculated to be a mediator between contending parties.

In 1776 he took his seat in congress, and remained until he affixed his signature to that Declaration which burst the chains of slavery, gave birth to a nation in a day, astonished gazing millions, made the British king tremble on his throne, and stamped the names of its signers with a fame that will endure, unimpaired, through the rolling ages of time.

He then returned and took his station in the field, and on all occasions proved himself a brave, skilful, and prudent officer. When he deemed his services more useful in congress, he occasionally took his seat in that body until 1783.

In 1785 he was associated with Arthur Lee and Richard Butler to conclude a peace with the Six Nations. The year following he was elected lieutenant-governor, which station he filled for ten years, when he was chosen governor, the dignified duties of which station he performed until death closed his mortal career on the first of December, 1797, in the seventy-first year of his age, regretted by all, and most by those who knew him best.

In addition to his numerous public services, always performed without pomp or noise, his private character shone with peculiar lustre. He possessed all the sterling virtues, was a devout and consistent Christian, an honourable and honest man.

GEORGE READ.

When an individual is placed upon the horns of a dilemma, involving personal liberty, property or safety, his intellectual and physical powers are at once roused to action. He does not stop to explore the regions of obtuse metaphysics, speculative philosophy, or of fastidious etiquette. He flies to first principles, and strains his reason and understanding to their utmost tension to aid him. He puts forth his mightiest efforts, his boldest exertions, and his strongest energies, in order to extricate himself from surrounding difficulties and impending dangers. In this way he performs astonishing feats, and surmounts the cloud capt summit of an Alpine barrier, that, under ordinary circumstances, he would never reach.

The same course is pursued by a nation when placed in a similar situation. The history of the American revolution demonstrates, most clearly, the position here laid down. The colonists were placed upon the piercing points of the horns of an awful dilemma, and were apparently doomed to slavery or death: yet by their unparalleled efforts, aided by Heaven, they were ultimately delivered from their perilous situation, and, although badly gored, survived their wounds. This was effected by men of strong intellect, clear heads, good hearts, and sound judgments; men who could reason, plan and execute. The *flowers* of literature were not culled for use; plain common sense, sterling worth, useful and practical knowledge, honesty of purpose, and persevering energy of action, all based upon pure patriotism and love of liberty, were the grand requisites to ensure popular favour.

All these were possessed by GEORGE READ, whose public career I will briefly trace. He was the eldest son of John Read, a wealthy and respectable planter, who emigrated from Dublin, Ireland, and located in Cecil county, Maryland, where George Read was born, in 1734. John Read subsequently removed to Newcastle county, Delaware, and placed this son in a respectable school at Chester, Pennsylvania, where he made good

proficiency in the first rudiments of his education. From there he was transferred to the seminary of the Rev. Dr. Allison, at New London, who was eminently qualified to mould the young mind for usefulness, by imparting correct principles, practical knowledge, and general intelligence, fit for every day use, combined with refined classics and polite literature. Under this accomplished teacher, Mr. Read completed his education, preparatory to his professional studies. At the age of seventeen, he commenced reading law with John Moland Esq., a distinguished member of the Philadelphia bar. His proficiency was so great that in two years he was admitted to the practical honours of his profession. He was well qualified to enter the field of competition, having taken the entire charge of the docket of Mr. Moland for some time previous to his admission.

He commenced business in Newcastle, in 1754, and at once grappled successfully with the old and experienced counsellors around him, whose number and talents were neither few nor small. By his acuteness in pleading, and thorough knowledge of the primary principles of his profession, he soon gained the esteem of the courts, the admiration of his senior brethren, the confidence of the community, and obtained a lucrative practice. His forte consisted not in flowery show, but in that deep toned and grave forensic eloquence, that informs the understanding and carries conviction to the mind. He seldom appealed to the passions of the court or jury, preferring to stand upon the firm basis of the law and testimony, clearly expounded and truly exhibited.

On the 13th of April, 1763, he was appointed attorney-general for the three lower counties of Delaware, and continued in that office until he was called to the higher duties of legislation. The same year he led to the hymeneal altar, an amiable, pious, and accomplished daughter of the Rev. George Ross, of Newcastle: thus adding largely to the stake he held in the welfare of his country, enhancing his earthly joys, and giving him an influence and rank in society never acquired by lonely bachelors. She fully supplied the vacuum abhorred by nature, and proved a valuable partner of his toils and perils, his pains and pleasures, through subsequent life.

Mr. Read was a republican to the core, and from the commencement to the close of the revolution, was a bold and unyielding advocate of equal rights and liberal principles. When the question of rights and wrongs became a subject of investigation between the two countries, he resigned

the commission of attorney-general held under the crown, that he might enter the arena of discussion free and unshackled. In 1765 he was elected a member of the Assembly of the state of Delaware, and was instrumental in laying deep the foundations of the superstructure of liberty. He was prudent, calm, and discreet in all his actions; but firm, bold and resolute. He was a member of the Committee of the Delaware Assembly that so ably addressed the king upon the subject of grievances and redress. He was in favour of exhausting the magazine of petition and remonstrance, and if to no purpose, then to replenish with powder and ball. He did not, nor did any of the signers of the declaration, at the commencement of British oppression, contemplate a dissolution of the ties that bound the colonies to the mother country. But he understood well the rights secured to them by magna charta and the constitution of Great Britain; and he knew that those rights were trampled upon by the hirelings of the crown. To vindicate them he was firmly resolved. He opposed the principle of taxation without representation, and of raising a revenue in America to pamper royalty in England. He knew and weighed well the superior physical powers of his opposers; but he believed the majesty of eternal justice and the kind aid of Heaven, would sustain the patriots in their glorious cause. Nor did he reckon in vain. His written appeal to his constituents of the 17th of August, 1769, calling upon them to resist the encroachments of tyranny, was couched in bold and forcible language, portraying, in colours deep and strong, their rights and their wrongs, making the path of duty plain before them.

He sanctioned the various non-importation resolutions, passed by his own and other colonies; the first prominent mode adopted to thwart the designs and impositions of the British ministry after finding that petitions and remonstrances were treated with contumely. He was chairman of the committee of the Delaware patriots, appointed for the purpose of carrying these resolutions into effect. He was also chairman of the committee of twelve, appointed by the people of Newcastle, on the 29th of June, 1774, to obtain subscriptions for the Boston sufferers, who were writhing under the lash of the infamous port bill, passed by parliament, for the purpose of properly chastising the refractory inhabitants of that patriotic city. In February following, he remitted to the Boston committee, nine hundred dollars, money received from his constituents, which was eloquently

acknowledged by Samuel Adams, who was one of his faithful correspondents.

Mr. Read was a member of the congress of 1774, and retained that elevated station during the revolution. He was also president of the convention that formed the first constitution of Delaware in 1776, and a member of her assembly constantly for twelve successive years, after his first election. A part of this time he was also vice president of his state, and in the autumn of 1777, when president M'Kinley fell into the hands of the enemy, Mr. Read was called from congress to perform the more arduous, because undivided duties of a chief magistrate. On his way home with his family, he was compelled to pass through Jersey, and in crossing the Delaware from Salem, his boat was discovered by the British fleet then lying just below. An armed barge was sent in pursuit. Mr. Read's boat stuck fast in the mud, and was soon come up to. By effacing the marks upon his baggage during a few brief moments before he was boarded, and having with him his wife and children, he convinced those from the fleet that he was a country gentleman on his way to his farm, and solicited their assistance to put him and his family on shore. They promptly afforded their aid, took his boat out of the mud, and landed him and his precious charge safely on the Delaware side of the river. The perfect calmness of himself and lady, and their open frankness, saved them from the horrors of a prison ship, and probably him from an exhibition upon the yard arm of a man-of-war.

His duties now assumed an onerous character. Internal dissensions among his own people were to be reconciled; an intercourse by many of the inhabitants with the British fleet was to be broken up; ways and means for his own and the general government claimed his attention; his mind was burdened by an extreme anxiety to procure the exchange of the president; and a conquering foe was triumphing in victory in almost every direction. In the midst of all these perils, he stood firmly at the helm and rode out every storm. He proved equal to every emergency, and added new lustre to his growing fame. When the Declaration of Independence was under discussion, he believed the measure premature; but when it was adopted, he most cheerfully enrolled his name with his colleagues. In 1779 ill health compelled him to withdraw from public life for a year, when he again resumed his legislative duties. In 1782 he was appointed by congress a

judge of appeals in the court of admiralty. In 1785 he was one of the commissioners to settle the boundary line between New York and Massachusetts. The next year he was a delegate of the convention of the states, convened at Annapolis, for the purpose of regulating the commerce of the union. In 1787 he was one of that talented convention that framed the federal constitution. He was a United States senator of the first congress under that constitution, and served six years. He was also chief justice of Delaware from 1793 to the time of his death. In the performance of all these responsible and multiform duties, he acquitted himself nobly, and did honour to his character, his country, and the cause of rational liberty. As a civilian, a statesman, a magistrate, a patriot, a philanthropist, a gentleman, a husband, a father, a private citizen, and a public benefactor, GEORGE READ was a model worthy of imitation. He was scrupulously honest and rigidly just. When he arrived at his majority, he assigned his portion of the paternal estate to his brothers, deeming the expenses of his education equivalent to his equitable share. He was opposed to chaos in the smallest concerns of life, and abhorred vice of every kind. He enjoyed good health in his old age, until the autumn of 1798, when, after a sudden and short illness, he closed his eyes on terrestrial scenes, and resigned his spirit into the hands of the wise Disposer of all events.

The person of Mr. Read was above the middle size, well formed, with a commanding and agreeable deportment. He was a talented, virtuous, and amiable man.

THOMAS HEYWARD.

To understand, and estimate correctly, the magnitude and design of his creation, man must become familiar with the thousand springs and qualities of the undying spirit within him. The labyrinthian mazes of the immortal mind must be explored, and traced from earth to native Heaven. The depths of human nature must be sounded, and its channels clearly marked.

Upon the axis of reason, revolving thought performs its endless circuit with mathematical precision, guided by the centripetal force of a sound judgment, or it is projected from its proper orbit by the centrifugal momentum of random folly into the regions of senseless vacuity, or of wild and visionary sophistry. Its ceaseless motion is as perpetual as the purple stream of our arteries; its rapid flight is bounded only by eternity. It travels through space with more celerity than lightning; its earthly career can be arrested only by the hand of death.

To reflect, to investigate, to reason, and to analyze, is the province of our intellectual functions. To comprehend the grand and harmonious organic structure of nature, the wisdom of the great Architect of universal worlds, and the relation man bears to man, is to learn that human beings are endowed with equal and inherent rights, and that they are in duty bound to maintain them. Justice marks out the golden path, reason leads the way, and patriotism impels to action.

The man whose mind is cast in the mould of wisdom by the mighty hand of his Creator, if he brings into proper exercise the combined powers of intellectual and physical force, can never be made a willing slave. As his soul is expanded by the genial rays of intelligence, he duly appreciates his native dignity, becomes enraptured with the glories of liberty, and resolves to be free. If he is groaning under the oppressions of tyranny and wears the galling chains of servility, as light shines upon him he will be roused to a mighty effort to burst the ignominious thongs that bind him, assert his inalienable rights, and assume his legitimate station in the scale of being.

Thus acted the patriots of the American revolution—thus acted THOMAS HEYWARD, the subject of this brief sketch. He was the eldest son of Col. Daniel Heyward, a wealthy and highly respected planter, and was born in the parish of St. Luke, South Carolina, in 1746. His opportunities for obtaining a liberal education were freely afforded by his father, and were faithfully improved by the son. He became ardently attached to the Greek and Roman classics, and dwelt with rapture upon the history of republican freedom. The principles of rational liberty became deeply rooted in his mind at an early age, and when manhood dawned upon him they were thoroughly matured.

After completing his elemental education he commenced the study of law with Mr. Parsons, who stood high as a member of the bar. The proficiency of Mr. Heyward in that intricate science was creditable to himself and gratifying to his numerous friends. He possessed an investigating and analyzing mind, and never passed over a subject superficially. He was a close student, and explored the opening fields of civil and common law with a zeal and rapidity seldom known. When he became familiar with the principles laid down by Sir William Blackstone, and understood fully the rights secured to persons and property by Magna Charta and the British constitution, and compared them with the iron rod of restrictions held over the colonists by the mother country, he was roused to a just indignation.

After having completed his course with Mr. Parsons, he repaired to England, and entered the middle temple, where he became a finished lawyer and an accomplished gentleman. Although amply supplied with money, he was not led astray by the allurements of fascinating pleasures, that first flatter and please, then ruin and destroy. To enrich his mind with science and useful knowledge, was the ultimatum of his soul.

He mingled with what was termed refined society in London, which formed a striking contrast with the republican simplicity of that of the same grade in his own country. The fastidious hauteur of English etiquette was far from being congenial to his mind, and did not accord with his ideas of social life. He there met claims of superiority over native Americans that he knew were based alone upon pride and ignorance. His feelings were often wounded by indignities cast upon the colonial character. All these things combined to rivet his affections more strongly upon the land of his birth.

They operated as fuel for the livid flame of patriotism, already glowing in his bosom. The pomp of royalty and the splendour of kingly courts had no charms for him. The awful distance between the haughty prince and the honest peasant, the towering throne and the worthy yeomanry, operated upon his mind like a talisman, and gave his soul a new impetus towards the goal of equal rights. The more he saw of practical monarchy, often the automaton of corrupt and corrupting advisers, the more he became opposed to its potent sway.

After closing his course in the law temple, he made the tour of Europe, and then returned to the warm embrace of his relatives and friends, richly laden with the treasures of classic science and useful knowledge. He had become familiar with the theories of European governments, and had seen their principles practically demonstrated. He understood well the feelings and policy of the mother country relative to her American colonies. He had witnessed her political artificers at the forge of despotism, preparing chains for his beloved country. He had seen her coffers yawning wide, to receive the ill gotten treasures, wrested from his fellow citizens by hireling tax gatherers, in violation of chartered rights, legal justice, and the claims of mercy. His own estate had been laid under contribution to swell the unholy fund. His neighbours around him were groaning under the lash of British oppression. To enlighten their minds, and make them understand fully their danger, their interest, and their duty, became the business of this zealous patriot. Possessed of a bold and fearless mind, directed by a clear head, an honest heart, a sound judgment, and a rich fund of useful intelligence, his exertions were crowned with glorious success. His salutary influence was extensively felt—his sterling worth was duly appreciated. He was a member of the first assembly of South Carolina that set British power at defiance, and was also a member of the council of safety. He discharged his duties with firmness, prudence, and zeal. No fugitive fear disturbed his mind, no threatened vengeance moved his purposes. His eyes were fixed on the temple of freedom, his soul was insulated by the fluid of patriotism, his heart was resolved on liberty or death. His life, his property, and his sacred honour, were pledged in the noble cause. He was elected to the Continental Congress in 1775, but at first declined serving, in consequence of his young age. A large delegation of citizens subsequently waited upon him, and, at their urgent request, he took his seat in that august assembly of sages in 1776, and became a warm advocate for that memorable instrument, that

proclaimed the birth of our nation to an astonished world, and shed fresh lustre on the intellect of man. His voice and his signature sanctioned its adoption—his conscience, his country, and his God, approved the act.

In two years after he was called to perform more painful duties. He was appointed a judge of the civil and criminal courts of his native state, under the new order of things. Several persons were arraigned before him, charged with a treasonable correspondence with the enemy—they were found guilty, and condemned to be hung in sight of the British lines at Charleston. With feelings of humanity, but with the firmness of a Roman, he performed his duty, and pronounced upon them the penalty of the law.

Judge HEYWARD also participated in the military perils of “the times that tried men’s souls.” He commanded a company of artillery at the battle of Beaufort, and was severely wounded. At the attack upon Savannah he was also actively engaged. At the siege of Charleston he commanded a battalion, and was one of the unfortunate prisoners who were transferred to St. Augustine. During his absence his property was pillaged, and his amiable and accomplished wife, the daughter of Mr. Matthews, whom he had married in 1773, was laid in the grave. The tidings of these heart-rending afflictions did not reach him until he was exchanged and returned to Philadelphia. With the calm and dignified fortitude of a christian, a philosopher, and a hero, he met the shafts of afflictive fate. He mourned deeply, but submissively, the premature exit of the companion of his bosom. His physical sufferings and loss of property he freely offered at the altar of liberty, without a murmur or a sigh.

He again resumed his judicial duties upon the bench, and discharged them ably and faithfully until 1798. He was an influential member of the convention that framed the Constitution of South Carolina in 1790. Old age and infirmity finally admonished him that his mission on earth was fast drawing to a close, and he retired from the public arena, covered with epic and civic honours, lasting as the pages of history. In the full fruition of a nation’s gratitude and of a nation’s freedom he spent his last years, and in March, 1809, went to his final rest, leaving his second wife, Miss E. Savage, and his children, to mourn the loss of a kind husband and tender father; and his country to regret the loss of a devoted patriot, an able judge, and an honest man.

ROBERT MORRIS.

Men, whose motives inducing them to action are free from self, aiming exclusively at public good, are like angels' visits, few and far between. Perhaps no era recorded on the pages of ancient or modern history, presents as many examples of disinterested patriotism as that of the American revolution. The sages who conceived, planned, and consummated the declaration of our independence, pledged their LIVES, THEIR FORTUNES, AND THEIR SACRED HONOURS, to carry out the principles promulgated by that sacred instrument. Never did men perform their vows more faithfully; never did men redeem their pledges more nobly. Many of them not only placed all their available means in the public treasury, but extended their private credit to its utmost tension, to obtain supplies for the infant Republic, then bursting from embryo.—No one rendered more efficient pecuniary aid in the advancement of the cause of equal rights and American liberty than ROBERT MORRIS. He was an Englishman by birth, born at Liverpool, Lancashire, England, on the 20th day of January, 1734. His father was a respectable merchant, and immigrated to this country in 1746, and settled at Oxford, on the eastern shore of Maryland. He then sent for his son, whom he had left behind, who arrived when he was thirteen years of age. He received a good commercial education, but not classical.

At the age of fifteen, he was deprived of his father by death. He had previously entered the counting-house of Charles Willing, then one of the most thorough and enterprising merchants of the city of Philadelphia. After having acquired a knowledge of commercial concerns, Mr. Willing established him in business, and remained his constant friend and adviser. For several years he prospered alone, but finding the cares of time pressing upon him, he concluded to take a partner, to aid him in the journey of life. That partner was the amiable and accomplished Mary, daughter of Col. White, and sister to the late venerable and learned Bishop White of Philadelphia. She possessed every quality calculated to adorn her sex and render connubial felicity complete; and withal, was rich—a desideratum

with some, but a miserable substitute for genuine esteem, sincere affection and true friendship. No man or woman, with a clear head, a good heart, and sound discretion ever married for the sake of riches alone.

“Can gold buy FRIENDSHIP? Impudence of hope!
As well mere man an angel might beget.”

Fortunately for Mr. Morris and his partner, their highest treasure was mutual affection, flowing from the pure fountain of their kindred hearts, anxious to promote the reciprocal happiness of each other, and the felicity of all around them.

Nothing occurred to mar their prosperity until the revolutionary storm burst upon the colonies. Had self interest been consulted so far as pecuniary matters were concerned, Mr. Morris would have adhered to the crown. His interests, in point of property, were entirely commercial: and, in case of an opposition by him to the mother country, his wealth was very much exposed. But he had inhaled the atmosphere of freedom; his soul was fired with patriotism; he resolved to pledge his ALL in the cause of liberty. His influence was extensive; he was a cool, reflecting and high minded man, and arrived at conclusions only from mature deliberation. This being his character, his examples had great weight.

He was elected a member of the congress of 1774, and took a decided stand against British oppression. Being an able financier, he was looked up to as the most efficient manager of monetary matters, and, so far as providing ways and means were concerned, he was authorized to act. Most nobly did he acquit himself in the performance of this important trust. As no office of finance was then created, unfortunately for his country, he could not control the disbursements, but continued to provide money, often from his own resources. When Congress adjourned from Philadelphia to Baltimore on the approach of the conquering British army in 1776, after the declaration of independence, then called by many the death warrant of the signers, Robert Morris, who had affixed his name to that bold instrument, remained at the former city some time after his colleagues left, periling his personal safety in order to make arrangements to raise funds for the prosecution of the glorious cause he had espoused. During his stay, it became necessary that congress should raise a specific sum in specie for the use of the American army. Information was immediately communicated to

Mr. Morris of the imperious wants of the commander-in-chief. Not a solitary dollar was in the government treasury. In a few hours after he received the intelligence, he met a member of the society of Friends whose confidence he possessed, who enquired of him "what news?" "The news is," replied Mr. Morris, "that I am in immediate want of —— dollars of hard money, and that you are the man to obtain it for me. Your security is to be my note of hand and my honour." The reply was as laconic as the appeal: "Robert thou shalt have it." The money was promptly forwarded to the commander-in-chief and placed at his disposal, and enabled Washington to meet the enemy at Trenton with signal success.

Mr. Morris made no parade or vain show in the performance of his duties, and often furnished funds through agents under the injunction of secrecy, who, at the time, had the credit of affording relief on their own account. One instance will suffice for an example.

When General Green took the command of the troops in South Carolina, their destitute situation was deplorable. They were only partially covered with tattered garments; their food was of the coarsest kind, and but a scanty supply of that; their quantity of ammunition was small, and nothing but certain destruction seemed to hover around them. At that alarming crisis, Mr. Hall, of that state, advanced the necessary funds to supply the immediate wants of the army, and enable General Green to commence vigorous operations.

After the war had closed, and an account of the disbursements was exhibited, it was found that Mr. Hall had acted under the direction of Robert Morris, who had furnished the needful at the very time it was necessary to save the southern army from dissolution. General Green, on being made acquainted with the fact on his final settlement at the office of finance, was at first displeased with the measure, but upon reflection, greatly applauded and admired the wisdom of this secrecy, "because," said he, "if I had known that I might have drawn upon Robert Morris, I should have demanded larger sums, and effected no more than was accomplished with the means placed in my hands." The advances of Mr. Morris to the southern army were near accomplishing his pecuniary ruin.

As a financier his genius was of the most prolific kind. When he found one resource after another exhausted; the American troops writhing under

the keenest privations; the credit of the infant Republic paralyzed, and her treasury drained of the last dollar, had his mind been cast in an ordinary mould, he must have fainted by the way. But amidst the embarrassments that surrounded him, he stood calm and undismayed upon the firm basis of his own resources. When he found that they were becoming crippled, he submitted to congress the plan of chartering the Bank of North America, which, after much discussion, was approved and adopted on the 7th of January, 1782.

The year preceding, the office of finance had been established, and Mr. Morris appointed financier. Previous to that, it appears he had not, at any time, been the disbursing agent of the public monies; and that no system had been adopted by Congress that gave any one individual the control, under them, of this important department. The consequence was, that the monies raised for the supplies of the army often fell into the hands of irresponsible agents and never reached their pristine destination.

After Mr. Morris was placed in authority over this vital branch of government, he reduced the expenditures for military operations from eighteen millions of dollars a year, to about five millions; and thus enabled the continental congress to prosecute the war successfully, when, without this retrenchment, its means would have been inadequate to meet the increasing demands, and the cause of liberty, to all human appearance, must have been abandoned. Like a Roman Curtius, he pledged his own fortune to save his country, and disenthral her from the chains of tyranny. To demonstrate this, I will mention one of the many instances of supplies being obtained upon his private credit.

When the expedition was planned by Washington against Cornwallis at Yorktown, the government treasury was empty, and her credit shivering in the wind. The army was in a destitute situation: the means of prosecuting a siege were to be provided, and Mr. Morris informed the commander-in-chief that unless he arrived at the conclusion that the necessary supplies could be raised on his (Mr. Morris,) credit, the expedition must fail. Washington expressed his entire confidence in the ability of the financier, and immediately took up the line of march.

In the short space of four weeks, Mr. Morris, aided by the patriotic Richard Peters, furnished near eighty pieces of battering cannon and one

hundred pieces of field artillery, and all other necessary supplies not furnished from other sources, and became personally responsible to the amount of ONE MILLION FOUR HUNDRED THOUSAND DOLLARS, upon his own notes, which were promptly paid at maturity. This, united with aid from Virginia and some of the other states, enabled the American army to give the finishing stroke to the revolution, and triumph, in victory complete, over a proud and merciless foe.

Under cover of the firm of Willing, Morris & Co., of which our financier was a partner, many important and advantageous transactions were made for government, but ostensibly, at the time, for the firm. Being accomplished in this manner, a great saving was secured for the public, in the profits of which the firm did not participate one dollar, as was conclusively shown by an investigation instituted by Mr. Laurens, in Congress, at the instance of Mr. Morris, in order to repel the base slanders that were circulated against this pure and honest patriot. All the accusations that have been brought against Robert Morris, before and since his death, charging him with speculation or speculation in government funds, or of any improper conduct towards his country as a public agent, I pronounce to be *basely false*; they have no foundation in truth or in fact. Judging from the numerous documents that I have carefully examined, Robert Morris was not only one of the most disinterested patriots of the American revolution, but was one of the most substantial instruments in consummating that glorious enterprise. He was so considered by the illustrious Washington, the Continental Congress, and by all those who were correctly informed of his proceedings. Even general Greene was one of his most ardent admirers, whose biographer, long after the SAGE and the HERO had mouldered beneath the clods of the valley, published a tirade of abuse against Mr. Morris that has sunk Judge Johnson so far below the true dignity of an impartial writer, as to render the efforts of his envy abortive, and of his malice, powerless. His extracts from public documents are garbled, his conclusions are based upon false premises, his innuendoes are ungenerous—his attack is gratuitous and uncalled for, and has justly recoiled upon the proud escutcheon of his own fame. The shafts of slander can never indent the fair reputation of Robert Morris, although hurled like thunderbolts from the whole artillery of malice and revenge. Upon the enduring records of our nation his actions stand in bold relieve, bright as the moon, clear as the sun,

and as withering to the opposition of his enemies as the burning sands of Sahara. His honest fame will endure, unimpaired, the revolutions of time.

From the day he assumed the high charge of superintendent of finance, his duties were onerous and multifarious. It was some time after the strong solicitations of Congress were urged upon him before he consented to undertake the delicate and difficult task of managing this department, to which he was elected on the 20th of February, 1781, a dark and dismal period of the revolution. A deep sense of public duty finally induced him to undertake the gigantic work, and in a masterly manner did he execute it. He immediately instituted an examination of the public debts, revenue, and expenditures; he reduced to an economical system the mode of regulating the finances, and of disbursing the public funds; he executed the plans of Congress relating to all monetary matters; he superintended the action of all persons employed in obtaining and distributing supplies for the army; he attended to the collection of all monies due to the United States, either by loans from Europe, from the states, or otherwise; he held a supervision over all the contractors for military supplies; he provided for the civil list; he corresponded with the executive of each state, and with the ministers of the United States, then in Europe for the purpose of obtaining aid, urging upon them the necessity of raising money, and necessarily transacted much business with every department of the government. At the same time he was an active member of the legislature of Pennsylvania. The effects of his powerful financial mind soon invigorated the desponding cause of liberty. Through the agency of the bank of North America, united with his personal responsibility, he improved the national credit, and introduced a rigid economy through all the avenues of public operations. He found himself in an Augean stable, but was the Hercules that could effectually cleanse it. Corrupt agents and corrupting speculators fled before his searching scrutiny, hissing like serpents retiring to their dens.

In all things he acquitted himself nobly, and stood approved by Congress, by his country, his conscience and his God. It is a lasting eulogium upon his name, that he reduced all his transactions to so perfect a system, committing them all to writing, that he was able to produce a satisfactory voucher for each and every public act during his whole career—a circumstance worthy of remark and of imitation. System is the helm, ballast, and mainmast of business.

At the final close of the war, Mr. Morris, fatigued in mind and body, tendered his resignation, which was not accepted by Congress until November, 1784. A large amount of his own notes, given on account of supplies for the government, were then out. To impart confidence to those who held them, he issued a circular, pledging himself to meet them all at maturity, which pledge he faithfully redeemed. At the time of his resignation, he placed himself in the crucible of an examining committee appointed by Congress, before whom he exhibited a perfect map of all his public acts. After the investigation closed, the report of the committee placed him on a lofty eminence, as an able financier and an honest man.

He was solicited by President Washington to accept of the appointment of secretary of the treasury, which he respectfully declined.

Mr. Morris was a member of the convention that framed the federal constitution, and was elected to the first national senate that convened after its adoption. He seldom entered into debate, but when he did, he was truly eloquent, chaste, and logical. He was always heard with great attention, and exercised a powerful influence in the legislative body. His speech in the Pennsylvania legislature against the continental currency, was a specimen of eloquence and conclusive reasoning, seldom surpassed. He also wrote with great facility and strength of language. Although not a classical scholar, he possessed an inexhaustible store of useful and practical information, derived from the richest sources, and applicable to all the public and private relations of life.

When the peace of 1783 proclaimed his country free from further invasion, Mr. Morris again entered largely into commercial speculations. In 1784 he sent a ship to Canton, which was the first that displayed the star spangled banner in that port. He was also the first who attempted the "out of season" passage to China, by doubling the south cape of New Holland, and astonished the English navigators by the arrival of his ship at a season of the year before deemed impracticable. He was the first man who introduced hot and ice houses in this country. He was a friend to every kind of improvement, and did all in his power to promote the interests of his fellow men and of his country. After spending a long life in managing, most skilfully, millions upon millions of capital, he at last split upon the fatal rock of land speculation, and closed his eventful career in poverty, on the 8th of May, 1806, at the city of Philadelphia, sincerely mourned by his

country and deeply regretted by his numerous and devoted friends. He had long been afflicted with the asthma, and suffered much during the last years of his useful life. He met the grim messenger of death with fortitude and resignation, and bid a final adieu to earth and its toils, without a murmur or a sigh.

The private character of this public benefactor was, in all respects, amiable, pure, and consistent. He was a large man, with an open, frank, and pleasing countenance, gentlemanly in his manners, and agreeable in all his associations. He was most highly esteemed by those who knew him best. Although no proud monument of marble is reared over his ashes, his name is deeply engraved upon the tablet of enduring fame, and will be revered by every true American and patriot until the historic page shall cease to be read, and civilization shall be lost in chaos.

JOHN WITHERSPOON.

The man who places his confidence in the Supreme Ruler of revolving worlds, leans upon a sure support, that earth can neither give nor take away. When we can appeal to Heaven with clean hands for aid in our undertakings, faith bids us fear no danger. A large portion of the patriots of the revolution were pious men; and I am not apprised that one among them, who became conspicuous, was a disbeliever in an overruling Providence. Several of them were devoted ministers of the Gospel, among whom was JOHN WITHERSPOON, a native of the parish of Yester, near Edinburgh, Scotland, born on the 5th of February, 1722. He was a lineal descendant of the celebrated John Knox, the heroic reformer of Scotland. The father of John Witherspoon was the minister of the above named parish, and was instrumental in moulding the mind of his son in the paths of wisdom, virtue and science. He placed him at an early age in the Haddington school, where his young mind unfolded its rich beauties, with all the fragrance of a spring flower. He soared above the trifles and allurements that too often lead childhood and youth astray, and made his studies his chief delight. He manifested a maturity of judgment, a clearness of conception, and a depth of thought rarely exhibited in juvenile life. At the age of fourteen years he entered the university of Edinburgh, where he fully sustained the high anticipations of his friends, and gained the esteem and admiration of his fellow students and the professors. His acquirements in the theological department were of a superior order. At the age of twenty-one, he passed the ordeal of his final examination, and received a license to proclaim to the world the glad tidings of the everlasting Gospel.

He immediately became the assistant of his revered father, and gained the affection and confidence of his parishioners, and the admiration of all who heard him and delighted in plain practical piety.

In 1746, on the 17th of January, he was a “looker on in Venice” at the battle of Falkirk, and was seized by the victorious rebels, with many others

whose curiosity had led them to the scene of action, and imprisoned in the castle of Doune. After he was released from this confinement, he resided a few years at Beith, and subsequently at Paisly, rendering himself highly useful as a faithful and exemplary preacher. During his residence at the latter place, he received urgent calls from the people of Dublin, Rotterdam and Dundee, in Europe; and an invitation to accept of the presidential chair of the college of New Jersey, in America, to which, at the suggestion of Richard Stockton, then in London, he was elected on the 19th of November, 1766. A general demurrer was entered against his acceptance by his numerous relations and friends, with whom his wife at first participated. The delights of his native home and the horrors of the American wilderness, were held up before him in fearful contrast. A bachelor relation of his, who was very wealthy, offered to will to him his large fortune if he would decline the solicitation of the trustees of the college. For more than a year he refused to accept of the invitation. During that time, his lady caught what was called “the missionary fever,” and not only freely consented to embark for the new world, but exerted herself to remove every impeding obstacle. On the 9th of December of the following year, Mr. Stockton had the pleasure of communicating to the board of trustees the acceptance of Dr. Witherspoon, which was most joyfully received.

He arrived with his family in the early part of the ensuing August, and on the 17th of that month was inaugurated at Princeton. His literary fame, which had been previously spread through the colonies, gained an immediate accession of students to the institution, and gave a new impetus to its action, although it had been ably conducted by his worthy predecessors. The high reputation of the new president gave him an extensive influence, of which he prudently availed himself to resuscitate and replenish the empty treasury of the college by obtaining donations from private and public sources. He also introduced the most thorough and harmonious system throughout all its departments, and fully answered the most sanguine anticipations of his warmest friends. His mode of instruction was calculated to expand the ideas of his students, and launch them upon the sea of reflection and investigation. He dispelled the dogmatical and bewildering clouds of metaphysical fatality and contingency, and of unmeaning and abstruse physiology, that hung like an incubus over the old schools. He illumined their understandings with the rays of scientific truth, founded upon enlightened philosophy, sound reason, plain common sense,

and liberal principles. He taught his pupils to explore the labyrinthian mazes of human nature, and the revolving circuit of their own immortal minds. He raised before them the curtain of the material, moral, physical and intellectual world; and delineated, by lucid demonstration, their harmonious connection and unity, perfected by the grand architect of this mighty machinery made for man. He pointed out to them the duties they owed to themselves, their fellow men, their country, and their God. He imbued their souls with charity, the golden chain that reaches from earth to Heaven: He taught them how to live and be useful, and how to throw off their mortal coil, when called to "that country from whose bourne no traveller returns." His instructions were luminous and enriching; his precepts were fertilizing to every mind on which they fell, capable of receiving an impression.

On the flood tide of a high and merited literary and theological fame, Dr. Witherspoon floated peacefully along, until the revolutionary storm drove him from his citadel of classics and the pulpit of his church to a different sphere of action. Before he immigrated to America he understood well the relations between the mother country and the colonies. He was master of civilian philosophy, international law, monarchical policy, and the principles of rational freedom. The enrapturing beauties of liberty, and the hideous deformities of tyranny, passed in review before his gigantic mind. In the designs of creative wisdom he saw the equal rights of man and determined to vindicate them. He at once took a bold stand in favour of his adopted country. With an eagle's flight he mounted the pinnacle of political fame; with a statesman's eye he calmly surveyed the mighty work to be performed by Columbia's sons. The plan of political regeneration and independence stood approved by Heaven, and he resolved to lend his aid in the glorious cause. Most nobly did he perform his part.

From the commencement of the revolution he was a member of various committees and conventions formed for the purpose of seeking redress from the king, by *peaceable* means if possible, by *forcible* means if it became necessary. He was a member of the Convention of New Jersey that formed its republican constitution of 1776. On the 20th of June of the same year, he was elected to the Continental Congress, and advocated, by his powerful and eloquent reasoning, the declaration of our rights, to which he affixed his name, appealing to his God for the approval of the act, and to the world for

the justice of the cause he espoused. He was continued a member of that august body until 1782, with the exception of one year, and contributed largely in shedding lustre over its deliberations. With a mind and intelligence able to grasp, comprehend, and expound the whole minutiae of legislation and government, he combined a patriotic devotion and holy zeal for the interests of his bleeding country. His labours were incessant, his industry was untiring, his perseverance was unyielding, and his patriotism was as pure as the crystal fountain or pellucid stream.

During the time he served in the legislative halls, he did not neglect the higher honours of the vineyard of his Lord and Master. He was often at the family altar, in the closet and in the pulpit; and was esteemed as one of the most able, eloquent, and profound preachers of that eventful period. He was one of the brightest ornaments of the religion of Christ, and one of the strongest advocates of the cause of liberty. As a speaker, he was listened to with deep interest; as a logical and systematic debater he had few equals. His arguments were *aposteriori*, *apriori* and *afortiori*; leading the mind from effect to cause, from cause to effect, and deducing the stronger reasons. His memory was remarkably retentive, his judgment acute, and his perceptions clear. He was a member of the secret committee of Congress, the duties of which were arduous and delicate. He was a member of the committee appointed to co-operate with general Washington in replenishing and regulating the army; of the committee of finance, and of various other and important committees. Several eloquent appeals to the people from Congress recommending special days to be set apart for public fasting and prayer, were from his nervous and vigorous pen. The melting and burning manifesto, protesting against the inhuman and barbarous treatment of the American prisoners confined on board the filthy prison ships at New York, was supposed to have been written by him. From his mode of reflecting and reasoning, Dr. Witherspoon was prophetic in pointing out the results of propositions laid before Congress, and opposed all those that he believed would terminate unfavourably. Against the emission of continental paper money he strongly remonstrated. His predictions of its depreciation were soon verified. In March, 1778, one dollar and three quarters of paper money were worth but one silver dollar; one year from that time the rate was two for one; in five months after it was eighteen for one; the next year it was forty for one; shortly after, seventy-five for one; and in a few more months, one hundred and fifty for one; and finally became worthless.

Most of the measures he proposed when he commenced his career in Congress were either then or subsequently adopted with success, and those that he opposed unsuccessfully, terminated unfortunately in almost every instance. So closely and deeply did he investigate and probe every subject that came before him, that his powers of penetration became proverbial.

Whether in the halls of classic literature, the ecclesiastical courts, or upon the floor of Congress, he was a shining light to those around him. His literary, political, and theological writings was numerous, of a high order, and are justly celebrated in Europe as well as in this country. They exhibit a pleasing and rich variety of thought; a strong and brilliant imagination; a luminous and flowing fancy; a keen and sarcastic wit; a chaste and fascinating style; broad and liberal views; philosophic and reasonable propositions; clear and convincing conclusions; all softened and embalmed by heaven-born charity and universal philanthropy.

At the close of the session of Congress in 1779, he was induced to resign his seat in consequence of his ill health, and a serious affection of the nerves, producing dizziness, that sometimes suddenly prostrated him. Being relieved from the more arduous duties of superintending the college at Princeton by the vice president, the Rev. Dr. Samuel Smith, his son-in-law, he sought the enjoyments of retirement. These were allowed to him but a brief period. In a little more than a year he was again elected to Congress, and when he finally resigned in 1782, he was shortly after persuaded by the trustees of the college, at the age of sixty, to embark for England for the purpose of obtaining funds to aid the seminary over which he presided. His exertions were laudable, but his mission unsuccessful. He opposed the project as visionary before he started; he demonstrated the correctness of his opinion when he returned in 1784.

He then retired to his country seat about one mile from Princeton, there to participate in the blessings of peace, of liberty, of independence, and of fame, the golden fruits that had been richly earned by years of peril and of toil. Surrounded by fond relatives and devoted friends; enjoying the gratitude and praise of a nation of freemen; his name immortalized as a civilian, a statesman, a patriot, a scholar, and a divine, he could sit down beneath the bright mantle of a pure conscience and an approving Heaven; and, through the bright vista of the future, gaze upon a crown of enduring

glory, prepared for him in realms of bliss beyond the skies. He was peaceful and happy.

In this manner he glided down the stream of life until the 15th of November, 1794, when he fell asleep in the arms of his Lord and Master, calm as a summer morning, serene as the etherial sky, welcoming the messenger of death with a seraphic smile. His remains rest in the church yard at Princeton.

A review of the life of this great and good man, affords an instructive lesson worthy to be engraven upon the heart of every reader. He was endowed with all the qualities calculated to ennoble and dignify the creature, and assimilate him to the Creator. His superior virtues completely eclipsed his human frailties, and placed him on a lofty eminence beyond the reach of envy, malice, or slander. His fame, in all its varied and refulgent hues, spreads a lustre over his name that will brighten and shine until the last death knell of liberty shall be sounded, and social order shall be lost in the devouring whirlpool of chaos.

In all the relations of private and public life, he stood approved, admired, and revered. Let us all endeavour to imitate his examples of virtue, the crowning glory of talent, that our lives may be useful in time, and our final exit tranquil and happy.

THOMAS LYNCH, JR.

Revolutionary struggles, predicated solely upon political ambition and partisan principles, often produce the most bitter persecution between those whose ties of consanguinity and friendship are seldom severed by other incidents. To the credit of our nation, instances of this kind were very rare during the struggle for American independence. In the field of battle, sire and son fought shoulder to shoulder; in the public assemblies, they united their eloquence in rousing the people to action.

A pleasing illustration of the mutual devotion of father and son to the same glorious object, is found in the history of THOMAS LYNCH, Jr., and his venerable parent. Their paternal ancestors were of Austrian descent, and highly respectable. The branch of the family from which the subject of the present sketch descended, removed to Kent in England, from thence to Ireland, a son of which, Jonack Lynch, emigrated from Connaught to South Carolina, in the early part of its settlement. He was the great grandfather of Thomas Lynch, Jr., and was a man of liberal views and of pure morality. Thomas Lynch, the father of the subject of this brief narrative, was his youngest son, and imbibed, at an early age, the patriotic feelings that rendered him conspicuous at the commencement of the revolution. By his industry and enterprise in agricultural pursuits he amassed a large fortune, and was able and disposed to give this, his only son, a superior education.

Thomas Lynch, Jr., was born upon the plantation of his father on the bank of the North Santa river, in the parish of Prince George, South Carolina, on the 5th of August, 1749. In early childhood he was deprived of the maternal care of his fond mother, who was the daughter of Mr. Alston, by relentless death. At a proper age he was placed at the Indigo Society School, then in successful operation at Georgetown in his native state, where some of the most eminent sages of the southern colonies received their education.

Warmed by the genial rays of the sun of science the germ of the young mind of Thomas Lynch, Jr. soon burst from its embryo state, and exhibited a pleasing and luxuriant growth. His progress in the exploration of the fields of literature was creditable to himself and highly gratifying to his indulgent parent and numerous friends. So rapid was his improvement, that at the early age of thirteen, his father placed him at the famous school at Eton, Buckinghamshire, England, founded by Henry VI., where he commenced his classical studies. After completing his course there, he was entered as a gentleman commoner in the University of Cambridge, where he became a finished scholar and an accomplished gentleman, esteemed and respected by all who knew him. He then had his name entered in the Law Temple, and made himself familiar with the elementary principles of legal knowledge, and prepared himself thoroughly to act well his part through future life. During his stay, he cultivated an extensive acquaintance with the whigs of England, which gave him an opportunity of acquiring a knowledge of the policy and designs of British ministers with regard to the American colonies. He took a deep interest in the relative situation of the two countries, and returned home in 1772, prepared and determined to oppose the oppressions of the crown and strike for LIBERTY. As the dark clouds of the revolution gathered in fearful array, the firmness of his purposes increased. These were fostered and encouraged by his patriotic father, and responded to by the people of his parish. Hand in hand did the sire and son march to the rescue of their country from the iron grasp of tyranny.

The first attempt of Thomas Lynch, Jr., at public speaking, after his return from Europe, was at a large town meeting at Charleston. His father had just addressed the assembled multitude on the subject of British oppression, amidst the enthusiastic cheers of his fellow citizens. As he sat down his youthful son rose. A profound silence ensued. A thousand eyes were turned upon him. For a moment he paused; his eyes were fixed, his bosom heaved; the struggle was over, and a strain of eloquence followed that carried the insulating fluid of patriotism to the hearts of his astonished and delighted audience with irresistible force. Tears of joy ran down the furrowed cheeks of his father, and loud bursts of applause were shouted by the enraptured assembly.

When the final crisis for physical action arrived, Mr. Lynch was among the first to offer his services. In July, 1775, he accepted of the commission

of captain, and repaired to Newbern, North Carolina, where he unfurled the star spangled banner, and in a few weeks enlisted the number of men required for his company. His father objected to his acceptance of so low a commission, to whom his affectionate son modestly replied, "My present command is fully equal to my experience;" a reply worthy of the consideration of every young person who desires to build his fame upon a substantial basis. If a man is suddenly placed upon a towering eminence to which he is unaccustomed, the nerves of his brain must be unusually strong if he does not grow dizzy, tremble, totter, and fall. If he ascends gradually, and pauses at the different points of altitude, he may reach the loftiest spire, preserve his equilibrium and be safe. Sudden elevations are uniformly dangerous. On his way to Charleston with his men, Captain Lynch was prostrated by the bilious fever, brought on by the fatigues and exposures of his new mode of life. From this attack he never entirely recovered. Towards the close of the year he so far regained his health as to be able to join his regiment. Soon after, he received intelligence of the dangerous illness of his father, then a member of Congress at Philadelphia. He immediately applied to Colonel Gadsden, his commanding officer, for permission to visit him, which was peremptorily refused, on the ground that the necessity for his services in the army was paramount to all private considerations. This difficulty was unexpectedly removed by his election to Congress, as the successor of his father, by an unanimous vote of the assembly of his state. He received the information with deep emotions of diffidence and gratitude. He promptly repaired to his new and dignified station, and took his seat in the Congress of 1776, composed of sages and statesmen whose combined talents and wisdom have no parallel in ancient or modern history. On his arrival at Philadelphia he found his father partially relieved from his paralytic affection, and in August he attempted to return to South Carolina, but only reached Annapolis, where he expired in the arms of his son who was soon to follow him.

On his entrance in the national legislature, Captain Lynch became a bold and eloquent advocate of the Declaration of Independence, and gained the reputation of being an able statesman and a firm patriot. He most cheerfully and fearlessly affixed his name to the charter of our rights, and did all in his power, and more than his feeble state of health warranted, to promote the glorious cause of FREEDOM. He was finally compelled to yield to increasing disease, and relinquish his public duties. Medical skill proved

unavailing, and by the advice of his physicians he undertook a voyage to Europe, a change of climate being the only thing that promised him relief. Near the close of the year 1779, himself and lady sailed with Captain Morgan, whose vessel was never heard from after she had been a few days at sea. The last account of the unfortunate ship was from a Frenchman, who left her from some cause unknown and went on board of another, shortly after which a violent tempest arose and unquestionably sent her, with all on board, to the bottom of the ocean.

Previous to his embarking, Captain Lynch, having no issue, willed his large estate to his three sisters in case of the death of himself and wife.

The private character of this worthy man was unsullied, and in all respects amiable. Had his valuable life been spared, he would undoubtedly have rendered his country eminent services, and maintained an elevated rank among the patriots and sages of the eventful era he saw so gloriously commenced. During his short career, he performed enough to immortalize his name. Although his morning sun never reached its meridian, its splendour contributed largely in illuminating the horizon of LIBERTY, and shed a lustre over his memory enduring as time.

The brief but brilliant career of THOMAS LYNCH, JR., admonishes us that life is held by a slender tenure, and that high accomplishments, like some rich flowers, often bloom just long enough to be admired and revered, then withdraw their beauties from our enraptured sight forever.

MATTHEW THORNTON.

In the sages of the American revolution, we recognise every variety of character that ennobles man and confers upon him dignity and merit. To rouse the people to a becoming sense of their inalienable and chartered rights, and to induce them to rise in the majesty of their might and vindicate them, was the first great business of the illustrious patriots who boldly planned and nobly achieved American independence. To effect this important object, all the varied forms and powers of eloquence were necessary, from the mighty torrent of logic that overwhelms, the keen sarcasm that withers, to the mild persuasion that leads the heart a willing captive.

The latter talent was pre-eminently possessed by MATTHEW THORNTON, who was born in Ireland in 1714, and immigrated to this country with his father, James Thornton, in 1717, who settled at Wiscasset, Maine. This son received a good academical education, and was much admired for his industry, correct deportment, and blandness of manners. After completing his course at school, he commenced the study of medicine with Dr. Grout, of Leicester, Massachusetts. He made rapid progress in the acquisition of that important branch of science, and gave early promise of future and extensive usefulness. When he became prepared to enter upon the duties of his profession, he commenced practice in Londonderry, New Hampshire, which was principally settled by immigrants from his native country. He soon acquired a lucrative business, and the confidence and esteem of his numerous patrons.

In the expedition against Cape Breton, then belonging to the French, he was appointed surgeon of the New Hampshire division of the invading army, and performed his duty with great fidelity, skill, and credit.

He was an early and prominent advocate of American rights—a bold and uniform opposer to the usurpations of the British ministry. He had a great opportunity to disseminate liberal principles among the people, which

did not pass unimproved. When the revolutionary storm burst upon the colonies, he had command of a regiment of militia in Londonderry. He also held the commission of justice of the peace, and had filled various civil offices. His urbanity of manners, sincerity and honesty of purpose, and uncommon powers of persuasion, gave him a rare and salutary influence, both in private parties and public assemblies.

He was appointed president of the first provincial convention of New Hampshire, after the dissolution of the king's government. The people of that state, for a time, did not come up to the line marked out by the patriots of Massachusetts, but Dr. Thornton, and other leading men, soon brought them into the rank and file of opposition to the invading foe, and redeemed them from the bonds of servitude and fear. In 1774, they sent delegates to the Congress convened at Philadelphia, and in December of that year, when they were apprised of the order of the king in council prohibiting the exportation of gunpowder, the committee of safety in the town of Portsmouth collected a body of men, who, before the governor was apprised of their intention, seized upon the fort and carried off one hundred barrels of that then important commodity.

Soon after the flight of Governor Wentworth upon receiving the intelligence of the battle of Lexington, an address was prepared by a committee of the provincial convention, of which Dr. Thornton was president, which was published over his signature. To the young reader this may seem unimportant, until it is known it was full evidence to convict him of high treason, and would have doomed him to the scaffold had he fallen into the hands of his enemies. Hence, the patriotism and boldness of the act.

The address was couched in strong and feeling terms, well calculated to produce the intended effect. The following extract is a fair sample of the whole: "You must all be sensible that the affairs of America have at length come to an affecting crisis. The horrors and distresses of a civil war, which, till of late, we only had in contemplation, we now find ourselves obliged to realize. Painful, beyond expression, have been those scenes of blood and devastation which the barbarous cruelty of British troops have placed before our eyes. Duty to God, to ourselves, to posterity, enforced by the cries of slaughtered innocents, have urged us to take up arms in our own defence. Such a day as this was never before known either to us or to our fathers. We would therefore recommend to the colony at large to cultivate

that christian union, harmony, and tender affection which is the only foundation upon which our invaluable privileges can rest with any security, or our public measures be pursued with the least prospect of success.”

On the 10th of January, 1776, Dr. Thornton was appointed a Judge of the Superior Court of New Hampshire, and on the 12th of September he was elected a member of the Continental Congress, and when he took his seat affixed his name to the Declaration of Independence. For those who are not correctly informed upon the subject it is natural to suppose that the signers of the chart of our liberty were present on the memorable 4th of July when it was adopted. This was not the case. Messrs. Franklin, Rush, Clymer, Wilson, Ross, and Taylor, as in the case of Dr. Thornton, were not members on that day. Nor does the name of Thomas M’Kean appear upon the printed records of Congress, although he was present and signed on the 4th of July; and the name of Henry Wisner, a delegate from Orange county, New York, who signed the original manuscript of the declaration on the day it was adopted, has never been properly recognised. These errors were undoubtedly clerical, not intentional. Mr. Wisner was a highly respectable member, and a pure and zealous patriot.

Dr. Thornton discharged the duties of his important station ably and faithfully until his services were required upon the bench. On the 24th of December of the same year, he was again elected to Congress, and served until the 23d of January, 1777, when he retired finally from the national legislature, highly esteemed by all his associates, enjoying the full confidence and gratitude of his constituents, and the proud satisfaction of having performed his duty towards his country. For six years he served on the bench of the Superior Court, and was also Chief Justice of the Common Pleas; the combined duties of which rendered his task arduous. In 1779, he removed to Exeter, and the following year purchased a plantation upon the banks of the Merrimack river, where he sought that repose that his advanced age required. His friends, however, were not willing to excuse him from acting in public concerns, and induced him to serve as a member of the general court, and also in the state senate during the war, and for two years after its close. On the 25th of January, 1784, he was appointed a justice of the peace and quorum throughout the state, which was an important office under the original constitution of the state, but which was abolished in part, and abridged in jurisdiction, by the amendments of 1792. This he held to

the day of his final retirement from all public duties; and, after 1785, he took no part in the politics of the day, but continued to afford salutary counsel on all important matters relative to the public weal, about which he was often consulted. During the controversy between his state and Vermont concerning a portion of disputed territory, he wrote several letters to those in power, urging the necessity of conciliatory measures, and an unconditional submission to the decision of Congress in the premises. They were highly creditable to him as an able patriot, a good writer, and a discreet man.

DR. THORNTON was one of the most fascinating and agreeable men of his age. He was seldom known to smile, but was uniformly cheerful, entertaining, and instructive; similar, in many respects, to the illustrious Franklin. His mind was stored with a rich variety of useful and practical knowledge, which rendered him an interesting companion. He sustained an unblemished private reputation, and discharged all the social relations of life with fidelity and faithfulness. He was opposed to sectarian religion, belonged to no church, but was devoutly pious and a constant attendant of public worship. He was a kind husband, an affectionate father, and a good neighbour. He was very exact in collecting his dues, by some thought too severe, and was rigidly scrupulous in liquidating every farthing he owed. He was a large portly man, over six feet in height, well proportioned, with an expressive countenance, enlivened by keen and penetrating black eyes. He died at Newburyport, Massachusetts, on the 24th of June, 1803, whilst visiting his daughter. His remains were conveyed to New Hampshire, and deposited near Thornton's Ferry, on the bank of the Merrimack, where a neat marble slab rests over his dust, with this laconic and significant epitaph—

“MATTHEW THORNTON,

AN HONEST MAN.”

WILLIAM FLOYD.

Private virtue and undisguised sincerity were marked characteristics of the revolutionary patriots. They were actuated by pure and honest motives, and not by wild ambition and political phrenzy. Noisy partisans and intriguing demagogues were not the favourites of the people during the war of independence. The man of genuine worth and modest merit was the one whom they delighted to honour and trust.

In the character of WILLIAM FLOYD these qualities were happily blended. He was a native of Suffolk, Long Island, in the state of New York, born on the 17th of December, 1734. His grandfather, Richard Floyd, immigrated from Wales in 1680, and settled at Setauket, Long Island. During his childhood he was remarkable for frankness and truth, and for amiableness of disposition and urbanity of manners. He was an industrious student, and acquired a liberal education. During the prosecution of his studies, he preserved his health in its full vigour, by devoting a short period almost, daily to the use of his gun, in pursuit of game, the only diversion to which he was ardently attached. This exercise gave his system a healthy tone, and enabled him to master his lessons with more accuracy than some who confine themselves exclusively to their rooms, and become debilitated for the want of physical action. Upon the health of the body the improvement of the juvenile mind very much depends—exercise in the open air should not be neglected.

The father of William M’Nicoll Floyd died before this son arrived at his majority, and left him an ample fortune. He managed it with prudence and economy, and when his country was doomed to pass through the fiery furnace of a revolution, he was one of the most opulent and influential men on Long Island. From his youth he had been the advocate of liberal principles, and opposed to the innovations of the British ministry, upon the chartered rights of the American colonies. As oppression increased, his patriotic feelings were more frequently and freely expressed, and when the

Congress of 1774 convened at Philadelphia, he was an active and zealous member. By his uniform candour and purity of purpose, he gained the unlimited confidence of his constituents and of his country. His cool deliberation and calm deportment, under all circumstances, were well calculated to preserve an equilibrium among those of a more fiery temperament and of more rashness in action. The Congress of 1774 was remarkable for clear and unanswerable argument, calm and learned discussion, wise and judicious plans, and reasonable but firm purposes. The course pursued operated powerfully and favourably upon the minds of reflecting men, whose influence it was important to obtain and secure.

Mr. Floyd also had command of the militia of his native county, and when the British attempted to land at Gardner's Bay, promptly assembled them, and repelled the invading foe. In 1775 he was again chosen a representative in Congress, and became one of its active and efficient members. He was emphatically a working man, and engaged constantly on important committee duties. During his absence at Philadelphia, the British obtained possession of Long Island, and forced his family to flee for their safety to Connecticut. His property was materially injured by the enemy, and his mansion-house converted into a military barrack, for the accommodation of the invaders of his country. For seven years he was deprived of all resources from his plantation, and was dependant upon his friends for the protection of his family. The year following he was again elected to a seat in the Continental Congress, and had the satisfaction of affixing his name to the declaration of independence, which he had advocated from its incipient stages to the time of its adoption. In 1777 he was elected to the first senate of the state of New York, convened under the new order of things. He immediately became a prominent and leading member, and rendered important services in forming a code of republican laws for the future government of the empire state, carefully guarding the rights of person and property inviolate.

In January, 1779, he again took his seat in the Continental Congress, and entered upon the duties of his station with the utmost vigour and industry. On the 24th of the ensuing August, he resumed his station in the senate of his native state. Much important business was before the legislature, requiring wisdom, energy, and unity of action. To devise some plan of relief from a depreciated currency and a prostrate credit, was an

important item. Mr. Floyd was at the head of a joint committee appointed for this purpose, and reported a plan that proved him to be an able financier and a man of deep thought and investigation. It was predicated upon a gradual and just system of taxation, to be carried into effect by responsible and honest agents, with good and sufficient sureties for the payment of all monies collected to the proper officer—the state treasurer. In October of that year, Mr. Floyd, Ezra L’Hommedieu, and John Loss were appointed by the New York legislature delegates to a convention of the eastern states convened for the purpose of devising some system by which supplies of provisions could be more readily obtained and preserved from the grasp of avaricious monopolists.

Immediately after the discharge of the duties assigned him, he again took his seat in Congress. On the third of December he was elected one of the board of admiralty, and on the thirteenth of the same month a member of the treasury board. By incessant application to the various duties that devolved upon him, his health became impaired, and in April following he obtained leave of absence. In June he repaired to the senate of New York, and was immediately appointed upon a joint committee to act upon resolutions of Congress, involving the important relations between the state and general government. He opposed, unsuccessfully, the plan of making bills of credit a legal tender, but had the pleasure in after life of seeing the principles he then advocated sanctioned and adopted.

In September he was appointed upon a committee of the senate to prepare a reply to the message of the governor. To effect a proper organization of the general government, was the anxious desire of the state legislatures. To confer upon Congress all necessary powers, strictly defined and plain to be understood, was considered the only safe policy to insure future safety. To this important subject the governor had drawn the particular attention of the members. The committee reported several resolutions on this point, which were adopted and forwarded for the consideration of the national legislature. They recommended the enactment of laws that should produce an equal responsibility upon each of the states to bear its *pro rata* proportion of the burden of the war, in the way and manner that should be devised by the general government. In 1780 he was again returned to Congress. In addition to the usual duties, he was instructed by an act of the legislature, together with the other members from

New York, to obtain a settlement of the claims of his native state, and those of New Hampshire, to the territory now comprising the state of Vermont. This was a vexed question that required much industry and wisdom to manage. These were eminently possessed by Mr. Floyd, who, on that occasion, as upon all others, discharged his duties to the entire satisfaction of his constituents. He also, during the same session, introduced a resolution for the cession of the western territories to the United States. He also nominated, on the 10th of August, Robert L. Livingston as secretary of foreign affairs, who was immediately appointed to that important station.

In addition to serving in the senate of his own state, more or less every year, he continued an active member of Congress until 1783, when he joined in the general joy of triumphant victory and heart-cheering peace, and was once more permitted to return and take possession of the ruins of his once flourishing plantation, amidst the congratulation of his numerous friends, all animated by the resplendent glories of LIBERTY. In order that he might repair his private fortune, he declined the urgent request of his constituents to consent to a re-election to Congress. He however continued to serve in the senate of his native state until 1788, when he was returned a member of the first Congress under the federal constitution. Worn out in the service of his country, he retired at the end of his term from the public arena, and once more entered upon the enjoyments of domestic bliss.

Being possessed of a large tract of valuable land upon the banks of the Mohawk river, then a dense wilderness, he commenced gradual improvements upon it, and in 1803 took up his final residence there. His friends often urged him to again become a member of the national legislature, but he declined entering upon any laborious public duties, except serving the district to which he removed one term in the state senate, and also of serving as a member of the convention of 1801, to revise the constitution of New York. He was four times a member of the electoral college of his state for the election of president and vice-president, and in 1800 he travelled two hundred miles to give his vote for his old companion and friend, Thomas Jefferson, in the dreary month of December.

He continued to improve his new plantation until he saw the wilderness blossom as the rose, and his mansion surrounded by happy neighbours, all basking in the clear sunshine of that freedom he had been instrumental in acquiring. Envy was a stranger to his philanthropic and patriotic bosom; he

rejoiced in the happiness of the whole human family; he delighted in the prosperity of all around him.

In all things he was a practical man, free from pomp and vanity, and systematic in all his proceedings. When his purposes were formed, he prosecuted them with an unyielding energy that was seldom arrested or thwarted. He was possessed of a clear head, a strong mind, a good heart, a vigorous and sound judgment, matured by long experience and a close observation of men and things. He spoke but little in public assemblies, and rarely entered into debate. Happy would it be for our country if we had more men like William Floyd at the present day, instead of so many who *talk* more than they *work*. Long speeches hang like an incubus over our legislatures, and those who feel disposed, are prevented by them from doing the business of the people promptly.

In all the private relations of life William Floyd presented a model as worthy of imitation as that of his public career. He was warm in his friendships, and most scrupulously honest in all his transactions. His feelings and morals were of a refined cast, and the most rigid integrity marked his every action. He thought and acted for himself, and left others to do the same. He marked out his path of duty from the reflections of his own mind, and pursued it steadily and fearlessly. For more than fifty years he enjoyed the full fruition of popular favours, and only one year before his death was elected a member of the electoral college. His physical powers were remarkable until a short time before his last illness. He was a man of middle size, well formed, and of easy deportment. He was dignified in his general appearance, and affable in his manners. For the last two years of his life his health was partially impaired, and on the 1st of August, 1821, he was seized with general debility, and on the fourth day he folded his arms calmly, closed his eyes peacefully, and met the cold embrace of death with the fortitude of a sage, a patriot, and a Christian. Although general Floyd did not possess the Ciceronian eloquence of an Adams, a Jefferson, or a Henry, he was one of the most useful men of his day and generation. His examples and his labours shed a lustre over his character, as rich and as enduring as the fame of those who shone conspicuously in the forum. He was an important link in the golden chain of liberty, and was so esteemed by all his associates in Congress. The working man was then properly appreciated. The most powerful orators of that eventful era were concise

and laconic. Long speeches were as uncommon as they are now pernicious and unnecessary. The business of our nation was performed promptly, expeditiously, effectually, and economically. Let us imitate the examples of the patriots of the times that tried their souls, and preserve, in its native purity, the rich boon of liberty they have transmitted to us. Let us emulate the virtues of general WILLIAM FLOYD, and we shall be highly esteemed in life, deeply mourned in death, and our names will survive, on the tablet of enduring fame, through the revolutions of time.

WILLIAM WHIPPLE.

A common error that has gained credence among mankind, consists in a belief that to obtain a sufficient share of knowledge to enable a man to appear advantageously upon the theatre of public action, he must spend his youthful days within the walls of some celebrated seminary of learning. In the view of many, it is necessary for a young man to commence his career under the high floating banner of a collegiate diploma in order to ensure future fame.

That a refined classical education is a desirable and high accomplishment, I admit; that it is indispensably necessary, and always renders a man more useful, I deny. The man who has been incarcerated from his childhood up to his majority within the limited circumference of his school-room and boarding-house, although he may have mastered all the sciences of the books, cannot have acquired that knowledge of men and things necessary to prepare him for action in private or public life. Polite literature is *one* thing, useful knowledge, fit for every day use, is *another*, and of vital importance. By proper application a man may obtain both, and that without entering college. The field is open to all, especially under a republican form of government. Franklin and Sherman, both humble mechanics, became finished scholars and profound philosophers without the aid of collegiate professors. I do not design to deteriorate the usefulness of high seminaries of learning, but to stimulate those who have native talent and cannot enjoy their advantages, to imitate the examples of those who have risen to high stations of honour and distinction by the force of their own exertions, unaided by these dazzling lights.

Among the self taught men of our country the name of WILLIAM WHIPPLE stands conspicuous. He was the eldest son of William Whipple, and born at Kittery, Maine, in 1730. He was educated in a common English school, where he was taught reading, writing, arithmetic, and navigation. These branches he mastered at an early age, and was then entered as a cabin

boy on board of a merchant vessel, which was in accordance with the wishes of his father and his own inclination. Before he arrived at the age of twenty-one years, he rose to the station of captain and made several successful voyages to Europe. Some writers have attempted to cast a stigma upon his character at that era of his life, because, in a few instances, he participated in the slave trade. If they will learn the general feeling that pervaded the minds of a large proportion of the civilized community at that time upon this subject, their anathemas will vanish in thin air. The trade was then sanctioned by the king of Great Britain, under whose government captain Whipple acted, and, according to the English law, *the king can do no harm*. The correctness of the principle was not then disputed or agitated generally, and the trade was ingrafted in the commercial policy of the mother country. That Captain Whipple became convinced upon reflection of the unjustness and barbarity of the traffic, fully appears from his subsequent acts. At the commencement of the revolution he manumitted the only slave he owned, who adhered to his old master during the war, and fought bravely for our liberties. If every man is to be condemned for the errors of youth, whose riper years are crowned with virtue, the list of fame will be robbed of many bright constellations.

In 1759, captain Whipple relinquished his oceanic pursuits, and commenced the mercantile business in Portsmouth, New Hampshire. He also married Miss Catharine Moffat, and entered upon a new scene of life. During his numerous voyages he had become celebrated as a skilful navigator and a judicious commanding officer. He had carefully treasured a large fund of useful knowledge by close observation, attentive reading, and by mingling, when in port, with none but intelligent and good company. He had listened, both in England and America, to the unwarranted pretensions of the former, and the increasing complaints of the latter. He had made himself familiar with the chartered rights of his own country, and with the usurpations of the crown over his fellow citizens. He was prepared to take a bold stand in favour of freedom. He took a conspicuous part in public meetings, and was chosen one of the committee of safety. He rose rapidly in public estimation, and the former cabin boy became a leading patriot. In January, 1775, he represented Portsmouth in the Provincial Congress, convened at Exeter, for the purpose of choosing delegates for the Continental Congress. On the 6th of January of the following year he was chosen a member of the provincial council of New Hampshire, and on the

23d of the same month, a delegate to the national legislature at Philadelphia, of which he continued a distinguished, active, and useful member, until the middle of September, 1779. He was present at the adoption of the Declaration of Independence, and affixed his name to that sacred and bold instrument with the same fearless calmness with which he would have signed a bill of lading.

He was emphatically a working man, and from his extensive knowledge of business, rendered himself highly useful on committees. As a member of the marine and commercial committees, his practical knowledge gave him a superiority over his colleagues. He was also appointed one of the superintendents of the commissary and quartermaster department, and did much towards correcting abuses and checking speculation. He was untiring in his industry, ardent in his zeal, philosophic in his views, pure in his purposes, and strong in his patriotism. When he finally retired from Congress to serve his country in another and more perilous sphere, he carried with him the esteem and approbation of all his co-workers in the glorious cause of liberty. On his return to his constituents he was hailed as a SAGE, a PATRIOT, and a HERO.

In 1777 he had received the appointment of brigadier-general, and was put in command of the first brigade of the provincial troops of New Hampshire, acting in concert with General Stark, who commanded the other. At that time General Burgoyne was on the flood tide of his military glory in the north, spreading consternation far and wide. He was first checked in his triumphant career by General Stark, at Bennington, Vermont. General Whipple, about the same time, joined General Gates with his brigade, and was in the bloody battles of Stillwater and Saratoga, where the palm of victory was attributed in a great measure to the troops under his command. In the consummation of the brilliant victory over the British army under Burgoyne, which shed fresh lustre on the American arms, General Whipple contributed largely. Colonel Wilkinson and he were the officers who arranged and signed the articles of capitulation between the two commanders. He was also selected as one of the officers to conduct the conquered foe to Winter Hill, near Boston. His faithful negro, whom he manumitted at that time, participated in all the perils of his old master, and seemed as much elated with the victory as if he had been the commander-in-chief.

In 1778, General Whipple was with General Sullivan at the siege of Newport, which was necessarily abandoned in consequence of the failure of the anticipated co-operation of the French fleet under Count D'Estaing, which was unexpectedly injured in a gale of wind. A safe and fortunate retreat was effected in the night, which saved that portion of the American army from total destruction.

In 1780 General Whipple was appointed a commissioner of the board of admiralty by Congress, which honour he did not accept, preferring to serve in the legislature of his own state, to which he had just been elected, and in which he continued for a number of years.

In 1782 he was appointed by Robert Morris financial receiver for the state of New Hampshire, which conferred upon him the highest eulogium for integrity and honesty. The office was arduous, unpopular, and irksome, but he performed its duties faithfully until the 2nd of July, 1784, when he resigned. In conjunction with the many honourable stations he filled, he was appointed a judge of the superior court on the 20th of June, 1782, and on the 25th of December, 1784, was appointed a justice of the peace and quorum throughout the state, which offices he held to the day of his death. He was also one of the commissioners on the behalf of Connecticut, who met at Trenton to settle the unpleasant controversy between that state and the commonwealth of Pennsylvania, relative to the lands in Wyoming valley. In all the multiform public duties that devolved upon him, he acquitted himself nobly, and retained, to his last moments, the entire confidence of his country. He possessed a strong and analyzing mind, a clear head, a good heart, and deep penetration of thought. In all the relations of private and public life, from the cabin boy up to the lofty pinnacle of fame on which he perched, he maintained a reputation pure as the virgin sheet. During the latter part of his life, he suffered much from disease in his chest, which terminated his useful and patriotic career on the 28th of November, 1785. Agreeably to his request before his death, his body underwent a post-mortem examination. His heart was found ossified; the valves were united to the aorta, and an aperture, not larger than a knitting needle, was all that remained for the passage of the blood in its circulation. This accounted for his having often fainted when any sudden emotion excited a rapid flow of his life stream.

FRANCIS HOPKINSON, Esq.

Times of high excitement, terminating in an important crisis, big with interests and events, tend greatly to the developement of character and talent. Thus, during the revolution, many talents were brought to light and action, that a supremacy of kingly power would have crushed in embryo, and left them to perish, unseen and unknown.

Amongst the actors on that memorable stage we find a variety of characters, showing the powers of mind in all their varied forms and shades, from the sedate and grave Washington, to the sprightly and witty Hopkinson, and the pithy and original Franklin.

FRANCIS HOPKINSON was the son of Thomas Hopkinson, of Philadelphia, born in 1737. His father was a man of superior talents and high attainments, his mother was one of the best of Heaven's gifts. At the age of fourteen, death robbed Francis of his father, and left his mother to struggle, with limited means, with all the accumulating difficulties of maintaining and educating a large family of fatherless children.

Under her guidance and instruction, young Francis soon evinced talents that promised well for him and his country. She used every exertion to improve his education, depriving herself of all the luxuries, and many of the comforts of life, to advance the interests of her children. Being a devoted Christian, she took peculiar care and delight in planting deep the purest principles of virtue, guarding their minds against all the avenues of vice and sin. She taught them the design of their creation, the duty they owed to their God and fellow men, and that to be truly *happy*, they must be truly *good*. The foundation being thus firmly laid, she placed her favourite son, the future hope of her family, at the University of Pennsylvania, where he completed his studies and graduated. He then commenced a successful study of law under Benjamin Chew, Esq., and became a close and thorough student, making great proficiency in his judicial acquirements. He possessed a brilliant and flowing fancy, a lively imagination, a captivating

manner, and was partial to polite literature as well as the more solid sciences. He was fond of poetry, music, and painting. He excelled in humorous satire, keen as that of his prototype Swift. Fortunately, these talents were made to subserve, pre-eminently, the cause of patriotism, science and philanthropy—the consequent result of deep-rooted morality.

In 1765, he visited London, where he continued two years, making himself acquainted with the feelings and designs of the British parliament towards the Colonies, who had already begun to feel oppression.

On his return he married the amiable Miss Ann Borden, of Bordentown, N. J.; and soon found himself surrounded by all the accumulating cares of a rising family. In rearing his children, his mind was often carried back to the manner his venerable and esteemed mother had instructed him during his childhood. He could adopt no better plan or find no brighter example to follow. But the comforts of “sweet home” were soon to be interrupted. His country needed his services, which were cheerfully and promptly rendered. He was among its warmest and most zealous patriots. It was for him to do much in opening the eyes of the great mass of the people to a just sense of the injuries inflicted by the mother country. This he did by various publications, written in a style so fascinating and humorous as to be universally read; painting, in true and glowing colours, the injustice of the crown and the rights of the colonists. His *Pretty Story*—his *Letters to James Rivington*—his *Epistle to Lord Howe*—his two *Letters by a Tory*—his translation of a *Letter written by a Foreigner*—his *Political Catechism*—and the *New Roof*, were all productions of taste and merit, and were of vast importance in rousing the people to a vindication of their rights and the achievement of their liberties.

During the administration of Governor Dickinson, political dissensions and party spirit spread their mountain waves over Pennsylvania, threatening to destroy the fair fabric of her new government. The pen of Mr. Hopkinson was again instrumental in restoring order. In an essay, called “A full and true account of a violent uproar which lately happened in a very eminent family,” he exposed the factious partizans to such keen and severe ridicule, that they threw down the weapons of their rebellion much sooner than if a thousand bayonets had been pointed at their breasts.

He was among the first delegates elected to the Continental Congress, and most cheerfully and fearlessly recorded his name on that declaration which has proved a consolation to the friends of FREEDOM, but a Boanerges to the enemies of LIBERTY. Always cheerful and sprightly, he contributed much in dispelling the gloom that often pervaded the minds of his colleagues in the midst of disaster and defeat. He knew the cause was righteous—he believed that Heaven would crown it with triumphant victory and ultimate success. He had sacrificed a lucrative situation in the loan office, held under the crown, at the shrine of liberty; he had embarked his fortune, his life, and his sacred honour, in defence of his country—and, with all his humour and wit, he was firm and determined as a gladiator. With the fancy of a poet, he united the soundness of a sage; with the wit of a humorist, he united the sagacity of a politician. He succeeded George Ross as Judge of the Admiralty court, and was subsequently one of the United States District Judges; and was highly esteemed for his judicial knowledge, impartial justice, and correct decisions.—He filled every station in which he was placed with credit, honour, and dignity. He continued to contribute, by his writings, much towards correcting the morals of society, by ridiculing its evils and abuses—Sarcasm and satire, properly timed, and guided by a sound discretion, are the most powerful and cutting instruments ever wielded by man. Their smart upon the mind is like cantharides upon the skin, but often requires a more powerful remedy to heal it. The wit of Mr. Hopkinson was of a noble cast, flowing from a rich and chaste imagination, never violating the rules of propriety, always confined within the pale of modesty, but keen as a Damascus blade. He was an admirer of sound common sense, and a zealous advocate of common school education. He appreciated correctly the bone and sinew of our country, and knew well that the perpetuity of our liberties depends more upon the general diffusion of *useful* knowledge, fit for *every* day use in the various business concerns of life, than upon the high-toned literature of colleges and universities. He admired the industrious tradesman; he respected the honest farmer. In the yeomanry of the soil and inmates of shops, he saw the defenders of our country. MR. HOPKINSON was like some rare flowers, that, while they please by their beauty, they possess powerful qualities to alleviate distress and impart comfort. He was amiable and urbane in his manners; open and generous in his feelings; noble and liberal in his views; charitable and benevolent in his purposes; an agreeable and pleasant companion; a kind

and faithful husband; an affectionate and tender parent; a stern and inflexible patriot; a consistent and active citizen; a valuable and honest man.

His career was closed suddenly and prematurely by an apoplectic fit, on the 9th of May, 1791, in the 53d year of his age, and in the midst of his usefulness. He left a widow, two sons, and three daughters, to mourn his untimely end, and their irreparable loss.

JOSIAH BARTLETT.

The profession of medicine in the hands of a skilful, honest, judicious, upright, and accomplished man, is one of the richest blessings in community, and one of the most honourable employments. Over his acquaintances, the influence of “the Doctor” is greater, when we include all classes, than that of any other profession; consequently, in the cause they espouse, physicians can wield an influence more powerful than many imagine. It is with pleasure I remark, that among the signers of the Declaration of Independence we find a goodly number from this highly honourable and useful profession.

Among them was Dr. JOSIAH BARTLETT, who was the son of Stephen Bartlett, of Amesburg, Massachusetts. Josiah was born in November, 1729. He early manifested a strong and vigorous mind, which was cultivated by an academical education. Possessing a retentive memory, he acquired the Latin and Greek languages, and finished the course assigned him at the early age of sixteen. He then commenced the study of medicine under Dr. Ordway, and pursued it assiduously for five years. He then commenced a successful practice at Kingston, where he soon became generally and favourably known and highly esteemed. Two years after he commenced his professional career, he was reduced so low with a fever that his physician gave up all hopes of his recovery. By an experiment of his own his life was saved. He induced those who were attending upon him to furnish him with cider, small and frequent quantities of which he took, a perspiration ensued, the fever was checked, and he recovered. From this time forward, he closely watched in his patients the operations and wants of nature, and often successfully deviated from the stubborn rules that were laid down in books written in other countries and climates. With a physician of an acute and discerning judgment, matured by skill and experience, this practice is safe. Dr. Bartlett was the first who discovered, in that section of country, that the *angina maligna tonsillaris*, or canker, was *putrid*, instead of *inflammatory*, and the first who administered the successful remedy of Peruvian bark for

this disease. He also introduced the successful practice of using antiphlogistic remedies for the *cynanche maligna*, or sore throat; by which disease hundreds of children were suddenly torn from the arms of their fond parents, three or four being frequently buried in one grave from the same family. Under the skilful hands of Dr. Bartlett this disease was checked in its career.

Enjoying the unlimited confidence of his numerous acquaintances he was promoted to several important stations, both civil and military, under Governor Wentworth, discharging his duty with ability and approbation. In 1765 he was elected to the legislature of New Hampshire, where he soon became prominent from his steady and firm opposition to the infringements of the crown upon the rights of the colonists. Republican in all his views and feelings, he watched, with an eagle eye, the movements of the British ministry and the royalists around him. In granting charters to towns, the royal governors had uniformly reserved to themselves, and for the use of episcopal churches, the *cream* of the location. This injustice roused the indignation of the advocates of justice and equal rights, among whom Dr. Bartlett stood in the foremost rank. The burdens of taxation by the mother country were also severely felt and strenuously resisted. In effecting their early settlements, the colonists had been left unaided and unprotected to struggle with the stubborn wilderness and cruel savage. They were now unwilling to allow themselves to be stripped of their hard earnings to gratify the extravagant luxuries and avarice of the creatures of the crown. Resistance was natural—it was right. Taxation and representation are inseparable principles; without the one the other should not, cannot exist with an enlightened people. Power is not always a creature of justice, and often adopts the principle that “might makes right.” Upon this corrupt and sandy foundation the British ministry based their conduct towards the colonies. Starting upon these false premises, their harsh measures recoiled upon them with a force that levelled their superstructure to the dust. For a time the cords of oppression were partially slackened, the stamp act was repealed, a spirit of conciliation seemed to pervade the heart of the king, but his old preceptor, lord Bute, in conjunction with lord North, soon induced him to sanction measures more oppressive and arbitrary than those previously complained of. The tax on tea was received with more indignation than the stamp act, and the popular rage soon rose to a foaming fury.

Governor Wentworth thought to secure Dr. Bartlett by appointing him a member of the judiciary; but he could not be seduced by any trappings from the crown, and continued to oppose the innovations of the royalists. The minority in the legislature, to which the doctor belonged, was fast increasing, and to prevent a majority against his own views, the governor obtained the king's writ for three new members from townships not entitled to an additional representation. This act of injustice disgusted many of the members who had not espoused the cause of liberal principles, and determined them to enlist under the banner of freedom. Opposition grew bolder under every act of oppression; private meetings were held, committees of correspondence and safety were appointed, a concert of feeling was produced through most of the colonies, and plans of resistance were rapidly taking the place of petitions to the king. Governor Wentworth several times dissolved the assembly at the commencement of its sessions, until he so exasperated the members and people as to virtually dissolve his own authority, and was obliged to seek safety on board the man-of-war Forney. The three new members had been expelled from the legislative body, a warfare commenced between the adherents of the crown and the friends of equal rights; Dr. Bartlett and others were deprived of all authority within the control of the governor, the line of demarcation was drawn, and the tocsin of war was sounded.

Dr. Bartlett was one of the members elected by the eighty-five delegates convened for the purpose at Exeter, on the first of July, 1774, to meet the general Congress at Philadelphia. In consequence of the recent destruction of his house by fire he was compelled to decline the appointment at that time, but in September of the year following he took his seat in that patriotic body. Simultaneous with his election to Congress, he was appointed to the command of a regiment of provincial troops. In Congress he performed his duties with great zeal, industry, and ability. He was uniformly placed on the most important committees, whose duties occupied their time until a late hour at night. Congress met at nine in the morning, and sat until four in the afternoon. After this hour the arduous duties of the committees were performed. When we contemplate the labours of the Continental Congress, surrounded as they were by difficulties on every side, a tremendous storm bursting over their heads, retreating from place to place before a victorious foe; their country bleeding at every pore, without resources, their army almost annihilated, the only rational

conclusion to be drawn how they were sustained is derived from the fact, that many of its members were consistent and devoted Christians, firmly relying upon Him who rules the destinies of nations to support them and crown their efforts with victory and success. Nor did they trust in vain.

In 1776, Dr. Bartlett was again elected to Congress and took a conspicuous part in the discussion of separating from the mother country. Amongst the patriots there were many who doubted the propriety of this determination in consequence of their weakness. A concert of feeling was eventually produced and a decided majority declared in favour of emancipation. On the fourth of July the final question was put to each member. Commencing with the most northern colony, Dr. Bartlett was the first who was called. Firmly relying on the justice of the cause, with his eyes raised to heaven, he responded YEA and AMEN; and laid the first stone in the base of the fair fabric of liberty, now towering in majesty over our happy land. Next to the president, the venerable John Hancock, Dr. Bartlett was the first who signed that invaluable instrument which gave our nation birth, and at one bold effort burst the chains of slavery and dissolved the power that had been swayed, with an iron hand, over the oppressed and bleeding colonies.

Worn down with the fatigue of arduous duties, Dr. Bartlett found his health declining and was not able to take his seat in Congress after the close of this session, until 1778. He was, however, enabled to be useful to his native state in her civil departments, and also aided greatly in raising troops for the northern army. When Congress assembled at York Town Dr. Bartlett again resumed his seat. Although re-elected to the succeeding term, this was the last of his attendance in that body. His domestic concerns had suffered from his absence in the public service, and he obtained leave to remain at home. His services were immediately required by his fellow citizens of New Hampshire. He was appointed chief justice of the common pleas and muster master of the troops, then enlisting for the continental service. In 1782 he was appointed a justice of the superior court, and six years after, chief justice.

The usefulness of Dr. Bartlett did not close with the war. Although victory had crowned the efforts of the patriots, and their independence had been achieved, much remained to be done. Numerous conflicting interests were to be reconciled, a system of government was to be organized, an

enormous debt was to be paid, many abuses and corruptions were to be corrected, a concert of feeling and action to be produced, and the art of self-government to be learned. In my view the wisdom of the patriots and sages of the revolution shone more conspicuously in perfecting our system of government, than in driving the foe from our shores. It is a task of no small magnitude to reduce a nation from a seven years' war to a civil and quiet government, entirely different from the one to which it has been accustomed. It often requires more sagacity and wisdom to retain and enjoy, than to obtain an object.

Thus, with regard to our independence, after it was obtained, storms arose that threatened utter destruction and ruin. It required the combined wisdom of the wisest legislators to preserve it. Long and arduous were the labours that effected a confederated consolidation. During the time this subject was under discussion, many of the states were shook to their very centre by internal commotions. That concert of action and feeling that had carried the people triumphantly through the revolution, was now, with a great mass of the community, lost in the whirlpool of selfishness. Fortunately for our country and the cause of liberty, those who stood at the helm during the storm of war still remained at their posts. Their labours resulted in the adoption of that constitution under which we have enjoyed a prosperity before unknown. Dr. Bartlett was a member of the convention of his native state for the adoption of the consolidating instrument, and gave it his warm and efficient support. In 1789 he was chosen a member of the national senate, the next year president of New Hampshire, and in 1793 he was elected the first governor of the state. He enjoyed universal confidence and esteem, and discharged his duties with so much wisdom and integrity, that slander and envy could find no crevice for an entering wedge. Worn down by years of arduous toil, old age fastening its wrinkled hand upon him, and the confines of the eternal world just before him, he resigned his authority and closed his public career on the 29th of January, 1794, covered with laurels of immortal fame, without a spot to tarnish the glory of his bright escutcheon.

Governor Bartlett now retired to private life, anticipating the enjoyments that are peculiarly pleasing to men who accept of public stations from a sense of duty rather than a desire to acquire popularity for the sake of advancement. But his fond anticipations were soon blasted.

Disease fastened its relentless grasp upon him, his amiable wife had died six years before, the world had lost its charms, and, on the 19th of May, 1795, his happy spirit left its tenement of clay, ascended to Him who gave it, leaving a nation to mourn the loss of one of its brightest ornaments, one of its noblest patriots.

In the life of this estimable man, we behold one of the fairest pictures spread on the pages of history. His public career was of that discreet and solid character, calculated to impart enduring and substantial usefulness. Without dazzling the eyes of every beholder, his course was onward in the cause of philanthropy and human rights. He could look back upon a life well spent; he stood acquitted and approved at the dread tribunal of conscience. He had nobly acted his part, fulfilled the design of his creation, discharged his duty to his country and his God, and filled the measure of his glory.

In his private character he was all that we could desire in a patriot, a citizen, a friend, a husband, a father and a Christian. No man was more highly esteemed by all who knew him—no man more richly deserved it.

ARTHUR MIDDLETON.

Those who are familiar with the history of England, with her constitution, with her great Magna Charta, and with the usurpations of men in power upon the rights of British subjects at various periods, can readily conceive why so many men of high attainments and liberal minds immigrated to America. Disgusted with oppression at home they sought liberty abroad. The cause that prompted them to leave their native land, impelled them to action when imported tyranny invaded their well-earned privileges. The mind of every immigrant patriot was as well prepared to meet the crisis of the revolution, as that of a native citizen. The feelings created by remembered injuries, which drove them from the mother country, rendered them as formidable opponents to the unjust pretensions of the crown as those who had never breathed the atmosphere of Europe.

In tracing our own history back to the early settlements, we find an almost constant struggle between the people and the officers sent by the king to govern them; the former claiming their inherent rights, the latter frequently infringing them.

Among those whom at an early period boldly espoused the cause of freedom was Edward Middleton, the great grandfather of the subject of this brief sketch, who immigrated from Great Britain near the close of the seventeenth century, and settled in South Carolina. His son, Arthur Middleton, imbibed all the feelings of his father, and in 1719, when the crown officers became insolent beyond endurance, he stood at the head of the opposition that boldly demanded and obtained their removal. His son, Henry Middleton, the father of Arthur, whose biographette is my present object, also inherited the same bold patriotism, and took a conspicuous part in rousing his fellow citizens to action at the commencement of the revolution.

ARTHUR MIDDLETON, the subject of this memoir, was born in 1743, at Middleton place, on the banks of Ashley river, where his father owned a

beautiful plantation. His mother was a Miss Williams, the only child of a wealthy and reputable planter. Arthur was the eldest of his father's children, and received all the advantages of an early education. At the age of twelve years he was placed in the celebrated seminary of Hackney, near London, and two years after, was transferred to the classic seat of learning at Westminster. He applied himself with great industry to his studies, excelling in all he undertook, and gained the esteem and respect of those around him. In his nineteenth year he became a student at the University of Cambridge, and four years after, graduated with the degree of bachelor of arts, a profound scholar and a virtuous man. Trivial amusements and dissipation, which had ensnared many of his classmates, had no charms for him. Although an heir to wealth and liberally supplied with money, economy was his governing principle, wisdom his constant guide.

After he had completed his education he spent nearly two years in travelling, making the tour of Europe. Familiar with the Greek and Roman classics, he enjoyed peculiar satisfaction in visiting Rome and other ancient seats of literature. He possessed an exquisite taste for poetry, music, and painting, and was well versed in all the technicalities of sculpture and architecture. After completing this tour he returned home. Soon after his arrival, he led the amiable and accomplished Miss Izard, daughter of Walter Izard, to the hymeneal altar.

About a year after, he embarked with his wife for England. After enjoying a pleasant season with their friends and connexions there, they visited France and Spain, and in 1773, returned home and located on his native spot, which his father bestowed upon him, placing him at once in possession of an ample fortune.

Having resided so long in Great Britain, possessed of an observing mind, tracing causes and results to their true source, he was well qualified to aid in directing the destiny of his country through the approaching revolution. Rocked in the cradle of patriotism by his father, tracing its fair lines in the history of his ancestors, he acted from the genuine feelings of his heart when he boldly espoused the cause of liberal principles and human rights. The Middletons were the nucleus of the opposition in South Carolina. Unlike many others who mounted the stage of public action for the first time, untried and almost unknown, this family had been proved and their influence was felt throughout the colony, and was known in the mother

country. Hence the importance of their services at the commencement of the doubtful struggle, and for the same reason they were peculiarly obnoxious to the creatures of the crown. Aristocracy, too often the attendant of riches, found no resting place in their bosoms. The very marrow of their bones was republican, and to defend their country's rights they freely pledged "their lives, their fortunes, and their sacred honours."

Arthur Middleton was a member of the different committees that were appointed by the people to devise means of safety. On the 17th of April, 1775, he was one of the committee of five, in South Carolina, that determined to have recourse to arms, and under whose direction the royal magazine was entered, in defiance of the king's officers, and its contents put into the hands of the people for their defence.

On the 14th of June following, the provincial Congress of this state appointed a council of safety, consisting of thirteen persons, of whom Arthur Middleton was one. They were fully authorized to organize a military force, and adopt such measures as they deemed necessary to arrest the mad career of the royalists. Mr. Middleton was one of its boldest and most decided members, and appears to have been much chagrined at the temporizing spirit of some of his colleagues.

That he possessed a penetrating sagacity as well as a firm patriotism, appears from the following circumstance.

During the session of the first provincial Congress of South Carolina, the new governor, Lord William Campbell, fresh from his majesty, arrived to enter upon the duties of reducing the rebellious subjects to subordination. He was all mildness and did not pretend to justify the oppressions of which the people complained. To prove his sincerity, Captain Adam M'Donald, one of the council, was introduced to Lord William as a tory from the upper country, who seemed anxious to have some means devised to put down the rebels. The plan succeeded. The governor desired him and his friends to remain quiet for the present, as he expected troops in a short time that would put a quietus upon the *new fangled* authorities.

When the report of this interview was laid before the council, Mr. Middleton, although nearly related to the governor by marriage, made a motion to have him immediately arrested and confined. This measure was too bold for his timid companions, a majority of whom voted against it.

Soon after, his excellency retired on board a British sloop of war and did not venture to return until accompanied by Sir Henry Clinton and Sir Peter Parker, who showed more bravery than judgment in their unsuccessful attack on Fort Moultrie. In this engagement Sir William was severely wounded, and Sir Peter had his silk breeches badly mutilated by the unceremonious course of a rebel cannon ball.

On the 11th of February, 1776, Mr. Middleton was one of the committee that drafted the first constitution of his native state. Soon after this he was elected a member to the Continental Congress, taking a conspicuous part in its deliberations. Bold in all his movements, he advocated, and by his signature sanctioned the declaration of independence, then called by many the death-warrant of the fifty-six, but ultimately proving the warrant of LIBERTY, the morning star of FREEDOM. Mr. Middleton was a man of few words in debate—these few words were to the point, and gave him a substantial influence in every legislative body of which he was a member. He stood at the head of the delegation of his state. He possessed a strong mind, a clear head, and a good heart. He exercised plain common sense, attending diligently to the business of his constituents and his country. He was on the most intimate terms with John Hancock and was by him highly esteemed. He remained in Congress until the close of the session of 1777. The following year he was elected governor of South Carolina, not knowing that he was a candidate until his election was announced. The mode was by secret ballot by the members of the assembly, who had not then learned the art of intrigue and caucusing—merit was the only passport to office—management and corruption dared not show their hydra heads.

For the same reasons that induced Governor Rutledge to resign a few days previous, Mr. Middleton declined accepting the proffered honour. These reasons were founded in objections to a new constitution, then before the legislature for adoption, and which required the sanction of the chief magistrate of the state before it could go into operation. Mr. Rawlins Lowndes was then elected, who approved the new form of government on the 19th of March, 1778. Political candour and honesty were marked traits in the character of Arthur Middleton. No inducements could swerve him from the path of rectitude. He weighed measures, men, and things, in the unerring scales of reason and justice. He went with no man when clearly

wrong, he concurred with all whom he believed right. Patriotism, pure and unalloyed, governed his every action. Discretion, the helm of man's frail bark, guided him in the path of duty. Philanthropy and love of country pervaded his manly bosom. He was sound at the core. His mind was pure and free as mountain air; his purposes, noble, bold, and patriotic.

In 1779, when the British spread terror and destruction over South Carolina, Mr. Middleton took the field with Governor Rutledge, and cheerfully endured the privations of the camp. He was at Charleston when General Provost attacked that place, and was found in the front ranks acting with great coolness and courage. Knowing that the plundering enemy would visit his plantation, he sent word to his lady to remove out of danger, but took no means to remove his property, which fell a sacrifice to the mercenary army. They did not burn but rifled his house, and several large and valuable paintings that they could not carry away they defaced in the most shameful manner.

At the surrender of Charleston in 1780, Mr. Middleton was among the prisoners sent to St. Augustine, and endured the indignities there practised upon the Americans with heroic fortitude. In July of the following year he was included in the general exchange, and arrived safe at Philadelphia. He was shortly after appointed a member of Congress, and again assumed the important duties of legislation. Soon after this, the last important act of the revolutionary tragedy was performed at Yorktown, where the heroes of the revolutionary stage and of our nation took a closing benefit at the expense of British pride and kingly ambition. With the surrender of Lord Cornwallis the last hope of the crown expired in all the agonies of mortification. Had a spirit of retaliation predominated in the bosom of Washington, awful would have been the doom of his barbarian, desolating foe. But he possessed a noble soul that soared above revenge. He sunk his enemy into the lowest depths of humiliation by kindness and generosity.

In 1782, Mr. Middleton was again elected to Congress, where he continued until November, when he visited his family, from whom he had long been separated. At the declaration of peace he declined a seat in the national legislature, believing the interests of his own state required his services at home. He was highly instrumental in restoring order, harmony, and stability in the government of South Carolina. He was several times a member of its legislature, and used every exertion to advance its prosperity.

During the intervals of his public duties he spent his time in improving his desolated plantation, the place of his birth, and of the tomb of his venerable ancestors. He once more participated in the enjoyments of domestic felicity and fondly anticipated years of happiness. But, alas! how uncertain are all sublunary things. In the autumn of 1786, he was attacked with an intermittent fever, which paved the way for disease that terminated his life on the first of January, 1787, leaving a wife, two sons and six daughters, to mourn their irreparable loss. By the public he was deeply lamented. His memory was held in great veneration by his contemporaries. He had a strong hold upon the affections of his fellow citizens. Those who knew him *best* esteemed him *most*. In his private character he was a consolation to his friends, an ornament to society, a consistent, honest, and virtuous man. His wife lived until 1814, highly respected and beloved. The example of a good man is visible philosophy; the memory of departed worth “lives undivided, operates unspent.”

JAMES WILSON.

Among the strange freaks of human nature is that of inconsistency, showing itself in as many shapes and forms as are exhibited by the kaleidoscope, but of a contrary character. One of its most odious features is persecution, prompted by jealousy and promulgated by slander and falsehood. Great and good men are often the victims of unprincipled and designing partisans, who stop at nothing and stoop to every thing calculated to accomplish their unholy desires. In recurring to the eventful period of the American revolution, we would naturally suppose that party spirit found no place in the bosoms of any of those who advocated the principles of liberty; that all were united in the common cause against the common enemy. This is the impression upon the minds of many, perhaps all who are not familiar with the history of the local politics of that period. But far otherwise was the fact. Many of the best men of that trying time were scourged and lacerated, and their noblest exertions for a time paralyzed by the reckless hand of party spirit. No one, perhaps, suffered more from this source, and no one gave less room for censure than JAMES WILSON.

He was born of respectable parents, residing near St. Andrews, Scotland, in 1742. His father was a farmer, in moderate circumstances, which he rendered still more limited by rushing into the whirlpool of speculation, a propensity which unfortunately seems to have been transmitted to his son. After receiving a good classical education, having been a worthy student at St. Andrews, Edinburgh, and Glasgow, James was finished under the master hand of Dr. Blair, in rhetoric, and of Dr. Watts, in logic. Thus fitly prepared, he immigrated to Philadelphia in 1766, with letters of high recommendation, and soon obtained the situation of usher in the college of that city. His moral worth, combined with fine talents and high literary attainments, gained for him the esteem and marked respect of Dr. Richard Peters, Bishop White, and many others of the first rank in society. Indeed, those who knew him best admired him most.

He subsequently commenced the study of law under John Dickinson, Esq. and when admitted to the practice, settled permanently at Carlisle, in Pennsylvania, where he exhibited powers of mind surpassed by no one at that bar, and equalled but by few in the province.

A powerful display of his legal knowledge and Ciceronean eloquence at the trial of an important land cause between the Proprietaries and Samuel Wallace, gained for him an early celebrity in his profession. Mr. Chew, who was then attorney-general, is said to have fixed his eyes upon him soon after he commenced his speech, and to have gazed at him with admiring astonishment until he concluded. He was immediately retained in another important land case, and from that time forward he stood second to no one at the Pennsylvania bar. He removed from Carlisle to Annapolis, in Maryland, where he remained a year, and then removed to Philadelphia, where he obtained a lucrative practice.

Notwithstanding the liberal patronage of the public, his circumstances frequently became embarrassed by unfortunate speculations, to which he frequently became a victim. Amidst his severest adversities he frequently sent remittances to his mother, in Scotland, his father having died and left her poor. To the day of her death he manifested an earnest and commendable solicitude for her comfort, and used every means within his power to alleviate her wants and smooth her downward path to the tomb.

With the commencement of British oppression the political career of Mr. Wilson began. He freely spoke and ably wrote in favour of equal rights and liberal principles. He was an early, zealous, and able advocate of the American cause. Of a consistent and reflecting mind, he sometimes censured the rashness of those who were less cool, which laid the foundation for many unjust and malicious slanders against him, which, in the dark fog of party spirit, several times enabled his enemies to obtain a momentary triumph over him, but which were always fully and satisfactorily confuted.

In 1774, a short time previous to the meeting of the Continental Congress, the provincial convention of Pennsylvania convened to concert plans for the redress of wrongs imposed by the mother country, of which Mr. Wilson was a bold and efficient member. So conspicuous were his talents and so pure his patriotism, that he was nominated by the same

convention one of the delegates to the national assembly. His appointment was opposed by Mr. Galloway, who had long been his bitter enemy; but on the sixth of May, 1775, he was appointed a member of that august body. At the commencement of hostilities he was honoured with the commission of colonel, and was one of the commissioners to treat with the Indians. He was continued a member of Congress until 1777, when his enemies again succeeded in their machinations against him.

On the 4th of July, 1776, Mr. Wilson, with a bold and fearless hand, guided by love of country and motives pure as heaven, gave his vote in favour of independence, and subscribed his name to that matchless instrument which records the birth of our nation and liberty. That act alone was sufficient to confute the base slanders circulated against him, in the minds of all whose eyes were not covered by the baneful and deceptive film of party spirit. At the shrine of this dread Moloch, our country's glory has been too often sacrificed. No purity of heart, no brilliancy of talent, no pre-eminence of worth, can save a man from the vile attacks of party spirit. Even Washington, the father of his country, often writhed under its withering lash. Some men seem born *demagogues*, and live under the influence of Gog and Magog during their whole lives.

As a member of the Continental Congress, Mr. Wilson acted well his part, and was esteemed as one of its most active and useful delegates. Coolness and consistency, marked characteristics of the Scotch nation, were the crimes of Mr. Wilson, on which his enemies based an accusation that he was not a pure patriot, and that he opposed the declaration of independence. But those who knew him well soon convinced the people of the falsity of the slander, and the character of this great and good man shone with renewed brightness.

On the twelfth of November, 1782, he was again elected to the national legislature, and the same year was appointed one of the counsellors and agents of Pennsylvania to attend the court of commissioners at Trenton, to which was referred the final determination of the protracted controversy between Connecticut and the Commonwealth relative to certain lands claimed by the latter within the limits of the former, situated in Wyoming valley.

The luminous and unanswerable arguments of Mr. Wilson, which lasted for several days, contributed, in no small degree, to influence that court to determine in favour of Pennsylvania, and put at rest for ever an angry litigation of years.

During the interim in which he was not a member of Congress he held the office of Advocate General for the French nation, which led him to the close investigation of national and maritime law. At the close of his services, the French king rewarded him with ten thousand livres. He was at the same time a director of the bank of North America, and had the full confidence of Robert Morris as a safe and able adviser in financial matters.

As an active, clear headed, and discreet member of the most important committees, Mr. Wilson stood in the front rank. He weighed every subject with a mathematical judgment, and traced all its bearings with the compass of wisdom.

He arrived at the desired goal with less parade but with more certainty than many others, whose zeal was more impetuous but not more pure than his. He sought more to bestow lasting benefits upon his bleeding country than to excite the huzzas and gaze of the multitude. Substantial usefulness is not always found in the foaming froth of popularity. It lives and is admired long after that transient vapour has disappeared and left its subject to repose in the peaceful shades of oblivion. Those who become inflated and rise by the power of party, vain pride and flattery, may soar aloft in the political atmosphere, followed by the eyes of thousands, but rely upon it, in a large majority of instances, their every action is dependent upon these subtile gases, and they will ultimately prove to be a mere bag of wind. Modest worth avoids ethereal excursions; the terra firma of deep thought, calm reflection, and sound discretion, constitute its most congenial clime. It consents to launch into the revolving vortex of party with great reluctance, and nothing but a sense of duty to his country and fellow citizens, can induce a man of genuine merit to enter the vexatious arena of politics. How many such men are now in public stations, guarding the rights and directing the destiny of our nation, is a subject worthy of anxious and careful inquiry. If the people are not true to themselves, demagogues may easily ride into office who *will not* be true to them.

Mr. Wilson was one of the most useful members of the convention that formed our national constitution. He warmly opposed the appointment of delegates to Congress by the legislatures of the several states, and was powerfully instrumental in placing their election in the hands of the people. He was one of the committee which framed that important document, as first reported to the delegates. When this model of wisdom received its finishing stroke, Mr. Wilson warmly advocated its adoption. He was the only member from Pennsylvania of the national convention that framed the constitution who had a seat in the convention of that state convened to consider its provisions. His closing remarks in favour of its acceptance are worthy the attention of this enlightened age. They manifest a thorough acquaintance with human nature and with the circumstances that prompted many to dissent from its ratification.

“It is neither unexpected nor extraordinary, that the constitution offered to your consideration should meet with opposition. It is the nature of man to pursue his own interest in preference to the public good; and I do not mean to make any personal reflection when I add, that it is the interest of a very numerous, powerful, and respectable body, to counteract and destroy the excellent work produced by the late convention. All the officers of government and all the appointments for the administration of justice and the collection of the public revenue which are transferred from the individual to the aggregate sovereignty of the states, will necessarily turn the influence and emolument into a new channel. Every person, therefore, who either enjoys or expects to enjoy a place of profit under the present establishment, will object to the proposed innovation;—not in truth, because it is injurious to the liberties of his country, but because it affects his schemes of wealth and consequence. I will confess, indeed, that I am not a blind admirer of this plan of government, and that there are some parts of it which, if my wish had prevailed, would certainly have been altered. But when I reflect how widely men differ in their opinions, and that every man—and the observation applies likewise to every state—has an equal pretension to assert his own, I am satisfied that any thing nearer to perfection could not have been accomplished. If there are errors, it should be remembered that the seeds of reformation are sown in the work itself, and the concurrence of two-thirds of the Congress may, at any time, introduce alterations and amendments. Regarding it, then, in every point of

view, with a candid, disinterested mind, I am bold to assert, that IT IS THE BEST FORM OF GOVERNMENT WHICH HAS EVER BEEN OFFERED TO THE WORLD.”

Mr. Wilson was also a member of the convention to alter the constitution of Pennsylvania, where he acted a very conspicuous part in defending the elective franchise, as belonging exclusively to the sovereign people. The last vestige of aristocracy trembled beneath his powerful eloquence, and the last whisper of slander against his pure, unsophisticated democracy, was forever silenced and hushed.

The boldest features of liberal principles in the old revised constitution of Pennsylvania were penned by James Wilson; and, could *his* views have been fully incorporated in that instrument, I doubt much if a convention would ever have been called for its revision.

That the talents and integrity of Mr. Wilson were held in high estimation by Washington, appears from the fact, that he was appointed one of the first Judges of the Supreme Court of the United States, in which office he continued until his death, discharging its duties with great ability, integrity, and justice. His manner was dignified, urbane, and pleasing.

In 1790, he was appointed the first professor in the law college of Philadelphia, and the following year, when the college and university of Pennsylvania were united, he was called to fill the chair. In 1791, he was appointed by the legislature of that state to revise its laws, but a disagreement of the two houses relative to the disbursements necessary to prosecute the work, frustrated the plan. As a learned and eloquent lawyer, he stood at the head of the Philadelphia bar. He was honoured with the degree of LL.D. and, during the first year of his professorship, delivered a course of lectures to the students. Towards them he was reserved and distant, another marked characteristic of the Scotch literati. His writings were vigorous and logical, and did much to disseminate just conceptions of a republican form of government. As early as 1774, he wrote an essay, portraying, in language bold and strong, the assumptions of the British parliament not warranted by their constitution, and painted, in fascinating colours, the blessings arising from a republican form of government and the enjoyment of equal rights. To a person unacquainted with the bitterness of party feeling, it must seem mysterious that any one could have been found so base as to accuse him of being an aristocrat. A purer patriot and an abler

advocate for the cause of freedom did not exist among the statesmen and sages of '76. He several times passed through the ordeal of severe and relentless persecution, but truth-telling time, in every instance, forced his enemies to retrace their steps, covered with shame and disgrace.

The private character of this truly great man was, in all respects, amiable and untarnished. It always stood beyond the reach of slander, a pure, unsullied sheet. As a friend, he was warm-hearted and benevolent; as a husband, kind and affectionate; as a father, discreet and exemplary; consistently indulgent, and faithful in imparting that instruction and advice to his children calculated to prepare them for future usefulness and respect.

In 1798, on the 28th of August, this venerable sage, eminent lawyer, able statesman, and profound judge, took his exit "to that country from whose bourne no traveller returns," in the fifty-sixth year of his age. He died whilst on his circuit, of stranguary, in the hospitable mansion of his colleague, Judge Iredell, in Edenton, North Carolina, where his ashes rest in peace beneath the clods of the valley.

In reviewing the life of this worthy man, no one can doubt his patriotism and purity. No one can doubt his devotedness to the American cause and his firm and uniform opposition to British oppression. Influenced, as he was, by the noblest motives; guided, as he was, by liberal principles, it is painful to reflect, that he was often wounded in the house of his professed friends, and placed under the castigating lash of persecution by those who had sworn to support the same cause he so ardently and ably espoused. The solution of the problem may be found in the present state of things, without travelling back to that time, of all others, when party should have hidden its hydra head.

At the present day, the dark intrigues of party are proverbial. Low cunning is practised by men in the same ranks, to over-reach an approaching rival, and all the machinery of slander put in requisition to destroy him. Is he a man of superior talents and worth? Means proportionably base must be resorted to, in order to insure his destruction and drive him from the course. Disgusted at such corruption, the very men best calculated to advance our dearest interests and add new lustre to our national glory, are those who most dread the political arena and shrink from the public gaze. How small a proportion of such men as James Wilson,

Benjamin Franklin, and others of the same stamina, are now to be found in our legislative halls. We pay large sums of money every year for *party* legislation, and but a small proportion of business is accomplished, calculated to benefit our country. Let the people, the YEOMANRY, awake to this subject, and no longer be led blindfold towards the vortex of destruction. Unless we are true to ourselves, we need not expect purity in our legislators. The genuine salt grows less and less as time advances, and a dangerous carelessness is annually manifested in selecting men of proper industry and purity of moral and republican principles to transact our public business. Some of them are victims of the artful and designing, or are mere partisans, legislating for themselves and their immediate friends more than for the advancement of public good and national glory. These are facts that are self-evident to every reflecting, observing man, facts that demand our serious attention and timely correction, before the unholy leaven extends its baneful influence so far as to destroy our beautiful fabric of LIBERTY, and prostrate, at one bold stroke, the hopes of FREEMEN.

CHARLES CARROLL, OF CARROLLTON.

The fond and faithful parents who have guided to manhood a family of sons whose every action is a source of pleasure and delight, who walk in wisdom's ways, who prove themselves to be bold, generous, brave, virtuous, and patriotic; whose lives shed new lustre upon the world, and whose achievements, on the battle field or in the senate chamber, place them on the loftiest, proudest pinnacle fame can rear, enjoy a rich, a heavenly consolation, pure as the ethereal skies and cheering as the zephyrs of spring. More especially do their souls become enraptured with gratitude, if these, their sons, deliver them from the iron grasp of a merciless tyrant, disenthral them from the chains of slavery, and make them free and independent.

All this was done for our country by her valiant sons, who graced the memorable era of '76. Like a meteor bursting from the clouds amidst the gloom of midnight darkness, they illuminated the world with glory, raised the star spangled banner, and planted the tree of LIBERTY deep in the soil of FREEDOM. Sages and heroes of the American revolution! noble sons of Columbia's new world! your names will be held in grateful remembrance through the rolling ages of time, and millions yet unborn will rehearse your brilliant achievements and triumphant victories, with admiration and praise.

Among the sons of noble daring who stood forth the champions of their injured and bleeding country, was CHARLES CARROLL, of Carrollton, in the state of Maryland.

This good man, accomplished gentleman, finished scholar, and bold patriot, was born at Annapolis, on the 20th of September, 1737. He was the grandson of Charles Carroll, son of Daniel Carroll, of King's county, Ireland, the former of whom immigrated to Maryland about 1686, and located at Carrollton. The elder Carrolls were always found in the foremost rank of those who espoused the cause of liberal principles, and taught their sons to go and do likewise. Nor did the seed sown by them fall on a barren

soil. Imitating the examples and obeying the precepts of his patriotic sire, young Charles proved himself worthy of the high source from whence he sprang. At the early age of eight years, his embryo talents shone so conspicuously that his father determined on giving them an opportunity to bud, blossom, and expand, amidst the literary bowers, and under the cultivation of a master's hand in Europe.

He was accordingly sent to France, where his advantages of acquiring an education were far superior to those then enjoyed in any of the infant seminaries of the colonies in America. His unremitting application to his studies and urbanity of manners, obtained for him a finished education and the esteem of his teachers and classmates. At the age of twenty, he entered upon the study of law in London, where he ripened into manhood, and returned to his native state in 1764, with a rich and enduring fund of useful knowledge, prepared to act well his part through future life.

The subject of American oppression by the British ministry was freely discussed in England during his stay, and had prepared his mind for the exciting crisis that awaited the colonies. In Charles Carroll, of Carrollton, the friends of freedom and equal rights found an unflinching and able advocate, and the enemies of liberty an uncompromising but manly opposer. He possessed a clear head, a good heart, and a discriminating mind. In action, he was cool and deliberate, firm and decisive. As a lawyer, he was learned, lucid, and logical; as a statesman, bold, discreet, and industrious; as a patriot, pure, disinterested, and zealous; as a Christian, devoted, exemplary, and consistent; and as a gentleman, urbane, accomplished, and courteous. His talent for writing was also of a high order. This was fully developed in 1772, in a controversy between the people and the king's governor, who had issued a proclamation derogatory to their inalienable rights. In a series of communications published in the public papers, Mr. Carroll boldly, ably, and triumphantly espoused the people's cause, answering conclusively and confuting completely the combined arguments of the governor's cabinet in favour of the pretensions of their master. So fully were the people convinced by the essays of Mr. Carroll that they were clearly right, that they hung the proclamation upon a gallows, and bid defiance to the minions of despotism. Before it was known who was the writer, the citizens of Annapolis instructed their representatives to record a vote of thanks to the author, and when they subsequently ascertained that

Mr. Carroll was the champion who had bearded the British lion, they repaired in a body to his house, and made the welkin ring with heartfelt thanks and plaudits of praise.

From that time forward he became a prominent leader of the liberal party, an espouser of American rights, and a stern opposer of parliamentary wrongs. His benign influence radiated its genial rays upon the hearts, and confirmed the wavering minds of many in the glorious cause of liberty. He went for his country and his whole country. He portrayed, in bold and glowing colours, the oppressions of the king, the corruptions and designs of his ministers, and the humiliating consequences of tame submission to their arbitrary demands. He was among the first to kindle the flame of patriotic resistance, and light the torch of independence. He was among the first to sanction the declaration of rights, and the last of that noble band of patriots who signed this sacred instrument, that bid it a long, a final farewell, and took his exit to “that country where the wicked cease from troubling and the weary are at rest.”

On the 18th of July, 1776, he was elected to the convention of Maryland, and on the 2nd of August following, took his seat in the Continental Congress, and affixed his name to the chart of liberty. His talents and zeal were highly appreciated by the members of that august body. He had previously endeared himself to them by a voluntary mission to Canada, in conjunction with the Rev. John Carroll, Benjamin Franklin, and Samuel Chase. The object of this mission was to persuade the people of Canada to unite with the colonies in bursting the chains of slavery, and throw off the yoke of bondage that had been forced upon them by the mother country. The Messrs. Carrolls being of the Roman Catholic faith, then most prevalent among the Canadians, and the other two gentlemen entertaining that universal charity for others, that, if exercised at the present day, would crumble to dust the sectarian walls of partition that are now the greatest barriers against the advancement of the Redeemer’s kingdom, it was fondly hoped that their influence might induce the people of that country to join against the common enemy. The defeat and death of Montgomery, and the dark prospects of future success, caused them to determine on a contrary course. The consequences of that course are at this time developing themselves most fearfully, amidst the dying groans and streaming blood of the oppressed citizens of Canada.

On his return from this mission, Mr. Carroll found, to his great surprise, that the delegates from Maryland then in Congress, had been instructed to vote against the declaration of independence. He immediately repaired to the convention, and, by his eloquence and cogent reasoning, convinced the members of their error, who immediately rescinded the former and gave contrary instructions.

Although an active and efficient member of Congress, Mr. Carroll occasionally returned to Maryland, and aided in the formation of its constitution and laws. In 1778, he left the national legislature, and, for several years, was a member of the senate of Maryland. From 1788 to 1791, he was a member of the United States' senate, when his services were again demanded by his native state, where he served as a senator until 1801, when he retired from the great theatre of public action, where he had acted a conspicuous and glorious part, that stamped his name with unfading glory, his memory with lasting gratitude and enduring fame.

In private life, Mr. Carroll lost none of the laurels that decked his brow when in the service of his beloved country. Of an amiable and kind disposition, he was highly esteemed by his friends and respected by all. Temperate in all things his course was consistent, charitable, and systematic. He was an exemplary Christian, and was ever opposed to a spirit of persecution by one sect against another for opinion's sake. He was among the few who reason correctly and act wisely upon this important subject. It is a fact, unknown perhaps to many, and admitted by fewer still, that the Roman Catholics of Maryland were the first who proposed and passed into a law religious toleration in America. [See laws of the general assembly of that state, 1647.] It is also a fact which is equally true, that the Protestants were the first who introduced proscription, and obtained an order from Charles II., after his restoration in 1661, to disfranchise all Roman Catholics from holding any office, taking the loaves and fishes exclusively into their own keeping, in violation of the charter granted to Lord Baltimore by Charles I., and in violation of reason, common sense, and the laws of God. Sectarianism is not religion, nor a child of heaven.

The Protestants having become the bride of state, and having the power in their own hands, carried on their principles of proscription under the authority of William III. The Roman Catholics were taxed to support the religion of their oppressors, and by an act passed in 1704, the celebration of

mass or the instruction of youth by a Catholic, insured him a transportation to England.

During the excitements produced by this unhallowed connection of church and state, which several times resulted in bloodshed, the Carrolls used their best exertions to produce a reconciliation between the parties. This was never fully effected until the revolution compelled all persuasions to unite in the common cause against the common enemy.

For thirty years Mr. Carroll enjoyed the cheering comforts of “sweet home,” and survived to hear the funeral knell of all the other signers of the Declaration of Independence.

He enjoyed the rich reward of seeing the fruits of his labour, in conjunction with his compatriots of the revolution, prospering under the direction of an all wise Providence and a free and independent people. He beheld, with increased delight, the onward march of his favoured country, to which he had contributed largely in giving it a name and character among the nations of the earth, at once admired and respected.

He beheld, with increasing gratitude to Heaven, the asylum he had aided in preparing for those whom the oppression of kings and tyrants drive from their native shores. As one of the signers of the chart of freemen, he stood alone, like a majestic oak that has long withstood the raging tempest, calmly awaiting the time when he should be riven and gathered to his fathers. Already had his mind ascended the golden chain of faith, reaching from earth to Heaven: already had the world lost its former charms; already had his mind become fixed on scenes of future and purer bliss; already had he reached out his hand to receive a crown of immortal glory; already had he anticipated the joyful welcome he should receive from his Lord and Master; when, on the 14th of November, 1832, his spirit was summoned from its trembling, tottering tenement of clay to realms of joy beyond the skies. Calm and resigned he entered Jordan’s flood; angels escorted his soul to Immanuel’s happy shores, whilst his grateful country mourned *deeply* and felt *strongly* the loss of one of her noblest sons and purest patriots.

In the life of Charles Carroll, we have an example worthy the imitation of youth, of manhood, of old age; of the lawyer, the statesman, the patriot and the Christian. His career was guided by virtue and prudence; his every

action marked with honesty, frankness, and integrity; richly meriting, and freely receiving the esteem and veneration of a nation of FREEMEN.



WILLIAM WILLIAMS.

Great designs require the deep consideration of strong and investigating minds. Great events open a wide field for virtue and fame, and bring to view powers of intellect, that, under ordinary circumstances, would never unfold their beauties to mortal eyes. Hence the brilliancy of talent that illuminated the glorious era of the American revolution. Many who became eminent statesmen and renowned heroes during that memorable struggle, in times of peace, would have remained within the sphere of their particular occupations—lived retired from the public gaze, and died without a full developement of their mental powers. That many of the sages of that eventful period were men of unusual talents and acquirements, I freely admit; that the momentous transactions that engaged their attention served to add a more vivid lustre to their names than the common routine of life would have given them, is equally true. The perils that encompassed them, the dangers that threatened them, the dark clouds that hung over them, the noble patriotism that influenced them, and the mighty work they conceived, planned, and consummated, all combined to shed a sacred halo around them.

Among those whose natural desires did not lead them into the public arena, was WILLIAM WILLIAMS, the son of the Rev. Solomon Williams, D. D. He was a native of the town of Lebanon, Windham county, Connecticut, and was born on the 8th of April, 1731. His paternal ancestors were Welsh, one of whom immigrated from Wales in 1630. They were remarkable for piety and a love of liberty. His father was the highly esteemed and able pastor of the first congregational church in Lebanon, during the long period of fifty-six years. Deeply impressed with the importance of storing the youthful mind with a good education, virtuous principles, and moral truth, he spared no pains in furnishing his sons and daughters with the means of exploring the fields of science. His own mind imbued with liberal principles and expansive views, his children naturally imbibed the same feelings. His own soul enraptured with the beauties of genuine and practical piety, he

desired and had the happiness to see his offspring, one after another, consecrate themselves to the Lord of glory by a public profession of the Christian faith. At an early age William Williams became a member of the church over which his father presided, and adorned his profession through life. After he had completed his preparatory studies, he entered Harvard College and graduated in 1751. He sustained a high reputation for correct deportment, untiring industry, and scholastic lore. His father then directed his theological studies in order that he might be prepared, if so inclined, to enter the sacred desk. His talents were of a variegated character, combining a taste for the classics, mechanics, architecture, mathematics and general science.

Feeling an inclination to travel beyond the confines of his juvenile perambulations, in 1755 he accepted a commission in the staff of Colonel Ephraim Williams, a kinsman of his, and founder of the college of that name at Williamstown, Massachusetts. A detachment, put under the command of Colonel Williams, consisting of eleven hundred men, was sent by Sir William Johnson, who commanded the English troops, to reconnoitre the army under Baron Dieskau, composed of a large body of French and Indians. After proceeding about four miles, Colonel Williams was attacked by a superior force lying in ambuscade. He commenced a spirited defence, but fell in the early part of the action, bravely fighting for the mother country. The detachment then fell back upon the main body in good order, which advanced and repulsed the enemy.

The French war, in which the colonies were not interested, the acquirements of which are still held by Great Britain, cost much American blood and treasure. The pilgrim fathers were long treated and used as mere vassals of the English crown. During that campaign, William Williams became disgusted with the hauteur of the British officers and with the manner they treated native Americans, who were by far the most efficient in conducting the Indian mode of warfare. Being ardent in his feelings and of a warm temperament, he resolved never again to submit to their indignities, and returned home and commenced the mercantile business.

Soon after, he was elected town clerk, a member of the assembly, and appointed a justice of the peace. These were not solicited honours, but awarded to him by his fellow citizens as the reward of merit. Similar demonstrations of confidence were continued to him for more than fifty

years. For a long time he was either clerk or speaker of the house of representatives in his native state, in which he served nearly one hundred sessions.

When the revolutionary storm began to darken the horizon of public tranquillity, Mr. Williams freely confronted its raging fury. He was an able debater, an eloquent speaker, and a bold advocate of his country's rights. Extensively and favourably known, his influence had a wide range. When the tocsin of war was finally sounded, he closed his mercantile concerns and devoted his whole time to the glorious cause of equal rights and rational liberty. His learning, piety, experience in public affairs, honesty of purpose, and energy of action, combined to give great weight to his character. He was an active member of the council of safety, and on the second Thursday in October, 1775, was appointed a representative of the Continental Congress. He entered zealously into the deliberations of that revered body, and became prominent and useful. He was ever ready to go as far as any one in promoting the liberation of his bleeding country from the serpentine coils of oppressive tyranny. He was in favour of bold and vigorous measures, and advocated the declaration of rights from its incipient conception to its final adoption. He was instrumental in removing the timidity and wavering doubts of many, whose motives and desires were as pure, but whose moral courage was less than his. Whenever he rose in debate he was listened to with profound attention. He possessed a fine figure of the middle size, dark hair, piercing black eyes, an aqueline nose, an open and ingenuous countenance, and a stentorian voice, combined with a clear head, a Roman heart, a sound judgment, an acute perception, and a logical mind. He was well versed in the principles of international law, the different forms of government and the duties of legislation.

He was re-elected to Congress the two succeeding years, and when the final vote upon the charter of our rights was taken, the voice of William Williams responded a thundering—"AYE"—that told his boldness and his zeal. That vote stands confirmed by his signature upon the record of immortal fame, a proud memento of his unalloyed patriotism, a conclusive proof of his moral firmness.

He was free from an aspiring ambition based on self and nurtured by intrigue. From the pure fountain of an honest heart his motives emanated; to promote the glory of his country was his anxious desire. Upon the altar of

liberty he was willing to sacrifice his property and his life; in vindicating the cause of freedom he was willing to spend his latest breath. Honesty of purpose, self-devotion, and persevering action were among his marked characteristics. To rouse his countrymen to a sense of danger, and to induce them to enlist in the common cause against the common enemy, he used every honourable exertion.

Just before Congress was compelled to fly before the victorious foe from Philadelphia, Mr. Williams, at the risk of being captured himself, rescued his colleague, Colonel Dyer, from the fangs of the British, who had planned and were on the point of effecting his arrest. They both made a hair-breadth escape.

When the government treasury was drained of its last hard dollar, this patriot threw in what he termed his “mite” of specie, amounting to more than two thousand dollars, and took continental money in return, which soon died in his hands. In the cause of equal rights his property was nearly all expended, and he gloried in being able to add to his mental aid a portion of “the sinews of power.”

For forty years he was a judge of probate, a select-man of his native town during the war, commissioner of the public school fund, and held almost every office within the gift of his constituents, discharging the duties of all with so much industry, ability and integrity, that slander found no crevice in his uninterrupted and unblemished reputation for the smallest entering wedge, by which to impugn his private or public character. He was remarkably active and fortunate in obtaining private donations of necessities to supply the army. He went from house to house among his friends, obtaining small parcels of any and every article that would alleviate the wants of the destitute soldiers. He forwarded to them at different times more than a thousand blankets. During the winter of 1781, he gave up his own house for the accommodation of the officers of the legion under Colonel Laurens, and used every effort to render them comfortable. His industry was equal to his patriotism, seldom retiring until after twelve at night, and rising at early dawn.

He was a member of the convention of his state when the federal constitution was adopted, and was a warm advocate for that instrument. He was never permitted to enjoy full retirement from public service until

disabled by disease, which terminated his useful career on the 2nd of August, 1811. He had lived the life of a good man, his last end was peaceful, calm and happy. During his last years he was considerably deaf, and spent much time in Christian devotion. But few men have served their country as much, and no one more faithfully than did WILLIAM WILLIAMS.

SAMUEL HUNTINGTON.

No quality of the human mind sheds over it more lustre than consistency. "Be consistent," was a Roman motto, and once a Roman virtue that influenced the hearts and actions of its republican sages, heroes, and literati. Consistency is one of the brightest jewels in the escutcheon of a name. It is the crowning glory of meritorious fame, and implies a course of life that ennobles and dignifies man. It is based upon true wisdom and sound discretion, the pilot and helm of the bark of life in navigating the ocean of time. Without it, the buffetings of chaos, the sand-bars of folly, and the rocks of disaster, cannot be avoided. Without it, the brightness of other talents and attainments of a high order are often eclipsed by the clouds of error and obscured by the mists of ridicule. With it, mediocrity shines and enables the plough-boy of the field to reach the pinnacle of substantial and enduring fame, when his classic friend who has no share in consistency, but is in all other respects his superior, sinks into oblivion.

It is a propensity susceptible of cultivation, and where its developements are small in youth, parents and instructors should nurture it with great attention and peculiar care. It is of more importance than classic lore and the most powerful elocution. Dr. Young has truly said, "With the talents of an angel a man may be a fool." The sages of the American revolution were remarkable for consistency. Many of them rose from the humble walks of life by the force of their own exertions, guided by this darling attribute, and became eminently useful in the cause of liberty.

Among this class the name of SAMUEL HUNTINGTON stands conspicuous. He was a native of Windham, Connecticut, born on the 2nd of July, 1732. His father, Nathaniel Huntington, was a plain honest farmer, and gave this son only a common English education. Three of his brothers enjoyed the advantages of Yale College and became gospel ministers, all of them adorning their profession, and one of them, Joseph, becoming an eminent divine and an able writer. Their pious mother was the happy instrument that

led them to the pure font of religion, and had the happiness to see her numerous offspring all walking hand in hand in the ways of wisdom and virtue. Samuel followed the plough until he was twenty-two years of age. He was of middle stature, dark complexion, keen eyes, countenance expressive, with a deportment that commanded respect, love and esteem. He was remarkable for industry and integrity, and from his early youth had been a close observer of men and things, and an attentive reader. His native talents were strong and of a grave cast, his judgment was clear and his reflections deep. From his childhood to his grave he was remarkable for consistency in all things. This was his strong forte, and exalted him to a lofty eminence. In his twenty-third year he commenced reading law at his father's domicile, from books loaned to him by Zedediah Elderkin, Esq. a member of the Norwich bar. Like Roger Sherman, he soon mastered the elementary principles of that intricate science, was admitted to the practical honours of the profession, and immediately opened an office in his native town. His reputation as an honest man, possessing a clear head and a good heart, already rested on a firm basis. His fame as an able advocate and safe counsellor, soon added new grace to this superstructure. He was not celebrated for Ciceronean powers; he imitated more closely Socrates and Solon. His manner was plain and unvarnished, but marked by that deep sincerity and candour that seldom fail to impress the minds of a court and jury favourably, and often foil the most brilliant and happy displays of Demosthenean eloquence. To his other strong qualities he added punctuality, which is the very life of business. He soon obtained a lucrative practice and the confidence of the community. In 1760, he removed to Norwich, where a wider field was open before him; and two years after, he emerged from the lonely regions of celibacy with Martha, the accomplished daughter of Ebenezer Devotion, and entered the delightful bowers of matrimony, thus giving him an importance in society that, single blessedness never confers. The choice he made was consistent; his partner proved to be an amiable companion, uniting the accomplishments of a lady and the piety of a Christian, with laudable industry and strict economy. "Marriage, with peace, is this world's paradise."

The professional fame of Mr. Huntington continued to rise and expand, and when the all-important subject of American rights and British wrongs was agitated, he exerted his extensive influence and noblest powers in favour of the cause of equal rights. In 1764, he was elected to the general

assembly, and the next year was appointed king's attorney, the duties of which office he continued to ably discharge until the pestiferous atmosphere of monarchical oppression drove him from under the dark mantle of a corrupt and impolitic ministry. He was appointed to the bench of the Superior Court in 1774, and the next year a member of the council of his native state. In October, 1775, he had the honour of being associated with the patriots and sages of the Continental Congress then assembled at Philadelphia, of which body he became a prominent and useful member. In January following he again took his seat in that venerable assembly, and advocated boldly, fearlessly, and with undisguised sincerity, the necessity of severing, at one gigantic stroke, the cords that bound the colonies to England. The solemnity of his manners, the deep tone of his reasoning, the lucid demonstration of his propositions, and the purity of his patriotism, were well calculated to carry conviction to the heart and impart confidence to the wavering and timid. He was present on the memorable 4th of July, 1776, at the birth of our independence, and became a subscribing witness to the imposing solemnities of that eventful day. He was continued a member of Congress until 1781, when ill health compelled him to retire, for a season, from the halls of legislation.

He was a man of great industry, clearness of perception, honesty of purpose, and profound research; united with an extensive practical knowledge of human nature, general business, and political economy, which rendered him worthy of unlimited confidence and gave him a place on the most important committees. So highly was Mr. Huntington esteemed, that on the resignation of Mr. Jay, in 1779, who was appointed minister to Europe, he was elected president of Congress, the duties of which high and dignified station he discharged with so much consistency and ability, that on his final resignation in July 1781, that august body passed and communicated to him a vote of thanks for the able manner he had filled the chair and promoted the execution of public business. So anxious were the members that he should resume his seat, that they waited considerable time before they supplied the vacancy permanently, hoping that his health might be restored and enable him to return. During this interim of his congressional career, when he was able, he served his own state on the bench and in her council. In 1783, he resumed his seat in the national legislature, during which year he closed his services in that body and declined a re-election. He had aided in completing the mighty work of

national freedom; the star spangled banner was floating in the breeze of liberty; his country had triumphed over a merciless foe; her political regeneration had been consummated; America was disenthralled; he then desired retirement from the arena of public life. His rest was of brief duration. In 1784, he was appointed chief justice of his native state; the ensuing year, lieutenant-governor; and the year following that, he was elected governor of Connecticut, which responsible and important office he filled until the 5th day of January, 1796, when he sunk under a complication of diseases, and closed his eyes in death. He died the death of a righteous man, having long adorned the profession of religion by a life of consistent and exemplary piety.

In the life of this good and useful patriot, we find much to admire and nothing to condemn. His superior virtues and uniform consistency eclipsed every frailty of his nature. In the performance of all the duties of public and private life, he was a model worthy of the highest praise and of the closest imitation. From the plough in the field, through his bright career to the presidential chair in Congress, and from thence to the chief magistracy of his native state, so great were his consistency, wisdom, prudence, discretion, and even-handed justice, that envy, malice, and slander, shrunk from the torpedo touch of his moral purity. As a lawyer, a judge, a statesman, and a chief magistrate, he stood admired, approved, and honoured. He was a stranger to pomp and show; republican in his manners as well as in his principles; temperate and frugal in his habits; scrupulously honest in the discharge of every duty; calm and deliberate in all his actions; urbane and affable in his intercourse with mankind; completely master of all his passions; systematic and punctual in private and public business; emphatically a son of consistency, liberty, order, and law. His fame is based upon substantial merit; his name is surrounded by a sacred halo that renders it dear to every freeman; his examples will shed a salutary influence over the mind of every reader capable of receiving the congenial impression of angelic consistency.

GEORGE WALTON.

Knowledge is the treasure of the mind; virtue is the parent of earthly happiness. In this enlightened age and in our free country, ignorance is a voluntary misfortune arising from idleness, the parent of want, vice, and shame. Under the benevolent arrangements of the present day, every child, youth, woman and man can have access to books, and generally to schools. At no era of the world has the mantle of science been so widely spread as at this time. All who will may drink at the pure fountain of intelligence, and go on their way rejoicing in light. By a proper improvement of time, the apprentice of the workshop may lay in a stock of useful information that will enable him, when he arrives at manhood, to take a respectable stand by the side of those who have been illumined with the full blaze of a collegiate education. In his own hands are the materials of future fame, oblivial obscurity, or shameless infamy. He is the architect of his own fortune, and will rise in the scale of being just in proportion with his mental exertions. Youth of America, if you desire to remain free, store your minds with knowledge. Several bright examples have already been spread before the reader, in this review of the lives of the signers of the declaration, of men who raised themselves by the force of their own powers and industry to the loftiest pinnacle of enduring fame.

In tracing the career of GEORGE WALTON, another instance of the same kind is presented. He was a native of Frederic county, Virginia, born in 1740. Without any school education he was apprenticed to a morose carpenter at an early age, who was so penurious as to deny him a candle to read by, after having faithfully performed his task of labour. So great was his desire to become familiar with books, that he would collect pine knots, which afforded him the only light for the prosecution of his studies during his boyhood and youth. He served out his time in strict accordance with his indentures, and when manhood dawned upon him, his mind was stored with a rich stock of useful intelligence and practical information. This he had acquired alone by the dint of industry during those hours of the night when

a large proportion of other boys and youth were either reposing in slumber, or were wasting their time in corrupt and vicious company, demonstrating most clearly *that ignorance is a voluntary misfortune*.

When he arrived at his majority he went to Georgia and commenced the study of law with Henry Young, Esq., under whose instruction he rapidly acquired the elements of the profession, and was admitted to the bar in 1774. During his investigation of the principles laid down by Blackstone and other able writers, he was most forcibly struck with the gross violation of the chartered and constitutional rights of the colonies. His indignation became roused, he communicated his views and feelings to other kindred spirits, and was among the first to oppose British oppression in his adopted state. The interests of the crown were sustained in Georgia longer than in either of the other provinces. A temporizing spirit pervaded the minds of many of those who desired liberty, but believed its attainment beyond their reach. For some time they preferred enduring their present sufferings, lest a severer fate should overtake them. They knew their own weakness, they dreaded the physical power of England. But George Walton and a few other bold patriots were not to be intimidated by a display of military force. They considered that to die in the cause of liberty was more glorious than to wear the chains of a tyrant. They were determined never to bow the knee to Baal, or offer a sacrifice at the altar of monarchy. They resolved to be free or nobly perish in the attempt.

In order to test the public mind, Messrs. Walton, Noble, Bullock, and Houston, over their proper signatures, published a notice for a meeting of their fellow citizens to be held at the Liberty Pole, Tondee's tavern, Savannah, on the 27th of July, 1774, in order to take into consideration the constitutional rights and liberties of the American subjects of the British empire. This was the first liberty pole planted in that state; this was the first meeting that put the revolutionary ball in motion in Georgia. A large number of citizens assembled at the time and place appointed, and were eloquently addressed by Mr. Walton, who, from that time, became a prominent and able leader of the popular party. A committee was organized for the purpose of rousing the people to a sense of impending danger and to a vindication of their injured rights. Governor Wright, with the hireling phalanx of the crown, used great exertions to obtain from the inhabitants of every parish a written pledge to sustain them in executing the nefarious

designs of the mother country, and to submit their necks more implicitly to the yoke of bondage. Fascinating promises of redress were held out, and the people were in a measure lulled into quietness by a renewal of their petitions to the throne for the repeal of the unconstitutional laws of parliament. But the fire of patriotism had commenced its insulating course. From Mr. Walton and his compatriots its holy flame continued to spread from heart to heart, from sire to son, from parish to parish, at first slowly, but finally illuminating the horizon of liberty with cheering refulgence. The struggle of many of the more timid patriots in that province, between policy and duty, was long suspended on the pivot of indecision. Present self-interest and self-preservation influenced many to remain inactive for a season, who subsequently became the bold advocates of liberal principles. In January, 1775, the members of the assembly were so equally divided upon the all-important subject of the revolution, then rolling upon them, that they adjourned without any definite action relative to it. The same wavering spirit was manifested at the public meetings and by the committee of safety. To restore the public mind from this political paralysis, was the province of Mr. Walton and a few other noble spirits. All the other colonies had united in the common cause against the common enemy and had sent delegates to the Congress convened at Philadelphia the previous year. That Georgia should be the last to hug the chains and kiss the rod of oppression, was to him a source of mortification and regret. But he determined not to desert his post. His exertions became equal to the herculean task before. His powers of mind rose with the magnitude of the occasion; his eloquence and logic bore down all opposition, and when the cry of blood—of murder—from the heights of Lexington was heard, the people started from their reverie, rose in the majesty of their might, buckled on the armour of opposition, burst the cords that bound them, and bid defiance to British power. In May, 1775, the parish of St. Johns sent Lyman Hall to the Continental Congress, and in July, a convention of the province sanctioned his election, joined the confederacy, and sent four other delegates to aid him. The council of safety was re-organized, and vigorous measures adopted to aid the cause of rational liberty. In these measures Mr. Walton was one of the leading men. In January of the next year the legislature appointed Mr. Bullock, a bold and active patriot, president of the executive council by a large majority. British authority was at an end. Governor Wright threatened the members with bayonets, the next hour he was their

prisoner, and permitted only the liberty of his own house on his parol of honour. This he violated, fled on board of the armed fleet in the harbour, commenced an attack upon the town, was shamefully defeated, and retired from the vengeance of an enraged, insulted, and injured populace.

In February, 1776, Mr. Walton was elected to Congress, and entered upon the important duties of legislation. He at once took his seat and proved a bold, energetic, and efficient advocate for every measure calculated to advance the cause of independence. He warmly supported the declaration of rights and most cheerfully gave it his vote and signature. He continued to be annually elected a member of the national legislature until 1781, excepting 1779, when he was governor of Georgia, he rendered essential service on various committees. When Congress was compelled to retire to Baltimore on the 13th of December, 1776, in consequence of the approach of the British army, Messrs. Morris, Clymer, and Walton, were left as a committee of superintendence with \$200,000, to be expended for the use of the army. Mr. Walton was also a member of the treasury board and marine committee, and ably discharged every duty that devolved upon him. In addition to his civil honours, his brow was decked with the epic wreath. In 1778, he was commissioned colonel of militia, and bravely sustained himself at the battle of Savannah between the American troops under General Howe and the British under Colonel Campbell. The battalion under his command made a desperate resistance until he received a shot in his thigh, fell from his horse, and was captured by the enemy. So long as his wound confined him he was held under a parol of honour; when he recovered, he was sent to Sunbury and confined with the other prisoners. He was soon after exchanged, and again entered into the service of Congress, having been absent during the session of 1778. In January, 1783, he was appointed chief justice of Georgia. He was subsequently again elected governor of the state, and also a member of the United States senate, and served several sessions in the state legislature. He was a judge of the superior court, when he closed his laborious life on the 2nd of February, 1803, which had been almost entirely devoted to the service of his country. He was also one of the commissioners that effected a treaty with the Cherokee Indians in Tennessee. His high reputation as an able and faithful public servant, imposed upon him numerous and onerous duties, all of which he discharged in a manner that did honour to his name and his country. The only difficulty in which he appears to have been involved during his public career, was as singular as it

proved harmless, and lost none of its odd features in its final adjustment. During the war, a jealousy existed between the civil and military powers in Georgia. At the head of the first was Mr. Walton; at the head of the latter, General M'Intosh. In 1779, when the former was first elected governor of the state, a forged letter, purporting to be from the legislature, then in session at Savannah, was forwarded to Congress, requesting the removal of the latter to some other field of action. The governor was charged with a knowledge of the transaction; but few, if any, believed it, and he declared himself ignorant of the whole matter. The documentary proofs were laid before the house in January, 1783, and whilst under discussion, Mr. Walton was appointed chief justice of the state; the next day a vote of censure was passed upon him for participating in the forged letter, and the attorney-general directed to institute proceedings against him in the very court over which he presided, and the only one that had cognisance of the charge against him. The vote of censure may have healed the wounded feelings of General M'Intosh; it certainly never injured chief justice Walton, and was never afterwards agitated. It was more like a political compromise of the present day than any revolutionary farce that has come under my notice.

During the latter part of his life, Judge Walton confined his public duties to the bench of the superior court; and during the intervals of its session, enjoyed the comforts of domestic life with his family, consisting of one son, and his amiable and accomplished companion, the daughter of Mr. Chamber, whom he had married in 1777. He was not wealthy, was free from avarice, and was contented with a competence which was afforded by his public emoluments and the produce of a small plantation. He indulged in good living, and suffered much from the gout at various times. He was a close student during his whole life. He continued to add to his experience a general knowledge of the sciences, and became an ornament to the judiciary of his state. He was also a ready writer, and possessed a peculiar talent for satire, which he occasionally resorted to as a correction of error and folly. He was of a warm temperament, easily excited, resenting every indignity, but highly honourable and just, moving within the orbit of propriety under all circumstances, showing clearly that the inflammable passions may be governed and controlled by a wise discretion. He was open and frank, a stranger to disguise, ardent in his attachments, firm in his purposes, stern and reserve in his manners in general society, but very familiar in the private circle with his friends. He was an indignant but manly opponent; his

enemies knew just where to find him. He was fond of brevity and despatch in conversation and in business, and systematic in all his proceedings and arrangements both public and private. Taken as a whole, he was one of the most useful men of his day and generation, and has left examples worthy of the imitation of the apprentice, the student, the lawyer, the judge, the magistrate, and the statesman. By the force of industry and perseverance he rose from the humblest walks of life to the most dignified stations in the community. Let every youth whose eyes meet this brief sketch, be stimulated to embrace every opportunity for improvement, and drink often and freely at the crystal fountain of knowledge now accessible and open to all. Soon the affairs of a mighty nation will devolve upon you; without intelligence you cannot be prepared to guard its dearest interests and counteract the corrupting and baneful evils that are often put in motion by wild ambition, sordid selfishness, and dark intrigue.

GEORGE CLYMER.

The mental powers of man are as diversified as the soils of the earth. Upon the minds of some we pour the classic stream in vain; like the desert of Sahara, they are barren of fruit or flower. Upon the minds of others, laborious efforts produce an improvement, but never enrich them. Their substance is too light and their substratum too porous to long retain the fructifying substances lavished upon them. Others, by good culture, yield a liberal harvest and become valuable by use. Others again, like the alluvial prairie, are adorned with spontaneous fruits, and only require the introduction of seed to afford all the rich varieties that may be desired. Expose them to the genial rays of the sun of science and the germs of genius will immediately spring up, the embryo forms will bud and blossom like the rose.

The mind of GEORGE CLYMER was composed of a prolific and deep mould, capable of producing the richest foliage. Fortunately for our country, it was not appropriated entirely to ornamental flowers and blooming shrubbery, but to the substantial fruits that invigorate and support life.

He was born in Philadelphia in 1739. His father removed from Bristol, England, to that city, and died when this son was but seven years of age. George Clymer was then taken under the guardian care of William Coleman, his uncle, who treated him as a son and made him heir of most of his property. Himself a literary man, Mr. Coleman conferred upon his nephew a good education. He possessed a splendid library, and had the gratifying consolation of seeing it often and fully explored by George Clymer, who manifested an early taste for reading, and investigated critically every subject that came before him, never leaving it until he traced it through all its meanderings to its primeval source. This trait in his character rendered him vastly useful in the momentous concerns that occupied his subsequent life. It is of the first importance to dig deep and lay

firmly the foundations of an education, that the superstructure may rest upon a substantial basis.

From the seminary, Mr. Clymer went into the counting-house of his uncle, and made himself acquainted with the mercantile business, in which he subsequently embarked. The precariousness and uncertainty of this calling rendered it unpleasant to him. He was opposed to sudden gains or losses, because the one was calculated to elate the mind too much, and the other to depress it too low, thus destroying the equilibrium calculated to impart the most happiness to a man and render him most useful to himself, to his family, and to the community. He contended that a virtuous equality in life is more conducive to the comfort and prosperity of a nation, than to have a majority of the wealth wielded by a favoured few. He was the friend of equal rights and free principles. He was a republican of the Roman school, a patriot of the highest order, a philanthropist of the noblest cast, and opposed to all monopolies. His genius was of that original order, that, like some comets, illuminate our world only at long intervals. It seemed to traverse the circuit of human nature, of metaphysics, of philosophy, and of general science, without an apparent effort, drawing from each conclusions peculiarly its own. He was a virtuoso, an amateur, and at the same time a deep logician and mathematician. A love of liberty and equal rights was with him an innate quality. His mind was richly stored with the history of other times and nations; he was well versed in the principles of law and government, and understood well the chartered rights of his country, and felt most keenly the increasing infringements upon them by the very power that was bound by the laws of nature, of man, and of God, to protect them. His course at the commencement of the revolution can readily be imagined. True, his entire property was vested in commercial business; Reese Meredith, his father-in-law, was his partner in trade, and for him to oppose the interests of the crown, seemed certain destruction to his own, so far as pecuniary matters were concerned. But his mind moved in an orbit limited only by the confines of freedom. He was among the first to resist the oppressors of his country and proclaim to his fellow citizens the principles of liberty. At the "*tea meeting*," held by the citizens of Philadelphia on the 16th of October, 1773, his reasoning, sincerity, zeal and enthusiastic patriotism, commanded great attention and admiration. Free from pedantry and naturally retiring his powers of mind were known only to his friends. From that time they were claimed as public property. He was compelled to

surrender possession to the rightful owners, without certiorari or appeal, and was engaged in all the important measures of the day. When the final crisis arrived for action; when forbearance had ceased to be a virtue; when the war-cry resounded from the heights of Lexington, Mr. Clymer took command of a company under General Cadwalader and repaired to the tented field. He was at the same time a member of the council of safety, and had served on all or most of the preliminary committees of his native city appointed to prepare petitions, remonstrances and measures of defence. He was soon called from the field of epic glory, and appointed by Congress, on the 29th of July, 1775, in conjunction with Michael Hillegas, to take charge of the public treasury. He subscribed liberally to the loan raised for the public service, and poured all the specie he could raise into the government chest and took in return paper, which was virtually ephemeral in its value. His examples and his patriotic enthusiasm had a powerful influence upon his friends, many of whom came boldly to the rescue. In July, 1776, he took his seat in the Continental Congress *after* the adoption of the declaration of rights, to which he most cheerfully subscribed. A part of the preceding delegation from Pennsylvania when they found their colleagues were in favour of cutting loose, left their station and retired, perhaps that they might avoid the wrath of the king on the one hand and the indignation of the patriots on the other, or believing the time had not yet arrived for so bold a step. The people promptly filled their places with men who *dared* to be free, by men who had already nobly resolved on *liberty* or *death*.

In September of that year, Messrs. Clymer and Stockton were sent by Congress to regulate the northern army and to confer with Washington in making arrangements for future action. In December of the same year Congress retired to Baltimore in consequence of the threatened approach of the British army, then spreading consternation, destruction and death through New Jersey. Mr. Clymer was one of the committee left in Philadelphia to superintend the public interests and brave the perils that were rolling onward like a tornado. He was faithful in the discharge of every duty, devoting his time and fortune to the advancement of the glorious cause he had espoused. He was returned to Congress the next year, and in April was again appointed upon a committee to repair to the army and confer with Washington upon all subjects that required their attention, which were neither few nor small. In the autumn of that year an additional momentum was given to the patriotism of Mr. Clymer. He had removed his

family and goods to Chester county, and immediately after the defeat of the Americans at Brandywine, the tories led the British to his house; his family escaped, but his property, to a large amount, was totally destroyed. This sacrifice at the altar of freedom seemed to strengthen his political faith and impart fresh vigour to his exertions.

In December, 1779, he was one of a board of commissioners sent by Congress to Fort Pitt, to counteract, if possible, the hostility of the savages, who were committing murders upon the western frontiers of Virginia and Pennsylvania, and to effect, if practicable, a treaty with the several tribes, and if unsuccessful in the accomplishment of these designs, to make arrangements for offensive operations. The mission was boldly executed, principally by Mr. Clymer alone, who narrowly escaped the tomahawk during his absence. The commissioners returned in April and reported the necessity of carrying the war into the Indian country. During the next year Mr. Clymer was not in Congress, but devoted his time in raising loans and supplies for the army, then destitute of almost every necessary of life and of the munitions of war. In 1780, he was again elected to the national legislature and served until November of the ensuing year, when he and John Nixon were appointed to organize the Bank of North America, which was instrumental in reviving the prostrate credit of the government. In May, 1782, he was associated with Mr. Rutledge on a mission through the southern states, for the purpose of inducing them to meet more promptly the requisitions of Congress for supplies. During the entire period of the revolution he devoted his whole time to the service of his country, and discharged every duty assigned him to the entire satisfaction of his constituents and colleagues. He stood high as an able and faithful co-worker in the vineyard of liberty, and retired from the field when the harvest was ended covered with the honours of enduring fame. At the close of the war he removed to Princeton, for the purpose of resting from his toils and educating his children. The ensuing year his services were requested in his native state, and he returned to Philadelphia. He was elected to the Pennsylvania legislature, and contributed largely in divesting her old constitution and laws of the obnoxious branches of tyranny that were still attached to them. He introduced the amelioration of the penal code and was the originator and warm advocate of abolishing death in all cases, except murder in the first degree. He was the father of the much admired penitentiary system of that state, which has but recently been organized

fully upon the plan proposed by him—that of solitary confinement at hard labour. It may not be known to the young reader, that in former times, prisoners, after conviction, were compelled to labour in chains often in the most public places. The superiority of solitary confinement over all other modes of punishment has been fully demonstrated, and is in a course of adoption throughout the civilized world. The arguments of Mr. Clymer in favour of these philanthropic measures manifested a deep and thorough knowledge of human nature, and were based upon the firm pillars of equal justice, lucid reason and sound policy. He devised and prepared the humane report of the committee that remodelled the penal code of Pennsylvania, which has been fully and successfully tested, and stands an admired monument of judicial reformation, and an enduring praise to the name of its author.

The mind of Mr. Clymer was peculiarly prolific and happy in the conception of plans of usefulness and utility. To benefit his country and better the condition of mankind, afforded him the highest pleasure. To effect this, he saw the necessity of reducing every department of government to system and order. American independence was achieved; to preserve it by reducing to harmony the conflicting local interests, jealousies and inconsiderate clamours of the malevolent, was an herculean task yet to be performed. The convention that formed the federal constitution was therefore hailed with joy by Mr. Clymer, who was one of its members. The result of the labours of that body was fraught with deeper interest than the war struggle for victory over a foreign foe. It involved the fate of our infant republic, which was then verging on dissolution and fast retrograding towards the awful gulf of primeval chaos. The conflict was between members of the same family, and required the deepest sagacity, the profoundest wisdom, the most acute judgment, the most disinterested patriotism, the most exalted charity, and the purest spirit of conciliation, to bring it to a peaceful and satisfactory termination. Happily for our country this was done, and Mr. Clymer contributed his full share in the accomplishment of the glorious work.

He was elected a member of the first Congress convened under that saving instrument, he was a stern republican and opposed to tacking any titles to the name of any public man except that of his office. Excellency, honourable, &c., he conceived to be the mere shadows of a shadow, too

vain and trifling for a freeman. He was opposed to the right of instruction from his constituents, because they must necessarily decide without hearing either evidence or argument. He was unwilling to be made a mere passive machine of puerile power, a mere automaton of party spirit.

In the organization of the general government through all its ramifications he took a deep interest and an active part. Every subject that was presented to Congress for consideration he analyzed with the skill of a sage, a statesman and a philosopher. In 1790, he closed his legislative career and declined again entering upon its arduous duties. Under the act of Congress of 1791, imposing a duty on domestic distilled spirits, Mr. Clymer was appointed to superintend its collection in his own state. The tax was then called, by way of opprobrium, the *excise*. This law gave great dissatisfaction in many places, and in Pennsylvania produced what was termed the *whiskey rebellion*, which required the military to restore order. Unpleasant as it was, Mr. Clymer proceeded to perform his duty by appointing the required collectors in each county, endeavouring to persuade the people to submit to the law whilst in force, and pursue the constitutional remedy for its repeal if they believed it wrong. During the height of the excitement he hazarded his life among the malecontents where but few other men would have been spared if clothed with the same office. He finally resigned this station, and was soon after appointed a commissioner, with Colonels Pickens and Hawkins, to negotiate a treaty with the Cherokee and Creek Indians in Georgia, which was effected on the 29th of June, 1796, and closed his long, faithful and arduous public career. He had perilled his life, his fortune and his sacred honour for his country; he had been her unyielding and fearless advocate amidst the storms of revolution, civil discord and open rebellion; he now saw her peaceful, prosperous and happy, with the illustrious Washington presiding over her destinies. He could therefore retire to enjoy the fruits of his labours and his toils, without any to disturb or make him afraid.

But he remained an active man during his whole life. He felt an interest in every kind of improvement, and to many he extended a fostering care. As early as 1785, he aided in establishing the Philadelphia Agricultural Society, and when the Academy of Fine Arts was founded in that city he was one of its liberal patrons. He aided also in establishing the Philadelphia Bank. Of the former, he was vice president, and of the two latter, president when he

died. He was a friend to all the labouring classes, and made himself acquainted with the principles of farming and the mechanic trades. His private papers exhibit a great variety of draughts and plans of bridges, canals, water-works, machinery and implements of husbandry, and numerous recipes relative to the arts. Like the philosophic Franklin, he extended his researches to almost every subject within the grasp of man, and treasured in his mind the essential oil of each. He always sought for solid substance that could be applied to substantial use. His mind and his manners were opposed to pedantry and pomp. He was what, in common parlance, would now be called a plain, old fashioned, blunt man. His bluntness was not of an offensive kind; it consisted in laconic truth, dressed in republican simplicity, a garb that was much admired during the times of pure unsophisticated patriotism. Although he originated many important measures in the national and state legislature, he seldom spoke in the forum, and was often unknown to the public as such, when the author of the most salutary propositions. He was ambitious only to do good, and was not anxious that his name should be wafted on the breeze of popular applause or be emblazoned in the high places of the earth. To know that he had been instrumental in benefitting the human family was the ultimatum of his soul. When the importance of a subject induced him to rise in debate he was listened to with profound attention, and was an example worthy of imitation. Without any pretensions to refined elocution, he expressed in strong language the sentiments he strongly felt. He came directly to the point, adhered closely to it in a strain of keen, cutting, pithy and laconic reasoning; was always brief, often casting into the shade, by his remarks of a few moments, the laboured and gaudy speeches of his opponents that had cost them weeks to prepare and hours to deliver. He effected this, not by personal recrimination or irony, but by aiming his blows at the strong points, the syllabus of their superstructure, which he often demolished at one bold stroke with the damask blade of sound logic, drawn from the scabbard of plain common sense, and wielded by the vigorous arm of lucid reason. He was opposed to every shade of aristocracy and every thing anti-republican, both in theory and practice. His views were broad and liberal, his purposes were honest and patriotic. He was an attentive reader, and wrote numerous essays, which are forcible, logical, and extremely sarcastic.

In the private walks of life his character was a model of human excellence. All its relations he discharged with the most scrupulous fidelity

and integrity. He was proverbial for punctuality in all things, if only to take a walk with a friend or present a promised toy to a child. In conversation he was agreeable and instructive, illuminating and enlivening the social circle with apothegms, aphorisms, and pungent anecdotes, imparting pleasure and intelligence to all around him. In all this he was modest, chaste and discreet, avoiding any appearance of superiority, carefully guarding against personal allusions, even to his most bitter enemies. He spoke ill of no individual, and checked slander in others whenever he discovered it. His morals were of the purest order, his philanthropy was of the loftiest kind. As a public servant, a private citizen, a kind husband, a faithful father, a warm friend, an honourable enemy and a noble patriot, the name of GEORGE CLYMER stands pre-eminent.

He was of the middle size, well formed, fair complexion, with a countenance attractive, intelligent, expressive of a strong mind, pleasing and ingenuous. He closed his long and useful career on the 23d of January, 1813, at the residence of his son at Morrisville, Berks county, in his native state, most deeply mourned by those who knew him best.

CARTER BRAXTON.

It often happens that those who forget right and abuse power undermine the foundation of their own citadel, and prepare the way to be shorn of their present enjoyments by an improper course to enhance them. Thus it was with England. Previous to the causes that produced the American revolution, the idea of a separation from the mother country, and of forming an independent government, had probably never entered the minds of but few of the patriots who were engaged in its consummation. When the impolitic measures towards the colonists were first commenced, relying upon their chartered rights, based upon the British constitution as they were, they believed their grievances would and must be redressed by the king, when properly requested by petitions. These were repeatedly forwarded to him, couched in the most respectful and eloquent language, to which he turned a deaf ear. Parliament was appealed to in vain. Remonstrances formed the next link in the chain. They also were treated with contempt. A formal demand to desist from oppression in bold, but still in respectful language, breathing allegiance to the king in every word, was the next resort—but all to no purpose. The ministerial cry, *give—give—give—* resounded from Albion's shore, and pierced afresh the sensibilities of the imploring suppliants. Resolutions of non-importation followed; these produced menaces from the British military, a preparation for resistance by the colonies succeeded; American blood was spilt; the tocsin of war was sounded; millions rushed to the conflict; the struggle was long, doubtful, and bloody; the patriots triumphed; the power of Britain was dissolved; Columbia was free and patriots rejoiced.

Among them stood CARTER BRAXTON, the son of George Braxton, a wealthy planter, who resided on the north bank of Mattapony river, where he owned a valuable plantation, situated in the county of King and Queen, Virginia. At that beautiful place Carter was born, on the 10th of September, 1736. His paternal and maternal connections were highly respectable and wealthy, and several of them officers of the crown at various periods. He

was liberally educated at the college of William and Mary, and reared amidst all the splendours of opulence, without the tender care of a mother to correct his childish foibles, or of a father to guard him against the errors of youth; the former having died when he was but seven days old, and the latter when he was quite young. When but nineteen years of age, he married the beautiful and amiable Judith Robinson, who was very wealthy, and entered into full possession of his large estate, which, united with that of his wife, constituted a princely fortune. She survived but a short time, leaving him two daughters, the youngest but a few hours old.

To assuage his grief, he sailed for England, where he remained for nearly three years, during which time he added greatly to the store of knowledge he had previously acquired, and became familiar with the feelings, views, and designs of that kingdom towards his native country. His rank and fortune gave him access to the nobility, from whom he obtained much valuable information relative to the ministerial conclave then concocting plans to raise money in America to support royalty in Great Britain.

Although his family connections were favourites of the king, and every thing around him was calculated to foster aristocracy in his bosom, Mr. Braxton became a warm friend of liberal principles and equal rights. Soon after his return from Europe, in 1760, he was elected a member of the house of burgesses, and, in 1765, was an ardent supporter in that body of the bold resolutions offered by Patrick Henry, relative to the stamp act. From that time forward he was a zealous advocate in the cause of freedom. He was one of the house in May, 1769, when the proceedings of the members excited the ire of the royal governor Bottetourt to such a degree that he dissolved them without ceremony. They immediately repaired to a private room in Williamsburg, and entered into a solemn agreement not to import any articles from the mother country until their chartered rights were restored. The same members were elected to the next session, and, being aware of the kind of materials he had to manage, the smooth and shrewd governor lulled them into a more quiet mood by the syren song of promises, assuring them that at the next session of parliament the offensive revenue taxes would be removed. Still cherishing hopes that their rights would be recognised, they waited in respectful but watchful silence. Mr. Braxton was an active member of committees and an agreeable speaker. In the house of

burgesses there were six standing committees, one on courts of justice, one on public claims, one on elections and privileges, one on trade, one on grievances and propositions, and one on religion. Of the three last, then by far the most important, Mr. Braxton was uniformly a member. In 1771, governor Bottetourt died, and was succeeded by Lord Dunmore, who, being fresh from the fountain of high notions and ministerial corruption, dissolved the turbulent assembly then in commission, and issued his proclamation for a new election. Mr. Braxton was then sheriff of his county, and could not serve in the house. The people continued to live on promises and hang on hope until the 27th of May, 1774, when the house of burgesses again took a bold stand against oppression, and was peremptorily dissolved by Lord Dunmore. He then dissolved the gordian knot virtually; the people became enraged; eighty-nine of the members, immediately after the dissolution, formed themselves, with many other patriots, into an association of resistance, and the fire of freedom began to rise in curling flames. In August, a convention of the friends of liberty met in Williamsburg, of which Mr. Braxton was an active member. They elected seven delegates to meet the Congress at Philadelphia, and bound themselves to act in concert with the people of Boston, in the common cause against the common enemy. Governor Dunmore had a new house of burgesses elected; not being pleased with their proceedings he prorogued it several times, until he prorogued himself, on the night of the 7th of June, 1775, on board the armed ship Fowey, never again to assume his power over the turbulent rebels of America. The Virginia convention met again in March, 1775, and took every precaution necessary to put their state in a condition of defence. In April following, Lord Dunmore had caused the powder to be removed from the magazine, under pretence that it would probably be needed in another part of the colony, to repel an expected insurrection of the blacks. This enraged the people, who assembled in large numbers, but were persuaded to return to their homes by Peyton Randolph. Not fully satisfied, a Spartan band soon after collected, headed by Patrick Henry, and proceeded towards Williamsburg, determined on having the powder or its equivalent. An armed force was sent from the Fowey to sustain the governor; this only enraged the patriots; the spilling of blood seemed inevitable. At that juncture Mr. Braxton and others interceded; the powder was paid for by the receiver-general; Mr. Henry gave a receipt for the money, and his troops returned home.

The flight of the governor was the dissolution of British power in Virginia. For a time the government was managed entirely by the committee of safety, of which Mr. Braxton was a member. On the 15th of December, 1775, he was elected to the Continental Congress, and entered upon the duties of his new station with great zeal and vigour. He had already seen much public service, and was prepared to act well his part. He advocated, voted for, and signed the declaration, the instrument that formally dissolved the maternal ties that bound the pilgrim fathers to chains and slavery. On the return of Mr. Braxton from Congress the next autumn he took his seat in the first Virginia legislature convened under their republican constitution, having been elected the May previous. A formal vote of thanks to him and Thomas Jefferson, for their faithful services in Congress, is upon the records of that body, dated the 12th of October, 1776. From that time to his death, he was often a member of the legislature of his state, sometimes in one branch and sometimes in the other. He was a member of council when he died, and was in his seat only four days previous to his decease.

During the war, he had lost a large portion of his fortune by the British, and after its close he was extremely unfortunate, and was reduced to indigent and perplexing circumstances. For a time, he led his friends into speculative projects in order to resuscitate his adverse circumstances, all of which proved abortive, injuring them without benefiting him, and he finally sunk under a load of affliction, which produced an excitement that was followed by paralysis, a second attack of which ended his useful and eventful career at Richmond, Virginia, on the 10th of October, 1797. Under all these trying circumstances, his reputation did not suffer, he lost none of his well earned fame as an able and faithful public servant, and an honest and worthy man. His private character was of the most amiable kind; he was a perfect gentleman and fulfilled all the relations of life with fidelity. His name is justly placed high upon the list of enduring fame, as a man who was a faithful sentinel in the cause of equal rights, who contributed largely in consummating that independence we now enjoy, that freedom of which we boast, that liberty which we are bound to cherish, protect, preserve, and perpetuate.

JOHN MORTON.

Courage and fortitude, unaided by wisdom, often lead men into unforeseen and unexpected difficulties. Combined, they form a power for action equal to the lever, the fulcrum and the screw. Some men possess a brave and dauntless spirit that knows no fear, but not possessed of the helm of wisdom to plan and discretion to act, can never become successful leaders. Guided by a wise prudence, blended with a talent to conceive and a boldness to execute, the weak become strong and effect wonders, at which they themselves look with astonishment after the mighty work is completed. To the unparalleled wisdom of the sages of the American revolution we owe the blessings of the liberty we now enjoy, more than to the physical strength of our country at that time. Compared with the fleets and armies of the mother country at the eventful era of the birth of our nation, the available force of the colonies dwindles into significance. The one a Goliath clad in armour; the other, a boy with a puerile sling. The one, a giant in the vigour of his glory; the other, an infant bursting into life. To the wisdom of the revolutionary sages, then, under God, we must ascribe the success of the noble work they conceived, planned and executed.

As a cool, deliberate and prudent man, the name of John Morton is memorable. He was born in Ridley, Delaware county, Pennsylvania, about four miles from Chester, in the year 1724. His ancestors immigrated from Sweden at an early period, and settled along the Delaware not far from Philadelphia. The father of John Morton, of the same christian name, married Mary Richards when he was very young, and died before his son was born, and before he arrived at his majority. The widow was subsequently married by John Sketchly, an intelligent Englishman, who proved a good husband and a kind step-father. Mr. Morton was principally indebted to him for his education, having enjoyed the advantages of a school but three months. Himself a skilful surveyor and well versed in mathematics, he made his step-son master of that important science. No branch of education is as well calculated to lead the mind into the path of

precision of thought and action as this. Based upon invariable truth and lucid demonstration, never resting on false premises, always arriving at incontrovertible conclusions, it gives a tone to the mental powers calculated to produce the most beneficial results.

Young Morton continued with his parental guardian until manhood dawned upon him, aiding in the management of the farm and in surveying, constantly storing his mind with useful and substantial knowledge, blending and testing theory with practice. In 1764, he was commissioned a justice of the peace, and shortly after was elected to the assembly of his native state. He soon became conspicuous, and was subsequently speaker of the house during several sessions. He took a deep interest in the welfare of his country, and was a member of the Congress assembled at New York in 1765 to concert measures for the repeal of the odious stamp act. He concurred in the strong and bold measure of that body, which virtually kindled the fire of the revolution, which, although smothered for a time, was never extinguished until it consumed the last vestige of British power in America. In 1767, he became the sheriff of his county, which station he ably filled for three years. He was then appointed president judge of his district, and rose rapidly in the estimation of his fellow citizens. He also endeared himself to society by a matrimonial connection with Miss Anne Justis of the state of Delaware, an amiable and accomplished lady, who contributed largely to his happiness in life. Soon after the clarion of war was sounded from the heights of Lexington, the indignation of the people in his neighbourhood was so roused that they raised a battalion of volunteers and elected judge Morton colonel. He was under the necessity of declining the proffered honour, having recently been appointed a judge of the supreme court of Pennsylvania. In July, 1774, he was appointed by the assembly of that state a member of the Congress that convened in Philadelphia in September following. The object of that Congress was to effect peace and reconciliation between the two countries, and contract, instead of enlarging, the breach of amity. Men of wisdom and deep thought, fired by a holy patriotism, were selected for the all-important deliberations on which depended the future destiny of themselves and unborn millions. When they assembled, a deep and awful solemnity pervaded every mind. The proceedings were opened by prayer, and every soul seemed to commune with the spirits of another world, as by vesper orisons. After the address to the throne of grace was closed, a protracted silence ensued; nought but the

flitting of the purple stream and the throbbing of anxious hearts was heard. The trembling tears and quivering lip told the emotions of many a bosom, too strong to be endured, too full to be expressed, too deep to be fathomed. At length the mighty spirit of Henry burst forth in the majesty of its native glory, and broke the magic spell. In bold and glowing colours, strongly shaded with dignified sincerity, and painted upon the canvass of eternal justice and truth, he presented American rights and British wrongs. When he closed, every patriot responded a hearty—Amen. Their mouths were opened, their burdens lightened, and they could breathe more freely.

In May of the next year, judge Morton again took his seat in Congress, and in November following was re-elected, although then speaker of the assembly of his state. In July, 1776, he attended that august body for the last time, and placed an enduring seal upon the bright escutcheon of his name, by signing the chart of liberty, the manifesto of freemen against the usurpations of tyranny.

During the time he was in Congress, he rendered very efficient services, and was highly esteemed as a cool, deliberate, discerning man; purely patriotic, firm in his principles, and anxious to do all in his power to promote the righteous cause of his bleeding country. With all these feelings resting upon his mind, he was among those who weighed deeply the consequences of severing the bonds that bound the colonies to the mother country. Unsustained, the step was death or a more cruel slavery. To all human appearance the patriots must be crushed by the physical force of their enemies then pouring in upon them. There were five delegates from his state, two of them had determined on going against the measure, which left him to give the casting vote. The responsibility he considered of the greatest magnitude. On it depended the enhanced misery or the happy deliverance of his country. The former he feared, the latter he hoped for. When the time arrived for final action, his patriotism preponderated over his doubts, and he cast his vote in favour of the important instrument that was to prove either the warrant of death or the diploma of freedom. Some of his old friends censured him strongly for the bold act, and would not be reconciled to him, even when he lay upon the bed of death; so strong were the feelings of men during the revolution. His dying message to them showed that his conscience approved the work his hand had done. “Tell them that they will live to see the hours when they shall acknowledge it to

have been the most glorious service that I have ever rendered to my country." The truth of his prophecy has been most happily verified.

When the articles of confederation were under discussion by Congress, judge Morton was frequently chairman of the committee of the whole, and performed the duty with great dignity and ability.

In April, 1777, he was attacked with a violent fever, highly inflammatory, which terminated his life in a few days, in the midst of his usefulness, with fresh honours awaiting him as time advanced. His premature death was deeply mourned by his bereaved companion, eight children, a large concourse of intimate friends, by the members of the bar, by his associate judges, by the state legislature, by Congress, and by every patriot of his country.

As a private citizen, he possessed an unusual share of esteem. He was endowed with all the amiable qualities that enrich the domestic and social circle, and, as a crowning glory to his fair fame, he professed and adorned the Christian religion, and died triumphing in faith. His dust reposes in the cemetery of St. James' church, in Chester; his name is recorded on the enduring tablet of fame. His examples are worthy of imitation; his brief career admonishes us of the uncertainty of life; his happy demise is an evidence of the truth of real piety.

RICHARD HENRY LEE.

A strong propensity exists in every investigating, reflecting mind, to explore the labyrinthian abysm of the past. The classic reader dwells with rapture upon oriental time. Its remoteness sheds around it a sacredness that increases veneration, and leaves the fancy to wonder and admire. Human foibles descend with the body to the tomb, and are covered by the mantle of oblivion. Human faults, not enrolled on the black catalogue of crime, are often eclipsed by transcendant virtues, find no place upon the historic page, and leave after generations to gaze at a picture of native beauty, which, as time rolls over it, assumes deeper and holier shades, until it commands the reverence of all who behold it. The names of Demosthenes, Cicero, Socrates, Solon, Cincinnatus, and many others, over whose dust centuries have rolled, are referred to with as profound respect as if angel purity had stamped their every action with the impress of divinity. The same bright portrait awaits the name of every good and great man. That of each of the signers of the declaration of independence has long attracted the earnest gaze of admiring millions, and becomes more sacred as time advances.

Upon the tablet of enduring fame, stands the name of RICHARD HENRY LEE, in bold relieve. He was the son of Thomas Lee, and born in Westmoreland county, Virginia, on the 20th of January, 1732. His ancestors were among the early settlers of the Old Dominion, and among those who guided the concerns and directed the destinies of the colony. They were the friends of liberal principles, and at all times resisted every encroachment upon their rights. The arbitrary power exercised by Charles the first over his European subjects, which hurled him from his throne, was successfully resisted by the Lees of Virginia. When Cromwell assumed the crown, his power was not recognised by this colony, and the mandate that first proclaimed the second Charles king, originated with Lee and Berkley of the Old Dominion.

The plan of ultimate independence seems to have been long cherished and nursed by the elder Lees. Through the bright vista of the future they contemplated the millennium of freedom in America. So strongly impressed was the father of the present subject with this idea, that he fixed in his mind the location of the seat of government, and in view of this, purchased lands in the vicinity of Washington. By some historians this is called a paradox which philosophy has been perplexed to explain. To my mind the solution is involved in no mysterious perplexity. A man of deep reflection does not draw his conclusions from present appearances alone. He compares the past with the present, from which he makes deductions for the future. The historic map of the old world is covered with the rise, progress, and downfall of kingdoms and nations. Judging from the causes that produced them, and the results that followed, it was the natural conclusion of a penetrating mind, that the expansive territory we now possess, with all the bounties of nature lavished upon it, and with intelligent and enterprising immigrants pouring in upon it, must eventually be so densely populated that its physical force would become too strong for any European power to maintain a dominion over it. Its geographical centre, with reference to the settlements then in progress, was equally plain. The "prophecy," as it has been termed, was the result of deep thought, arriving at conclusions drawn from the laws of nature, and shows that Mr. Lee possessed an analyzing mind that moved in a broad circumference.

Richard Henry Lee commenced his education at Wakefield, Yorkshire, England, and remained in that kingdom until he completed it. He returned a finished scholar and an accomplished gentleman, with a reputation untarnished by folly or vice. From his youth his integrity and morality were of the purest order; he delighted in reposing under the ethic mantle. During his absence his innate republicanism did not become tinctured with the farina of European courts, or the etiquette of aristocracy. In classic history he found the true dignity of man portrayed, and his inalienable rights delineated. In the philosophy of Locke he saw the rays of light reflected upon human nature, and the avenues of the immortal mind opened to his enraptured view. In the elements of Euclid the laws of demonstration were exhibited to his understanding, and aided in maturing his logical powers. He was prepared to enter upon the great theatre of public action, and to adorn the circle of private life. Endowed with these qualifications, his services were naturally required by his country. His first public act was to raise a

body of troops and tender his services to General Braddock. That proud Briton considered the provincials puerile, and declined the proffered aid. His fate is a matter of history. In 1757, Mr. Lee was appointed a justice of the peace and president of the court. Shortly after, he was elected to the house of burgesses, where he made himself thoroughly acquainted with the laws of legislation, the ramifications of the government, the various interests and policy of the colony, and with the rules of parliamentary proceedings.

Retarded by an almost unconquerable diffidence, he took very little part in debate at first, and it was not until he became excited by a subject in which he felt a deep interest, that his Ciceronean powers became developed. A bill was before the house imposing a duty upon the importation of slaves into Virginia, so heavy as to virtually amount to a prohibition. It met with strong opposition, and then it was that Richard Henry Lee became roused, and poured upon his astonished audience a flood of eloquence against the importing traffic of human beings, that raised him at once to the pinnacle of fame as an eloquent orator. He was proclaimed the Cicero of America. He painted, in vivid colours, the cruelties of Cortes in South America, of the Saracens in Spain, and then pointed his colleagues to the darker and more barbarous practices that marked and branded with lasting infamy the unhallowed slave trade. He also pointed them to the bloody scenes of other times, when the physical force of those held in bondage had enabled them to rise in their might and crush their masters at one bold effort. By stopping the traffic the evil already entailed upon them might be provided for, and the certain and dreadful consequences of a constant influx from Africa be warded off. His eloquence was applauded, but his doctrines of philanthropy were voted down. The trade was then sanctioned by the government of Great Britain, now so loud in complaints against us, for not providing for an evil entailed upon America by the mother country.

The exposure of base corruptions practised by Mr. Robinson, then treasurer of the colony, was the next important service rendered by Mr. Lee. As this was participated in by the aristocracy of the house it required much boldness, energy, and persevering sagacity to introduce the probe successfully. This he effected in a masterly manner, and proved clearly that the treasurer had repeatedly re-issued reclaimed treasury bills to his favourite friends to support them in their extravagance, by which means the

colony, in paying them a second time, was robbed of the amount. This act placed Mr. Lee on a high eminence in view of every honest man.

When Charles Townshend laid before the British parliament the odious and more extensive plan of taxing the American colonies, which was seized upon as a *philosopher's stone* by Mr. Grenville, Mr. Lee was among the first to sound the alarm to his countrymen. Within one month after the passage of the preliminary act in parliament followed by a revolting catalogue of unconstitutional and oppressive laws, Mr. Lee furnished a list of arguments against it to his London friends, that were sufficient to convince every man of the injustice and ruinous policy of the measure proposed, who was not blind to the dictates of reason and madly bent on enslaving his fellow men. When Patrick Henry proposed his resolutions in 1765, against the stamp act, which brought out the full force of his gigantic mind for the first time, Mr. Lee gave them the powerful aid of his eloquent and unanswerable logic.^C Associations began now to be organized to resist the oppressions of the crown of which he was a prominent and efficient member. The collector of stamps was compelled to relinquish his office and deliver up his commission and the odious paper, and the people were advised not to use it on any occasion.

^C See them at large in the life of Henry.

The *pen* of Mr. Lee was also ably used and produced many keen, withering, logical, patriotic and sarcastic essays, that contributed largely in producing a proper tone of enthusiastic patriotism in the public mind. He also corresponded with the patriots of New York and New England, and was the first one according to the testimony of Colonel Gadsden, of South Carolina, and the public documents of that eventful era, who proposed the independence of the colonies, which tends to strengthen the allusion to his ancestors, who had for a century before predicted this event. The idea had probably been handed down from sire to son. In a letter from Richard Henry Lee to Mr. Dickinson, dated July 25th, 1768, connected with the statement of Colonel Gadsden, he proposes upon all seasonable occasions to impress upon the minds of the people the necessity of a struggle with

Great Britain “*for the ultimate establishment of independence,*” and “that a private correspondence should be conducted by the lovers of liberty in every province.” His early proposition in Congress to sever the maternal ties, was considered by most of the friends of liberty premature and rash; but he had long nursed this favourite project in his own bosom and was anxious to transplant its vigorous scions to the congenial hearts of his fellow patriots.

Soon after the house of burgesses convened in 1769, Mr. Lee, as chairman of the judiciary committee, introduced resolutions so highly charged with liberal principles, sapping the foundation of the Grenville superstructure, that they caused a dissolution of the house, and concentrated the wrath of the British ministry and its servile creatures against him. The fruits of their persecution were the formation of non-importation associations, committees of correspondence, committees of safety, and the disaffection of the English merchants towards the ministers, in consequence of their impolitic measures, which were calculated to prostrate the exporting trade to America.

Lord North now assumed the management of the grand drama of oppression, and laid more deeply the revenue plan. By causing a repeal of the most offensive acts, he hoped to lull the storm of opposition that was gathering, disarm the colonists of the spirit of resistance, and, in the meantime, prepare for more efficient action. Had the Boston port bill been omitted, his dark designing treachery might have had a more triumphant reign. This roused the indignation of the people and fanned the burning flame of patriotic resentment to a *white* heat.

The Philadelphia Congress of 1774 was now planned, in which Mr. Lee took his seat. At that memorable meeting he acted a conspicuous part. After Patrick Henry had broken the great seal that appeared to rest on the lips of the members as they sat in deep and solemn silence, he was followed by Richard Henry Lee in a strain of belles lettres eloquence and persuasive reasoning that took the minds of his audience captive, and restored to a calm the boiling agitation that shook their manly frames as the mountain torrent of the Demosthenean Henry rushed upon them.

He was a member of the committee appointed to prepare an address to the king, the people of Great Britain, and to the colonies. That document

was written by him and adopted with a few amendments. He was also upon the committee that prepared the address to the people of Quebec, and upon the committee of rights and grievances, and of non-intercourse with the mother country. In the warmth of his ardour, he proposed several resolutions that were considered premature at that time, and were rejected; not because his purity of purpose was doubted, but because many of the members still hoped that peace might be restored by a timely redress of the grievances they had strongly and clearly set forth in their petition and address to the king and his advisers, and were not willing then to take any action to widen the breach between the two countries. The proceedings of this Congress were highly applauded by Lord Chatham, as being without a parallel for solidity of reasoning, force of sagacity and wisdom of conclusion.

In 1775, Mr. Lee was unanimously elected to the Virginia legislature and continued to act with undiminished zeal. He received a vote of thanks from that body “for his cheerful undertaking and faithful discharge of the trust reposed in him during the last Congress,” and was immediately appointed a delegate to the next. A more congenial field was now opened for the ardent spirit of this devoted patriot. Temporizing was no longer the order of the day. Vigorous action had become necessary, and the zeal and industry of Mr. Lee had ample scope. With all his might he entered upon the good work. Upon committees, in the house, every where, he was all activity. In 1776, he was again a member of the national legislature, and in obedience to the instructions of the Virginia legislature and of his own conscience, on the 7th of June of that year, he offered the resolution for the adoption of a Declaration of Independence, and enforced it by one of the most brilliant and powerful displays of refined and forcible eloquence ever exhibited by man. On the 10th of the same month he was called home by the illness of his family, which prevented him from taking his place as chairman of the committee upon his resolution agreeably to parliamentary rules. Mr. Jefferson was selected in his stead. The wrath of British power was now roused against him. During his short stay at home, an armed force broke into his house in the night, and by threats and bribes endeavoured to induce his servants to inform them where their master could be found. They persisted in affirming that he had started for Philadelphia. He was not in his house at the time, but a few miles from it with a friend.

In August he returned to Congress and most cheerfully affixed his name to that instrument which his imagination had dwelt upon for years. He served until June, 1777, when he returned to Virginia in order to confute a base slander, charging him with unfaithfulness to the American cause, in consequence of his having received rents in kind instead of continental money. He was honourably acquitted by the assembly and a vote of thanks for his valuable services was passed by that body. During the two ensuing years his health did not permit him to sit in Congress but a part of the time, but in all the vast concerns that occupied the attention of that body he took a deep interest and aided by his counsel.

The portals of military fame were now opened to Mr. Lee. The enemy, defeated in the north, made a rush upon the southern states. He was appointed to the command of the militia of his native county, and proved as competent to wield the sword and lead his men to the field of epic glory, as he was to command the admiration of his audience by his eloquence. He annoyed the operations of the enemy in his vicinity whenever they approached, and made admirable arrangements for the defence of the country under his charge. In 1780–1–2, he served in the legislature of Virginia. The propositions of making paper money a legal tender, of paying debts due to the mother country, and of raising a tax to support the clergy, or a general assessment to support the christian religion, were then before the house and excited great interest. Mr. Lee advocated them, Mr. Henry opposed them. Upon the sacredness of contracts he based his arguments in support of the two first; from the principles of ethics he drew conclusions in favour of the last. He considered good faith in the former necessary to secure peace and respect, and an adherence to the latter necessary to correct vice and purge the body politic from moral corruptions, the bane of any government. He remarked, “Refiners may weave reason into as fine a web as they please, but the experience of all times shows religion to be the guardian of morals.” He contended that the declaration of rights was aimed against restrictions in the *form* and *mode* of worship, and not against the legal compulsory support of it.

In 1784, Mr. Lee was again elected to Congress and chosen president of that body. At the close of the session he received a vote of thanks for the faithful and able performance of his duty, and retired to the bosom of his family to rest from his long and arduous public toils. Under the federal

constitution he was elected to the first senate of the United States, and fully sustained the high reputation he had before acquired. Infirmary at length compelled him to bid a final farewell to the public arena, and, with the honours of a most flattering resolution of thanks for his many valuable services, passed by the Virginia legislature on the 22nd of October, 1792, he retired to the peaceful shades of Chantilly, in his native county, covered with laurels of lasting fame. There he lived esteemed, beloved, respected and admired, until the 19th of June, 1794, when the angel of death liberated his immortal spirit from its prison of clay, and seraphs from heaven wafted his soul to realms of bliss beyond the skies, there to enjoy the rich reward of a life well spent.

Mr. Lee was a rare model of human excellence and refinement. He was a polished gentleman, an accomplished scholar, orator and statesman. In exploring the vast fields of science he gathered from them the choicest flowers and the most substantial fruits. The classics, belles lettres, the elements of civil, municipal, national and common law, and the principles of every kind of government, were all familiar to his mind. He was ardently patriotic, pure and firm in his purposes, honest and sincere in his motives, liberal and republican in his general principles, frank and open in his designs, and highly honourable in his course. As an orator the modulation of his voice, manner of action, and mode of reasoning, were a fac simile of his great prototype, Cicero, as described by Rollin.

His private character was above reproach. He possessed and exercised all those amiable qualities calculated to impart substantial happiness to those around him. To crown with enduring splendour all his rich and varied talents, he was a christian and an honest man. Whilst his dust reposes in peace let his examples deeply impress our minds and excite us to imitation.

STEPHEN HOPKINS.

Party spirit when based on selfishness, unhallowed ambition and venal corruption, is a gangrene in the body politic. Its history is red with blood—blackened by the darkest crimes, its career has been marked with all the terrific horrors that demons could plan and wicked men execute. It rides upon the whirlwind of faction; it is wafted on the tornado of fanaticism; it is fanned by fell revenge and delights in human gore. It has been the mighty conqueror of nations; its burning lava has consumed kingdoms and empires; the fairest portions of creation have been blighted by its rankling poison; countless millions have fallen by its murderous hand; and, fearful thought! its end has not yet come.

A few rare instances are recorded where parties have arrayed themselves against power, prompted alone by pure motives and elevated patriotism, guided by reason and sound policy. To be successful and not violate the laws of wisdom and justice, the leaders of a party must be men who are influenced alone by a desire to promote the general good, aiming at holy ends to be accomplished by righteous means. The brightest example of this kind spread upon the pages of history was exhibited by the sages of the American revolution. No convention of men ever assembled to consult upon a nation's rights and a nation's wrongs, graced with as much splendour of talent, sterling integrity, self-devotion and disinterested patriotism, as that of the Continental Congress of America.

Among them, the patriarch, STEPHEN HOPKINS, took a conspicuous place. He was a native of Scituate, Rhode Island, and born on the 7th of March, 1707. He was the son of William Hopkins, a respectable farmer, whose father, Thomas Hopkins, was one of the earliest settlers of that province. The juvenile education of the subject of this biographette was limited to the elementary English branches, then but superficially taught in the common schools. From that embryo beginning, he reared, from the force of his own exertions, a towering and beautiful superstructure.

Remarkably attached to books, he spent all his leisure hours in the acquisition of knowledge. A farmer in easy circumstances, he devoted a portion of the day and his quiet evenings to the improvement of his mind.

No profession not literary, affords so good a chance for mental exercise and reflection as that of agriculture. It is their own fault if the independent tillers of the soil are not enlightened and intelligent. The time was when ignorance was winked at. That dark age has passed away, and now common sense and reason command all to drink at the scholastic fountain.

Blessed with strong intellectual powers, Mr. Hopkins acquired a thorough knowledge of mathematics at an early period and became an expert surveyor. At the age of nineteen he married Sarah Scott, whose paternal great grandfather was the first Quaker who settled in Providence. After becoming the mother of seven children she died, and in 1755, Mr. Hopkins married the widow Anna Smith, a pious member of the society of Friends.

In 1731, he was appointed town-clerk, soon after which he was appointed clerk of the court and of the proprietors of the county. The ensuing year he was elected to the general assembly, and was continued for six successive years. In 1735, he was elected to the town council, and for six years was president of that body. The next year he was appointed a justice of the peace and a judge of the common plea court, and in 1739 was elevated to the seat of chief justice of that branch of the judiciary. During the intervals of these public duties he spent much of his time at surveying. The streets of his native town and of Providence were regulated by him, and a projected map made of each. The next year he was appointed proprietary surveyor for the county of Providence, and prepared a laborious index of returns of all the lands west of the seven mile line, then laid out, which still continues a document of useful reference. Beauty and precision marked all his draughts and calculations. In 1741, he was again elected to the assembly. The next year he removed to Providence, and was elected, soon after his arrival, to the same public body, and was chosen speaker of the house. In 1744, the same honour was conferred upon him, as also that of justice of the peace for Providence. In 1751, he was appointed chief justice of the superior court, and elected for the fourteenth time to the general assembly. In 1754, he was a delegate to the colonial Congress held at Albany, for the purpose of effecting a treaty with the five nations of Indians

in order to gain their aid, or at least their neutrality in the French war. A system of union similar to the confederation subsequently entered into by the Continental Congress, was recommended and submitted at that time, but was vetoed by England and not adopted by the colonies.

In 1755, when the triumphant victories of the French and their savage allies spread consternation over the frontier settlements, a requisition for troops was made by the earl of Loudoun, then commander of the king's forces. The quota from Rhode Island was four hundred and fifty, and no one was more active than Mr. Hopkins in raising them. The next year he was elected chief magistrate of the colony. In 1757, the fall of fort William Henry and the sad reverses of the English army, made it necessary that the colonists should raise an efficient force for self-protection. A company of volunteers, composed of the most respectable gentlemen of Providence, was organized and Mr. Hopkins appointed to command it. The timely arrival of troops from the mother country dispensed with the necessity of their services. The ensuing year, this useful man was again elected chief magistrate, and served as such seven out of the eleven following years.

In 1767, party spirit was rolling its mountain waves over Rhode Island so fearfully, that it threatened the prostration of social order and civil law. Anxious for the welfare of the colony, this patriotic Roman put forth his noblest efforts to check its bold career. In his message to the assembly he expressed his deep solicitude for the restoration of harmony, and offered to retire at once from the public arena, if, in the opinion of that body, it would contribute in the slightest degree to heal the political breach. To show his sincerity he soon after retired from the public service, contrary to the wishes of his friends. His picture of that era so much resembles the political drama of the present time, in some sections of our republic at least, that I cannot forbear presenting it to the reader.

“When we draw aside the veil of words and professions, when we attend to what is *done* and not to what is *said*, we shall find in the present age of our country, that liberty is only a cant term of faction, and freedom of speaking and acting, used only to serve the private interests of a party. What else can be the cause of our unhappy disputes? What other reason for the continual struggle for superiority and office? What other motive for the flood of calumny and reproach cast on each other? Behold the leading men meeting in cabals, and from thence dispersing themselves to the several

quarters, to delude and deceive the people. The people are called together in tippling houses, their business neglected, their morals corrupted, themselves deluded; some promised offices for which they are unfit, and those who have disputes with their neighbours are assured of their causes whether they be right or wrong. Those with whom these arts will not prevail, are tempted with the wages of unrighteousness, and are offered a bribe to falsify their oath and betray their country. By these scandalous practices, elections are carried and officers appointed. It makes little difference whether the officer, who in this manner obtains his place, is otherwise a good man or not; for, put in by a *party*, he must do what *they* order, without being permitted to examine the rectitude even of his *own* actions. The unhappy malady runs through the whole body politic; men in authority are not revered, and therefore lose all power to do good; the courts of judicature catch the infection and the sacred balance of justice does not hang even. All complain of the present administration, all cry out the times are hard and wish they might grow better. But complaints are weak, wishes are idle, cries are vain, even *prayers* will be ineffectual, if we do not universally amend. Will no friend, no patriot, step in and save the commonwealth from ruin? Will no good Samaritan come by and pour in the wine and oil into the bleeding wounds of his country?" Again, from his essay on the duties of freemen: "Permit me, therefore, to remind my countrymen of the blood, the sufferings, the hardships and labour of their ancestors in purchasing the liberty and privileges they might peaceably enjoy. How can they answer it to fame, to honour, to honesty, to posterity, if *they* do not possess those inestimable blessings with grateful hearts, with purity of morals, and transmit them with safety to the next generation? Nothing is desired but that every man in the community may act up to the dignity of his own proper character. Let every freeman carefully consider the particular duty allotted to him as such by the constitution; let him give his suffrage with candour for the person he sincerely thinks *best* qualified; let him shun the man who speaks to him to persuade him *how* to vote; let him despise the man who offers him an office, and spurn the sordid wretch that would give him a bribe; let him think it his duty to give his vote according to his conscience, and not depend on others to do his duty for him. Let him know that as duty is not local, so neither is capacity or fitness for office confined to this or that town or place. Officers and magistrates I would humbly entreat to consider, that their turn has arrived to serve the *commonwealth* and not themselves;

that their own discreet and exemplary behaviour is their chiefest and best authority to do good in their offices; that it is vain to command others to practise what we ourselves omit, or to abstain from what they see us do; that where moderation and example are insufficient to suppress vice, power ought to be used, even to its utmost severity, if necessary; and, above all, that justice should be, in all cases and under all circumstances, equally, impartially and expeditiously administered.”

This plain but lucid exposition of the duties of freemen, merits the highest consideration of the private citizen, the able statesman, and the profound judge. It is the effusion of a clear head, a good heart, and a noble mind. It exhibits briefly and fully, in language of unvarnished but sublime simplicity, the only sure foundation of a republican government. It strikes at the very root of alarming evils, that at this moment hang over our beloved country like an incubus. It is naked truth plainly told, and by us should be strongly felt and implicitly obeyed.

Owing to the great reputation of Mr. Hopkins as a mathematician, he was called in June, 1769, to aid in taking observations upon the transit of Venus over the disk of the sun. So highly prized were his services on that occasion, that the pamphlet published upon the subject was dedicated to him. This rare phenomenon occurred in 1739–61–69, and will occur again in 1874 and 1996, if the planetary system is not before dissolved, or changed in its primitive revolving course.

Governor Hopkins had incurred the displeasure of the British ministry previous to the revolution, by licensing vessels from Rhode Island to trade with the French and Spanish colonies. So long as it did not violate any act of parliament he continued to exercise the privilege, and disregarded the authority assumed but not delegated, of directing the local concerns of the colony. He had long been convinced that the mother country cared more for the fleece than the flock she claimed in America, which had often been left to contend alone against a merciless foe. With convictions like these upon his mind, a republican to the core, and valuing liberty above life, he was fully prepared to resist the first scintillations of the unconstitutional claims made by corrupt and corrupting ministers. When the stamp act was passed, his voice and his pen were arrayed against it. He showed clearly, that this and other acts of parliament had no foundation in justice, and were contrary to the spirit of the constitution of Great Britain. In 1772, the mountain

torrent of local party spirit having subsided in the colony, and its effervescence submerged in the more absorbing question of British oppression, Mr. Hopkins again took his seat in the assembly and continued a member for the three succeeding years. In 1774, this patriarch statesman was elected to the national Congress, and entered with a calm but determined zeal upon the responsible duties of that august convention. The same year he proposed and obtained the passage of a bill by the assembly of Rhode Island, entirely prohibiting the slave trade in that colony; and, to show that he strongly felt what he earnestly advocated, he emancipated all his negroes, some of the descendants of whom still reside in Providence. He had incorporated their freedom in his will dated some time previous.

In 1775, he was appointed chief justice of the colony, was a member of the assembly and member of Congress; holding, simultaneously, a trio of offices. The ensuing year he was one of the immortalized fifty-six by whose exertions a nation was born in a day, and who signed, scaled, and delivered the certificate of legitimacy to their grateful country. The same year he was president of the board of commissioners of the New England states that convened at Providence to consult and devise plans for the promotion of the glorious cause of freedom. The next year he presided over a similar board at Springfield, Massachusetts. In 1778, he was a member of Congress for the last time, and the next year closed his long, useful and arduous public career in the assembly of his native state, and retired covered with the rich foliage of unfading honours, the growth of nearly half a century. The proud escutcheon of his public fame and private worth was without a spot to obscure its brilliant lustre. As a municipal officer, as a judge on the bench, as a legislator in the assembly, as the chief magistrate of the colony and as a member of the Continental Congress, he discharged all his duties ably, honestly, faithfully and with a single eye to the glory of his country.

As a public speaker he made no pretensions to elocution, but was listened to with profound attention. His reasoning was strong, always to the point in question, and his speeches short. His was a vigorous, clear, inquiring, analyzing mind, that surmounted every barrier with the same fortitude, energy and determined resolution that carried Bonaparte over the Alps, Sherman to the pinnacle of fame, and Franklin to the summit of science.

He was a laborious and extensive reader and a friend to education. He was one of the principal founders of the Providence Library in 1750, and when it was destroyed by fire ten years after, he contributed largely to a new supply of books. He also framed and obtained the passage of an act to establish free schools, and did all in his power to promote the cause of literature.

He was a friend to unshackled religion, breathing charity for all whose deportment gave the impress of divine grace—the only genuine touchstone of true piety. He admired most the creed of the society of Friends, which frequently held meetings at his house. All gospel ministers were made welcome to his hospitable mansion, which was not unaptly called by some “the ministers’ tavern.” He was plain in all things and opposed to pomp and show.

In addition to his multifarious public duties, he was extensively engaged in commerce, manufactures and agriculture. He was a systematic, thorough business man, scrupulously honest, honourable and liberal. He never became wealthy, but enjoyed a competence through life. He was often placed in the crucible of domestic affliction. Of the seven children by his first wife, not one survived him. One son was murdered by the Indians, another died in Spain, and the youngest, who was the fourth sea captain of the family, was lost at sea as was supposed, his vessel having never been heard from after leaving the port of Providence.

In the relations of husband, father, kinsman, friend, gentleman, benefactor, philanthropist, Christian, neighbour and citizen, this public spirited man and pure patriot was a model of human excellence.

His eventful career was closed on the 13th of July, 1785, after enduring the course of a slow and lingering fever with the same calm fortitude that had marked his whole life. He had lived respected and esteemed; he died peaceful and happy. To the last moments of his earthly pilgrimage he retained full possession of his mental powers, and approached the confines of eternity with a seraphic smile that augured heaven. He had long laboured under physical infirmities of a nervous nature; for many years it had been difficult for him to write his name. He was interred at Providence two days after his decease.

His demise produced a mournful sensation throughout the country, and many from an unusual distance joined the numerous procession that followed his remains to the silent tomb. Let us all imitate his bright examples, that we may be useful in life, triumphant in death, and exalted beyond the grave.



ROBERT TREAT PAINE.

The love of liberty and the oppressions of those in power, first induced the pilgrim fathers to plant their standard on the granite shores of New England. They were not a band of visionary unprincipled speculators, but a band of intelligent, virtuous, pious, patriotic and enterprising citizens, who were, from the commencement, willing to risk their lives and fortunes in the cause of human rights. The early forms of government adopted by many of those infant settlements, were remarkably similar to those now in operation. The principles that actuated the patriots of the revolution were recognised and taught by many of the earliest immigrants. Although, in consequence of the charters emanating from the king, an allegiance was recognised, yet the people never intended to have those chains riveted upon them from which they had fled, nor surrender tamely the rights and privileges given them by the God of nature, and rendered more dear by years of toil and fountains of blood. To understand, appreciate, and guard these blessings, they correctly deemed *intelligence* the first grand requisite. Upon this principle they started, upon this principle they lived, and their happy example soon spread its benign influence far and wide. Hence, we find more intelligent, wise, reflecting, consistent, cool and deliberate men embarked in the cause of the American revolution than in any other recorded on the pages of history.

Holding a conspicuous place among them, was ROBERT TREAT PAINE, a native of Boston, born in 1731, of highly respectable and religious parents. His father performed the duties of a clergyman until his health became impaired, when he embarked in the mercantile business. His mother was the daughter of an eminent divine, the Rev. Mr. Treat, of Eastham. From these pious parents he received those principles of virtue that enabled him to be useful through future life. Were there no other blessings flowing from religion than its salutary influence upon the order and harmony of society, mankind would be richly paid for adhering to its principles. This consideration alone should close the *mouth* of every infidel opposer,

whatever may be the conclusions of his *mind* with reference to its origin and reality.

At an early age, Mr. Paine was placed under Mr. Lovell, a classical teacher in Boston, where his embryo talents rapidly expanded into a rich and luxuriant growth. At fourteen he became a student at Harvard College. After closing his studies at this ancient seat of learning, his parents, not only unable to aid him in business, required his assistance to render them comfortable. He, therefore, before commencing the study of a profession, employed his time for some months in teaching a public school, a business as honourable as it is useful, and which in point of dignity and compensation is now far inferior to the days of Greece and Rome. Isocrates, for a single course of lectures on rhetoric, received from one hundred of the Athenian scholars, fourteen thousand eight hundred dollars. No wonder the ablest talents were employed in advancing literature in classic Greece.

Mr. Paine continued this business at intervals, which enabled him to contribute to the support of his worthy parents and a maiden sister, whose healths were impaired, and also to pursue the studies of his profession. He commenced the study of theology, but ultimately read and entered upon the practice of law. He first appeared at the Boston bar, and from there removed to Taunton, in the county of Bristol. He there acquired a firm and substantial eminence as an acute, sound and discreet lawyer and able advocate. He enjoyed the confidence and esteem of his numerous acquaintances. He was among the earliest patriots who opposed the innovations of the crown and boldly advanced liberal principles. He was a member of the conventions of 1768, called by the citizens of Boston, to take measures for the preservation of their sacred rights, and which Governor Bernard vainly attempted to disperse before they completed their deliberations.

He was employed, at the instance of Samuel Adams, by the people of Boston to conduct the prosecution against Captain Preston, for ordering his men to fire upon the populace on the 5th of March, 1770, which duty he discharged with great zeal and ability. During the gathering storm of the revolution, Mr. Paine was uniformly upon the important committees of the people, and many of the boldest resolutions that were adopted at the meetings and conventions of that trying period were from his pen. In 1773, he was chosen a representative to the general assembly, and was one of the

members who conducted the impeachment of Peter Oliver, chief justice of the province, who was accused of acting under the direct influence of the crown instead of the assembly. In this trial, Mr. Paine manifested strong talent, and showed himself master of his profession.

In 1774, he was again elected to the assembly, and boldly warned the people against the dangers to be apprehended from the appointment of Governor Gage to succeed Governor Hutchinson. It was plainly seen that the designs of the British ministry were to be enforced at the point of the bayonet. An awful, an alarming crisis was approaching. A committee, larger than at any previous time, was convened at Boston, which advised and proposed the plan of a General Congress. Governor Gage sent a messenger with an order for them to disperse, to whom they refused admittance until they finished their deliberations, which resulted in the appointment of five delegates, one of which was Mr. Paine, to meet those from the other colonies at Philadelphia. This measure originated in Massachusetts, and had been proposed as early as 1765, and was strongly urged in a circular three years after. The set time had now arrived—the galling yoke had become painful—and the colonies generally acceded to the proposal. The ostensible object in convening this Congress was, not to effect a separation, but to obtain a relaxation of the severities imposed by the crown. It is believed a large majority of the members when they assembled had never contemplated a declaration of independence; but among them were bold and ardent spirits, noble and patriotic hearts. As one of those, Mr. Paine stood conspicuous. Their language continued to be respectful to the crown, but their chartered rights they were determined to defend and protect. They did not attribute their sufferings to a bad heart in their king, but to the ambitious avarice of a corrupt ministry. Their proceedings were calm as a summer morning, but firm as the rock of ages. They appealed to their sovereign, to the British nation, to the American people, and to a gazing world for the justice of their claims and the equity of their demands. But to Britain they appealed in vain. The cords of coercion were drawn with a stronger hand—their remonstrances and petitions were answered by legions of foreign soldiers in all the panoply of war—and servile submission or open resistance were the only alternatives left. Mr. Paine was also a member of the Provincial Congress of Massachusetts, convened at Concord, in October, 1774, and was the principal in preparing a spirited address to the people of England, which did much to open the eyes of many in the mother

country, and rouse the colonists to a just sense of the injuries of the British parliament.

The following year he was again elected a member of the Continental Congress, and was placed upon many important committees. He was as indefatigable in his labours as he was zealous in the cause of human rights. He was chairman of the committee for the encouragement of the manufacture of arms and for furnishing the army. He used to say, "I fear we shall become slaves, because we are not industrious enough to be free."

Mr. Paine was appointed on the committee to prepare a constitution for Massachusetts, and has the credit of framing that instrument. He was again elected to Congress, and in April, 1776, was appointed on a committee with Messrs. Jefferson and Rutledge to report rules to govern Congress in their deliberations, and upon the committee to inquire into the causes of the disasters of the campaign in Canada.—When the glorious 4th of July, 1776, dawned upon Columbia's sons like smiling heaven, and the eagle of LIBERTY soared in peerless majesty over their blood-stained soil, Mr. Paine was at his post. With a buoyant heart and a firm hand he affixed his name to that matchless instrument which is a terror to tyrants and the pride of freemen. He did much to rouse his friends to action by his letters, which he poured upon them in the most happy style. In his native state he stood on the pinnacle of fame—in the national legislature he was universally esteemed. He was still continued a member of Congress, and, when he could be spared, took a part in the legislative proceedings of Massachusetts. In 1777, he was speaker of the House of Representatives, and the same year was appointed attorney-general, by the unanimous vote of both branches of the legislature. He was a prominent member of the committee who formed the "regulating act" reducing the price of labour, goods, &c. to a standard of equality. In 1779, he was elected a member of the executive council, which, in conjunction with his other appointments, imposed upon him constant and arduous duties. At the adoption of the constitution, he was re-appointed attorney-general of his native state, and continued in that office until 1790, when he declined, in order to pursue some more lucrative business that he might provide for the wants of a large and destitute family. He had been a faithful public servant and had expended all but a bare and scanty support in the cause of his country.

He was then appointed a judge of the superior court, which situation he held until 1804, when his health compelled him to resign. He discharged the duties of this office with great justice and ability, and did much to advance the interests of religion, social order and a sound state of society. On his resignation, he was elected a counsellor of the commonwealth, and continued to impart his salutary advice and influence to his fellow-citizens until death closed his career on the 11th of May, 1814, when, calm and resigned, he fell asleep in the arms of his glorious Redeemer, reposing full confidence in His merits, and possessing a full assurance of a welcome entrance into realms of transcendent bliss beyond the skies, there to enjoy the rich reward of a crown of unfading glory through the rolling ages of eternity.

In the life of Judge Paine, we have a picture which the christian, the patriot, the legislator, and the statesman, may contemplate with pleasure and delight. From the stations he occupied as the prosecutor for the commonwealth, and as the administrator of its laws, he obtained the reputation amongst some of being harsh, but no one dared to accuse him of injustice. His integrity was above the reach of slander. From his solicitude to confine a wayward son in the paths of rectitude, he was accused of being unkind to his family, an accusation as false as the heart was base that originated it. To his family he was all kindness and affection. No stronger proof need be adduced than his extreme anxiety for their welfare and usefulness. He was a friend to literature, and the founder of the American Academy of Massachusetts in 1780. The degree of LL.D. was conferred upon him by the Cambridge University. He was a striking example of the happy results of perseverance and industry, having acquired his fame without the aid of patronage in early life, rising by his own exertions, unaided by any, and administering to the comfort of his aged and destitute parents. His career in public and private life was marked with the purest integrity, the strictest morality, the utmost consistency and the noblest patriotism. His life was a continued round of usefulness; his labours were a blessing to mankind; his death was surrounded by a sacred purity that reached from earth to heaven—his examples will be held in veneration by the great and good to the remotest period of truth-telling time.

GEORGE TAYLOR.

A purely confederate republican government to answer fully its beautiful theory, must be healthful and sound in all its parts, and be wielded by enlightened rulers whose hearts are free from all guile, whose judgments are strong and matured, whose characters are in all respects irreproachable, whose conduct is in all things consistent, whose patriotism and virtue extinguishes self and soar above all temptation to digress from the most exalted honesty and rigid moral rectitude, whose minds are stored with useful knowledge and large experience, and whose souls are imbued with wisdom from above.

In such a condition and in such hands this kind of government is calculated to elevate the mental powers of man, to spread before the mind correct and liberal principles, and to promote social order and general happiness by extending its radiant light, its genial rays and its benign influence to the remotest bounds of the inhabited globe. In such a condition and in such hands it would become the solar fountain of intellectual improvement, the polar star of expanding science, and a shining light to the human family. Its refulgent beams would enrapture the ignorant, the oppressed, and the forlorn—its harmonious links would form a golden chain that would reach the confines of earth. It would be a messenger of peace, pointing and inviting the weary pilgrims of bondage in every clime to a reposing asylum of peaceful and quiescent rest. This is the kind of government intended by the sages of the American revolution—this is the kind of government they desired to form and perpetuate.

Among those who laid the foundation and commenced the superstructure of our admired and expanding republic was GEORGE TAYLOR, a native of Ireland, born in 1716. His father was a clergyman and bestowed upon him a good education. He then placed him with a physician, under whose direction he commenced the study of medicine. Not fancying the idea of becoming a son of Æsculapius he flew the course, and finding a

vessel bound for Philadelphia and ready to sail, without consulting his friends and without money, he entered on board as a redemptioner. Soon after he arrived in this country his passage was paid by Mr. Savage, of Durham, Bucks county, Pennsylvania, a few miles below Easton, for which he bound himself as a common labourer for a term of years. This gentleman was the owner of iron works where he lived, and assigned to his new servant the station of *filler*, his business being to throw coal into the furnace when in blast. He soon found this work to differ widely from that of handling books and the pen. His hands became cruelly blistered, but being resolute and ambitious to gain the approbation of all around him, he persevered without a complaint. The workmen, observing his condition, named the circumstance to Mr. Savage, whose humanity induced him to provide some less laborious employment for the young foreigner. On conversing with him he discovered his intelligence, education and talents, and immediately promoted him to clerk in the counting room of the establishment. He proved fully competent to his new situation, and gained the friendship and esteem of all around him. Nor did he neglect the improvement of his mind. He applied to practical use the theories he had acquired at school. His reflecting and reasoning powers became developed. He made himself familiar with the formula of the business, the customs and the government of his adopted country. He became esteemed for his correct deportment, and admired for his clearness of perception and soundness of judgment. To add to his importance in society, the wife of Mr. Savage became a widow and was subsequently married by Mr. Taylor, by which he became sole proprietor of a large property and the husband of a worthy and influential woman. By persevering industry and good management he continued to add to the estate constantly, and in a few years purchased a tract of land on the bank of the Lehigh, in Northampton county, upon which he built a splendid mansion and iron works, and made it his place of residence. He was not prospered in business at his new location, and at a subsequent period removed back to Durham. During his residence in Northampton county he became extensively and favourably known, and in 1764, was elected to the provincial assembly at Philadelphia, and took a prominent part in its deliberations.

He had not been an idle spectator or careless observer of passing events or of subjects discussed. He had examined the principles upon which various governments were predicated, and became enraptured with the

federal republican system. He had watched, with a freeman's eye, the increasing advances of British oppression. He was too patriotic and too bold to tamely submit to the yoke of bondage. So well was he then known as a discerning and discreet man, that he was placed upon the important committee of grievances. He also took a bold stand against the corruptions of the proprietary government, and advocated strongly an alteration of the charter, so that speculation should be diminished and abuses corrected.

The ensuing year he was again elected to the assembly, and was one of the committee that prepared the instructions of the Pennsylvania delegation to the Congress that convened in New York in 1765, to adopt measures for the restoration and preservation of colonial rights. This document combined caution and respect with firmness of purpose and deliberation of action. It instructed the delegates to move within the orbit of constitutional and chartered privileges, and to respectfully but clearly admonish the king and his advisers not to transcend the limits of the same circle.

The stamp act was repealed shortly after, and Mr. Taylor was one of the committee that prepared a congratulatory address to the king on the happy event. So ably did he discharge his public duties that his name was uniformly placed upon several of the standing committees of the highest importance, assigning to him an onerous burden of legislative service. Upon the committee of grievances, assessment of taxes, the judiciary, loans on bills of credit, navigation, to choose a printer of the public laws, and others of importance the name of George Taylor was generally found and often the first. For six successive years he was constantly a member of the assembly. In 1768, he was upon a committee appointed by that body to prepare an address to the governor censuring him for a remissness in duty, in not having brought to condign punishment certain offenders who had openly and barbarously murdered several Indians, thereby provoking retaliation. It was respectful and manly, but keen and cutting as a damask blade. It was a lucid exposition of political policy, sound law, and public duty.

In October, 1775, Mr. Taylor was again returned to the assembly and added fresh laurels to his legislative fame. In addition to others he was placed upon the committee of safety, then virtually the organ of government. An awful crisis had arrived, the dread clarion of war had been sounded, American blood was crying for vengeance, the revolutionary storm had commenced, and the mountain waves of British wrath were

rolling over the colonies. Firmness, sound discretion and bold measures were required. Mr. Taylor possessed the former and promoted the latter. He stood forth a faithful sentinel in the cause of freedom, not a blazing luminary, but as solid as the granite rock. He was in favour of prudence in all things, but was not affected by the temporizing mania that at first paralyzed the action of many who desired liberty but dreaded penalties. He continued to exercise a powerful and salutary influence in the assembly of Pennsylvania until the summer of 1776, when he became a member of the Continental Congress, and sanctioned with his signature to the declaration of rights, the principles of liberty he had boldly advocated. Although Mr. Taylor did not tempt the giddy height of refined rhetoric, he knew where and when to speak, what to say and how to vote—the highest qualifications of a legislator.

In the spring of 1777, he retired from Congress and from public life, covered with the honours of a devoted and ardent patriot, an industrious and useful legislator, an enlightened and valuable citizen, a worthy and honest man. On the 23d of February, 1781, he closed his eyes upon terrestrial things, bid a final adieu to earth and its toys, and bowed submissively to the king of terrors. He died at Easton, to which place he had recently removed. From the character of Mr. Taylor the reader may learn, that without the luminous talents of a Jefferson, a Lee, or a Franklin, a man may be substantially useful and render valuable and highly important services to his country and to the world.

FRANCIS LIGHTFOOT LEE.

Virtue affords the only foundation for a peaceful and happy government. When the wicked rule, the nation mourns. Not that rulers must necessarily profess religion by being attached to some visible church—but they must venerate it, and be men of the highest moral and political honesty. Disease and corruption affect the body politic and produce dissolution with the same certainty that they prostrate the physical powers of man. If the head is disordered, the whole heart is sick. If the political fountain becomes polluted, its dark and murky waters will eventually impregnate every branch with their contagious miasma. The history of the past proves the truth of these assertions; the passing events of the present day afford too frequent demonstration of the baneful effects of intrigue and speculation. Without virtue our union will become a mere rope of sand, the victim of knaves and the sport of kings. Self-government will become an enigma with monarchs, rational liberty a paradox, and a republic, the scoff of tyrants. Let every freeman look to this matter in time. Let him look back to the sages who wisely conceived, nobly planned, and boldly laid the foundations of the freedom we now enjoy, but which cannot, will not be perpetuated unless we imitate their examples and obey their precepts. They were virtuous, many of them devotedly pious, and all of them politically honest.

Among their number the name and character of FRANCIS LIGHTFOOT LEE claims our present attention. He was the son of Thomas Lee, and born in Westmoreland county, Virginia, on the 14th of October, 1734. He was the brother of Richard Henry Lee, whose eloquence rose higher but whose reflections were no deeper than those of Francis. In childhood he was admired for his docility and amiable deportment, in youth he was the pride of every circle in which he moved, and when manhood dawned upon him he exhibited a dignity of mind and maturity of judgment that his fellow citizens highly appreciated and delighted to honour.

He was educated by the Rev. Mr. Craig, a Scotch clergyman, of high literary attainments and profound erudition. Under his tuition the germs of knowledge took deep root in the prolific mental soil of young Francis, and produced plants of a rapid and luxuriant growth. The Scotch literati are remarkable for deep investigation, thorough analyzation, and lucid demonstration. I have never met one who was a pedant, a vain pretender, or a superficial scholar. Under such an instructor the intellectual powers of Francis assumed a vigorous and solid tone that placed him upon the substantial basis of useful knowledge and enduring fame. He became delighted with the solid sciences, and spent less time in the bowers of belles lettres than his Ciceronean brother. The history of classic Greece and republican Rome enraptured his mind with the love of liberty and liberal principles. He read closely, thought deeply, and investigated fully. He prosecuted his studies with untiring industry and became an excellent scholar, without the advantages of European seminaries, to which most of the young sons of wealthy men were then sent to complete their education. Imitating the examples of his elder brothers, whose manners had received the highest polish of English gentillesse and French etiquette he became an accomplished gentleman. Raised in the midst of affluence, actuated by moral rectitude, free from a desire to participate in the follies of the world, living in the enjoyment of the refined pleasures that promote felicity without enervating the body or vitiating the heart, and a favourite among all his numerous acquaintances, his earthly happiness was of the purest kind. With a mind richly stored with scientific theory, with ethics and correct religious principles, he entered the school of experience and became emphatically a practical man. Possessed of an ample fortune he could devote his time to such objects as he deemed most useful. Having early imbibed the love of rational liberty, and having fully canvassed the conduct of the British ministry towards the American colonies, Mr. Lee resolved to oppose the encroachments of the king upon rights and privileges clearly guarantied by the constitution of the mother country. He could not consent that the trappings of the crown, the pomp of the court, the extravagance of the ministry, and the expenses of the parliament of Great Britain should be borne by the yeomanry of America, eloigned as they were from the protection and good feeling of that power—deprived as they were from being properly represented in legislation—subject as they were to the caprice of every new cabinet created by the king—threatened as they were

to be dragged from their native soil to be tried by a foreign jury—oppressed as they were by the insolence of hireling officers—and driven as they were from under the mantle of constitutional rights.

In 1765, he was elected a member of the house of burgesses to represent Loudoun county, where his estate was situated. He became an important advocate of equal rights and took a bold stand in favour of natural and chartered privileges. Blessed with a strong and investigating mind, a deep and penetrating judgment, a clear and acute perception, a pure and patriotic heart and a bold and fearless disposition, he became one of the most efficient advisers in the house. He continued to represent Loudoun until 1772, when he married the highly accomplished and amiable Rebecca, daughter of Colonel Tayloe, of the county of Richmond, where Mr. Lee then permanently located. The same year he was elected to the house of burgesses from his new district, and continued to render valuable services and exercise a salutary influence in that body until he was appointed a delegate to the Continental Congress. Amidst the gathering storm of the revolution and the trying scenes that accumulated thick and fast around him, he stood undaunted, unmoved, and undismayed. He advocated every measure calculated to promote the independence of his country, and was prolific in plans for the accomplishment of the desired object. As a member of committees he had no superior. An extensive reader, he had made himself acquainted with the principles of every form of government, and understood well the minutiae of magna charta and the British constitution. He was prepared to act advisedly and safely, and determined to resist, even unto blood, all the illegal advances of a base, designing and avaricious ministry. He made no pretensions to oratory, seldom spoke in public, but when so highly excited as to rise, he poured upon his opponents a flood of keen and withering logic that often made them quail beneath its force.

On the 15th of August, 1775, Mr. Lee was elected a member of the Continental Congress. A more expansive field was then opened before him. To do or die, to live in chains or peril every thing for liberty had become the dilemma. Columbia's soil had been stained with the blood and serum of Americans, shed by the very men who had been cherished by their bounty and fed by the labour of their hands. The dim flickerings of the hope of redress and conciliation were fast expiring in the socket of forbearance. The great seal of the social compact had been broken by the British ministry, the

last petitions, remonstrances and addresses to the king were to be prepared, and the final course to be pursued by the colonies, determined. Inglorious peace or honourable war were the two propositions. In favour of the last Mr. Lee put forth the strong energies of his mind. Eternal separation from England and independence for America could only satisfy and meet his views. Being appointed upon many important committees, his exertions to obtain this desideratum were unremitting, and his influence was strongly felt. So highly were his talents appreciated that he was often chairman of the committee of the whole. So convinced were his constituents of his ability to promote the best interests of the glorious cause of freedom, that they continued him in Congress until his retirement from the public arena in 1779 to scenes more congenial to *his* mind, but less beneficial to the deliberations of the august body he had so much benefitted.

When the proposition of final separation was submitted to Congress by his brother, his soul was animated to the zenith of patriotic feeling, and when the declaration of rights was adopted, his mind was in an ecstasy of delight. His influence, his vote and his signature, told how strong and pure were his desires in its favour. On that sacred instrument, the chart of freemen and an eye-sore to kings, the name of Francis Lightfoot Lee stands recorded—a lasting monument of his civic fame.

He rendered essential aid in framing the articles of confederation that carried the colonies through the revolution. This was a work of great labour, and underwent, besides the time bestowed upon it by the committee, thirty-nine distinct discussions in the house. He contended ardently that the rights of contiguous fisheries and the free navigation of the Mississippi river should be incorporated in the claims of the United States upon Great Britain in all propositions of peace. The wisdom and sagacity of his position is now fully demonstrated although it then met with opposition by some, and was considered as a matter of secondary importance by others.

A late writer has charged the “Lees of Virginia” with hostility towards Washington, which, unqualified as it stands, includes Francis with the rest. This hostile feeling, he asserts, arose from the sentence of the court martial in 1778, that suspended General Charles Lee from holding any commission in the American army for one year. Had the writer consulted the records of Congress he might have avoided this error. Francis Lightfoot Lee was the only one of the name in Congress at that time. The sentence was acted upon

and sanction by that body, and Mr. Lee voted in its favour. He was ever a warm friend of the illustrious Washington, and I have yet to learn that his brothers were not also. General Lee was a native of North Wales, and, excepting a short time during his youth, was not in America until 1773, and could not have had the same claims of friendship upon the “Lees of Virginia” as the father of our country. He was an accomplished and brave officer, having served in Portugal under Burgoyne, and in the army of Poland, and other places, from the time he was eleven years old until his unfortunate dereliction from orders at the battle of Monmouth. He died in Philadelphia in 1782. Another evidence that Mr. Lee held the hero of the revolution in veneration is of a later date. After the adoption of the federal constitution he was asked his opinion upon it. He answered, with an air of seriousness, “I am old and do not pretend to judge these things now, but one thing satisfies me it is all right—General Washington is in favour of it and John Warden is opposed to it.” Mr. Warden was opposed to American independence.

After he retired from Congress he enjoyed the domestic circle but for a short season. He was elected to the legislature of his native dominion contrary to his wishes, but promptly repaired to the post of public duty. After aiding in the removal of the most perplexing difficulties that embarrassed the government of the state, he again retired to the peaceful shades of private life, where he remained until April, 1797, when, calm and resigned, he obeyed the summons of the messenger of death, bid an affectionate farewell to his friends and the world, and took his departure “to that country from whose bourne no traveller returns,” triumphing in faith, rejoicing in death, with the full assurance of a crown of glory in a brighter and better world.

In public life Mr. Lee was eminently useful; his private worth and excellence shone with equal brilliancy. Always cheerful, amusing and instructive, he was the delight of every circle in which he moved. Wealthy, liberal and benevolent, he was the orphan’s father, the widow’s solace and the poor man’s friend. Kind, affectionate and intelligent, he was a good husband, a faithful companion, and a safe counsellor. Polished, urbane and gentlemanly, his examples were calculated to refine the manners of those around him. Moral, discreet and pious, his precepts had a salutary influence upon the minds of all who heard them and were not callous to good advice.

He died of pleurisy, resulting from a heavy cold, and, within a few days of each other, himself and wife were both laid beneath the clods of the valley. They had no children to mourn their loss, but their graves were moistened by the tears of numerous relatives and friends. Let the shining examples of this good man be reflected forcibly upon our minds, that our country may be benefitted by us in time, and that our final exit from earth may be peaceful and happy.

THOMAS STONE.

A man who has a just sense of the responsibilities of a high public office, will seldom seek one, unless impelled by impending dangers that threaten to injure or destroy the best interests of his country. The more clearly a modest unassuming man perceives the magnitude of a public trust, the more he distrusts his own capacity to discharge its duties, yet such a man is the very one to be safely trusted. It was with great diffidence that Washington undertook the command of the American armies, yet no one can be pointed out who possessed as fully all the requisites to meet “the times that tried men’s souls.” John Hancock quailed under his appointment as president of the Continental Congress, yet no one could have manifested more firmness in the cause of liberty, or have presided with more dignity.

It is only in times of danger that men of the *greatest* worth become *most* conspicuous. They are then *sought* out by the virtuous part of the community, and sometimes become prominent by throwing *themselves* in the breach of danger. In times of peace and prosperity, the same men may be called to the councils of a nation without exciting astonishment or unusual applause, and the names of noisy political partisans may become more extensively known and be wider spread upon the wings of venal party newspapers than theirs. It is in such times that men of the greatest merit shrink from the public gaze, and it is in such times that the canker worm of political intrigue carries on the work of destruction in the body politic. It is in times of peril that men of deep thought, cool deliberation and sterling honesty, become most prominent and receive the full reward of merit. This fact was fully demonstrated during the American revolution. Many were then called to deliberate in the solemn assemblies of that eventful era who had not been previously known as public men, and who retired as soon as the mighty work of independence was completed. They were selected in consequence of their strict integrity and sound discretion.

Of this class was THOMAS STONE, a descendant of William Stone, who was governor of Maryland during the reign of Cromwell. He was born at Pointon Manor, Charles county, Maryland, in 1743. He was well educated under the liberal and classical instruction of a Scotch clergyman, and studied the profession of law with Thomas Johnson of Annapolis. He commenced a successful practice at that place, and was held in high estimation by the community in which he lived. Modest, retiring and unassuming in his manners, an industrious man of business, a close student, a safe and judicious counsellor, he was beloved and admired for his substantial worth and sterling merit. He possessed a clear head, a sound judgment, and a good heart. His mind was vigorous, analyzing, investigating, and patriotic. He was a friend to equal rights, and delighted in seeing every person happy. He detested oppression in all its varied shades. He was kind, noble and benevolent. With feelings like these he was not a careless observer of the infringements of the Grenville administration upon the constitutional and chartered rights of his fellow citizens. When the stamp act was promulged, he was a youth in politics, but the discussions upon its odiousness deeply interested him. He was an attentive listener and a thorough investigator. His opposition to it became firm; a holy indignation pervaded his bosom and prepared him for future action. Still he avoided the public gaze. With his friends in the private circle he conversed freely, lucidly and understandingly upon the subject of American rights and British wrongs, but could not be induced to mount the rostrum of the forum and display his forensic powers until a short time before he was called by his country to deliberate in her national council.

When the Boston port bill was proclaimed, Mr. Stone surmounted the barriers of diffidence and rushed promptly to the rescue. His example had a salutary influence upon those around him. All knew that something must be radically wrong, that some portentous danger hung over the colonies when Thomas Stone was roused to public action. The influence of such men as him, in times of peril, is of the highest value. The man who is always or often a declaimer in popular meetings, must possess Demosthenean or Ciceronian powers to command attention for a long time. The cool, the reflecting, the calculating, the timid and the wavering, are operated upon as by magic, where they see such a man as was Mr. Stone go boldly forward and advocate, what to them seems a cause of doubtful expediency.

On the 8th of December, 1774, he was elected a member of the Continental Congress, and took his seat in that body on the 15th of the ensuing May. The meeting of that convention of sages had been deeply solemn and imposing the preceding year, but at that time an increased responsibility rested upon the members. The cry of blood from the heights of Lexington was ringing in their ears; the fury of the revolutionary storm was increasing; the clash of arms and mortal combat had already commenced; the vials of British wrath were unsealed, and the fabric of civil government was falling before a foreign military force. To meet such a crisis, it required the wisdom of Solomon, the patriotism of Cincinnatus, the acuteness of Locke, the eloquence of Cicero, the caution of Tacitus, the learning of Atticus and the energy of Virginius. All these qualities were combined in the Continental Congress to a degree before unknown. Mr. Stone commenced his duties with vigour and prosecuted them with zeal. He was at first trammelled by the instructions of the provincial assembly of Maryland, that body being extremely anxious that peace should be restored without recourse to arms. But the increasing oppressions of the crown eventually removed this injunction and enabled him and his colleagues to join cheerfully in all measures calculated to promote the cause of independence. He was continued in Congress until 1777, when he declined a re-election. He had been a faithful labourer in the committee rooms, and an influential member in the house. He had bestowed much thought and time upon the articles of confederation, and felt bound to remain in the public service until they were fully formed and adopted. That important work completed, he retired from the halls of Congress, carrying with him the esteem and respect of that body, the approbation of a good conscience, and the unlimited gratitude of his constituents.

In 1778, he was elected a delegate of the Maryland legislature, where he became an important and influential member. During that session, the articles of confederation that he had aided in framing the preceding term in Congress, were submitted for consideration. They met with violent opposition at first, and were the subject of warm discussion. Having been present at their formation, Mr. Stone was prepared to answer the objections raised against them by lucid, clear, logical and convincing arguments. He contributed largely in gaining for them a majority of votes in the legislature of his state.

In 1783, he again took his seat in Congress and became a highly esteemed member. Devoted to the best interests of his country, free from political ambition, honest, frank, republican and sincere in his principles, he was safely entrusted with the responsibilities of every station he was called to fill. He was present when Washington resigned his commission and retired from the field of civic glory to the peaceful shades of Mount Vernon, amidst the loud plaudits of admiring millions, and the mingled tears of joy and gratitude that stood, like pearly dew drops, on the cheeks of his countrymen and compatriots in arms.

The ensuing year closed the labours of Mr. Stone in Congress, and completed his public career. During the last session in which he served, he presided, previous to its close, as president *pro tempore*, and, had he consented to a re-election, would, as a matter of course, been chosen the next president of the national legislature. As a further mark of public esteem, he was elected a delegate to the convention of 1787 that framed the federal constitution, but having commenced a lucrative practice of law at Port Tobacco he declined the honour of serving. On the 5th of October of the same year, he was prematurely and suddenly called to the bar of God to render an account of his stewardship, and closed his eyes in death, deeply lamented by numerous friends, a grateful country, and millions of freemen. He was cut off in the prime of life, in the midst of usefulness, whilst the prospects of future honours were opening brightly before him. But he had already earned a rich and honourable fame, imperishable as the pages of history, lasting as human intelligence. From the time he was first known as a public man to the present, neither the tongue of slander nor the breath of detraction have attempted to cast a stain upon his reputation as a patriot, a statesman, a lawyer, or a private citizen. He was a rare specimen of discretion, propriety and usefulness—a true specimen of the very salt of the body politic, rendering efficient services to his country without pomp or show, and without the towering talents of a Cicero or a Demosthenes. Such men are always valuable, and may be relied upon in the hour of danger as safe sentinels to guard the best interests of our nation.

LEWIS MORRIS.

A military depotism is a national curse. Laws that require the bayonet to enforce them upon a civilized and enlightened people, are of doubtful efficacy. Moments of excitement may occur in the best organized communities, arising from some sudden local impulse, that require a show of military power and even its force; but when a little time is afforded for reflection, reason resumes her sway, the spirit of mobocracy subsides, the soldier again becomes the peaceful citizen and rests for security upon the arm of civil power. Quartersing the military among the citizens of a community, is calculated to produce numerous and serious evils. Let that military, after having enjoyed the bounty and hospitality of the citizens, be directed to *force* the execution of laws upon these citizens, oppressive in their nature and ruinous in their effects, and an indignation is roused that is increased tenfold from the circumstance of previous familiarity. Intimate friends often become the most bitter enemies. Favours forgotten and ingratitude displayed, add to the desperation of revenge.

Thus, previous to the American revolution, the military were often quartered upon, or drew their support directly from the people. The colonies had also contributed largely in money and blood to aid the mother country in conquering her most inveterate foe in America—the French in Canada. No return was asked but the enjoyment of privileges granted and secured by the British constitution. This was eventually denied. Petitions were treated with contumely—remonstrances were laughed to scorn. Then it was that a band of sages rose to vindicate the rights of their country, whose achievements have no parallel in ancient or modern history.

Among the boldest of the bold was LEWIS MORRIS, who was born at Morrisania, in the vicinity of the city of New York, in 1726. The family documents of this Morris family trace their genealogy back to Rhice Fitzgerald. Rhys or Rhice Fitzgerald was a Cambrian chieftain, who carried his military operations and conquests into Ireland during the reign of Henry

the second. By his valour and success he obtained the name Maur (great) Rhice, and the penultimate Fitzgerald was dropped, and we now find the name as we have it above. In tracing genealogy, we often find names as greatly changed as this. From this original down to the present time, the various branches of the family have been highly respectable, and have honourably filled many important stations.

Lewis was the son of Judge Morris, of the same christian name, who appears to have retained possession of the paternal estate formerly purchased by his grandfather, Richard Morris, who was a leader under Cromwell, and immigrated from Barbadoes about 1663, and purchased a large tract of land near Haarlem, on York Island. He died in 1773. He left an only son, Lewis, who was chief justice of New York, and subsequently governor of New Jersey.

After passing through his preparatory studies, Lewis entered Yale College at the age of sixteen. He became a good scholar and imbibed from the president, Dr. Clap, a permanent relish for moral and religious principles. In 1746, he took the degree of bachelor of arts, returned to his estate and became extensively engaged in agriculture. At that period the colonies were prosperous, free and happy. The mother country had not yet contemplated the imposition of burdens upon her distant children, and they were left to pursue their own course without annoyance or molestation. Then they enjoyed the fruits of their labours and reposed in peace.

In this happy retirement Mr. Morris continued to improve his farm and his mind, and by his suavity and urbanity of manners, united with moral rectitude and an honourable course, gained the confidence and esteem of all who knew him. He became the nucleus of a circle of friends of the highest attainments and respectability and was emphatically the people's favourite. His appearance was in every way commanding. A noble and graceful figure, a fine and intelligent face, an amiable and agreeable disposition, a warm and ardent temperament, a benevolent and generous heart, an independent and patriotic soul, crowned with virtue, intelligence and refinement, he was in all respects to be admired and beloved.

The time approached rapidly when colonial repose was to be plucked by the roots and wither beneath the scorching rays of British oppression. The treasury of England had been drained by extravagance and war, and her

national debt had swollen to an enormous amount. The story of prosperity and wealth in America was told to Mr. Grenville. The plan of imperious taxation was devised. The stamp act was passed. The sons of the pilgrim fathers were astonished and amazed. They loved their king, but loved their country more. Legal remedies were resorted to. A Congress was convened at New York. Able addresses to the throne and the people of Great Britain followed, breathing the purest allegiance conditioned on the restoration of constitutional rights. The stamp act was repealed, but only to give place to a more voracious and obnoxious family. In all these concerns of his country, Mr. Morris took a deep interest, and from the beginning, opposed even the approach of oppression, not at first as a leader but as an adviser. Although Massachusetts took the lead in opposition, New York made a strong show of resistance. In 1767, an act was passed by parliament compelling the people of that province to furnish the British soldiers that were quartered among them with provisions. By this order the burden fell upon certain portions of the inhabitants exclusively and not pro rata upon the whole. It was a direct invasion of personal rights and was most severely felt by the citizens of the city of New York and its vicinity. This measure brought Mr. Morris out. He publicly proclaimed it unconstitutional and tyrannical, and contributed largely towards influencing the legislature to place a veto upon it. Superior might eventually overpowered this opposition and enforced the contribution from the citizens. But spirits like that of Lewis Morris were not to be subdued. An unquenchable fire was only smothered to gather strength beneath the volcanic surface that then covered it. It was kept alive by fresh fuel added by Mr. Grenville and his more subtle successor Mr. North. The statute of Henry the eighth was revived, which doomed malecontents to be sent to England for trial; the Boston port bill, its handmaid, was passed and the cords of slavery were drawn more tightly. The last petitions and remonstrances in the magazine of patience were finally exhausted, and then it was that it was replenished with more potent materials. Mr. Morris had now become a prominent man, a bold and substantial whig, rather too ardent to send to the conciliatory Congress of 1774. But the time soon arrived when the people required just such a man, and in April, 1775, he was elected to the Continental Congress. Even then the majority attributed their sufferings to the ministers and not to the king, and still hoped he would cease to be an automaton and prove himself a man worthy of the high station he occupied. But hopes were vain, the juices of the olive branch

became absorbed by the sponge of venal power, and the virtues of the sword were next to be tried. Already had the purple current stained the streets of Boston and the heights of Lexington—already had the groans of dying Americans, slain by the hands of those whom they had fed, pierced the ears of thousands—already were widows and orphans weeping for husbands weltering in blood and fathers covered with gore. Vigorous measures of defence followed—legions of foreign troops flooded the land—a dark and gloomy hour had arrived. Soon after his appearance in Congress, Mr. Morris was placed upon a committee of which the illustrious Washington was chairman, appointed to devise measures to obtain a supply of the munitions of war. This was a desideratum not readily acquired. Comparatively a sling and a few smooth stones were all the patriots had with which to commence the combat with the British Goliath. But with all these disadvantages, the battle of Bunker Hill convinced the veterans of Europe that men determined on liberty or death were not to be tamely subdued.

Mr. Morris became an active and efficient member of the national legislature, and advocated strong measures. Although his enthusiastic patriotism bordered on what was then considered rashness, in some instances, the very path marked out by him in 1775 was the one eventually followed. He became early convinced that an honourable peace could not be obtained *under* Great Britain, and was satisfied that nothing but a triumph *over* her would restore the equilibrium of justice and chartered rights. During the interim between that and the ensuing session, Mr. Morris was one of a committee appointed to visit the frontier Indian tribes, to deter them, if possible, from enlisting under the blood-stained banner of the mother country. He also visited the assemblies of the New England states, in order to perfect plans to raise supplies and prepare for a vigorous defence. In 1776 he again took his seat in Congress, and was animated to find a spirit more congenial with his views—a determination to sever the gordian knot and proclaim an eternal separation from a nation that had held power only to abuse it. He was placed on many and important committees, and was active in and out of the house. In his native neighbourhood Mr. Morris had no easy task to perform in rousing the people to an efficient opposition. Governor Tryon, who was as wise and poisonous too as a serpent, affected to be as harmless as a dove, and exerted a powerful influence over the people of the city of New York in favour of the crown.

The commercial interests would be prostrated by a war, the inequality of the two powers rendered the success of the whigs problematical, and self interest, which was construed into self preservation, operated for a long time against the cause of liberty in that section. It required great exertions to surmount these obstacles. Mr. Morris and his friends put forth their noblest energies in the mighty work, and what *they* could not effect, British oppression and the powder and ball of General Howe soon accomplished. The able addresses that he aided in preparing and circulating among the people do great credit to his head and heart as a patriot, a statesman and a scholar. They are chaste, forcible and luminous. When the declaration of independence was proposed Mr. Morris became one of its ardent supporters. At that very time his vast estate was within the power of the enemy, and he well knew that if he signed the instrument proposed, should it be adopted, it was giving to them a deed of sale, *alias* of destruction, of all his property that was to them tangible. Most rigidly did they use the delegated authority. Even his extensive woodlands, of a thousand acres, were subjected to axe and fire, his family driven from their home, and every species of destruction resorted to that malice could invent, ingenuity design and revenge execute. But liberty was dearer to this determined patriot than earth and all its riches. He boldly sanctioned and fearlessly affixed his name to the great certificate of our national birth, and rejoiced in freedom illumined by the conflagration of Morrisania. His family and himself suffered many privations during the remainder of the war, but suffered patiently, without regret for the past and with brighter hopes for the future.

In 1777 he resigned his seat in Congress and repaired to his native state, in the legislature of which he rendered important services. He also served in the tented field and rose to the rank of major-general of militia. He was an excellent disciplinarian and contributed essentially in the organization of the state troops. In every situation he ably and zealously discharged all his duties, and never left the post of service until the American arms triumphed in victory, and the independence of his country was firmly established and acknowledged by the mother country. Then he retired to his desolated plantation, converted his sword into a pruning hook, his musket into a ploughshare, and his farm into a delightful retreat, where his friends from the city often visited him to enjoy his agreeable society, talk of times gone by, and rejoice in the consolations of blood-bought liberty. Peacefully and calmly he glided down the stream of time until

January 1798, when his immortal spirit left its frail bark of clay and launched upon the ocean of eternity in a brighter and more substantial vessel. He died serene and happy, surrounded by an affectionate family and kind friends. His remains were deposited in the family vault upon his farm, under the honours of epic fame and civic glory.

The examples of Mr. Morris illustrate the patriotism that impelled to action during the revolution in a more than ordinary degree. He had every thing that could be destroyed to lose, if the colonies *succeeded* in the doubtful struggle; and if they did not, the scaffold, or death in some shape, was his certain doom. He was, previous to the revolution, a favourite with the English; and, what was more, his brother Staats was a member of the British parliament and a general officer under the crown. But few made so great a personal sacrifice, and no one made it more cheerfully. Like Marion, he preferred a morsel of bread, or even a meal of roasted potatoes, with liberty and freedom, to all the trappings and luxuries of a king without them. So long as this kind of disinterested patriotism finds a resting place in the bosoms of Columbia's sons, our union is safe—let this be banished and the fair temple of our liberty will perish in flames kindled by its professed guardians and sentinels.

JOHN HART.

Agriculture, of all occupations, is the one best calculated to rivet upon the heart a love of country. No profession is more honourable, but few are as conducive to health, and, above all others, it insures peace, tranquillity and happiness. A calling more independent in its nature, it is calculated to produce an innate love of liberty. The farmer stands upon a lofty eminence and looks upon the bustle of mechanism, the din of commerce, and the multiform perplexities of the literati, with feelings of personal freedom unknown to them. He acknowledges the skill and indispensable necessity of the first, the enterprise and usefulness of the second, and the unbounded benefits flowing from the last; then turns his thoughts to the pristine quiet of his agrarian domain and covets not the fame that accumulates around the other professions. His opportunities for intellectual improvement are superior to the two former, and, in many respects, not inferior to the latter. Constantly surrounded by the varied beauties of nature and the never-ceasing and harmonious operations of her laws, his mind is led to contemplate the wisdom of the Great Architect of worlds and the natural philosophy of the universe. Aloof from the commoving arena of public life, and yet, through the medium of that magic engine, the PRESS, made acquainted with the scenes that are passing there, he is able to form cool and deliberate conclusions upon the various topics that concern his country's good and his country's glory. In his retired domicile he is less exposed to the baneful influence of that corrupt and corrupting party spirit which is raised by the whirlwind of selfish ambition and wafted on the tornado of faction. Before he is roused to a participation in violent public action, he bears much, reflects deeply and resolves nobly. But when the oppressions of rulers become so intolerable as to induce the yeomanry of a country to leave their ploughs and peaceful firesides, and draw the avenging sword, let them beware—the day of retribution is at hand. Thus it was at the commencement of the American revolution—when the implements of husbandry were exchanged for those of war and the farmers joined in the

glorious cause of liberty—the fate of England’s power over the colonies was sealed for ever. The commingling phalanx of all professions was irresistible as an avalanche in the full plenipotence of force.

Among the patriots of that eventful era who left their ploughs in the furrow and rushed to the rescue, was JOHN HART, a native of Hopewell, Hunterdon county, New Jersey, born about the year 1715. The precise time of his birth is not a matter of record, but his acts in the Continental Congress are. He was the son of Edward Hart, a brave and efficient officer, who aided the mother country in the conquest of Canada, and participated in the epic laurels that were gained by Wolfe on the heights of Abraham. He raised a volunteer corps, named it the “Jersey Blues,” an appellation still the pride of Jerseymen. He fought valiantly, and was recompensed by the *praise*, but not the *gold* of the mother country. John Hart was an extensive farmer, a man of a strong mind, improved by reading and reflection, and ambitious only to excel in his profession. In Deborah Scudder he found an amiable and faithful wife, and in the affections and good conduct of a liberal number of sons and daughters he found an enjoyment which some bachelors may affect to despise, but for which they often sigh in vain. Eden’s fair bowers were pleasureless until Heaven’s first best gift to man was there.

Known as a man of sound judgment, clear perception, liberal views and pure motives, Mr. Hart was called to aid in public affairs long before the revolution. For twenty years he had served in various stations, and was often a member of the legislature of his native colony. He took a deep interest in the local improvements, always necessary in a new country, and also in the legislative enactments of that period. He was a warm supporter of education and aided in the establishment of seminaries of learning. He was a friend to social order and law, and contributed largely in producing an equilibrium of the scales of justice. In organizing the municipal government of his own county he rendered essential service. Still his family and his farm were his chief delight—save his orisons to Heaven. He viewed all public business as a duty to be performed when required, not as a political hobby-horse to ride upon. The public men of that day spoke but little, and then to the point, and despatched their business promptly. Sinecures were scarce, and office hunters few and far between. Industry, frugality and economy, in public and private matters, were the marked characteristics of

the pilgrim fathers. Golden days! when will ye return in the majesty of your simplicity, and banish from our land the enervating follies, the poisonous weeds and the impugning evils that augur its destruction.

Observing and discerning, Mr. Hart was quick to discover the encroachments of the British ministry upon the constitutional rights and chartered privileges of the colonies, and was prompt in resisting them. The stamp act, passed on the 22nd of March, 1765, was followed by a commotion that showed by what a precarious tenure the king held his power in America. When the Congress convened at New York, on the first of October following, represented by nine of the colonies, Mr. Hart was a member of the convention that made the selection of delegates from New Jersey. The firm and discreet proceedings of that body produced a repeal of the act complained of on the 18th of the following March. Still the political alchemist, Mr. Grenville, was madly bent on trying fresh experiments. The colonists had borne the yoke of restrictions upon their trade and industry, which had been artfully and gradually increasing for more than fifty years, to the advantage of the mother country, and he concluded their necks had become sufficiently hardened by long use to bear a more ponderous burden. Poor fellow! he was as much mistaken in the metal he placed in his crucible as the colonists were amazed and indignant at his unwarranted pretensions. Direct taxation, without representation, was taking an issue not warranted by the *præcipe* or *narr*, and a general demurrer was promptly entered. An *emparlance* ensued, replications and rejoinders followed, and the suit was finally decided by wager of battle. Long and doubtful was the struggle—obstinate and bloody was the conflict. The second edition of the revenue plan, revised and stereotyped in 1767 by Charles Townshend, chancellor of the exchequer, imposing duties on glass, paper, paste-board, tea and painters' colours, kindled a flame of indignation in the colonies that no power could quench. Public meetings against the measure, resolutions of the deepest censure, remonstrances of the strongest character, and arguments of the most conclusive logic, were hurled in its face; and to carry conviction to the minds of the ministry that the people were in earnest, Boston harbour was converted into a tea-pot and all the tea used at one drawing. Non-importation agreements, committees of safety, preparations of defence, non-intercourse, bloodshed, war and independence followed. In all these movements Mr. Hart concurred, and deliberately, but firmly, opposed the encroachments of the crown.

In 1774 he was elected to the Congress at Philadelphia, and, with the frost of sixty winters upon his head, entered upon duties of higher importance than had before devolved upon him. Mild, deliberate, cautious, discreet, but firm in his purposes, he became an important member to aid in carrying out the measures then contemplated—those of reconciliation and a restoration of amity. He was highly esteemed as a patriarch sage in the cause. The ensuing year he was again elected, and repaired to the post of duty, of honour and of fame, on the 10th of May. The cry of blood, shed on the 19th of the preceding April, had infused a spirit in Congress widely different from that which pervaded it a few months before. It was then that the Roman virtues of such men as Mr. Hart shone with peculiar splendour. The impetuosity of youth had passed away, their minds traced the deepest, darkest avenues of every proposition, arguments were weighed in the balance of reason, the causes, the effects, the objects, the ends, the plans, the means, were all placed in the scale of justice and exhibited to the inspection of those whose disposition led them to an examination. In this manner every act was performed with clean hands, the cause of liberty honoured, prospered and crowned with triumphant success. At this time Mr. Hart was also a member and vice-president of the assembly of his native colony, and shortly after, had the proud satisfaction of aiding in its funeral obsequies and in establishing a republican form of government. On the 14th of February, 1776, he was again elected to the Continental Congress, and when the chart of liberty was presented to his view, after carefully examining its bold physiognomy, he pronounced its points, its features, its landmarks, its delineations and its entire combination, worthy of freemen—gave it his vote, his signature and his benediction, and soon after retired from the public gaze and declined a re-election. As he anticipated, the British soldiers devastated his farm, drove away his family, destroyed his property, and compelled him, several times, to fly precipitately to save his neck from the halter. Under circumstances like these, no one will doubt the disinterested patriotism of the quiet farmer, JOHN HART. Not a stain rests upon his public or private character. In all the relations of life he performed his duty nobly. He was an honest man and devoted christian, a member of the baptist denomination, and died in 1780, from an illness brought on by exposure in flying from place to place to elude the pursuit of the British.

BUTTON GWINNETT.

Inconsistency is an incubus that assumes a thousand varied forms, and in some shape hangs over every nation and most individuals. It is human nature to err, but some errors there are, that, in the view of reason and common sense, are so legibly stamped with inconsistency as to enable every man of a sane mind to avoid them. Yet we often see men of high attainments rush into the whirlpool of inconsistency with a blind infatuation that seeks in vain for a justification, even by the rules of the most acute sophistry. Among the most fallacious and opprobrious inconsistencies that now hang over our nation is that of duelling. We boast of our intellectual light and intelligence, and mourn over the ignorance of the poor untutored Indian. In his turn he may point us to a dark spot upon our national character that never tarnished the name of an eastern or a western savage. This Bohon Upas of inconsistency thrives only in society that claims to be civilized. In no country has it been as much and as long tolerated without condign punishment as in our own. It is murder of the most deliberate kind, and a violation of the laws of God and man. Has any one of these numerous and blood-thirsty murderers, who walk boldly among us, ever been punished to the extent of the offended laws of our country? Not one. Widows may mourn, orphans languish, hearts bleed, and our statesmen perish, and the aggressor may still run at large, treated by some with more deference than if the escutcheon of his name was not stained with blood. This foul stigma upon the American name should be washed out speedily and effectually. The combined powers of public opinion, legislative, judicial and executive authority, should be brought to bear upon it with the force of an avalanche. Flagrant crimes are suppressed only by strong measures. This is the acknowledged policy of the penal code of every nation where laws are known and respected.

Among the victims of this cruel practice, was Button Gwinnett, a man of splendid talents and a pure patriot of the revolution, whose private character was without a stain, and his public career as brilliant as it was

transient. He was born in England in 1732. His parents were respectable, but not wealthy. Being a boy of promise, they bestowed upon him an accomplished education, and at his majority he commenced a successful career in the mercantile business at Bristol, in his native country. He was commanding in appearance, six feet in height, open countenance, graceful manners, and possessed of fine feeling. Surrounded by an increasing family, he resolved on seeking another and a broader country, and in 1770 embarked for America. He landed at Charleston, S. C., where he commenced commercial business and remained two years. He then disposed of his merchandise and purchased a plantation upon St. Catharine's Island, in Georgia, to which he removed and became an enterprising agriculturalist. He was a man of an active and penetrating mind, and a close observer of passing events. Having been in England during the formation of the visionary and impolitic plan of taxing the colonies, he understood well the frame work of the British cabinet, and from his course in the struggle that ensued, it is reasonable to infer that he had imbibed strong whig principles before his removal to this country. The subject of raising a revenue from the pioneers of the new world had been long and ably discussed in England. Many of her profoundest statesmen, and the most sagacious one that ever graced her parliament, lord Chatham, portrayed with all the truth of prophecy, the result of the unjust, the blind course of ministers towards the Americans. Connected with commerce and intelligent men as he was at Bristol, Mr. Gwinnett had become well informed upon the litigated points in controversy, and was well acquainted with the relative feelings and situation of the two countries. When the question of liberty or slavery was fairly placed before the people of his adopted land, he declared himself in favour of the latter. Knowing as he did the superior physical force of Great Britain and the comparative weakness of the colonies, their freedom, at first, seemed to him a paradox. His doubts upon the subject were removed in 1775, by the enthusiasm exhibited by the patriots, and by the lucid demonstrations of Lyman Hall, a bold and fearless advocate of equal rights, with whom he became intimate. Convinced from the beginning of the justice of the cause, and now convinced of its feasibility, he soon became a public champion in its favour. He had counted the cost, he had revolved in his mind the dangers that would accumulate around his family, himself and his property, which he truly predicted would be destroyed by his enemies, and had deliberately and nobly resolved to risk

his life, his fortune and his sacred honour, in defence of chartered rights and constitutional franchises.

He enrolled himself among the leaders of the popular party and became a conspicuous and active member of public meetings, and of the several revolutionary committees. For some time after the other colonies had united in a concert of action against the common enemy, that of Georgia refused to join them. She stood perched upon the pivot of uncertainty, indeterminate, irresolved and doubting. Some of her noblest sons had become shining lights in the glorious cause, the fire of patriotism was extending, oppression was increasing, and, at length, the cry of blood was heard from Lexington. The work was done. Like a lion roused from his lair, Georgia started from her lethargy and prepared for the conflict. She resolved "to do or die."

On the 2nd of February, 1776, Mr. Gwinnett was appointed a member of the Continental Congress, and took his seat in that venerable body on the 20th of the ensuing May. Although his constituents were now determined to maintain their rights at all hazards, the plan of independence was to the most of them more than problematical; a thing of visionary fancy, merely ideal, and not to be hoped for, much more not to be seriously attempted. The subject, however, gained new strength daily, and began to emerge from its embryo form. At this juncture, the Rev. Mr. Zubly, a colleague with Mr. Gwinnett, with an Iscariot heart, wrote a letter to the royal governor of Georgia, disclosing the contemplated measure, a copy of which was in some way obtained by one of the clerks and placed in the hands of Mr. Chase, who was proverbial for boldness, and who immediately denounced the traitor on the floor of Congress. The Judas at first attempted a denial by challenging his accuser for the proof, but finding that the betrayer had been betrayed, he fled precipitately for Georgia, in order to place himself under the protection of the governor, who had just escaped from the enraged patriots and was safely ensconced in a British armed vessel in Savannah harbour, and could render him no aid on terra firma. He was pursued by his colleague, Mr. Houston, but upon the wings of guilt he flew too rapidly to be overtaken.

When the proposition came before Congress for a final separation from the mother country, Mr. Gwinnett became a warm advocate of the measure, and when the trying hour, big with consequences, arrived, he gave his approving vote and affixed his signature to the important document that

stands acknowledged by the civilized world the most lucid exposition of human rights upon the records of history—the Declaration of American Independence.

In February, 1777, Mr. Gwinnett took his seat in the convention of his own state, convened for the purpose of forming a constitution and establishing a republican form of government. His activity in Congress, to which he stood re-elected, had already given him great weight, and he at once exercised a powerful influence in his new situation. He submitted the draft of a constitution which, with a few slight amendments, was immediately adopted by the convention. Shortly after this he was elevated to the presidency of the provincial council, then the highest station in the state, thus rising within a single year from private life to the pinnacle of power in the colony. At this time an acrimonious jealousy existed between the civil and military authorities. At the head of the latter was General M'Intosh, against whom Mr. Gwinnett had pitted himself the preceding year, whilst in Congress, as a candidate for brigadier-general, and was unsuccessful. His elevation and influence became a source of uneasiness to his antagonist. The civil power claimed the right to try military officers for offences that General M'Intosh conceived were to be tried only by a court-martial. Another root of bitterness between these two gentlemen took its growth from the promotion of a senior lieutenant-colonel, then under General M'Intosh, to the command of his brigade, destined for the reduction of East Florida, agreeably to a plan formed by Mr. Gwinnett, which proved a disastrous failure. This was a source of mortification to the one, and the other publicly exulted in the misfortune. Under the new constitution a governor was to be elected on the first Monday of the ensuing May, and Mr. Gwinnett offered himself as a candidate. His competitor was a man whose talents and acquirements were far inferior to his, but succeeded in obtaining the gubernatorial chair. General M'Intosh again publicly exulted in the disappointments that were overwhelming his antagonist—a challenge from Mr. Gwinnett ensued—they met on the blood-stained field of *false* honour—fought at the distance of four paces—both were wounded, Mr. Gwinnett mortally, and died on the 27th of May, 1777, the very time he should have been in Congress. Comment is needless—reflection is necessary.

WILLIAM ELLERY.

The sacredness of contracts honourably and fairly entered into by parties competent to make and consummate them, should be held in high veneration by all. The individual and the social compact from the co-partnership of the common business firm up to the most exalted nation, are bound by the laws of God, of man and of honour to keep inviolate their plighted faith. A deviation from the path of rectitude in this particular, is uniformly attended with evil consequences and often with those of the most direful kind. The party that violates its engagements without accruing causes of justification, and to advance its own interests regardless of those of the other, comes to court with a bad cause. I have repeatedly remarked, that the American revolution was produced by a violation on the part of the mother country of chartered rights secured to the colonists by the crown under the British constitution.

To enter into a full exposition of the relations between the two high contracting parties, would require more space than can be allowed in this work. A reference to some of the prominent points in a single charter, will give the reader an idea of the nature of the whole as originally granted, although some of a later date are rather more limited in their privileges than that of Rhode Island, to which I refer.

This charter secured religious freedom, personal liberty, personal rights of property, excluding the king from all interference with the local concerns of the colony and was virtually democratic in its features. One of the early acts of parliament, referring to Rhode Island, contains the following language. "That no person within the said colony at any time hereafter shall be in any way molested, punished, disquieted, or called in question for any difference of opinion in matters of religion that does not actually disturb the civil peace of the said colony." The feelings of the inhabitants from the time they received their charter up to the time oppressions were commenced by Great Britain, may be inferred from the following extract taken from the

ancient records of the secretary of state of that province addressed to the king. "The general assembly judgeth it their duty to signify his majesty's gracious pleasure vouchsafed to us," &c.; and also from the following extract of a letter written at a later period to Sir Henry Vane then in England. "We have long drunk of the cup of as great liberties as any people we can hear of under the whole heavens. We have not only been long free together with all English from the yokes of wolfish bishops and their popish ceremonies, against whose grievous oppressions God raised up your noble spirit in parliament, but we have sitten down quiet and dry from the streams of blood spilt by war in our native country. * * * We have not known what an excise means. We have almost forgotten what tythes are, yea, or taxes either to church or common weal." In addition to other declaratory acts of parliament, sanctioning and construing chartered privileges generally in all the colonies, one was passed in March, 1663, involving the very hinge upon which the revolution turned, as the following extract shows. "Be it further enacted, *that no taxes shall be imposed or required of the colonies, but by the consent of the general assembly,*" meaning the general assembly of each colony separately and collectively. This single sentence of that act, based upon the British constitution and guarded by the sanctity of contracts that could not be annulled but by the mutual consent of the high contracting parties, solves the whole problem of the revolution. Living as the colonists did in the full enjoyments of these chartered privileges which had become matured by the age of more than a century, they would have been unworthy of the name of men, had they tamely submitted to their annihilation. To the unfading honour of their names let it be said—*they did not submit*. A band of sages and heroes arose, met the invaders of their rights, and drove them from Columbia's soil.

Among them was WILLIAM ELLERY, a native of Newport, Rhode Island, born on the 2nd of December, 1727. His ancestors were from Bristol, England. He was the son of William Ellery, a graduate of Harvard College and an enterprising merchant, who filled many public stations, among which were those of judge, lieutenant-governor, and senator. Delighted with the docility of his son, he became his instructor and superintended his studies preparatory to his entrance in college. After these were completed, William entered Harvard College and became a close and successful student. He became delighted with the Greek and Roman classics and dwelt with rapture upon the history of the ancient republics. So great was his

reverence for the ancient authors, that he continued to be familiar with them during his whole life, and became a lucid philologist in classic literature. At the age of twenty he took the degree of bachelor of arts, and then commenced the study of law. In that laborious field he was all industry and diligence, and was admitted to practice with brilliant prospects before him. Located in one of the pleasantest towns on the Atlantic, surrounded by a large circle of friends who desired his success, blessed with superior talents, improved by a refined education, esteemed by all who knew him, his situation was truly flattering. He possessed an agreeable and amiable disposition, a strong mind, enlivened by a large share of wit and humour, an urbanity of manners of a refined and polished cast, and an animation and life in conversation that dispelled ennui from every circle in which he moved. He was of the middle stature, well formed, with a large head, an intelligent and expressive countenance, moderate in his physical movements, and with all his vivacity generally wore a grave aspect. He was temperate, plain, and uniform in his habits and dress, and could seldom be induced to join in the chase after the *ignus fatuus* of fashion. For many years before his death, his wardrobe bespoke a man of another generation.

Mr. Ellery commenced business in his profession at his native town, took to himself a wife, soon became eminent and obtained a lucrative practice. He was highly honourable in his course and gained the confidence of his fellow citizens and of the courts. Up to the time of the commencement of British oppression, his days passed peacefully and quietly along and a handsome fortune accumulated around him. When the revolutionary storm began to gather, the mind of Mr. Ellery became roused and a new impetus was given to his physical powers. His townsmen were the first among the colonists who had dared to beard the lion and unicorn. On the 17th of June, 1769, in consequence of the oppressive conduct of her captain, the revenue sloop Liberty, belonging to his Britannic majesty, and then lying at Newport, was forcibly seized by a number of citizens in disguise, who cut away her masts, scuttled her, carried her boats to the upper part of the town, and committed them to the flames under the towering branches of a newly planted liberty tree. This was a hard cut and thrust at the revenue system that contemplated taxing the colonies contrary to the letter of the constitution and charters granted by the laws of England. This act was followed by another on the 9th of June, 1772, in which blood was spilt—that of seizing and burning the British schooner Gaspee. This

was made a pretext for more severe measures on the part of the hirelings of the crown, and a disfranchisement of the colony was recommended and urged upon parliament. Already was the revolutionary ball in motion. In the midst of these turmoils, Mr. Ellery was not an idle spectator. He declared for the cause of liberty and the preservation of those rights that had become sacred by age and had the high sanction of the laws of nature, of man, and of God. In 1774, he was warmly in favour of the project of a general Congress, and, in conjunction with Governor Ward, who was a delegate with Mr. Hopkins to that august assembly, approved of a suggestion already made in a letter from General Greene, "that the colonies should declare themselves independent." The same spirit soon became general in the province.

In 1776, Mr. Ellery was elected a member of the Continental Congress, and proceeded to the post of duty boldly and fearlessly, left by his constituents to act as free as mountain air. He had participated in all the incipient measures of the conflicts in his own colony, he now became a vigorous and active patriot of the national legislature. He was fully prepared to sanction, and well qualified to advocate the Declaration of Independence. An agreeable speaker, master of satire, sarcasm, logic, and philosophy, he exercised a salutary and judicious influence. He was an able member of committees and was immediately placed upon some of great importance. He was upon the committee for establishing expresses, upon that for providing relief for the wounded and disabled, upon that of the treasury, and upon the committee of one delegate from each state for the purchase of necessaries for the army. He was also upon the marine committee, and was a warm advocate for the navy. His constituents were many of them bold mariners, and he felt a just pride in referring to his fellow-citizen, commodore Ezek Hopkins, of Rhode Island, as the first commander of the little fleet of the infant Republic. It was him who took New Providence by surprise, seized a large amount of munitions of war, one hundred pieces of cannon, and took prisoners the governor, lieutenant-governor, and sundry others of his majesty's loyal officers. When the time arrived for the final question upon that sacred instrument which was to be a warrant of death or a diploma of freedom, Mr. Ellery was at his post, and most cheerfully gave it his sanctioning vote and approving signature. With his usual vivacity, he placed himself by the side of Charles Thomson, the secretary, for the purpose of observing the apparent emotions of each member as he came up

and signed the important document. He often recurred to this circumstance in after life, and observed, that “undaunted resolution was displayed in each countenance.” He was continued a member of Congress until the close of the session of 1785, which shows how highly his services were valued by the patriotic citizens of his native state. In 1777, he was one of the important committee of admiralty, the committee for replenishing the empty treasury, the committee upon commercial affairs, of the one to investigate the causes of the surrender of Ticonderoga, and of the one for preventing the employment in the public service of persons not clearly in favour of the American cause. He ably advocated the plan, supposed to have originated with him, and submitted by the admiralty committee, of fitting out six fire-ships from Rhode Island to annoy the British fleet.

When the enemy obtained possession of Newport their vengeance against this patriot was manifested by burning his buildings and destroying all his property within their power. This only increased his zeal in the glorious cause of liberty and scarcely disturbed the equanimity of his mind. In 1778, he advocated strongly a resolution making it death for any member of the colonies, *alias* tories, who should betray or aid in delivering into the hands of the enemy any of the friends of the revolution, or give any intelligence that should lead to their capture. He also supported the plan of confederation adopted by Congress. He spent nearly his whole time in that body.

The ensuing year he was one of the committee on foreign relations, which at that time involved the unpleasant duty of settling some difficulties that existed between the United States foreign commissioners, in addition to the usual diplomatic affairs with foreign nations. He was also chairman of a committee to provide provisions for the inhabitants that were driven from the island of Rhode Island and were entirely destitute of the necessaries of life. The ensuing year he was arduously employed upon most of the standing committees, especially the admiralty committee, the duties of which became very delicate, as the powers claimed by some of the states conflicted with those of the general government under the articles of confederation. A committee was created for the express purpose of defining those powers, of which he was the prominent member. Their deliberations resulted in the determination that all disputed claims were subject to an appeal from the court of admiralty to Congress, where the facts as well as

the law were to be finally settled. On all occasions and in all situations he was diligent, punctual, and persevering. In the house, whenever he discovered any long faces or forlorn countenances, even in view of the darkest prospects, his wit and humour were often so vivid as to dispel the lowering clouds that hung gloomily over the minds of dejected members.

In 1782, he was an efficient member of the committee on public accounts, the duties of which had become not only of great magnitude, but of a very perplexing character. Fraud and speculation had rolled their mountain waves over the public concerns, and to do justice to all who presented claims, was no common task. In 1783, Mr. Ellery had the pleasure of being appointed by Congress to communicate to his friend, General Green, a resolution of thanks and high approbation for his faithfulness, skill and services, accompanied by two pieces of brass cannon taken from the British at the battle of the Cowpens.

In 1784, he was a member of the committee appointed to act upon the definitive treaty with Great Britain. He was also upon the one for defining the power of the board of the treasury, the one upon foreign relations, and the one upon the war office. The next year he closed his congressional course, and, as the crowning glory of his arduous and protracted labours in the national legislature, he advocated with great zeal, forensic eloquence, and powerful logic the resolution of Mr. King for abolishing slavery in the United States. His whole force of mind was brought to bear upon this subject and added a fresh lustre to the substantial fame he had long enjoyed. He then retired to his now peaceful home, to repair the wreck of his fortune and enjoy the blessings of that liberty for which he had so ardently contended. In the spring of 1786, he was appointed by Congress a commissioner of the national loan office for Rhode Island, and shortly after, he was elected to the seat of chief justice of the supreme court of his native state. Upon the organization of the federal government under the constitution, President Washington appointed him collector of customs for Newport, which station he ably filled until he took his tranquil departure to another and a brighter world. The evening of his life was as calm and mellow as an Italian sunset. Esteemed by all, he enjoyed a delightful intercourse with a large circle of friends. Honest, punctual and circumspect, he enjoyed the confidence of the commercial community in his official station, as well as the approbation of all in the private walks of life. During

the thirty years he was collector of customs, a loss of only two hundred dollars upon bond accrued to government, and upon that bond he had taken five sureties.

He spent much of his time in reading classic authors, and in maintaining an extensive correspondence with distinguished men. But three weeks before his death, he wrote an essay upon Latin prosody and the faults of public speakers. His bible was also a favourite companion, from which he drew and enjoyed the living waters of eternal life. Always cheerful, instructive and amusing, his company was a rich treat to all who enjoyed it. His writings combined a sprightliness and solidity rarely exhibited. His courtesy and hospitality were always conspicuous, the whole frame-work of his character was embellished with all the rich variety of amiable qualities, uniting beauty with strength, which can never fail of gaining esteem, and of rendering an individual useful in life and happy in death. His demise was as remarkable as it was tranquil. It was that of a christian and philosopher. On the 15th of February, 1820, he rose as usual in the morning and seated himself in the flag bottom chair which he had used for fifty years, and which was a relic rescued from the flames when his buildings were consumed. He commenced reading Tully's Offices in his favourite, the Latin, language, without the aid of glasses, the print of which is as small as that of a pocket bible. On his way to the hospital, the family physician called in, and perceiving that his countenance was cadaverous, felt his wrist and found that his pulse was gone. The physician administered a little wine, which revived the action of the purple current. The doctor then spoke encouragingly, to which Mr. Ellery replied—"It is idle to talk to me in this way, I am going off the stage of life, and it is a great blessing that I go free from sickness, pain, and sorrow." Becoming extremely weak, he permitted his daughter to help him on his bed, where he sat upright, and commenced reading Cicero de Officiis, with as much composure as if in the full vigour of life. In a few moments, without a groan, a struggle, or a motion, his spirit left its tenement of clay, his body still erect with the book under his chin, as if on the point of falling asleep.

Thus usefully lived and thus peacefully died, WILLIAM ELLERY. His whole career presents a rare and pleasing picture of biography, upon which the imagination gazes with admiration and delight, and which cannot be

rendered more beautiful or interesting by the finest touches of the pencil of fancy, dipped in the most lively colours of romance and fiction.



LYMAN HALL.

Decision, tempered by prudence and discretion, gives weight to the character of a man. The individual who is always or uniformly perched upon the pivot of indetermination, and fluttering in the wind of uncertainty, can never gain public confidence or exercise an extensive influence. Decision, to render us truly useful, must receive its momentum from the pure fountain of our judgment, and not depend upon others to fill the lamp of philosophy, after our reasoning powers have become matured by experience, reflection and the solar rays of science. When the child becomes a man, he should think and act as a man, and draw freely from the resources of his own immortal mind. He may enjoy the reflective light of others, but should depend upon the focus of his own, rendered more brilliant by reflectives, to guide him in the path of duty and usefulness, that leads to the temple of lasting fame. The man who pins his faith upon the sleeve of another, and does not keep the lamp of his own understanding trimmed and burning, is a mere automaton in life, never fills the vacuum designed by his creation, and, when he makes his exit from the stage of action, leaves no trace behind, no memento to tell that he once moved upon the earth in the sphere of usefulness, or bore the image of his God.

The sages of the American revolution have left bright and shining examples of self-moving action and a discreet decision of character. Among those who were roused to exertion by the reflections of their own mind, was LYMAN HALL, who was born in Connecticut in 1731. He graduated at Yale College at an early age, studied medicine, married a wife before he arrived at his majority, removed to Dorchester, S. C., in 1752, and commenced the practice of physic. After residing there a short time he joined a company of about forty families, originally from the New England states, and removed to Medway, in the parish of St. John, Georgia, and settled under favourable circumstances. He became a successful practitioner, and was esteemed and admired for his prudence, discretion, clearness of perception and soundness of judgment, united with refinement of feeling, urbanity of manners, a calm

and equable mind, a splendid person, six feet in height, an intelligent and pleasing countenance and a graceful deportment. He had only to be known to be appreciated. As years rolled peacefully along, Dr. Hall became extensively and favourably known. He took a deep interest in the happiness of those around him, and in the welfare of the human family. He was an attentive observer of men and things and of passing events, and understood well the philosophy of human rights and the principles of the tenure by which the mother country held a jurisdiction over the colonies. When the rightful bounds of that jurisdiction were transcended, he was one of the first to meet the transgressors and point his countrymen to increasing innovations. As dangers accumulated, his patriotism became fired with enthusiastic zeal, tempered by the purest motives and guided by the soundest discretion. The indecision and temporizing spirit of Georgia, at the commencement of the revolution, has been before described. This was extremely annoying to Dr. Hall, but only tended to increase his exertions in the work of political regeneration. Over the people of his own district he exercised a judicious and unlimited influence. He also attended the patriot meetings held at Savannah, in July, 1774, and in January of the ensuing year, and contributed much to aid and strengthen his co-workers in the good cause, then but just commenced. His constituents became equally enthusiastic in favour of liberty, and indignant at British oppression, with himself. All the other colonies had united in the defence of their common country against the common enemy. A frontier settlement, and more exposed than any other in the province, he prudently laid the whole matter before the people of his district, and left them to choose freely whom they would serve. They decided against the sovereignty of Baal and declared for liberty. They at once separated from the other parishes, formed a distinct political community, applied to be admitted into the confederation entered into by the other colonies, passed resolutions of non-intercourse with Savannah, only to obtain the necessities of life, so long as it remained under royal authority, and organized the necessary committees to carry these patriotic and decisive measures into effect. Placed upon an eminence like this, they were welcomed into the general compact, and in March, 1775, Lyman Hall was elected to the Continental Congress to represent the parish of St. John, that stood like an island of granite in the midst of the ocean, separate and alone, regardless of the waves of fury that were foaming around her. This example had a powerful influence upon the other

parishes, and from this lump of the leaven of freedom the whole mass became impregnated, and, in July following, Dr. Hall had the proud satisfaction of seeing his province fully represented by men honest and true, save Judas Iscariot, alias Zubly. Georgia now rose like a lion when he shakes the dew from his mane for the fight, and “shed fast atonement for its first delay.” To Dr. Hall may be justly attributed the first impetus given to the revolutionary ball in the district of his adoption. As an enduring monument of praise to the portion of the district in which he resided, which was formed into a new county in 1777, it received the name of LIBERTY.

On the 13th of May this devoted patriot took his seat in that august assembly that then attracted the attention of the civilized world. He was hailed as a substantial and devoted friend of the cause of human rights, and immediately entered upon the important duties of his station, enjoying the full fruition of the light of patriotism that illuminated that legislative hall. He was a valuable man upon committees, and although not a frequent speaker, he was heard, when he did rise, with deferential attention. He reasoned closely and calmly, confining himself to the point under consideration, without any effort to shine as an orator. His known patriotism, decision of character, purity of purpose and honesty of heart, gave him a salutary influence that was sensibly felt, fully acknowledged and discreetly exercised. He gained the esteem, respect and confidence of all the members.

In 1776 he took his seat in the national legislature, and became decidedly in favour of cutting loose from the mother country. He had induced his own district to present an example in miniature, which stood approved, applauded and admired. He knew the justice of the cause he had espoused—he believed Providence would direct its final accomplishment—he was fully convinced that the set time had come for his country to be free. With feelings like these, he hailed the birthday of our independence as the grand jubilee of liberty. He cheerfully joined in passing the mighty Rubicon, aided in preparing the sarcophagus of tyranny, signed the certificate of the legitimacy of the new-born infant and responded heartily to its baptismal name—FREEDOM.

Dr. Hall was continued in Congress to the close of 1780, when he took his final leave of that body, and in 1782 returned to his own state to aid in systematizing the organization of her government. In common with many of

the patriots, the enemy had devastated his property and wreaked a special vengeance upon his district. His family had been compelled to fly to the north for safety, and depend upon the bounty of others for their support and comfort. In 1783 he was elected governor of Georgia, and contributed largely in perfecting the superstructure of her civil institutions and in placing her on the high road to peace and prosperity. This done, he retired from the public arena and settled in Burke county, where he once more was permitted to pursue the even tenor of his ways and enjoy the highest of all earthly pleasures—the domestic fireside, surrounded by his own family. He glided down the stream of time calmly and quietly until 1790, when he bade a last farewell to the transitory scenes of earth, entered the dark valley of death, and disappeared from mortal eyes, deeply mourned and sincerely lamented by his numerous friends at home, and by every patriot in his country. His name is perpetuated in Georgia by a county being called after him, as a tribute of respect for his valuable services.

The examples of this good man are worthy of imitation. Without the luminous talents that tower to the skies in a blaze of glory that dazzles every eye, he rendered himself substantially and extensively useful. He was like a gentle stream that passes through a verdant mead, producing irrigation in its course without overflowing its banks. Decision of character, prudence of action and discretion in all things, marked his whole career. Not a stain tarnishes the lustre of his public fame or his private character. He lived nobly and died peacefully.

JOHN PENN.

A federal republican form of government is an unlimited partnership of the purest, noblest character. Based upon an equality of original stock, an equality of interest in the welfare of the firm devolves upon each individual of the compact. Unlike monopolizing corporations, each stockholder has an equal right to act, speak and vote upon all questions in primary meetings, without reference to the number of accumulative shares one may hold above another. The specie of the firm consists in equality of representation, equality of natural rights, equality of protection in person and property, and equality of personal freedom. These precious coins cannot be diminished in quantity, or be reduced in quality by alloy, without courting danger. To aid in preserving them in their native purity, is the duty of *all*, not of a *few*. Separately and collectively, the great mass belonging to the compact is obligated to look to its prosperity, and use their best exertions in promoting the general good. Each one is bound to bring every talent into use, and to leave none buried in the dark quarry of ignorance, the quagmire of negligence, or the rust of inertness. The steward that had but one talent, was condemned because he had not put it to use. But who can tell what his talents are, until he brings them to the light? Rich ores often lie deep. Many men have arrived to, and others passed their majority, moving in a sphere not above mediocrity in point of intellect developed, and have then risen like a blazing comet and illuminated the world. By several of the signers of the declaration of rights, this position was fully and beautifully demonstrated.

Among these was JOHN PENN, a native of Caroline county, Virginia; born on the 17th day of May, 1741. He was the only child of Moses Penn, who married Catharine, the daughter of John Taylor. The education of the son was neglected by the parents, who sent him to none but the commonest of common schools, which unfortunately for the youth of the neighbourhood, were the only kind then in that vicinity. A *little* learning has been called a dangerous thing, but the quantum taught in some common

schools even at this enlightened age, is too small to be dangerous, too limited to do much good. As a redeeming trait in their neglect of duty towards their son, they taught him by example and precept, social virtue and moral honesty. Upon the retirement of a farm and in its cultivation young Penn plodded along with his father, who had no books of value or a desire for them, until he arrived at the age of eighteen, when his paternal guardian died, and left him a competence, but not a large fortune. About that time he became inclined to read, this inclination ripened, his mind began to expand and his thirst for knowledge increased. Destitute of a library, he communicated his ardent desire to improve his education to Edmund Pendleton, a neighbour and relation of his, who was an accomplished scholar, a profound lawyer and an able statesman. Convinced that Mr. Penn possessed strong native talent he made him welcome to his valuable library and became deeply interested in his improvement. After exploring the fields of science for a short time, this young philomath commenced the study of law, and soon exhibited mental ores, taken from his long neglected intellectual quarry, that were of a rich and rare variety.

He surmounted the barriers that lay before him with an astonishing rapidity, and before some of his friends supposed he had mastered the elementary principles of Blackstone, he presented himself at the court for examination, was admitted to practice, and at once exhibited the bright plumage of a successful lawyer and an able advocate. But three years before, his now soaring talents were buried deep in their native quarry, unknown and unsuspected; a strong admonition to the reader, if under similar circumstances, to examine closely the powers of his own mind. The professional eminence of Mr. Penn rose as rapidly as his appearance at the bar was unexpected. He gained the confidence of the community, the respect of the courts, and the esteem of his senior brethren. In 1763, he added to his original stock in the firm of the social compact by leading to the hymeneal altar the amiable and accomplished Miss Susannah Lyme, thus avoiding the hyemal frost that creeps chillingly over the lonely bachelor.

In 1774, Mr. Penn removed to North Carolina, and carrying with him a high reputation as a lawyer, soon obtained a lucrative practice. He had also participated largely in the patriotic feelings that were spreading over the colonies like fire in a prairie, relative to the oppressions of the mother

country. He had imbibed fully the principles of his venerable preceptor and friend, who was among the boldest of the bold Virginians in the vindication of chartered rights, and was a member of the Congress first assembled at Philadelphia. His liberal views and splendid talents did not escape the notice of his new acquaintances. On the 8th of September, 1775, he was appointed a member of the Continental Congress, to supply the vacancy occasioned by the resignation of Mr. Casewell. He repaired to the post of honour and of duty the next month, and became an active and vigorous member of that venerated assembly of sages, whose wisdom, sagacity, and intelligence emblazoned the historic page with a lustre before unknown. He served on numerous committees, and acquitted himself with great credit in the discharge of every duty that devolved upon him. In the committee room, in the house, among the people, in every situation in which he moved, he made the cause of liberty his primary business. So highly were his services appreciated by his constituents, that they continued him in Congress until the accumulating dangers that hung over his own state induced him to decline a re-election at the close of 1779. He was an early and warm supporter of the declaration of rights, and when the joyful day arrived to take the final question, he most cheerfully sustained the measure by his vote and signature; thus enrolling his name with the brightest constellation of illustrious statesmen that ever illuminated a legislative hall, surpassing all Greek, all Roman fame.

South Carolina had been devastated by Lord Cornwallis, who had dispersed the army under General Gates; and North Carolina was next to be visited by the conquering foe. Emissaries from the British were already within its precincts to prepare the way for the entry of his lordship. Already had the friends of royal power received instructions to seize the most prominent whigs and the military stores, with an assurance of immediate support. The cruelties that had been practised in South Carolina spread a terror over all “but hearts of oak and nerves of steel.” The sacrifice of Colonel Hayne at Charleston, will give the reader some idea of the spirit of revenge that actuated some of the British officers.

When that city fell into his possession, Lord Cornwallis issued a proclamation, promising all who would desist from opposing the authority of the king the most sacred protection of person and property, on condition that each should sign an instrument of neutrality, which, by legal

construction, whilst it put its signers under an obligation not to take up arms against the mother country, exonerated them from serving against their own.

Being a prisoner and separated from his wife and six small children, then residing in the country and surrounded by the small pox, Colonel Hayne, with his mind long poising on the pivot of uncertainty as to what was his duty, finally, with great reluctance, signed the fatal instrument upon the assurances and solemn promises of the English officers, and James Simpson, intendant of the British police, that he never should be required to support, with his arms, the royal government. Colonel Hayne, like Bishop Cranmer, subscribed to that which his soul abhorred and detested, that he might be permitted to fly to the relief of his suffering family. And, as in the case of Cranmer, his enemies persecuted him the more, and never gave him any peace until their vengeance was wreaked upon him by inflicting an ignominious death, in violation of all law, justice and humanity.

Soon after his return to his wife and children, he was called upon by the British to take up arms against his country and kindred, and threatened with close confinement in case he refused to comply with the order. In vain he referred them to the conditions upon which he so reluctantly signed the article of neutrality. In vain he claimed protection under the militia law that imposed a fine where a citizen chose not to render personal service. To his relentless oppressors, all was a dead letter. He then pointed them to the partner of his bosom, the mother of his children, sinking under the small pox, and fast approaching the confines of eternity. In vain he endeavoured to excite their sympathy or move their compassion. In a few short hours, Mrs. Hayne took her departure to “that country from whose bourne no traveller returns,” “where the wicked cease from troubling and the weary are at rest.” Upon her own couch, peaceful and serene, she closed her eyes in death. A different fate was in reserve for Colonel Hayne. His foes still pursued him, and by their own breach of good faith, and of the contract of neutrality before entered into, absolved him from its obligations. It was no longer binding upon him, and he again entered the continental army, preferring death rather than enter the ranks of the invaders of his country. A short but brilliant career awaited him. He was soon made prisoner, and was sent to Charleston, where Lord Rawdon loaded him with irons, submitted him to a mock trial, *ex parte* in its proceedings and determinations, based

upon revenge and cruelty, resolved on the death of his victim, and that without delay. Colonel Hayne was doomed to be hung. This sentence produced amazement and dismay, indignation and surprise amongst all classes of people. The finest feelings of sympathy were excited in the breasts of a large proportion of the adherents of the crown, who deemed the transaction a species of murder. A petition, headed by the king's governor and numerous signed by persons of high standing and advocates for the mother country, was presented to Lord Rawdon in behalf of the unfortunate prisoner—but all in vain.

“Fell revenge sat brooding on his dark and sullen brow,
And the grim fiends of hell urged his soul on to murder.”

The ladies of Charleston, the wives and daughters of both whigs and tories, next united in a petition, couched in the most moving language, praying that the life of Colonel Hayne might be spared. This met with a cold reception and a prompt refusal. As a last effort to rescue the father from the scaffold, his infant children, dressed in their mourning habiliments, were led before Rawdon, and on their knees, their cheeks bathed in tears, implored him, with all the thrilling and heart-rending eloquence of childish innocence, to spare their only surviving parent and earthly protector.

“But still he stood unmoved,
Hard as the adamant rock,
Dark as a sullen cloud before the sun.”

So melting was this scene that veteran soldiers could not refrain from weeping, and all were astounded at the cruel severity of the unyielding and blood-thirsty Rawdon.

A request was then made that Colonel Hayne might be permitted to die as a military officer, instead of being hung as a felon. This was also denied.

As a devout Christian, the martyr resigned himself to his cruel fate, and prepared his mind to meet the approaching crisis. His youthful son was permitted to visit him in prison, who, when he beheld his father bound in irons, burst into tears. “Why,” said the father, “will you break my heart with unavailing sorrow? Have I not often told you that we came into this world

but to prepare for a better? For that better life, dear boy, your father is prepared. Instead of weeping, rejoice with me that my troubles are so near an end. To-morrow I set out for immortality. When I am dead, bury me by the side of your mother." No pen can fully describe that scene. When summoned to the place of execution, his firmness was worthy of the Christian, the hero, and the patriot. When upon the fatal drop, with the accursed halter around his neck, he shook hands with his friends, bade them an affectionate farewell, urged them to persevere in the glorious cause of freedom, recommended his children to the protection of three gentlemen present, and the next moment was struggling in death. The sight was too much for his son, his brain became disordered, his reason fled, and he soon died insane, lisping his father's name to the last moment of his life.

Fortunately for North Carolina, the efficient and sagacious Greene and his brave officers and soldiers, checked the triumphant and murderous career of the British army. The operations of this brave general were greatly accelerated by the exertions of Mr. Penn. In 1780, when Lord Cornwallis penetrated the western part of the state to Charlottetown, the crisis became awfully alarming, and this bold patriot was placed at the helm of public affairs in the state, and invested with almost unlimited power. He was authorized to seize supplies by force, and to do all things that in his judgment were necessary to repel the approaching foe. He proved himself equal to the emergency. He understood his duty, and performed it efficiently and with so much prudence that no complaints of injustice were heard, and the state was saved from the grasp of a merciless foe. Tarleton was humbled, Ferguson killed, and Cornwallis retreated.

Mr. Penn, after discharging the public duties imposed upon him by his own state, again retired to private life and the pursuit of his profession. In 1784, he was appointed receiver of taxes for North Carolina; a high encomium upon his reputation for honesty and integrity. Fatigued with public service, he resigned this office in a few months after. This closed his public career, and he bade farewell to the busy and perplexing scenes of political life, decked with a civic wreath, surmounted with an unfading and permanent fame. He again entered into the enjoyments of domestic felicity, which were soon exchanged for those of another and a brighter world. In September, 1788, he was gathered to his fathers and laid in the silent tomb, there to await the resurrection of the great day.

In all the relations of private life and public action the examples of Mr. Penn are worthy of imitation. As a lawyer he stood pre-eminent. His forensic eloquence was admirable and strongly pathetic. The court and jury were often suffused with tears when listening to his appeals, and his own feelings of sympathy were not always suppressed on such occasions. As a patriot and statesman he stood approved and applauded by his country. His disposition was mild, benevolent and amiable, but firm in the performance of every duty. He was an honest man. Let every reader imitate JOHN PENN in the effort to become useful, and banish the doctrine *that merit is to be monopolized by a few*, which should never gain credence in a government like ours, where every individual is equally interested in the first and dearest principles of freedom—personal rights equally enjoyed and personal liberty equally secured.

ELBRIDGE GERRY.

That man who moves only within the circumference of self, reflecting no social rays upon the community in which he moves, contributing in no way to the advancement of human happiness, winding himself up in the hermitical cocoon of a miser's cell or of total seclusion from the world, makes his life a vacuum and his death a burletta. The acutest metaphysician can never demonstrate the problem of his creation, the lemma of his existence has no corollary in philosophy. The following apothegm from ELBRIDGE GERRY should be deeply impressed upon the mind of every reader: "It is the duty of every citizen, though he may have but one day to live, to devote that day to the service of his country." This precept he enforced by the examples of his brilliant career.

ELBRIDGE GERRY was a native of Marblehead, Massachusetts, born on the 17th of July, 1744. He was the son of an enterprising and respectable merchant, who bestowed upon him a classical education. He graduated at Harvard University in 1762, with a scholastic and mental reputation creditable to himself and pleasing to his friends. Judging the tree by its fruit, the seed from which it sprang must have been of the purest kind, and its vegetation not retarded by the absorbing and poisonous weeds of vice. Its incipient pruning and growth must have been directed by a master hand, to produce a form of so much symmetry and beauty.

After having completed his collegiate studies, Mr. Gerry entered the counting-house of his father and ultimately became one of the most enterprising and wealthy merchants of his native town. From the nature of his business he was among the first to feel the weight of the impolitic and unconstitutional revenue system, and by the nature of his mind, he was impelled to meet oppression at the threshold. A man of deep reflection and investigation, he examined closely the nature and extent of chartered rights and of British wrongs. He made himself acquainted with the structure and principles of government, law, political economy, and national policy. No

one understood better than him, the natural, legal and practical relations between the mother country and the colonies. He was therefore prepared to act advisedly and disposed to act firmly. His extensive influence, his decision of character, his sound discretion and his exalted patriotism, pointed him out as one of the master spirits to guide the public mind and aid in the public affairs of the people. He at once became a participant in all the popular movements in favour of liberty. On the 26th of May, 1773, he commenced his official career as a member of the legislative body of Massachusetts Bay, then called "the general court." That assembly and the royal governor took a bold issue upon rights and wrongs. The unconstitutional acts of parliament were sanctioned by the latter, and fearlessly censured by the former. The general court, moved by Samuel Adams, appointed a standing committee of inquiry for the purpose of watching closely the proceedings of ministers and parliament, and of corresponding with the other colonies upon the important subjects then under national consideration. This committee was appointed two days after Mr. Gerry had taken his seat for the first time in a legislative body, of which he was made a member. From that time forward he was a conspicuous actor upon the tragic stage of the revolution, in the drama of peace and in the construction of the federal government. He walked shoulder to shoulder with Adams and Hancock in the adoption of the bold measures that roused the lion from his lair and the people to their duty. At the Boston tea-party, the opposition to the port bill, the impeachment of the crown judges, the controversy with Governor Hutchinson and the establishment of non-intercourse with Great Britain, Mr. Gerry stood firmly at his post. Completely prostrated in his influence, and driven from every position assumed, Governor Hutchinson retired and was succeeded by General Gage. This change was of no advantage to the royal cause. The blending of military and civil power was an unpopular measure. He issued a commission for a new general court, but finding it would be composed of members inimical to his views he countermanded the order. The sovereign people, however, elected delegates, who assembled in October at Salem, an unusual place of meeting, to do the business of their constituents. The governor and council not appearing to administer the oath of office, they adjourned to Concord and organized a provincial Congress, of which Mr. Gerry was a leading member. They prepared an address to the governor in respectful but firm language, declaring their attachment to the mother

country, and their willingness to obey all laws of parliament and the mandates of the king that came within the sacred pale of the British constitution and the well defined charters which had emanated from it. They pointed out the violations of right, the perversions of justice, the military array of foreign soldiers, all tending to reduce the people to slavery. They reasoned, they explained, they remonstrated, but all in vain. These appeals to Governor Gage fell upon his adamant soul as the morning dew upon the desert of Sahara. The delegates then appealed to the legitimate source of a righteous government—THE PEOPLE—who nobly responded and sustained them in the hour of peril. They then proceeded to adopt measures for the vindication of their inalienable rights, and whilst they presented the olive branch of peace they prepared for war. Severe measures were adopted by parliament, the charter of Massachusetts was altered by exparte legislation under the crown, illegal taxes were imposed, the hirelings of the king became more insolent, the indignation of the people rose like a tornado, colonial blood began to flow, the tocsin of war was sounded, the clash of arms and fury of battle commenced, the struggle was terrific, the lion was conquered—AMERICA WAS FREE!!

During all the thrilling scenes that passed in Massachusetts previous to his election to Congress, Mr. Gerry was a leading member of the legislative body from its aurelia form to its more perfect growth. He was an active and efficient member of the two great committees that were for some time virtually the government—the committee of safety and that of supplies.

In April, 1775, he narrowly escaped the grasp of his foes. The night previous to the battle of Lexington, Messrs. Gerry, Lee and Orne were at Cambridge, through which the British passed on their way to the opening scene of hostilities. When they arrived opposite the house where these gentlemen were in bed, a file of soldiers suddenly separated from the main body and approached it rapidly. The patriots barely escaped by the back way in their linen as the enemy entered, not having time to put on a single article of their over-dress. After the military passed on they returned for their wardrobe, and immediately rallied the people to prepare for resistance.

The night previous to the fall of his intimate friend, the brave Warren, Mr. Gerry lodged in the same bed with him. The anxiety they felt for their country drove sleep from them, and their time was spent in concerting plans for future action. The lamented hero of Bunker Hill appears to have had a

presentiment of his premature fate. The last words he uttered to Mr. Gerry as they parted were,

“Dulce et decorum est,
Pro patria mori.”^D

^D It is sweet and glorious to die for one's country.

In the month of July, 1775, the government of Massachusetts assumed a systematic form. A legislature was chosen and organized, and in a few months a judiciary was established upon the basis of the new arrangement. Mr. Gerry was immediately appointed to the responsible post of judge of the admiralty court, but declined serving, preferring more active and exciting duties. He desired to be where he could render the most important services.

On the 18th of January, 1776, he was elected to the Continental Congress, a situation he was well calculated to fill. Bold and fearless, yet cautious and prudent, he was admirably adapted to meet the awful crisis of that eventful era. His public reputation already established on a lofty eminence, he was placed upon the most important committees, and among others upon the one sent to head-quarters to consult with Washington and mature plans of supplies for the army and for its augmentation. To the speculating sutlers and to peculating contractors, he was a terror during the war. He introduced in Congress many salutary guards against dishonest men, who, during a war more especially, always hang about every department of government like vultures. Even now, in a time of profound peace, they occasionally tap the jugular vein of our republic, and produce a laxity of the sinews of power.

When the declaration of independence was proposed in Congress, the soul of Mr. Gerry was enraptured in its favour. He had long been prepared for the measure and gave it his ardent support. When the thrilling moment arrived for final action upon this important question his vote was recorded in favour of equal rights, and his signature affixed to that venerated

instrument which verified the truth of divine prophecy—"A nation shall be born in a day."

In 1777, he was still continued a member of the national council, and continued to discharge his duty with unabated zeal. The committee rooms and the house were alike benefitted by his intelligence and extensive experience in general business. He was called to aid in the arrangement of the military hospitals, the discipline and regulations of the army, the commissary department, foreign commerce, and other branches of the new government, requiring the soundest discretion to place them on a firm basis. He was also associated with Messrs. Clymer and Livingston on their mission to the army to arrange existing difficulties. He took a conspicuous part in the debates upon the articles of confederation, and was listened to with great attention. He spoke well, reasoned closely and demonstrated clearly.

Like Mr. Clymer, he was truly republican in all his ideas and opposed to every thing that did not bear upon its face sound sense, practical usefulness and equality of operation. Hence he opposed a resolution of thanks proposed in Congress to his bosom friend, Mr. Hancock, for his services when he resigned the presidential chair. He contended that the president had done no more than to ably perform his duty, the rest of the members had done the same, and it would be a singular entry upon the journals of Congress to record a vote of thanks to each. Etiquette, however, prevailed over his logic, and the usual vote of thanks was passed, thus introducing a custom in the new government that has long since lost its original importance by too frequent use on occasions of minor interest.

Mr. Gerry was also upon the committee that devised the plan of operations for the northern army that effectuated the capture of Burgoyne, and upon the one to obtain supplies for the American troops during the winter of 1777, which took him again to the camp of Washington. These multiform and arduous duties, so constantly imposed upon him, are stronger encomiums upon his talents, perseverance, patriotism, and activity, than a volume of panegyric from the most enlivening pen that was ever wielded by mortal hand.

I have repeatedly referred to the religious and moral characters of the members of the Continental Congress as remarkable for purity. As a proof

of the assertion, the records of that body of the proceedings of the session of 1778, show a resolution passed recommending the several states to adopt decisive measures against “theatrical entertainments, horse-racing, gaming, and such other diversions as are productive of idleness, dissipation, and a general depravity of principles and manners.” Another resolution strictly enjoins upon the officers of the army “to see that the good and wholesome rules provided for the discountenancing of profaneness and vice, and the preservation of morals among the soldiers, are duly and punctually preserved.” A third one was passed, which would be a *sweeper* if revived at the present day. It arose from a disposition on the part of some officers to disregard the first one above cited. It reads as follows.

“Resolved, that any person holding an office under the United States, who shall act, promote, encourage, or attend such plays, shall be deemed unworthy to hold such office, and shall be accordingly dismissed.”

Mr. Gerry voted for these resolutions, which were passed by a large majority. He was upon the grand committee of one from each state, appointed during that session, to examine closely foreign affairs and the conduct of the foreign commissioners, about which considerable difficulty then existed, particularly relative to Mr. Deane. The committee used the probe freely, and recommended to Congress to use the amputating knife upon every limb affected by the gangrene of political corruption. The report of the committee was an able document and produced a warm debate, in which Mr. Gerry participated and supported it with great eloquence and force.

On the 14th of October, 1779, he proposed to Congress the expedition against the Indians, which was successfully executed by General Sullivan. He also proposed a resolution designed to guard against inducements to corrupt influence, that “no candidates for public office shall vote in, or otherwise influence their own elections; that Congress will not appoint any member thereof during its time of sitting, or within six months after he shall have been in Congress, to any office under the said states, for which he, or any other for his benefit, may receive any salary, fees, or other emolument.” He urged it strongly but was unsuccessful. As a member of the committee of finance Mr. Gerry stood next in rank to Robert Morris.

In 1780, he retired from Congress after five years arduous and faithful service. In all situations and at all times, he was energetic, zealous and active in the cause of liberty. When his duties called him to the army, if any fighting was on the tapis whilst he was in camp, he always insisted upon taking an active part. When the affair occurred with General Howe at Chestnut Hill, he actually shouldered a musket and entered the ranks; and when General Kniphausen engaged the American army at Springville, he took his station by the side of Washington, who invested him with a volunteer command during his stay. On both of these occasions he was one of the visiting committee from Congress.

The second year after his retirement, he was again induced to become a member of the national legislature and commenced his duties with the same zeal that had marked his whole career. The business of the nation was at that time more perplexing than when in the heat of the revolution. An empty treasury, a prostrate credit and a mammoth debt, presented a fearful contrast. To aid in settling the derangement in public affairs, he was an important member. Committee labours were heaped upon his shoulders as though he was an Atlas and could carry the world, or an Atalanta in the celerity of business. The local feelings and interests of the states began to be perplexing, and the half pay for life guaranteed by Congress to all officers who remained in the army during the war, was a source of dissatisfaction with many. This was finally settled by compounding the annuity for the full pay of five years.

In 1784, he was chairman of the important committee on foreign relations, and of the one to perform the onerous task of revising the treasury department. He also brought forward a resolution for the compensation of Baron Steuben, who had rendered immense service by introducing a system of military tactics and discipline, by which the armies of the United States were entirely governed, and which were strictly adhered to long after the revolution by the military throughout the union. This resolution was warmly supported by Mr. Jefferson, but owing, as I fondly hope, to the embarrassed situation of the financial department, it was lost. He also took a deep interest in the commerce of the republic, a subject which he understood well.

In 1785, Mr. Gerry closed his services in the Continental Congress. During that year he was arduously employed upon the committee on

accounts. He also obtained the passage of his former resolution relative to public officers and elections and the appointment of members of Congress to office. At the close of the session he retired from public life for a season and settled at Cambridge, not far from Boston, with all the honours of a pure patriot and an able statesman resting upon him—crowned with the sincere and lively gratitude of a nation of freemen.

Time soon developed to the sages of the revolution that the articles of confederation which bound the colonies together when one common interest and impending dangers created a natural cement, were not sufficient to secure permanently the liberty they had achieved. Local interests engendered jealousies, these produced dissatisfaction, and this threatened to involve the government in anarchy. To remedy these evils, a motion was made by Mr. Madison, for each state to send delegates to a national convention for the purpose of forming a constitution. The proposition was sanctioned, and in May, 1787, the convention commenced its herculean task at the city of Philadelphia, in the accomplishment of which Mr. Gerry took an active and useful part. He was among those who did not sanction or sign the instrument as adopted, and participated liberally in the political abuse of the *partisans* who were opposed to him, not by the noble minded statesmen who differed with him in opinion, all honest in their views and patriotic in their motives. *They* soared above the acrimonious scurrility of venal party spirit.

After the constitution was adopted, no one manifested more zeal in adhering to it than Mr. Gerry; actuated, as on all other occasions, by the great republican principle—that *the majority must rule and be obeyed*. He was elected a member of the first Congress under it, and did much towards raising the beautiful superstructure that now towers sublimely upon its broad basis. After serving four years he declined a re-election and again sought retirement. But this was of short duration. The relations between America and France had become deranged and threatened a disastrous result.

Mr. Adams, then president of the United States, determined on sending an able embassy to that government, and to make a strong effort to effect an amicable arrangement of difficulties before appealing to arms. General Pinckney was already appointed an ambassador to France. Mr. Gerry and Mr. Marshall, since chief justice of the United States, were appointed to join

him in this delicate duty of diplomacy, empowered to act separately or collectively, as a sound discretion should dictate. On their arrival at Paris they were not treated with proper courtesy by the directory, and were not recognised as the official organ of their nation. Prudence and patience were necessary to prevent an immediate rupture between the two countries. They opened a correspondence with the French secretary of foreign affairs, and after many fruitless attempts to be met in a proper manner, Messrs. Pinckney and Marshall were ordered peremptorily to depart from the republic of France, and Mr. Gerry invited to stay. By his prudent, manly and firm course, he succeeded in allaying the angry feelings of the French nation, and prevented a war that for a long time seemed inevitable.

On his return he was placed upon the republican ticket as a candidate for governor of Massachusetts. Party spirit at that time was in its full vigour, and the federal party had for a long time been in the majority. So popular was Mr. Gerry, that his antagonist, Mr. Strong, was elected but by a small majority, and that resulted from the incorrectness of some of the returns, the former having actually received the largest number of votes. In 1805 he was upon the electoral ticket which succeeded. In 1810 he was elected governor of his state by a large majority, and ably discharged the duties of chief magistrate. He had never entered into *partisan* feelings and views, and in his first message pointed out, in a luminous manner, the dangers arising from high toned party spirit, and did all in his power to allay it. He felt and acted for his whole country and the general good. This deterioration from *party* caused him to lose his election for the next term; the leaders of each having marshalled their forces in solid phalanx—the federal party, when consolidated, having always had a majority in the state since its distinctive formation.

For many years Mr. Gerry had anxiously desired to be excused from the public duties of high and responsible stations, but no excuse was accepted. In 1813 he was inaugurated vice-president of the United States, and proceeded to discharge the devolving duties with great dignity and propriety. His impartiality, correctness and candour gained for him the esteem of the elevated body over which he presided to the last day of his eventful and useful life—thus teaching by example the principle of his precept, that “It is the duty of every citizen, though he may have but one day to live, to devote that day to the service of his country.”

At the city of Washington a beautiful monument is erected to his memory, with this inscription:

The tomb of
ELBRIDGE GERRY,
Vice-President of the United States,
Who died suddenly in this city, on his way to the
Capitol, as President of the Senate,
November 23d, 1814,
Aged 70.

In the review of the life of Elbridge Gerry the pure patriot finds much to admire and nothing to condemn, unless a man is to be condemned for an honest difference of opinion and for keeping aloof from high toned party spirit, which, for the sake of liberty, God forbid. His examples of devotedness to the good of his country, his untiring industry, his prudence, his discretion, his intelligence, and his moral virtues, are all worthy of imitation and shed a lustre upon his character. In private life he was highly esteemed and fulfilled its duties with the strictest fidelity. He was emphatically a useful man in every sphere in which he moved. No perils retarded him from the faithful performance of what he deemed duty. His purposes were deliberately formed and boldly executed. He was an honour to his country, to the cause of freedom, and to enlightened liberal legislation. He was truly a worthy and an honest man.

WILLIAM PACA.

Every man is not designed by creative wisdom to become a Demosthenes or a Cicero; but every man of common sense has the power to be good and to render himself useful. If all were alike gifted with splendid talents, the monotony would become painful, and variety, the very spice of life, would lose its original flavour. If *all* our statesmen were eloquent orators and were affected by the mania of speech-making, as sensibly as most of our public speakers are at the present day, we should be constantly, as we are now frequently, overwhelmed with talk and have but little work finished. No one admires eloquence more than the writer, but the speedy accomplishment of business is of higher importance. Like our bodies that end in a narrow cell, the speeches of our legislators, although based upon the purest motives, dictated by the most enlightened understanding, decked with the beauties of intelligence, strengthened by the soundest logic and embellished with the richest flowers of rhetoric, receive their final fate from the approving *Aye*—or the emphatic *No*. I indulge no desire to extinguish these brilliant lights, or to snuff them too closely. The volume of their flame, often so large as to emit smoke, might safely be diminished and their wicks cut shorter. Brevity is the soul of wit, prudent despatch, the life of business. In the committee-room every man can be useful—the responsibilities of a vote bear equally upon each at the time and place he is called to act. Let the importance of no man be undervalued by himself or his compeers because he is not born with a trumpet tongue. If his head is clear and his heart right, *he can do good*.

Some of the most useful members of the Continental Congress seldom participated in debate, and the ablest speakers were remarkable for conciseness and for keeping close to the question under consideration. Among those who rendered essential services in the cause of the revolution, in a retiring and unassuming manner, was WILLIAM PACA, a native of Wye Hall, on the eastern shore of Maryland, born on the 31st of October, 1740. His father was a highly respectable and influential man, and bestowed upon

William a good education, and planted deeply in his mind the principles of virtue and moral rectitude. He completed his classical studies at the college in Philadelphia, and in 1758 commenced the study of law at Annapolis. Industrious in his habits, and not fond of the public gaze, he applied himself closely to the investigation of that science which unfolds the nature and duty of man in all the relations of life, shows what he is and what he should be under all circumstances, unveils his passions, his propensities and his inclinations, carries the mind back through the abyss of times of light, of shadows, of darkness and of pristine happiness, and illuminates the understanding more than either branch of the sciences, it being a compound of the whole in theory and in practice. An honest and upright lawyer, who is actuated alone by principles of strict justice, pure ethics, equal rights and stern integrity, can do more to sustain social order and promote human happiness than a man pursuing either of the other professions.

Upon principles like these Mr. Paca commenced his practice, and upon a basis like this he built an enduring fame. He was esteemed for his clearness of perception, honesty of purpose, decision of character, prudence of conduct and substantial usefulness—all exhibiting a clear light, but not a dazzling blaze or an effervescent embrocation. Upon minds like his, the oppressions of the mother country made a gradual impression, that was deepened by the graver of innovation, and that all the powers of earth could neither efface, deface, erase nor expunge. Thus it was with Mr. Paca—as chartered rights and constitutional privileges were more openly infringed by the British authorities, his soul became more strongly resolved on liberty or death. He was on intimate terms with Mr. Chase, who possessed all the requisites to command, while Mr. Paca possessed the indispensable acquisitions of a safe and skilful helmsman. With qualities thus differing, but with the same object in view, these two patriots commenced their voyage upon the boisterous ocean of public life, at the same time and place.

Soon after he became a member of the bar Mr. Paca was elected a member of the legislature of Maryland, and discharged his duties to the entire satisfaction of his constituents. In 1771 he was one of the committee of three that prepared a letter of thanks from the citizens of Annapolis to Charles Carroll for his able advocacy of the cause of liberty, in a written controversy with the royal governor and his lackeys. In that letter the committee expressed a determination never to submit to taxation without

representation, or to the regulating of taxes by executive authority—thus fully approving and sustaining the position taken by the distinguished citizen whom they addressed.

Mr. Paca was a member of the Congress that convened at Philadelphia in 1774, which rendered itself illustrious by proceedings of propriety and wisdom, such as would naturally flow from a mind like his. It is upon such men that we can always safely rely in times of peril and danger. They view every thing in the calm sunshine of reason and justice, and are never overwhelmed by the billows of foaming passion or sudden emotion. Always upon the terra firma of prudence, and always prepared for action, they are ready to render assistance to those whose more towering barks often get among the breakers.

Mr. Paca was continued a member of Congress until 1778, and rendered valuable services upon numerous and important committees. In 1775 he was a member of the one charged with providing ways and means to ward off the threatened dangers that hung frightfully over the cause of freedom in Virginia and North Carolina. He was also upon a similar committee for the aid of the northern department. About that time he joined Mr. Chase in furnishing a newly raised military corps with rifles, to the amount of nearly a thousand dollars, from their own private funds. His talents, his time and his fortune he placed in the fearful breach of his country's freedom. His examples had a powerful influence upon the minds of his reflecting friends, who had unlimited confidence in his opinions, always deliberately formed.

When the declaration of independence was proposed, his feelings and views were decidedly in its favour, but his instructions from the assembly of Maryland were directly opposed to the measure. The members of that body considered the project as wild and futile, believing the power of the mother country sufficient to crush all opposition. They only contemplated redress—this they fondly but vainly hoped for. The course of the British authorities, however, soon furnished arguments, steeped in blood, that convinced them of the necessity of the course proposed in Congress, and about the first of July, 1776, they removed the injunction and left Mr. Paca and his colleagues to act freely without any restraint. The struggle between the adherents of the crown and the patriots in the assembly had been severe. The able letters written by their delegates in the national legislature had

great weight in the colonial council, and the affair at Lexington admitted of no extenuation. The first decided vote in favour of the cause, then in embryo, obtained in the Maryland legislative body, was on the 28th of May preceding the declaration, when their chaplain was directed to omit praying for the king. This was a sore cut upon the dignity of his majesty, and, as trifling as it may seem, had a potent effect upon the people. It convinced them that if the king had forfeited all claims to the *prayers* of his subjects, he was not pure enough to direct their destinies, and with one accord declared, “we will not have this man to rule or reign over us.”

When the glorious 4th of July, 1776, arrived, Mr. Paca was in his place, fully prepared to sanction the Magna Charta of American freedom by his vote and signature, and enrolled his name among the great apostles of LIBERTY, whose fame will continue to rise in peerless majesty until the last trump of time shall sound its final blast and the elements be dissolved in fervent heat.

On his retirement from Congress, in 1778, Mr. Paca was appointed chief judge of the superior court of Maryland, and in 1780 his duties were increased by the appointment of chief judge in prize and admiralty cases. He had proved himself an able statesman—his talents as a judicial officer shone with equal brilliancy. The acumen of his mind and his legal acquirements made him an *able* judge, his honesty and impartiality rendered him a *popular* one. He was a man of polished manners, plain but dignified in his deportment and graceful in his address, with an engaging, intelligent and benignant countenance, all combining to gain admiration.

In 1782 he was elevated to the gubernatorial chair of his native state. As chief magistrate he sustained a high reputation for usefulness and sound policy. He was a devoted friend to literature and religion, and did much to promote their prosperity. He inculcated the principles of political economy and governed the state with a parental care. His wise and judicious course furnished no food for malice, was above the assaults of slander, and afforded jealousy no loop to hang upon. After completing his term he retired to private life, until 1786, when he was again called to preside over the destinies of his native domain.

In 1789 he was appointed by President Washington, United States district judge for the Maryland district, which office he continued to fill

with dignity and respect until 1799, when he was summoned by death to appear before the dread tribunal of the great Jehovah to render an account of his stewardship. His life had been that of a good man, his final end was peaceful and happy. Let his memory be revered and his examples imitated. He demonstrated most clearly that moderation and mildness, tempered with discretion and firmness, govern better and more potently than angry and authoritative dictation.

GEORGE ROSS.

I have frequently referred, in several of the preceding biographies, to the powerful eloquence of several of the Signers of the Declaration of Independence. Of its nature, the reader should be correctly informed.

Rhetoric, as taught in the schools, as defined in the lexicons, and as practised in times of prosperous peace and leisure like the present, is not the kind that graced the Continental Congress.

Not to leave the reader to depend upon a picture drawn by my own fancy and imagination, I will present the delineation as drawn by those who saw and felt its influence, at the time it illuminated the legislative hall, roused men to deeds of noble daring, and gave freedom to our happy country.

One of the illustrious members of that body, John Adams, has said: "Oratory, as it consists in expressions of the countenance, graces of attitude and motion, and intonation of voice, although it is altogether superficial and ornamental, will always command admiration, yet it deserves little veneration. Flashes of wit, coruscations of imagination and gay pictures, what are they? Strict truth, rapid reason, and pure integrity, are the only essential ingredients in oratory. I flatter myself, that Demosthenes, by his 'action! action! action!' meant to express the same opinion."

Another eminent writer, who had often felt the force of this, the kind of eloquence exhibited by the sages of the revolution, in describing that of the illustrious statesman just named, remarked; "It was bold, manly, and energetic, but such as the crisis required. When public bodies are to be addressed on momentous occasions, when great interests are at stake, and strong passions excited, nothing is valuable in speech farther than is connected with high intellectual endowments. Clearness, force and earnestness are qualities which produce conviction. True eloquence, indeed, does not consist in speech. It cannot be brought from far. Labour and

learning may toil for it, but they toil in vain. Words and phrases may be marshalled in every way, but they cannot compass it. It must exist in the man, in the subject, and in the occasion. Affected passion, intense expression, the pomp of declamation, all may aspire after it, but they cannot reach it. It comes, if it comes at all, like the outbreking of a fountain from the earth, or the bursting forth of volcanic fires, with spontaneous, original, native force. The graces taught in schools, the courtly ornaments and studied contrivances of speech, shock and disgust men when their own lives, and the lives of their wives and children, and their country, hang on the decisions of the hour. Then words have lost their power, rhetoric is vain, and all elaborate oratory contemptible. Even genius itself, then feels rebuked and subdued, as in the presence of higher qualities. Then patriotism is eloquent, then self-devotion is eloquent. The clear conception outrunning the deductions of logic; the high purpose, the firm resolve, the dauntless spirit speaking on the tongue, beaming from the eye, informing every feature, and urging the whole man onward—right onward to his object—this, this is eloquence, or rather, it is something greater and higher than eloquence—it is action, noble, sublime, and god-like action.”

This was the kind of eloquence that characterized the Continental Congress, and sounded an alarum that vibrated the souls of millions, and often drove back the purple current upon the aching heart. No long, no set, no written speeches were then crowded upon the audience to kill time and make a show. Governor M’Kean, who was constantly a member during the revolution, remarked, shortly before his death, “I do not recollect any formal speeches, such as are made in the British Parliament, and in our late Congresses, to have been made in the Revolutionary Congress. We had no time to hear such speeches, little for deliberation—action was the order of the day.”

Of the kind of eloquence above described, GEORGE ROSS possessed a large share. This faithful public servant was the son of the Rev. George Ross, pastor of the Episcopal Church at New Castle, Delaware, and was born in 1730, at that ancient town. Under the parental roof, and under the instruction of his father, his strong native talents unfolded their beauties, and at the age of eighteen he became a good classical scholar. He then commenced the study of law with John Ross, an elder brother, in the city of Philadelphia, where he was admitted to the bar in 1751. In order to have

more elbow-room he located at Lancaster, then a border town near the confines of civilization, and verging on the “far west.”

Noble in his disposition, agreeable and plain in his manners, learned and diligent in his profession, candid, honest, and just in his course, he succeeded in gaining the confidence and esteem of the people, and a lucrative practice. In addition to all this, in order to plant himself more firmly in his new location, he married Miss Ann Lawler, an amiable and highly respectable lady, who proved an affectionate and worthy companion.

He built his legal fame upon its legitimate basis, close application to his professional business unconnected with public politics. At the present day, many young men, unfortunately for themselves, when they are admitted to the practice of law, at once enter the political arena, for the purpose of obtaining professional notoriety and business. This conclusion is based upon false premises, and has prevented many from rising to a legal eminence that a contrary course would have gained. Sacred writ has declared, “no man can serve two masters.” This is particularly the case with a young lawyer at the present day; the American revolution was a different thing. When he becomes devoted to the interests of a political party, a tyrant that exacts the most abject and humiliating services, either *his* business, or that of the party must be neglected. Reflecting men know this, and aware that it requires close study and diligent application to become learned in the law, they keep aloof from young political lawyers. A few high toned partisans may employ them in *small* matters, but if they have an important case, the studious, industrious attorney, who has not imbibed the corrupting atmosphere of modern politics, is the man of their choice. A word to the wise should be sufficient.

It was not until long after his location at Lancaster that Mr. Ross commenced his legislative course. The time had already arrived when the people began to feel the smart of British oppression, and became more particular in selecting men of known worth, integrity and talents, to guard their interests against the machinations of an avaricious and designing ministry. They accordingly elected Mr. Ross a member of the colonial legislature in October, 1768. His reputation then stood high as an able lawyer and as a man of liberal views, sound judgment and decision of character. He at once exercised a salutary influence in the assembly, and took a bold and decided stand in favour of the people’s rights. At that time it

was the custom of the legislature to reply to the messages of the royal governor *in extenso*, or at large. Mr. Ross was appointed to prepare an answer to one of these documents at the first session of his service. In that as at all subsequent times, he boldly objected to every proposition that he considered impolitic or in opposition to the rights and best interests of the people. He became a faithful and fearless sentinel, a vigorous and able champion in the cause of liberty. He continued to serve in the legislature of his own colony until he was elected to Congress. He was one of the committee that prepared a consonant reply to the speaker of the house of burgesses of Virginia in answer to the resolutions recommending a general convention of delegates to deliberate upon the condition of the country. In every leading measure in favour of freedom, he was among the leading men.

In 1774, he was appointed a delegate to the Congress convened at Philadelphia, and repaired promptly to the post of duty. He was one of the committee of the assembly that determined on sending delegates to the general convention, and was appointed by that committee to prepare the instructions of that body to govern these delegates in their action. As these instructions are similar in their main features to those adopted by the other colonies, I here insert them that the reader may see that peaceable redress of grievances was all that was at that time contemplated by the sages of the revolution.

“The trust reposed in you is of such a nature, and the modes of executing it may be so diversified in the course of your deliberations, that it is scarcely possible to give you particular instructions respecting it. We shall therefore only in general direct, that you are to meet in Congress the committees of the several British colonies at such time and place as shall be generally agreed on, to consult together on the present critical and alarming situation and state of the colonies, and that you, with them, exert your utmost endeavours to form and adopt a plan which shall afford the best prospect of obtaining a redress of American grievances, ascertaining American rights, and establishing that union and harmony which is most essential to the welfare and happiness of both countries. And in doing this, you are strictly charged to avoid every thing indecent or disrespectful to the mother state.”

Under instructions like these the first general Congress assembled; agreeably to instructions like these that august body acted. All honourable means were used to restore peace on the part of the colonists that were required by the constitution of England, more was offered than reason and strict justice demanded. Nothing but an infatuation making men blind, deaf and dumb, could have resisted the appeals and consummate arguments in favour of chartered and violated rights that were poured upon the king, the parliament and the people of Great Britain, from the deep, the translucent fountain of intelligence concentrated in the Congress of 1774. The members were determined to clear their own skirts of blood and not draw the bow of physical opposition until their arrows were dipped in the liquid fire of eternal justice and fixed in the quiver of wisdom.

Mr. Ross was continued a member of the Continental Congress until 1777, when ill health compelled him to retire. He rendered important services on numerous committees, and was a strong and truly eloquent debater in the house. He also served, when his congressional duties would permit, in the legislature of Pennsylvania, in which he continued to exercise an essential influence. The governor and his friends were on the alert to thwart the designs of the patriots, and for some time presented a formidable opposition. To raise the foundation of this royal mass, Mr. Ross placed his whole weight upon the political lever, and contributed largely in breaking it up. He was a member of the colonial convention that commenced the new government, and one of the committee that prepared the declaration of rights on that occasion. He was chairman of the committee that formed the organization of the state government, and of the one that prepared the declaratory ordinance defining high treason and misprision of treason, and the kind and measure of punishment to be inflicted. Upon committees like these, his high legal acquirements rendered him an important member. He was a profound lawyer and an able statesman, and well prepared to aid in laying deep the foundations of rational liberty.

On the 19th of July, 1779, he was appointed judge of the court of admiralty for Pennsylvania, and in July following was called suddenly and unexpectedly to witness the untried scenes of a boundless eternity. His death was occasioned by an excruciating attack of the gout.

Thus in the full career of life and usefulness, rising on the wings of fame, flushed with the hopes of liberty for his country, pressing right

onward towards the goal of freedom, an arrow from the quiver of death pierced his patriotic heart and consigned him to the insatiate tomb. There his dust reposes in peace whilst the lustre of his examples when living will continue to shine and will be admired by millions yet unborn.

Immediately after he closed his legislative career, the citizens of Lancaster county passed two resolutions of the following tenor.

“Resolved, that the sum of one hundred and fifty pounds out of the county stock, be forthwith transmitted to George Ross, (‘Honourable’ was not then republican,) one of the members of the assembly for this county, and one of the delegates for this colony in the Continental Congress; and that he be requested to accept the same, as a testimony from this county of their sense of his attendance on the public business, to his great private loss, and of their approbation of his conduct.

Resolved, that if it be more agreeable, Mr. Ross purchase with part of the said money a genteel piece of plate, ornamented as he thinks proper, to remain with him as a testimony of the esteem this county has for him, by reason of his patriotic conduct in the great struggle for American liberty.”

Here is old fashioned republican simplicity in language and expression, flowing from its native fountain—gratitude strongly felt and plainly told—forming a bold contrast with the fulsome flattery of modern times showered upon our statesmen by fawning sycophants, whose gratitude is based alone upon the loaves and fishes of favour and office.

Mr. Ross declined accepting the gift, assuring the committee that waited upon him, that he had performed no more than his duty, and that at such a period all were bound to exert their noblest energies to secure their liberty, which would afford a reward more precious than gold, more valuable than diamonds.

In private as in public life, he stood approved and untarnished. No blemish is upon the proud escutcheon of the name of GEORGE ROSS.

BENJAMIN HARRISON.

Moderation, arising from sound discretion and deep penetration of judgment, united with wisdom to plan, and energy to execute, is always desirable, and, in times of high excitement, indispensably necessary in those who wield the destinies of a community. When the fires of passion burning in the bosoms of an enraged multitude unite in one cyclopean volume, the mental rod of moderation managed by skilful hands can alone guide, regulate, and direct it to a proper destination. To this quality, pre-eminently possessed by many of the sages of the American revolution, we owe the liberty we now enjoy. It was this that gave weight and dignity to the proceedings of the Continental Congress; leaving the mother country without an excuse for oppression and exciting the sympathy of other nations in favour of the cause of liberty.

No one demonstrated more fully the beauties of moderation, combined with firmness of purpose and boldness of action, than BENJAMIN HARRISON. He was the eldest son of Benjamin Harrison, and born in Berkley, Virginia. The date of his birth is not recorded. His family descended from a near relation of General Harrison, who was a bold leader in the revolution of the English commonwealth and was sacrificed upon the scaffold for his liberal principles. This relation settled in Surrey, Virginia, about 1640. His descendants sustained the high character of their ancestors, and filled many important public stations in the colony, and were uniformly wealthy and liberally educated. It is recorded of Benjamin Harrison, who was the son of the Mr. Harrison who settled at Surrey, that "he did justice, loved mercy, and walked humbly with his God;" thus leaving a memento of character that forms the crowning excellence of human attainments. The father of the subject of this narrative was killed by lightning with two of his daughters. At that time Benjamin was prosecuting his studies at the college of William and Mary, where he finished his education at an early age. Before he arrived at his majority he assumed the entire management of the large estate left him by his father. He shortly after married Elizabeth, the beautiful and

accomplished daughter of Colonel William Bassett, and niece to the sister of Lady Washington. He was a man of great muscular power, above the middle height, graceful but plain in his manners, with an intelligent countenance, indicating truly strength of mind and decision of character. Towards the latter part of his life he became corpulent, in consequence of good dinners and a quiet mind. Before he arrived at the age then required by law, he was elected a member of the house of burgesses, and soon became a distinguished leader. His talents were of the peculiar kind calculated to lead, without an apparent desire to command. His magic wand was sound discretion deliberately and firmly exercised on all occasions, enlivened by a good humour and sprightliness that took off the wiry edge of his otherwise stern qualities; for when his purposes were fixed, it required a powerful lever to move them—he adhered to them with a firmness that in a more morose man would have been called obstinacy.

Wielding a powerful influence, the creatures of the crown were particularly courteous towards him, especially just preceding the commencement of the revolution, and proposed to confer upon him the highest official dignity in the colony, except that of governor, which was always reserved for a *native* of the mother country. But Mr. Harrison was too independent in mind, too republican in principle, and too penetrating in their designs, to be caught in the silken web of ministerial intrigue or royal cunning. With all his wealth and influence he was a plain common sense man, acting upon the principle that modesty is the handmaid of virtue, and has more charms than the pomp of courts and the flourish of high pretensions. He was a man of the people, and went for them and his country. He was too high minded to become a tool, and scorned to be the slave of a king.

As early as 1764, Mr. Harrison was one of the committee appointed by the house of burgesses that prepared an address to the throne, a memorial to the house of lords, and a remonstrance to the house of commons of Great Britain, predicated upon the Virginia resolutions, anticipating the contemptible stamp act. These documents were strong meat in view of a majority of the house, and by the process of political alchymical chemistry, were transmuted to milk and water. But the time rolled on that brought with it circumstances that inspired far different feelings and action. As British oppression increased, Virginia patriotism and indignation were kindled to a

flame that illuminated the remotest bounds of the old dominion. Harrison, Henry, Wythe, Randolph, Jefferson and other sons of Virginia were roused. Mr. Harrison was a member of the convention that met at Williamsburgh on the first of August, 1774, that passed a series of strong resolutions in favour of equal rights, and sanctioned the measures of opposition adopted in New England. The same convention appointed seven delegates to the Congress to be held at Philadelphia, Mr. Harrison being one. When the time arrived, he repaired to the post of duty and of honour. As but one object was contemplated at that time—the adoption of measures to sustain right, justice and peace, the session continued but two months, and was entirely employed in preparing petitions, remonstrances, and addresses, in which Mr. Harrison aided by his counsels. A personal acquaintance and a free interchange of personal views, which served to establish mutual confidence, and to produce a concert of feeling when the time for more decisive action arrived, appears to have been the greatest good that resulted from the meeting of that Congress. Its proceedings also placed the colonies in a favourable light in view of other nations and of reflecting men, showing that they paid a proper respect to the royal authority of the mother country, and were unwilling to cut the cord of allegiance without a just cause. The king and his infatuated counsellors were left without excuse in their mad career.

On the 20th of March, 1775, Mr. Harrison was a member of the Virginia Convention that met at Richmond, and passed the bold resolutions offered by Patrick Henry. A vote of approbation and thanks was also passed in favour of the delegates that had served in Congress the preceding autumn. Many had their eyes opened at that time and came to the rescue of their country.

Lord Dunmore, anticipating the appointment of delegates to a second Congress, issued his proclamation forbidding the procedure, at the same time affecting to treat the convention as a mere bagatelle. But the time had arrived when proclamations from the royal governors had lost their virtue and were in bad odour. The convention elected Congressional delegates, among whom was Mr. Harrison.

When he again repaired to his post, a wider field opened for labour. The proceedings of the preceding Congress had been treated with contumely by the crown, and an awful crisis had arrived. The cry of blood resounded from

the heights of Lexington, and penetrated the ears, the heart, the very soul of every patriot.

At the death of Mr. Randolph, the first president of the Continental Congress, Mr. Hancock was elected to fill his place. When his name was announced, he seemed overcome with a modest diffidence, and not proceeding instantly to his post, Mr. Harrison, who was standing near him, picked him up in his gigantic arms and placed him in the chair, remarking, "we will show mother Britain how little we care for her, by making a Massachusetts man our president, whom she has excluded from pardon by public proclamation."

Action now became the order of the day. Each gale from the North wafted tidings of fresh outrages and increasing oppression on the part of "mother Britain." Congress began to prepare for the worst, although many of its members still listened to the syren song of peace. An important committee was appointed to devise ways and means for defence, and for organizing the militia throughout all the colonies that were represented, of which Mr. Harrison was an efficient member. After labouring arduously for a month, the committee reported the plan of military operations that carried the American armies through the revolution. From the fact that Mr. Harrison was uniformly selected to aid in military operations when they required the attention of Congress, it may be inferred that he was well qualified to act in that department. He was on the most intimate terms with Washington and enjoyed his unlimited confidence, which is the *ne plus ultra* of eulogy upon his character.

In September, he was one of the committee of three appointed to consult with the commander-in-chief, and with the authorities of the regenerated colonies, for the means of preparing for vigorous action. On the 29th of November, he was appointed chairman of the committee of five to take charge of the foreign correspondence, subsequently organized and made the committee on foreign affairs. On the second of December, he was sent to Maryland to aid in organizing a naval armament to repel the predatory warfare of Lord Dunmore along the shores of the Chesapeake. On the 17th of January, 1776, he laid before Congress a plan upon which to predicate the recruiting service, which was approved. On the 21st of the same month, he was placed upon the committee to organize the war department, and two days after, started with Messrs. Lynch and Allen to

New York, to aid General Lee in arranging means for its defence, and for the erection of fortifications upon the two confluent rivers. On his return he was placed on the committee for organizing the military departments of the middle and southern colonies; and on the sixth of March he was placed on the standing marine committee, bestowing upon him labour according to his physical as well as mental powers.

On the 26th of March, Congress published a complete preface to the declaration of independence, setting forth the contempt with which the petitions, remonstrances, and appeals for redress had been treated, and portraying in lively colours the constitutional and chartered rights of the American people, and the manner they were trampled under foot and steeped in blood by the British hirelings. The same document authorized the colonies to fit out vessels of war to meet the mistress of the seas on her own element. At the same time Mr. Harrison was appointed chairman of a committee to select and cause to be fortified one or more ports for the protection of these vessels and such prizes as they might take. In May, he was made chairman of the committee on the Canada expedition. After consulting Generals Washington, Gates, and Mifflin, he laid a plan of operations before Congress, which was approved. On the 26th of the same month he was appointed chairman of a committee of fourteen, directed to confer with the general officers of the army relative to a plan of operations for the ensuing campaign. When this was matured he laid it before Congress, and during its consideration was chairman of the committee of the whole. With some amendments the report of the committee was adopted. On the 15th of June a board of war was organized, of which Mr. Harrison became chairman, and continued to fill this important post until he retired from Congress. In the discharge of its duties the revered Judge Peters remarks of him, "He was a member, &c. when I entered upon the duties assigned me in the war department. This gave me an opportunity of observing his firmness, good sense and usefulness in deliberation and in critical situations, and much use indeed, was required of these qualities, when every thing around us was lowering and terrific."

Mr. Harrison became very popular as chairman of the committee of the whole, and when in the house, uniformly presided when important questions were under discussion. He was in the chair during the discussion of the declaration of independence. He also brought up the resolution of the

committee that recommended the formal preparation of that sacred instrument, and on the fourth of July reported it as sanctioned by Congress, and sealed his own approbation with his vote and signature. As a further evidence of his cheerfulness and good humour under all circumstances, at the thrilling moment when the members were signing what was by many considered their death warrant; as Mr. Gerry, who was a light slender man finished his signature, the robust Mr. Harrison remarked to him, "When the hanging scene comes to be exhibited, I shall have all the advantage over you. It will be all over with me in a minute, but you will be kicking in the air half an hour after I am gone."

During the protracted discussions upon the articles of confederation, Mr. Harrison was uniformly in the chair if in the house. From August until the 5th of November, 1776, he was not a member of Congress, and was engaged in the service of his own state, having been appointed one of the counsellors of Virginia under the new form of government. He then succeeded Mr. Jefferson, and again assumed the important stations he had before so ably filled. He was also placed upon the committee to superintend the movements of the northern army. During the sad reverses of the winter of 1776–7, he remained firm at his post, whilst many had gone home disheartened and dejected, but not willing to abandon the cause of freedom. When Congress was compelled to fly from Baltimore to Lancaster, where they remained but for a day, and from there to Yorktown, he followed all its destinies. At one time, at the latter place, the number of members did not exceed twenty, but these few were rendered more zealous and strong from this very circumstance. When there were but twenty-eight, Samuel Adams said it was the truest Congress ever assembled; and when the number was reduced still lower, the amount of zeal manifested and labour performed was not diminished. Its enemies predicted its final dissolution, but proved themselves to be false prophets. They even reported that Mr. Harrison was about to desert the cause. The moderation of this patriot often interposed to soften proposed measures that were too hasty and harsh. When the question was agitated relative to the Quakers, (referred to in the biography of Mr. Chase,) he interfered in their behalf, and as one of their number often remarked, "He saved us from persecution. He had talents to perceive the right and firmness enough to pursue it however violently opposed."

At the close of 1777, Mr. Harrison resigned his seat in Congress and returned to the bosom of his family. No one member had performed more labour than him, and no one was more highly esteemed and honoured. He was a colossus in the cause of liberty and human rights. He was emphatically a powerful working man.

On his return to his constituents he was not permitted to enjoy repose, but was immediately elected to the house of burgesses, and on taking his seat, was elevated to the dignified station of speaker, which he continued to fill for five successive years. During that period the revolutionary storm rolled its fury over Virginia, which before had experienced but little inconvenience within its own borders. Arnold the traitor and Cornwallis the tyrant, were tinging its streams and saturating its soil with the blood of her noble sons. Fire and sword, murder and rapine, ruin and destruction, marked their savage career. The house of burgesses was driven from Richmond to Charlottesville, to Staunton, and to the Warm Springs, and found but a transient resting place at either. Application was made to Washington, but he could afford no relief. During these rapid removes of the legislature, Mr. Harrison remained firm, and used every exertion to promote such measures as were best calculated to ward off impending dangers. He did much to rouse the people to action and dispel the terrors of their minds. He knew no fugitive fears; the opinion of another writer to the contrary notwithstanding, uttered without any foundation in truth, merely to raise his own hero above his proper level, by climbing upon the shoulders of the towering reputation of Mr. Harrison. This *ruse de guerre* will not answer even at this late day. Records speak for the dead in a voice that withers the slanderer like the hand writing that paralysed the sturdy frame of Belteshazzar.

In 1782, Mr. Harrison was elected governor of Virginia and assumed an herculean task. The recent devastations of the British army, and the efforts of internal enemies, had thrown every thing into one chaotic mass. He entered upon his duties with an energy and sagacity that showed no "fugitive fear," and so well did he succeed, that he became one of the most popular chief magistrates that ever filled the gubernatorial chair of Virginia. He was re-elected twice, and then became ineligible by the constitution, and once more sought repose in retirement. Immediately after, he was nominated as a candidate for the legislature without his knowledge, and for

the first time was unsuccessful. His election was defeated by a singular circumstance that was taken advantage of by his opponent. When governor, he had directed the militia to level the embankments at Yorktown, which was an unpopular measure. Without lamenting his defeat, effected entirely by intrigue, he removed into the adjoining county of Surrey, and was returned to the same legislature with his competitor; and to render his triumph more complete and the mortification of his opponents more galling, he was elected speaker of the house. Before the year expired his old constituents solicited him to return to his former residence. Old age and infirmity began to admonish him to retire, and he declined a re-election.

In 1788, he was a member of the convention of his state to which the federal constitution was submitted, and was appointed chairman of the first committee—that of privileges and elections. He opposed the document submitted as too indefinite in defining the powers of the general and state governments, and sanctioned it with certain amendments that were returned with it. So strong was the opposition to its adoption by nearly half of the delegates, that they held a private meeting in the night for the purpose of adopting plans of opposition that were calculated to produce the most fatal consequences. Fortunately, the deliberate old patriot, Mr. Harrison, gained admittance and prevailed upon them to submit to the majority of nine and pursue the legal remedy for obtaining amendments. This noble and patriotic act formed the crowning glory of his public career. In 1790 he was nominated chief magistrate, but declined serving, and used his utmost influence for Mr. Randolph and induced his own son to vote against him, who was then a member of the house, by which the governor was elected. Mr. Randolph had become unpopular with a part of the members, who were confident of defeating him could they prevail upon Mr. Harrison to consent to be used as a *party* man.

During the next year his health declined rapidly, and in April, shortly after his unanimous election to the legislature, he was prostrated by a severe attack of the gout, which terminated his long and useful life, leaving a large family of children to mourn the loss of a kind father, and his country to lament the exit of one of her noblest patriots. He was the father of General Harrison of Ohio, whose name is now before the public as a candidate for the next president of the United States. The private character of this zealous champion of liberty was without reproach. His wit and humour made him a

pleasant companion, his intelligence and good sense made him an interesting one. His clear head, good heart, sound judgment and equable moderation, made him an important public servant, exactly suited to the times in which he lived.

CÆSAR RODNEY.

Genealogy was once an essential part, the first stepping stone of biography, a kind of titular idol held in great veneration. In countries where the iron sceptre of monarchy is still swayed, where titles of honour create lineal dignity without regard to merit, where blood is analyzed by political chemistry and all the precipitants are rejected but the carbonate of noble pedigree, where royalty descends upon a *non compos mentis* incumbent with the same facility that it reaches a man of good intellect, genealogy is still measurably the criterion by which to determine the importance and degree of character. As light and intelligence shed their benignant rays upon mankind, the importance attached to this titular deity will be diminished. Where rational liberty reigns triumphant, merit alone creates dignity; the man is measured by his actions, not by the purple fluid that flows through his veins. In our free country genealogy is a matter of curiosity, not of veneration. The son of a coal cracker, or of a cobbler, whose father may have been a foundling, can rise to the highest station within the gift of the people by the force of talent and merit. I am aware that the aristocracy of wealth is a noxious weed that sheds its deleterious influence around us, but not yet sufficiently strong to prevent genius from acquiring a rapid and towering growth. In times of danger and peril its power will be lessened in the same ratio that these increase. It withers and dies when reached by the magic wand of republican patriotism. Then “what is a name, my lord?”

One book error is prevalent in our country which should be corrected. It is predicated upon hereditary notions of blood, and is anti-republican. Some of our latest writers promulgate the idea that the criminal conduct of *one* member of a family disgraces the *whole*. In a community purely republican, every individual is judged according to his or her own deeds, and no act in one can criminate or disgrace another who is innocent. The very writers amongst us who thoughtlessly publish this *imported* sentiment, pursue a different course practically, and treat others agreeably to their merit, without reference to the conduct of their relations. Their practice is

better than their theory. But few families in America can trace their ancestors as far back as the Rodneys of Delaware. This name was introduced into England with the Norman queen Maud or Matilda, as early as 1141, and stands among the foremost on the list of military fame acquired during the Norman conquest and at subsequent periods. To those who are conversant with the history of the stormy times of that kingdom, the name of Sir Walter De Rodeney, and others of the same line, is familiar. They were able in council and in war, they figured in the civil, military and naval departments, and received the highest honours that could be awarded to their rank by kings and queens. They were also remarkable for magnanimity and liberality. Under the auspices of William Penn, a branch of this ancient family, William Rodney, came to Philadelphia and finally settled in Kent, Delaware. He was the son of William Rodney, of England, who married Miss Alice, daughter of Sir Thomas Cæsar, a wealthy merchant. William Rodney, who located at Kent, left one son, Cæsar, who was the father of the subject of this sketch.

CÆSAR RODNEY was a native of Dover, Kent county, Delaware, and born in 1730. He appears to have received a good education, and at the death of his father inherited an ample fortune in real estate. He was a slender man physically, with an animated countenance, easy and pleasing in his manners and gentlemanly in his intercourse. Owing to a cancer upon his nose, which commenced its ravages upon him at an early age, he became greatly emaciated, and long before his death was emphatically a moving skeleton. The cancer having spread over one side of his face, he was compelled for many years to wear a silk bandage over it. Notwithstanding this affliction he was uniformly sprightly and cheerful. With a strong and penetrating mind, firmness of purpose and decision of character, he united an abundant share of keen wit and good humour, that rendered him an agreeable companion—his vast stock of experimental intelligence and practical knowledge rendered him an instructive one.

With qualities like these Mr. Rodney became a popular public man. His views were liberal and decidedly republican. In 1758 he became the high sheriff of his native county, and discharged the duties of his office with so much ability that he at once gained the confidence and esteem of his constituents. When his term of service expired he was appointed a justice of the peace and judge of the lower courts. In October, 1762, he took his seat

in the legislature at Newcastle and became an active and influential member. He was one of the committee that prepared the answer to the message of the governor and was placed on other important committees. At the close of the session he was put in charge of the great seal to be affixed to such laws as had been passed.

When the rights of the colonies were threatened by assumptions of power on the part of the mother country, not warranted by the British constitution and in violation of chartered privileges, Mr. Rodney was among the first who took a bold stand in favour of liberty. In conjunction with Messrs. M’Kean and Kollock he was appointed a delegate to the Congress that convened at New York in 1765, to remonstrate against the stamp act and other threatened innovations upon the privileges of the colonies, that had been long enjoyed and were guarantied by the social compact between the king and his “dutiful and most loyal subjects in America.”

After the stamp act was repealed Mr. Rodney was appointed on the committee with Messrs. M’Kean and Read to prepare an address to the king expressive of the joy produced throughout the colony by this event. It resembles those prepared by the other colonies and will give the reader an idea of the feelings of loyalty that pervaded the colonies at that time. The following extract is deemed sufficient for the present purpose.

“We cannot help glorying in being the subjects of a king that has made the preservation of the civil and religious rights of his people and the established constitution the foundation and constant rule of government, and the safety, ease and prosperity of his people his chiefest care—of a king, whose mild and equal administration is sensibly felt and enjoyed in the remotest part of his dominions. The clouds which lately hung over America are dissipated. Our complaints have been heard and our grievances redressed—trade and commerce again flourish. Our hearts are animated with the warmest wishes for the prosperity of the mother country, for which our affection is unbounded, and your faithful subjects here are transported with joy and gratitude. Such are the blessings we may justly expect will ever attend the measures of your majesty, pursuing steadily the united and true interests of all your people throughout your wide extended empire, assisted with the advice and support of a British parliament and a virtuous and wise ministry. We most humbly beseech your majesty graciously to

accept the strongest assurances that having the justest sense of the many favours we have received from your royal benevolence during the course of your majesty's reign, and how much of our present happiness is owing to your paternal love and care for your people, we will at all times most cheerfully contribute to your majesty's service, to the utmost of our abilities, when your royal requisitions, as heretofore, shall be made known: that your majesty will always find such returns of duty and gratitude from us as the best of kings may expect from the most loyal subjects, and that we will demonstrate to all the world that the support of your majesty's government and the honour and interests of the British nation are our chief care and concern, desiring nothing more than the continuance of our wise and excellent constitution in the same happy, firm and envied situation in which it was delivered down to us from our ancestors and your majesty's predecessors."

With feelings like these pervading the colonies, the reader must readily conclude that nothing but the most cruel oppressions could have driven the American people to a revolution. Connect this address with the fact of a final separation from Great Britain, and the imagination is at once supplied with reasons for the declaration of independence, strong as holy writ—more especially as both documents emanated from the same statesmen.

Mr. Rodney continued an active member of the legislature for several years and took a deep interest in all public measures. He introduced an amendment to a bill relative to slaves, prohibiting the importation of negroes into the colony. So ably did he support his amendment that it was lost by a majority of only two votes.

"Whom the gods will destroy they first make mad."

So with the British ministry—they were madly bent on reducing the American colonies to unconditional subjection, and after a short interval again commenced a system of oppression upon a broader and bolder scale. Once more the people appealed to their king—but appealed in vain. Mr. Rodney was upon the committee that prepared the second address to his majesty just before the commencement of the revolution. The following extract will show the reader the views of the colonists and the grievances complained of.

“The sense of our deplorable condition will, we hope, plead with your majesty in our behalf for the freedom we take in dutifully remonstrating against the proceedings of a British parliament, confessedly the wisest and greatest assembly upon earth. But if our fellow subjects of Great Britain, who derive no authority from us, who cannot, in our humble opinion, represent us, and to whom we will not yield in loyalty and affection to your majesty, can, at their will and pleasure, of right give and grant away our property; if they can enforce an implicit obedience to every order or act of theirs for that purpose, and deprive all or any of the assemblies on this continent of the power of legislation for differing with them in opinion in matters which intimately affect their rights and interests, and every thing that is dear and valuable to Englishmen, we cannot imagine a case more miserable—we cannot think that we shall have even the shadow of liberty left. We conceive it to be an inherent right in your majesty’s subjects, derived to them from God and nature, handed down from their ancestors, confirmed by your royal predecessors and the constitution, in person or by their representatives, to give and grant to their sovereign those things which their own labours and their own cares have acquired and saved, and in such proportions and at such times as the national honour and interest may require. Your majesty’s faithful subjects of this government have enjoyed this inestimable privilege, uninterrupted, from its first existence till of late. They have at all times cheerfully contributed to the utmost of their abilities for your majesty’s service as often as your royal requisitions were made known, and they cannot now, but with the greatest uneasiness and distress of mind, part with the power of demonstrating their loyalty and affection to their beloved king.”

Addresses similar to this were laid at the foot of the throne from all the colonies and from the Congress of 1774. The struggle between filial affection and a submission to wrongs, was of the most agonizing kind. This, united with the known weakness of the colonies, renders the American revolution a striking lesson to those in power, admonishing them not to draw the cords of authority too closely, and gives encouragement to freemen to resist every encroachment upon their liberty.

In 1769, Mr. Rodney was chosen speaker of the assembly of Delaware, and filled the chair for several years with honour and dignity. As the specks of war began to dim the fair face of freedom he became one of the most

active opposers of British tyranny. He was a member of the Congress that convened at Philadelphia in 1774, and received the approbation of his constituents for his firm and patriotic course. The ensuing year he was again a member of the national assembly of sages, and took an active part in its duties, deliberations and discussions. In his own province he had much to do. The royal attachments were deeply rooted, and it required great exertions to counteract the intrigues of foes within, and repel the attacks of enemies without. In addition to his duties as speaker of the assembly of Delaware and member of Congress, he was brigadier-general of the militia. His numerous messages to the legislature, and letters to his officers, urging them to decisive action, manifest great industry, strength of mind, clearness of perception, firmness of purpose and patriotic zeal. He was decidedly in favour of the declaration of independence from the time the proposition was first laid before Congress. The day previous to the final question upon this important measure, he was in Delaware pursuing means to arrest the career of certain tories in the lower part of the province. Mr. M’Kean informed him by express of the approaching crisis. He immediately mounted his horse and arrived at Philadelphia just in time to dismount and enter the hall of Congress, with boots and spurs, and give his vote in favour of liberty, and affix his name to that bold instrument that dissolved allegiance to England’s king, and created a compact of rational freedom.

In the autumn of 1776, the tories so far succeeded in obtaining the reins of power as to prevent the re-election of Mr. Rodney to Congress. But this only served to increase the exertions of this devoted patriot. He immediately commenced military operations and repaired to Princeton, soon after the brave Haslet and Mercer fell in the cause of justice. He was also an active member of the council of safety. He remained with the army for two months, and received the high approbation of the commander-in-chief for his active services in bringing out the militia and raising recruits. In a letter written to him by Washington, dated at Morristown on the 18th of February, 1777, is the following eulogium: “The readiness with which you took the field at the period most critical to our affairs—the industry you used in bringing out the militia of the Delaware state—and the alertness observed by you in forwarding on troops from Trenton—reflect the highest honour on your character and place your attachment to the cause in the most distinguished point of view. They claim my sincerest thanks, and I am happy in this opportunity in giving them to you.”

On his return to his native state he was appointed a judge of the supreme court, organized under the new order of things. He declined serving, believing that he could be of more use to the cause in other situations. About that time an open insurrection against the new government broke out in Sussex. He immediately repaired to the district with a few troops and quelled it at once. At the time the British forces were preparing to march from the Chesapeake towards the Brandywine, General Rodney was stationed south of the American army to watch the movements of the enemy, and if possible to get between them and their shipping. He exerted his noblest powers to rouse the militia to their duty, and acquitted himself faithfully in the discharge of every duty that devolved upon him.

In December, 1777, he was again elected to Congress, but the legislature of his state being in session, he concluded to remain in that until the close of its deliberations, during which time he was elected president of Delaware, which prevented him from rendering any further assistance in the national assembly. His services in his new and dignified station were of the utmost importance in the exposed territory over which he presided. His exertions in raising supplies for the continental army were of the most vigorous character, especially during the winter and spring of 1779, when the troops were much of the time on half allowance, and the magazines so empty and bare, that it frequently seemed impossible that the army could be sustained another week.

During the four years that he presided over the destinies of Delaware, he had many refractory spirits to manage and many difficult questions to decide which required the exercise of firmness, prudence and wisdom. All these qualities were possessed by him. Upon his own matured judgment he relied. His course was onward towards the temple of liberty, and so discreetly did he pursue it, that he stood approved and applauded by every friend of equal rights, and was admired even by his enemies. He continued to serve his country until 1783, when he fell a victim to the cancer that had been preying upon him for many years. He met death with calm submission and fortitude, and died rejoicing in the bright prospects that were opening upon his country.

From his writings he appears to have highly respected religion and to have practised the soundest morals. His private character was unexceptionable and truly amiable. He was partial to good dinners but not

guilty of any excesses. He was remarkably fond of a good joke, and sometimes exhibited brilliant displays of wit, but was extremely careful not to give personal offence.

When in Congress, Mr. Harrison, who had often claimed Virginia as the *Dominion* of the colonies, asked for immediate aid to protect her from the invading foe. When he sat down, Mr. Rodney rose, with assumed gravity and sympathy, and assured the gentleman that the *powerful Dominion* should be protected: "Let her be of good cheer—she has a friend in need—DELAWARE will take her under its protection and insure her safety." The portly Harrison and the skeleton Rodney both enjoyed the "hit," and the other members were convulsed with laughter.

His constitutional sympathy was so strong that he always avoided, if possible, scenes of physical suffering, and could not be induced to approach the dying bed even of his dearest friend or nearest relative.

SAMUEL CHASE.

To be able to judge correctly of the actions of men, we must understand the philosophy of human nature thoroughly. We must trace the circuit of the immortal mind, follow it through the regions of revolving thought, become familiar with the passions that influence and control it, learn its natural desires, its innate qualities, its springs of action and its multifarious combinations. We must understand its native divinity, its earthly frailty, its malleability, its contractions, its expansions and its original propensities. In addition to all this knowledge, when we judge the conduct of an individual, we must know the predominants and exponents of his mind, the impress it has received from education, the motives that impelled it to action, the circumstances that produced its momentum, its propulsive and repulsive powers, the ultimatum of its designs and its ulterior objects. With all these guides we shall still become involved in errors unless our judgments are based upon the firm foundation of impartiality and are enlightened and warmed by the genial rays of heaven-born charity. Bias and prejudice are ever at our elbows, ready to lead us to false conclusions.

With such criteria before me, I proceed to sketch, concisely, the eventful career of SAMUEL CHASE, a native of Somerset county, Maryland, who was born on the 17th of April, 1741. He was the son of the Rev. Thomas Chase, who immigrated to this country from England, and in 1743 became the pastor of St. Paul's parish in Baltimore, then a mere country village and destitute of good schools. At the age of two years Samuel was deprived of the tender care of his mother by her premature death. In the superior classical and theological qualifications of his father to guide him in the paths of science and virtue, he was peculiarly fortunate. Under his instructions he became an accomplished scholar, admired and esteemed by a large circle of acquaintances. At the age of eighteen he commenced the study of law, and prosecuted it with great industry under the direction of John Hammond and John Hall of Annapolis. At the age of twenty he was admitted to practice in the mayor's court, and at twenty-two was admitted

to several of the county courts and the court of chancery. He located at Annapolis, married the amiable and intelligent Miss Ann Baldwin, and soon obtained the reputation of a sound lawyer and an able advocate.

He was of a sanguine temperament, bold, fearless and undisguised, independent in mind, language and action, but honest, patriotic and pure in his motives and immovable in his purposes—qualities that dignify a man if prudently balanced, but which often rouse the most implacable enmity in others. These leading traits in the original composition of the nature of Samuel Chase must be kept constantly in view to enable the reader to form a just estimate of his character. The circumstances and times that influenced him must also be borne in mind.

On the flood tide of a prosperous business and forensic fame, in the full enjoyment of domestic felicity and social intercourse with friends, Mr. Chase glided smoothly along until his country began to writhe under kingly oppression. The stamp act, the first born of the pernicious revenue system devised by the putrescent British ministry, met with a hostile reception in Annapolis. Mr. Chase, aided by a band of kindred spirits under the cognomen of the “sons of liberty,” forcibly seized and destroyed the newly imported stamps and burnt in effigy the stamp distributor. No further violence was then committed. The king’s officers opened a newspaper battery against this “furious mob,” and directed their whole artillery at Mr. Chase, complimenting him with the courtly names of “busy, restless incendiary; a ringleader of mobs, a foul-mouthed and inflaming son of discord and faction; a common disturber of the public tranquillity, a promoter of the lawless excesses of the multitude,” and similar emphatic appellations—conferring upon this young patriot a diploma of honour little anticipated by them. His answers to these vituperations were charged with strong and conclusive logic, keen and withering sarcasm. This brought him into the political field, and so delighted were the people with the manner he handled the hirelings of the crown that they elected him to the colonial assembly. There he took a conspicuous part and became the uncompromising opposer of all measures that were not within the pale of the constitution or that were tinctured with oppression. So strongly was he in favour of liberal principles and rational liberty, that he gave his whole influence and vote in favour of the repeal of the law that compelled the people to support the clergy, by which the stipend of his father was reduced

one half. Agreeably to the laws of primogeniture then in force, this was voting money out of his own pocket in order to impart greater freedom to the people at large. By his bold and independent course he became an object for the persecution of the creatures of the crown and an object of pride and admiration with the people. But his enemies found him a bramble full of the keenest thorns and were unmercifully scarified every time they approached him. His tongue, his pen, his logic and his sarcasm were as blighting as the sirocco of Sahara.

After the repeal of the stamp act a calm of the public mind ensued, but it was a calm of delusion such as precedes a tornado. The inquisitorial rack of the ministry was again put in motion; fresh impositions commenced and the fire of discontent was again kindled. The bill closing the port of Boston and authorizing the king's officers to seize and send to England for trial those who should dare resist the royal authority, roused the indignation of the colonies that had before been rather passive. A general Congress was agreed upon to meet at Philadelphia, and Mr. Chase, with four others, was appointed a member from Maryland. They were instructed to join in "agreeing on a general plan of conduct operating on the commercial connexion of the colonies with the mother country for the relief of Boston and preservation of American liberty." A committee of correspondence was also appointed, of which Mr. Chase was an active and efficient member.

The deep solemnity and unparalleled wisdom and prudence that marked the proceedings of the Congress of 1774, shed a lustre around the cause of equal rights, then in embryo, that forced applause from its most violent opposers. Had not the cabinet of Great Britain been blinded by sordid avarice, mad ambition and political delusion, and had not the king been a mere automaton, the moving, loyal and logical appeals from that august body of sages would have been treated with respect and peace restored. The colonists asked for nothing but what was clearly right, and asked in the most respectful and even suppliant manner. Ministers were left without an excuse; *their* sacrilegious hands broke the great seal of the social compact; their agents sowed the seeds of rebellion; their cruelty kindled the flame that devoured them; their visionary policy severed the cords of maternal affection; their treachery spread the mantle of righteousness over the cause of the revolution. We justly censure them for their corrupt designs

but rejoice in the result of their projects. Haman erected his own gallows—Grenville and North destroyed their own power.

In 1775, Mr. Chase was again returned to Congress, but was trammelled with instructions of conciliation that were not congenial to his ardent feelings. His prudence, however, kept him within their limits. He was placed upon numerous committees and upon the very important one of providing ways and means for preparing a naval armament. The ensuing year he was again elected to the national legislature, bound by instructions disavowing a desire for independence, imposing upon him a course of amity and pacific submission that would have induced him to decline serving, had he not hoped and predicted truly that British violence would eventually remove the injunction. In the spring of 1776 he was appointed upon an important mission, in conjunction with Benjamin Franklin, Charles Carroll and Bishop Carroll. These gentlemen proceeded to Canada for the purpose of persuading the Canadians to join in shaking off the yoke of bondage. The fall of General Montgomery and the dark gloom that hung over the cause of liberty induced them to decline, and after the most faithful and zealous efforts the committee were compelled to return without accomplishing the desired object, and the Canadas are still enjoying the cold comforts of foreign power. When he arrived and took his seat in Congress he was rejoiced to learn that the subject of a final separation from the mother country was under consideration and was ably and boldly advocated. It was the very measure to animate the soul of Samuel Chase. His instructions now became oppressive and hung over him like an incubus. He redoubled his exertions to open the eyes of the members of the Maryland convention and induce them to leave him and his colleagues to act upon their own judgments. The request was granted just in time for him to record his vote in favour of that imperishable instrument that has immortalized the names of its signers and is the pride of every true American. The same day that the declaration was adopted he was elected a third time to the Continental Congress, and continued to serve in that body the two next ensuing years.

A short time previous to the glorious fourth of July, Mr. Chase discovered that a Judas was among them in the person of the Rev. Dr. Zubly of Georgia, who was clandestinely corresponding with the enemy. So suddenly did this ardent patriot proclaim the name of the traitor upon the

floor of Congress, that “the gentleman from Georgia” admitted the truth of the charge and immediately retired from the house. His arrest was ordered, but when the officers went to his cage the bird had flown and was never “bagged.” No member but the accuser and the accused knew the fact before it fell upon their ears from Mr. Chase, like a thunder clap without a cloud in view. No one served upon more committees during his time in Congress, and no one performed his duty more cheerfully and faithfully than Mr. Chase. In every branch of legislation he was found fully competent to act well his part. In forming the articles of confederation he was all life and industry; he considered their adoption indispensably necessary to insure the completion of the good work already begun. The manner of representation, the mode of voting and the claims to the south sea, were the three points that elicited the most discussion. They were finally concluded and carried the colonies safely through their long and bloody struggle.

In the fall of 1776 Messrs. Chase, Wilson, Clymer, Stockton and Smith, were appointed a committee to take charge of the war department, the duties of which involved the great business of the nation. This power was subsequently delegated to Washington, which relieved these gentlemen from a most onerous burden. They cheerfully commenced their labours and as cheerfully resigned their task to him, in whose discretion and ability they had full confidence.

About this time Mr. Chase gave another example of his bold and fearless disposition. It was ascertained that many of the members of the society of Friends, in and about Philadelphia and New Jersey, inimical to the American cause, were circulating papers calculated to impede its progress, were acting in concert with the tories, and were in communication with the enemy; a report of which, with documents substantiating the charges, was submitted to Congress by the committee for suppressing internal enemies, of which he was the prominent member.

The exposure resulted in the confinement of several leading Quakers, a suppression of the seditious papers, and a course of more respectful neutrality by the society. The measure was then deemed harsh by some, and, at first view, will appear more so now; but on examination, taking into consideration all the circumstances of war, it will be found to be in accordance with the rules of epic law. Agreeably to the martial code of other nations, then the precedent guide for Congress, the punishment might have

been much more severe. By the religious tenets of the society of Friends it can never be sanctioned, and by every friend of liberty, the necessity of such a case, imposed by the rules of war, is always regretted. Every social compact and nation must be subject to its own laws, and minor parts of a community must submit to the ruling majority or superior power, or government cannot be maintained in any form. In 1777, Mr. Chase proposed a resolution to make loan office certificates a legal tender from whigs to tories for the payment of debts due. In 1778, the British parliament attempted a stratagem by which they hoped to create a division among the patriots by disseminating conciliatory propositions among the people, and by appointing commissioners, who, when they arrived, proposed conditions of inglorious peace. These promissory and flattering papers were widely circulated, and to counteract their influence it was necessary that Congress should prepare an answer. This task was imposed upon a committee and by that committee upon Mr. Chase. Most ably did he perform his duty. He unmasked the hypocrisy of the ministers, exposed their delusive gull trap to derision and scorn, and left them without a loop to hang upon. So well was it received by Congress that an unusually large number was ordered to be printed, and a resolution passed recommending the clergy throughout the country to read it to their congregations after service on Sundays. Like all the other plans of the British cabinet then devised for enslaving the colonies, it recoiled upon their own heads with all the force of re-action. The following is a copy of the answer written by Mr. Chase.

“Three years have now passed away since the commencement of the present war. A war without parallel in the annals of mankind. It hath displayed a spectacle the most solemn that can possibly be exhibited. On one side, we behold fraud and violence labouring in the service of despotism; on the other, virtue and fortitude supporting and establishing the rights of human nature.

“You cannot but remember how reluctantly we were dragged into this arduous contest, and how repeatedly, with the earnestness of humble entreaty, we supplicated a redress of our grievances from him who ought to have been the father of his people. In vain did we implore his protection; in vain appeal to the justice, the generosity of Englishmen; of men who had been the guardians, the asserters and vindicators of liberty through a succession of ages; men, who, with their swords had established the firm

barrier of freedom, and cemented it with the blood of heroes. Every effort was vain; for even whilst we were prostrated at the foot of the throne, that fatal blow was struck which hath separated us forever. Thus spurned, contemned and insulted; thus driven by our enemies into measures which our souls abhorred, we made a solemn appeal to the tribunal of unerring wisdom and justice. To that Almighty ruler of princes whose kingdom is over all.

“We were then quite defenceless. Without arms, without ammunition, without clothing, without ships, without money, without officers skilled in war; with no other reliance but the bravery of our people and the justice of our cause. We had to contend with a nation great in arts and in arms, whose fleets covered the ocean, whose banners had waved in triumph through every quarter of the globe. However unequal this contest, our weakness was still farther increased by the enemies which America had nourished in her bosom. Thus exposed on the one hand to external force and internal divisions; on the other to be compelled to drink of the bitter cup of slavery and to go sorrowing all our lives long—in this sad alternative we chose the former. To this alternative we were reduced by men, who, had they been animated by one spark of generosity, would have disdained to take such mean advantage of our situation, or had they paid the least regard to the rules of justice would have considered with abhorrence a proposition to injure those who had faithfully fought their battles, and industriously contributed to rear the edifice of their glory.

“But however great the injustice of our foes in commencing this war, it is by no means equal to that cruelty with which they have conducted it. The course of their armies is marked by rapine and devastation. Thousands, without distinction of age or sex, have been driven from their peaceful abodes to encounter the rigours of inclement seasons, and the face of heaven hath been insulted by the wanton conflagration of defenceless towns. Their victories have been followed by the cool murder of men no longer able to resist, and those who escaped from the first act of carnage have been exposed by cold, hunger and nakedness—to wear out a miserable existence in the tedious hours of confinement, or to become the destroyers of their countrymen, of their friends, perhaps, dreadful idea! of their parents or children. Nor was this the outrageous barbarity of an individual, but a system of deliberate malice, stamped with the concurrence of the British

legislature, and sanctioned with all the formalities of law. Nay, determined to dissolve the closest bonds of society, they have stimulated servants to slay their masters in the peaceful hour of domestic security. And, as if all this were insufficient to slake their thirst of blood, the blood of brothers, of unoffending brothers, they have excited the Indians against us; and a general, who calls himself a christian, a follower of the merciful Jesus, hath dared to proclaim to all the world his intention of letting loose against us whole hosts of savages, whose rule of warfare is promiscuous carnage—who rejoice to murder the infant smiling in its mother's arms—to inflict on their prisoners the most excruciating torments, and exhibit scenes of horror from which nature recoils.

“Were it possible, they would have added to this terrible system: for they have offered the inhabitants of these states to be exported by their merchants to the sickly, baneful climes of India, there to perish: an offer not accepted, merely from the impracticability of carrying it into execution.

“Notwithstanding these great provocations we have treated such of them as fell into our hands with tenderness, and studiously endeavoured to alleviate the afflictions of their captivity. This conduct we have pursued so far as to be by them stigmatized with cowardice, and by our friends with folly. But our dependence was not upon man. It was upon Him who hath commanded us to love our enemies and to render good for evil. And what can be more wonderful than the manner of our deliverance? How often have we been reduced to distress, and yet been raised up? When the means to prosecute the war have been wanting to us, have not our foes themselves been rendered instrumental in providing them? This hath been done in such a variety of instances so peculiarly marked almost by the direct interposition of Providence, that not to feel and acknowledge his protection, would be the height of impious ingratitude.

“At length that God of battles, in whom was our trust, hath conducted us through the paths of danger and distress to the thresholds of security. It hath now become morally certain, that if we have courage to persevere we shall establish our liberties and independence. The haughty prince who spurned us from his feet with contumely and disdain; and the parliament which proscribed us, now descend to offer terms of accommodation. Whilst in the full career of victory, they pulled off the mask and avowed their intended despotism. But having lavished in vain the blood and treasure of

their subjects in pursuit of this execrable purpose, they now endeavour to ensnare us with the insidious offers of peace. They would seduce you into a dependence which, necessarily, inevitably leads to the most humiliating slavery. And do they believe that you will accept these fatal terms? Because you have suffered the distresses of war, do they suppose that you will basely lick the dust before the feet of your destroyers? Can there be an American so lost to the feelings which adorn human nature—to the generous pride, the elevation, the dignity of freedom? Is there a man who would not abhor a dependence upon those who have deluged his country in the blood of its inhabitants? We cannot suppose this, neither is it possible that they themselves can expect to make many converts. What then is their intention? Is it not to lull you with the fallacious hopes of peace, until they can assemble new armies to prosecute their nefarious designs? If this is not the case, why do they strain every nerve to levy men throughout their islands? Why do they meanly court every little tyrant of Europe to sell them his unhappy slaves? Why do they continue to embitter the minds of the savages against you? Surely this is not the way to conciliate the affections of America. Be not therefore deceived. You have still to expect one severe conflict. Your foreign alliances, though they secure your independence, cannot secure your country from desolation, your habitations from plunder, your wives from insult or violation, nor your children from butchery. Foiled in their principal design, you must expect to feel the rage of disappointed ambition. Arise then! to your tents! and gird you for battle. It is time to turn the headlong current of vengeance upon the heads of the destroyers. They have filled up the measure of their abominations, and like ripe fruit must soon drop from the tree. Although much is done, yet much remains to do. Expect not peace whilst any corner of America is in possession of your foes. You must drive them away from the land of promise, a land flowing indeed with milk and honey. Your brethren at the extremities of the continent already implore your friendship and protection. It is your duty to grant their request. They hunger and thirst after liberty. Be it yours to dispense the heavenly gift. And what is there now to prevent it?

“After the unremitted efforts of our enemies we are stronger than before. Nor can the wicked emissaries who so assiduously labour to promote their cause, point out any one reason to suppose that we shall not receive daily accessions of strength. They tell you, it is true, that your money is of no value; and your debts so enormous that they can never be

paid. But we tell you that if Britain persecutes the war another campaign, that single campaign will cost her more than we have hitherto expended; and yet these men would prevail upon you to take up that immense load, and for it to sacrifice your dearest rights; for surely there is no man so absurd as to suppose that the least shadow of liberty can be preserved in a dependant connexion with Great Britain. From the nature of the thing it is evident that the only security you could obtain, would be the justice and moderation of a parliament who have sold the rights of their own constituents. And this slender security is still farther weakened by the consideration that it was pledged to rebels, (as they unjustly call the good people of these states,) with whom they think they are not bound to keep faith by any law whatsoever. Thus would you be cast bound among men whose minds, by your virtuous resistance, have been sharpened to the keenest edge of revenge. Thus would your children and your children's children, be by you forced to a participation of all their debts, their wars, their luxuries and their crimes; and this mad and this impious system they would lead you to adopt because of the derangement of your finances.

“It becomes you deeply to reflect on this subject. Is there a country upon earth which hath such resources for the payment of her debts as America? Such an extensive territory; so fertile, so blessed in its climate and productions. Surely there is none. Neither is there any to which the wise Europeans will sooner confide their property. What then are the reasons that your money hath depreciated? Because no taxes have been imposed to carry on the war; because your commerce hath been interrupted by your enemies' fleets; because their armies have ravaged and desolated a part of your country; because their agents have villanously counterfeited your bills; because extortioners among you, inflamed with the lust of gain, have added to the price of every article of life; and because weak men have been artfully led to believe that it is of no value. How is this dangerous disease to be remedied? Let those among you who have leisure and opportunity collect the monies which individuals in their neighbourhood are desirous of placing in the public funds. Let the several legislatures sink their respective emissions, that so there being but one kind of bills there may be less danger of counterfeits. Refrain a little from purchasing those things which are not absolutely necessary, that so those who have engrossed commodities may suffer, (as they deservedly will,) the loss of their ill gotten hoards, by reason of the commerce with foreign nations, which the fleets will protect. Above

all, bring forward your armies into the field. Trust not to appearances of peace or safety. Be assured that unless you persevere you will be exposed to every species of barbarity. But if you exert the means of defence which God and nature have given you, the time will soon arrive when every man shall sit under his own vine and fig-tree, and there shall be none to make him afraid.

“The sweets of a free commerce with every part of the earth will soon reimburse you for all the losses you have sustained. The full tide of wealth will flow in upon your shores, free from the arbitrary impositions of those whose interest and whose declared policy it was to check your growth. Your interests will be fostered and nourished by governments that derive their power from your grant, and will be obliged, by the influence of cogent necessity, to exert it in your favour.

“It is to obtain these things that we call for your strenuous, unremitted exertions. Yet do not believe that you have been or can be saved merely by your own strength. No! it is by the assistance of heaven; and this you must assiduously cultivate by acts which heaven approves. Thus shall the power and the happiness of these sovereign, free and independent states, founded on the virtue of their citizens, increase, extend and endure, until the Almighty shall blot out all the empires of the earth.”

This brilliant display of talent closed the congressional labours of this devoted friend of liberty. He retired with all the honours of a statesman, a sage, a patriot and an honest man. He had stood firmly at his post a faithful public servant, a bold advocate for freedom and the rights of man, an acute and discerning counsellor in every emergency, a fearless champion in times of danger, an ornament to his country and a terror to his enemies. As a working man he had no superior, as a debater he had but few equals. Without the mellifluous elocution of a Cicero, or any pleonastic parade, he spoke forcibly, reasoned closely, demonstrated clearly and deduced conclusively. He sought to inform the judgment, enlighten the understanding and to convince by sound argument. After the close of the revolution, Mr. Chase was sent to England to prosecute a claim in favour of Maryland for bank stock, and obtained for the state six hundred and fifty thousand dollars. His journal during his absence shows that he was a close observer of men and things in the minutest particulars. His high attainments as a lawyer, a scholar and a statesman—his frank and gentlemanly

deportment and his thorough and persevering business habits, made a very favourable impression upon the British barristers and members of parliament. He remained in Europe nearly a year, and on his return resumed the practice of law.

In 1786, he removed to Baltimore, in consequence of which his worthy friend, Colonel Howard, at whose solicitation he changed his residence, conveyed to him in fee a square of ten lots of ground situated near the plot designed for the public buildings, on the condition that he located upon it. This square is bounded by Eutaw, Lexington, Fayette and Paca streets, and the mansion house built by Mr. Chase is still owned by his descendants.

In 1788, he was appointed chief justice of the new criminal court organized for the then town and county of Baltimore, and the same year was a member of the Maryland convention that ratified the federal constitution. In 1791, he was appointed chief justice of the general court of his native state; and in 1796, he was appointed, by President Washington, an associate judge of the supreme court of the United States, which dignified station he filled with great ability to the time of his demise. He was esteemed one of the ablest judges upon the bench, and when serving in the courts below, seldom had one of his decisions reversed. His expositions of law and his charges to juries were learned, luminous, logical and profound. His manner was forcible, impressive and commanding. With all this lustre around him, and with his great and acknowledged services in the cause of the revolution still green and fresh, Judge Chase was placed in the crucible of severe and unrelenting persecution, prompted alone by political animosity, created by the lofty independence of thought and expression before alluded to, and which prepared him to act a bold, conspicuous and useful part, when the fury of British wrath was poured out upon his country.

In January, 1804, John Randolph obtained the passage of a resolution in the house of representatives of the United States, instituting an inquiry into the official conduct of Judge Chase, and as a salvo the name of Judge Peters was added. No man was ever more vigorous and persevering in the accomplishment of an object than Mr. Randolph, and no one was more capable of consummating his designs. The committee reported on the sixth of the ensuing March, acquitting Judge Peters from all blame, and recommending the impeachment of Judge Chase. On the 26th of the same month six articles of impeachment were reported, predicated upon the

following grounds: In 1800, he presided with Judge Peters at Philadelphia, when and where John Fries, who had been tried before Judges Peters and Iredel at the previous session for treason against the government of Pennsylvania, was put upon his trial a second time, in consequence of some informality at his first. Having been fully informed of the points of law at issue and the proceedings of the first trial, Judge Chase previously prepared an elaborate exposition of his opinions upon the law of treason, and with his constitutional frankness, and with the approbation of Judge Peters, submitted a copy to the counsel for the defendant and to the district attorney, reserving a copy for the jury *after* the trial was over. Messrs. Lewis and Dallas, counsel for the prisoner, considered this *professionally* and *professedly* a pre-judgment of the case, suffered Fries to be tried without any aid, undoubtedly intending and successfully succeeding in creating an excitement of sympathy that procured his pardon immediately after conviction. Fries subsequently called upon Judge Chase and thanked him for the impartial manner he had treated him when on his trial. The whole matter was then considered, as it undoubtedly was, a *ruse de guerre* of ingenious counsel, and no one attributed any bad motives to the bench. The approval of Judge Peters at the time is a conclusive evidence that the course of Judge Chase was not only pure in design, but that it was not in violation of the strictest rules of judiciary proceedings. He had given an opinion upon the *law*, not upon the *facts* of the case. This he was bound to explain to the grand jurors before they proceeded to find any bills, and to the traverse jury that tried each prisoner. This constituted the first charge in the impeachment. Shortly after, a man named Callendar was tried before Judge Chase in Richmond, Virginia, under the sedition law, for publishing a libel upon the president. During the trial the judge refused the admission of testimony offered on the part of the prisoner, as he believed illegally, and thereby greatly offended those who were opposed to the law in question. He believed the law salutary, as he did that which suppressed the tories and Quakers in 1776; and believed the venality of the press required a check; many others thought differently. The law, right or wrong, he was compelled by his oath of office to execute so long as it remained in force. That his *legal* decisions were correct, must be presumed, or a writ of error would have been taken under the existing excitement. This formed the foundation of the second charge.

From Virginia he proceeded to New Castle, Delaware, where he held a court aided by Judge Bedford. In his charge to the grand jurors, presuming that cases under the unpopular sedition law might come before them, he gave his views frankly upon it, and that they might better understand what constituted a breach of its provisions, alluded to the publications of a high toned party paper printed in the district, as containing the kind of libels intended to be suppressed by it. This gave great offence to those who were opposed to it. But the judge only discharged a duty which he had sworn to perform. The personal allusion may be considered by some uncourteous, but his object was plain and simple demonstration for which he was always remarkable. No ingenuity has or ever can fairly construe it into a pre-judgment of the case. The publications were before him, they came clearly within the meaning and intention of the law. He charged them upon no individual specifically, but that some one had published them was beyond dispute, and that they were in violation of the law in question, was to his mind equally plain. This constituted the ground of the third article of the impeachment.

In 1803, Judge Chase, in delivering his charge to the grand jury of Baltimore, having become a decided federalist and believing the course pursued by the democrats was wrong, made sundry remarks upon the politics of the day. This was, in my opinion, a surplusage of duty, but not a subject of impeachment, and may be traced to the warm temperament of his mind, the great political excitement of that period, and to the innovations, as he believed them, upon the constitution and laws by political influence, without discovering a shadow of impurity in his motives. Freedom of speech is a constitutional privilege, and he was only using the same liberty claimed by his opponents, and which was then given by the repeal of the sedition law. That it was a proper time and place to read a political lecture I do not pretend, but it does not therefore follow that his designs were corrupt or his conduct criminal. The ermine of a judge is not rendered more comely by being powdered with the farina of politics, but his right to think and speak upon this subject, none will question. He animadverted in his charge upon the alterations of the constitution of his native state, particularly upon that of the extension of the right of suffrage, to which he had strong objections. In this particular his opinions were in unison with many of the most devoted patriots of the revolution, who deemed the elective franchise unsafe if controlled by uninformed men, who, not distinctly understanding,

would not properly appreciate their rights. The reasons for this opinion were stronger then than now, and an anxiety to preserve the government pure and undefiled, unquestionably pervaded the bosom of Judge Chase.

In another part of this charge to the grand jury he spoke strongly against the changes that had been made in the judiciary system of the United States, attributed them to party politics, and deemed them personal in their objects and not conducive to the public good in their operation. The last two points were proper subjects of comment, inasmuch as they related to his official duties. That a man like him should remark severely upon what he believed to be impolitic or wrong, was a matter of course. He was never accustomed to half-way business. In all this nothing appears to lead any candid mind to suppose he was not honest in his intentions and pure in his motives. Upon these premises the six articles of impeachment were based, and at the next session, out of the same material, two more were manufactured—the natural increase of a year.

On the 2nd of January, 1805, Judge Chase was arraigned before the Senate of the United States, a majority of the members being politically opposed to him, but among them were men who loved justice more than party. The gigantic powers of Mr. Randolph were brought to bear against the accused with all their force. The trial continued, except a short recess, until the first of March, a part of which time the Judge was confined by illness. He was defended by Messrs. Martin, Hopkinson, Harper and Key, ably and faithfully. Of five of the charges he was acquitted by a majority of the Senate, and a constitutional number could not be obtained to convict him on the others, and of course he stood approved, acquitted and triumphant over his enemies at the highest tribunal of his country. He had never doubted the favourable result and was at no time depressed by the prosecution. From that period to the time of his last illness his peace was undisturbed, and he continued to be an ornament to the judiciary, an honour to his country, and the faithful friend of human rights and equal justice. On the 19th of June, 1811, surrounded by his family and friends and in the full enjoyment of the smiles of his Redeemer, he bade a last farewell to sublunary things and died peaceful and happy.

In the character of this great and good man we find no corruption to condemn, and many strong and brilliant traits to admire. As a revolutionary patriot he stood on a lofty eminence; as a statesman he rendered many and

important services; as a lawyer he enjoyed a high reputation; as a judge, his talents and legal acquirements were of the most exalted character. All the charges against his judicial career, and the result of their investigation, have been faithfully laid before the reader, who is left to examine impartially, and I hope, to judge correctly. I find no evidence of guile in his heart; he expressed his opinions freely, he felt them strongly, and was evidently sincere in his conclusions.

Against his private character malice and slander never directed an arrow. He was in all respects above suspicion. He was a kind husband, an affectionate father, a warm friend, and an open, honourable, but scarifying enemy. From the constitution of his nature and the vehemence of his feelings, he was calculated to gain strong friends and create violent enemies. His independence and decision were admired, but often roused animosity in others. His political opponents he handled with great severity, which accounts for the mighty effort made to prostrate him.

He was a man of a noble and benevolent disposition—a friend to the poor and needy. A particular instance of his generosity was exhibited in 1783. Listening to the discussions of a debating club in Baltimore, he was forcibly struck with the talent exhibited by a youth, to him an utter stranger. On inquiry, he found that he was poor, and in the employment of an apothecary. He called upon him, advised him to study law; offered him a home at his house, the use of his library, and the aid of his instruction. His proposition was accepted; the youth arrived at manhood, rose to eminence, and became an ornament to America. This was the celebrated William Pinkney, who was minister to Russia, London, Naples, and attorney-general of the United States. He often recurred to his benefactor with feelings of the profoundest gratitude in after life.

Judge Chase was also a friend to education and religion. He was a member of St. Paul parish, and was active in promoting the best interests of practical piety, social order and purity of morals. His force, vigour, and decision of character and stern integrity, were admirably calculated for the period in which he lived; and if he sometimes offended by soaring above the non-committal system of technical politics, it must be attributed to the strong combination of conflicting circumstances that uniformly attend the period of a revolution, the formation of a new government, and the asperity

of high-toned parties, operating as they did upon the sensitive feelings of an ardent, patriotic and independent mind.



WILLIAM HOOPER.

The fear of God is the beginning of wisdom. This ancient apothegm can never be controverted by the ingenuity of sophistry; it is based upon reason, justice, and sound philosophy. Its solution is brief. To be wise is to be good—to be good is to be happy. To avoid all vice and practise only virtue, is the great desideratum of earthly bliss. Virtue carries with it its own reward. Vanity and vain glory may be richly laden with blossoms, but they bear no fruit. We must look to the great Author of all good for substantial enjoyment; we must fear to offend the majesty of his laws to be truly wise. The greatest men who have ever figured upon the stage of action, fully recognised the power of omnipotence, and feared to offend the great Jehovah. The sages of the American revolution were constantly under the influence of this salutary principle. This may be inferred from their writings, their examples, and the proceedings of the Continental Congress. Days of humiliation and prayer were frequently fixed and recommended by legislative proclamation, by the states and by the general government.

Among those of the signers who appears to have lived with the fear of God before his eyes, was WILLIAM HOOPER, a native of Boston, Massachusetts, born on the 17th of June, 1742. He was the son of the Reverend William Hooper, who came from Kelso, in the south of Scotland, and was for many years the pastor of Trinity church in Boston. He was a man of high accomplishments, a good scholar, an able and eloquent preacher, and a devoted christian. He was useful in life and lived in the affections of his people.

William, being of a slender constitution, received the first rudiments of his education from his father under the parental roof. At the age of seven years he was placed under the care of Mr. Lovell, and at the age of fifteen he entered Harvard University. His talents were of a high order and his industry untiring. His mind was moulded in wisdom, and averse to trifling amusements and fleeting pleasures. During vacation he repaired to his

father's library and devoted himself to the acquisition of knowledge, instead of obtaining a relaxation from study by mingling in the convivial circle. He had a great taste for the classics and polite literature. He paid particular attention to composition and elocution. Refinement in every thing was his aim.

In 1760, he graduated with the degree of bachelor of arts, and commenced the study of law under James Otis, one of the most distinguished counsellors of that day. From the pious course of his life from his youth up, his father had indulged a hope that his inclination would have led him to the pulpit, but cheerfully submitted to the choice he had made. The same industry and correct deportment that carried him successfully through college, enabled him to master the intricate science of his election, and gain the esteem of all who knew him. After completing his course he was admitted to practice, richly stored with theory for future use.

Manhood had now spread its dignified mantle over him. He was of the middle height, slender and elegant in form, gentlemanly and engaging in his manners, with strangers rather reserve, with his friends frank and familiar, free from affectation, of a serious turn, and at all times honest and sincere. His countenance beamed with intelligence and benignity, his powers of conversation were pleasing and instructive, chaste and classical. His mind was investigating, deliberative, analyzing and firm. His habits were strictly moral; his disposition was benevolent, hospitable and kind. As a public speaker he was eloquent, persuasive, logical and sometimes sarcastic. With qualities like these, Mr. Hooper repaired to Wilmington, North Carolina, in 1766, and commenced the practice of his profession. He was induced to locate there by several wealthy connexions residing in that place. He soon obtained a lucrative business; and to convince the people that he contemplated a permanent location among them, he married Miss Anna Clark, a lady of unusual accomplishments and strength of mind, and highly respectable in her character and connexions. She was the sister of General Thomas Clark.

His legal fame rose rapidly and was built upon a substantial basis. About the year 1768, he was employed to conduct several important public trials, which he managed with such skill and address, as to place him among the ablest advocates of the province. He was treated with marked attention by Governors Tryon and Martin, and by chief justice Howard.

These attentions from the king's officers arose, in a measure, from the superior talents and merit of Mr. Hooper, but had also an ulterior object—that of gaining his influence in favour of the designs of their royal master. This could not be accomplished. He had received his legal education in Boston, where the designs of ministers had been probed for years. He had imbibed liberal principles and was a friend to equal rights. Upon the firm basis of eternal justice he had planted himself, from which flattery could not decoy him nor threatening dangers drive him.

One peculiar circumstance may have caused a particular attachment for him on the part of the officers of government, that of having taken a bold stand against a class of desperadoes called *regulators*, who formed a dangerous association as early as 1766, in the interior of the province. They were composed principally of men who were ignorant, poor and savage, collected and led by men of more intelligence but of baser minds, who incited them to open rebellion by complaints against the civil authorities, and the promise of reward. They drove the judges from the bench and committed many personal outrages. They even set the military at defiance, and threatened to assume the entire rule. At that alarming crisis, Mr. Hooper was one who came forward and dared to advise decisive measures. The number of the regulators had accumulated to three thousand. The plan of Mr. Hooper was carried into execution; a military force was raised, a severe battle ensued and the insurgents were dispersed. This occurred in 1770.

In 1773, Mr. Hooper was elected a member of the assembly of North Carolina, and discharged his duties so much to the satisfaction of his constituents, that they returned him the ensuing year. It was then that the creatures of the crown attempted to throw a ministerial coil of oppression around the people, and it was then that they found a bold, fearless, eloquent and uncompromising opponent in William Hooper. He not only met them in the legislative hall with incontrovertible arguments, but he spread their designs before the public far and wide, by a series of essays over the signature of Hampden. His course was in favour of liberal principles, but ruinous to his purse. The question before the assembly was the re-organization of the judiciary, which had become defunct by the expiration of the statute that created it. An attempt was made to model it in such a manner as to meet the designs of the British cabinet. So powerful was the

influence of Mr. Hooper, that he kept his opponents at bay, and the province was a year without any courts.

He was now fairly before the people, a champion for liberty. On the 25th of August, 1774, he was appointed a delegate to the Congress of Philadelphia. In that body he was placed on the important committee that prepared a statement of the rights of the colonies, the manner these rights had been infringed, and the most probable means of affecting their restoration. He was also one of the committee that reported the statutes that affected the trade and manufactures of the colonies. Upon the report of these two committees all the conclusive proceedings of that Congress were based, from which we may infer that the ablest and most active men were placed upon them. The ensuing year he was re-elected to the national assembly, and soon after he took his seat, he was appointed chairman of a committee to prepare an address to the people of Jamaica relative to British oppression. It was written by him, and is in a style bold, vigorous and classical. The following extract is a fair sample. Speaking of the plan of action laid and pursued by the British ministry, he writes: "That our petitions have been treated with disdain, is now become the smallest part of our complaint. Ministerial insolence is lost in ministerial barbarity. It has, by an exertion peculiarly ingenious, procured those very measures which it laid us under the hard necessity of pursuing, to be stigmatised in parliament as rebellious. It has plunged us in all the horrors and calamities of civil war. It has caused the treasures and blood of Britain, formerly exhausted and shed for far other ends, to be spilt and wasted in the execrable design of spreading slavery over British America. It will not, however, accomplished its aim; in the worst contingency a choice will still be left which it can never prevent us from taking."

On the 12th of June, Mr. Hooper offered the following resolution in Congress, which demonstrates the position taken in the exordium of this sketch.

"It is at all times an indispensable duty devoutly to acknowledge the superintending providence of the great governor of the world, especially in times of impending danger and public calamity—to reverence and adore his immutable justice as well as to implore his merciful interposition for our deliverance; therefore,

“Resolved, that it is recommended by Congress that the people of the American colonies observe the twentieth day of July next as a day of public humiliation, fasting and prayer.”

The zeal and exertions of this patriot were of the most vigorous character. He served on numerous committees and was highly esteemed by all the members. His constituents were so well satisfied with his course that he was returned a third time to the honourable post he had so ably filled. In the spring of 1776, he was a member of the conventions that convened at Hillsborough and Halifax, and was one of the leading and most eloquent speakers. He also prepared an address to the people of the British empire that was written with much nerve and energy. He then repaired to his place in Congress, and boldly supported the declaration of rights. He had long been convinced of its propriety, and when the thrilling moment arrived for the final decision he sanctioned it by his vote and signature. He was an unwavering friend to the cause he had espoused; patient, cheerful, persevering, prudent and firm under all circumstances.

In February, 1777, he obtained leave of absence from Congress and returned to his family. When the news of the defeat of Washington at Germantown reached him at Wilmington, he was surrounded by a circle of his friends, who seemed dismayed at the intelligence. He rose calmly from his seat and remarked, with great animation and cheerfulness, “We have been disappointed!—but no matter—now that we have become the assailants there can be no doubt of the issue.”

Before his return his property had suffered from royal vengeance; his personal safety now became endangered and he was compelled to fly into the interior for safety. His family had removed several times. He made arrangements, in the event of the subjugation of the colonies by the British, to remove to one of the French West India Islands, where, it is said, all the signers, with the French minister, would have went, had not the independence of the states been sustained. He did not return to Wilmington until it was evacuated in 1781, during which time his family was there, exposed to the insults of the enemy. He appears not to have returned to Congress again, but mingled with the people, rousing them to a sense of their duty, and was an active member of the state councils. In 1782 he removed to Hillsborough, and endeavoured to restore his long neglected private affairs to order. In 1786, he was appointed by Congress a judge of

the court organized to settle the controversy between New York and Massachusetts relative to disputed territory, a delicate and important duty, from which he was relieved by an amicable settlement by the litigants before the court proceeded to act in the premises.

Mr. Hooper continued to take a conspicuous part in the legislation of North Carolina, and also pursued the practice of his profession until 1787, when his health began to decline and he retired from public life and from the bar, to enjoy that repose in domestic felicity which had always been more congenial to his mind than public stations, however lofty. In his retirement he carried with him the esteem of his fellow citizens and the gratitude of a nation of freemen. Not a blemish could be found to tarnish the fair fame of his public career or private reputation. He had served his country faithfully and discharged the duties of friend, citizen, lawyer, patriot, husband and father, with fidelity. From the elevated eminence of conscious integrity he looked back upon his past life—with the eyes of faith he looked forward to a crown of unfading glory, and in October 1790, closed his eyes in death and resigned his soul to that God whom to fear is the beginning of wisdom.

THOMAS NELSON.

Honesty is a virtue that commands universal respect. This term, like many others, has lost much of its original force and is too promiscuously used. When Pope proclaimed an honest man the noblest work of God, he included purpose, word and action in all things, under all circumstances and at all times. He alluded to a man whose purity of heart placed him above every temptation to violate the original laws of integrity which emanated from the High Chancery of Heaven. His imagination pictured a man whose every action through his whole life should pass the moral scrutiny of omniscience unscathed, and stand approved at the dread tribunal of the great Jehovah. Such a man is a noble work indeed, worthy of the highest admiration and closest imitation.

The signers of the declaration of independence were remarkable for integrity, and none of them more so than THOMAS NELSON, who was born at York, Virginia, on the 26th of December, 1738. He was the son of William Nelson, whose father was a native of England and settled in York at an early period. The father of Thomas was an enterprising and successful merchant, and eventually became also a wealthy planter. He filled many public stations with great ability, and during the interval between the administration of Lord Bottetourt and Lord Dunmore, presided over the colony *ex officio*, being then president of the executive council.

At the age of fourteen years Thomas Nelson was placed under the instruction of Mr. Newcomb, whose school was near Hackney, England. When his preparatory studies were completed he was placed at Cambridge and entered of Trinity College, under the tuition of Dr. Beilby Porteus, who was one of the brightest literary ornaments of his age and ultimately became the bishop of London. Guided by the master-hand of this finished scholar, accomplished gentleman and pious man, Mr. Nelson traced the fair lines of science and explored the avenues of literature. The principles of virtue and integrity were also deeply impressed upon his mind and

governed his actions through life. After spending eight years at the classic fountain in England, he returned to Virginia, highly polished in mind and person. He entered into the enjoyment of a large landed estate, and over one hundred and thirty thousand dollars in cash. In August, 1762, he led to the hymeneal altar Miss Lucy, daughter of Philip Grymes, of Brandon, and settled permanently at his native place. His house became the seat of hospitality and domestic felicity. He assimilated his style of life, in some respects, to that of an English nobleman when at his country seat. He rode almost daily to his plantation, a few miles from York, and amused himself with his gun. He also kept a pack of hounds and in the winter often joined in the thrilling and blood-stirring sport of the fox-chase. No respectable stranger could visit the town without receiving an urgent invitation to partake of his hospitality. In this manner his time passed smoothly along until the public demanded his services.

For a long time a particular intimacy existed between the leading men of Virginia and those of England. This arose from consanguinity and wealth and was kept alive for a century by an interchange of good feelings and offices. The sons of the wealthy men of the Old Dominion were uniformly educated in Great Britain, and imbibed the same feelings of independence manifested by the noblemen of the mother country, and felt themselves, very properly, entitled to as much confidence from the king as a native and resident of Albion. Hence, when the car of oppression was mounted by the British ministry, the noblest sons of Virginia were the most vigorous opposers of royal power. They at once acted in concert with the patriots of New England and treated the insults offered at Boston as though they had been personally directed to them. The very fact of former intimacy made this opposition more bitter and pointed.

In 1774, Mr. Nelson was elected to the house of burgesses and took a bold stand in favour of liberal principles. He was one of the eighty-nine members who assembled at a tavern the day after Lord Dunmore dissolved the house and formed themselves into an association of non-intercourse with Great Britain. At the next election he was again returned to the house of burgesses. He was a member of the convention, held on the first of August of that year, to elect delegates to Congress, and of the one convened in March, 1775, for this and other purposes. He supported the boldest measures that were proposed by the daring Patrick Henry, from which many

of the patriots at first recoiled with amazement. He had no ear for the syren song of peace when the shores of his country were darkened by foreign fleets and armies. From the following resolutions introduced in the last named convention by Patrick Henry, the reader can form an idea of the feelings that pervaded the minds of the leading patriots at that early period. One of the germs of our militia system will also be perceived.

“Resolved, that a well regulated militia, composed of gentlemen and yeomen, is the natural strength and only security of a free government; that such a militia in this colony would for ever render it unnecessary for the mother country to keep among us, for the purpose of our defence, any standing army of mercenary soldiers, always subversive of the quiet and dangerous to the liberties of the people, and would obviate the pretext of taxing for their support.

“That the establishment of such a militia is, at this time, peculiarly necessary by the state of our laws, some of which have already expired and others will shortly be so—and that the known remissness of government in calling us together in legislative capacity renders it too insecure, in this time of danger and distress, to rely that opportunity will be given of renewing them in general assembly, or making any provision to secure our inestimable rights and liberties from those further violations with which they are threatened.

“Resolved, therefore, that this colony be immediately put in a state of defence, and that —— be a committee to prepare a plan for embodying, arming and disciplining such a number of men as may be sufficient for that purpose.”

These resolutions were warmly supported by Mr. Nelson, whose property was exposed to the utmost danger in case of an open rupture with the royal authorities. The measure proposed was carried into effect, and from that time opposition to the pretensions of the crown assumed a bold front in Virginia. This convention assembled again in July, and divided the colony into sixteen military districts, the eastern district to raise forthwith a regiment of six hundred and eighty men, rank and file, and each of the others to raise a battalion of five hundred, to be at once armed and held in readiness to march at any moment. The convention also directed the raising of two regiments of regulars of one thousand and twenty privates, and

appointed Patrick Henry to command the first and Mr. Nelson to command the second. Thus Virginia assumed a determined and systematic attitude of defence at an early period.

On the 11th of August this convention met again and elected Mr. Nelson a delegate to the Continental Congress, in which he took his seat on the 13th of September following. Possessed of a strong mind and sound judgment, he became a useful member of committees, but seldom took part in debate. By the following letter from him to Governor Page, it seems he was one of those who agitated the question of independence as early as the 22nd of January, 1776. "I wish I knew the sentiments of our people upon the grand points of confederation and foreign alliance, or, in other words, of independence—for we cannot expect to form a connexion with any foreign power as long as we have a womanish hankering after Great Britain—and, to be sure, there is not in nature a greater absurdity than to suppose we can have any affection for a people who are carrying on the most savage war against us." On the 13th of February, he writes to the same gentleman again, as follows: "Independence, confederation and foreign alliance are as formidable to some members of Congress, I fear a majority, as an apparition to a weak enervated woman. Would you think we have some among us who still expect honourable proposals from the administration! By heavens—I am an infidel in politics, for I do not believe were you to bid a thousand pounds per scruple for honour at the court of Great Britain, that you would get as many as would amount to an ounce. We are now carrying on a war and no war. They seize our property wherever they find it, either by land or sea, and we hesitate to retaliate because we have a few friends in England who have ships. Away with such squeamishness, say I."

By this language we can judge of the ardent feelings that actuated this friend of equal rights. It was the pure fire of patriotism, fanned by a just indignation against a tyrannical and insolent foe. It was a fire that reflected a powerful heat upon those around it, and gathered fresh vigour daily. Like separate parcels of metal in a crucible, one member after another yielded to its power, until all were united in one liquid mass, and, on the fourth of July, 1776, the mould of liberty was filled, which, when opened to the gaze of the world, presented a new and purely original table of law and government, enriched by the embossment of freedom and equal rights. On this fair tablet, more beautiful than mosaic-work, Mr. Nelson engraved his name in bold

relievo. Here we might leave him, with glory enough for one man. But he had then just entered the portico of his useful career. He embarked heart and soul in the cause, and became one of the most industrious members of various committees that was in Congress. In forming the articles of confederation he was particularly active. The ensuing year he again took his seat in the national assembly, but was compelled to retire in May, soon after the commencement of the session, in consequence of a severe attack of disease in his head, which, for a time, threatened to impair his mental powers. He was obliged to return home, and for a short period refrain from business. His place was supplied by Mr. Mason.

In August following, the appearance of a British fleet that entered the capes caused a general rally of the military force of Virginia. Mr. Nelson, who had regained his health, was commissioned by the governor and council brigadier-general and commander-in-chief of the military forces of the state. The appointment was popular—the incumbent was competent. His appearance among them inspired confidence in the people. The troops rallied around him like affectionate children around a fond parent. The fleet, however, did not deign to give them a call at that time, and the soldiers again became citizens.

In October, General Nelson took his seat in the legislature of his state, and acted a conspicuous part in its deliberations. During the session a bill was brought before the house sequestrating British property, and authorizing those of the colonists who were indebted to subjects of Great Britain to pay the amount into the public treasury; and if the wives and children of such subjects remained in the state, portions of the said money, under the direction of the governor and council, were to be appropriated to their support. With all the ardour and vehemence of feeling that pervaded the bosom of Mr. Nelson against the mother country, his honesty and justice impelled him to oppose this bill as violating the sacredness of individual contracts. He became roused, and made an able and eloquent address against the proposed measure, and closed in the following emphatic language:—"For these reasons I hope the bill will be rejected; but whatever be its fate, so help me God, I will pay *my* debts like an honest man."

On the second of March, 1778, Congress made an appeal to the patriotism of the wealthy young men of the several colonies, urging them to raise a troop of light cavalry at their own expense. Nor was the appeal in

vain. As soon as the proposed plan of Congress was received in Virginia, General Nelson sent a circular to all the young gentlemen of fortune in the state, recommending them not only to come to the rescue themselves, but to open their purses to other high minded and respectable young men, whose hearts were noble but whose means were limited. A company of seventy was speedily raised in Virginia, and elected general Nelson their commander. He proceeded with his new charge to Baltimore and reported his youthful band to the brave Pulaski, who received this accession of volunteers with delight and admiration. From that place the company proceeded to Philadelphia, where the general and his men received the praise and thanks of Congress; and as their services were not wanted at that time, they were permitted to return to their homes. The expenses of the company during their absence were principally borne by General Nelson without any subsequent remuneration; and for his own services in the field during the war he refused to receive any pay; and, in addition to this, he expended a great portion of his fortune in the cause of his country.

On the 18th of February, 1779, General Nelson again took his seat in Congress, and was immediately placed on several important committees. His severe labour caused a second attack similar to the former, and in April he was compelled to return home.

It was in May of that year that the British made a descent upon Virginia, and spread destruction far and wide. Exercise soon restored the health of General Nelson and he at once took the field. He assembled a body of troops near Yorktown, but the enemy chose not to interfere with him at that time. During that short campaign he took a parental care of the soldiers by providing for their wants from his own funds. He distributed his labourers and servants among the poor families of the militia from his neighbourhood to labour during the absence of the men. He was as benevolent as he was patriotic and brave.

In June, 1780, the general assembly of Virginia passed a resolution to borrow two millions of dollars for the purpose of defraying the expenses of the war. General Nelson entered into the collection of this money with great zeal. Public credit was prostrated and government paper was no longer considered security. Like Robert Morris, he at once pledged his own fortune and raised large sums upon his own credit, for which he was but in part remunerated by government.

In the spring of 1781, Virginia was again the scene of murder, rapine, and wide spread ruin. Judas, alias Arnold, and Lord Cornwallis were sweeping over the land like a tornado. General Nelson was constantly in the field, doing all in his power to arrest the bold and savage career of the invading foe. He became the hero of the Old Dominion. In June he was elected governor of the state. He immediately entered upon the discharge of this dignified station, and bent his whole energies in raising troops to resist the enemy.

About that time Lafayette arrived with a body of regulars. Governor Nelson joined him in the field, and, yielding his rank, placed himself and the militia under the command of the marquis. Every thing within his power he grasped to aid his bleeding country. He placed even his draught horses and negroes in the public service.

In the midst of these distresses a circumstance occurred that was exceedingly trying to his mind. By the constitution, the governor acted only in concert with the council. Two of that body had fallen into the hands of Tarleton, and two had resigned. It was impossible to raise a quorum for business. The awful crisis demanded immediate and decisive action. In this dilemma he transcended the existing law, and proceeded to act as though the council was with him.

At a subsequent period this was made the foundation of a complaint against him, after he retired to private life and was sinking under disease, which was forever put at rest by the legislature, by the passage of laws sanctioning his every public act during that campaign. Ingratitude is the prime minister of hell, and revenge its secretary.

At length Lord Cornwallis found himself snugly ensconced in Yorktown. A dark cloud gathered over his military fame. Awful forebodings haunted his blood-stained soul. Retributive justice pierced his conscience with a thousand stings. The cries of widows and orphans, the curling flames of hospitable mansions, the sweeping destruction of villages and towns, and the dying groans of innocent victims, the bitter fruits of his tyranny, preyed upon his imagination like a promethean vulture. The die was cast. The siege was commenced. At the head of the Virginia troops was General Nelson—cool, brave, fearless and vigorous. His native town, his own domicile and property, were now to be razed. At first he observed that the American

batteries carefully avoided the direction of his house. The principal British officers, anticipating this, had made it their rendezvous. On hearing that it was out of respect to him, he directed the gunners to point their guns at once at his mansion. The first discharge sent a shot through it and killed two of the officers, a number of whom were enjoying the comforts of a good dinner. They soon left this retreat for safer quarters.

The following extract from the general orders of the illustrious Washington, of the 20th of October, 1781, will best inform the reader how highly the services of Governor Nelson were prized at that memorable siege that crushed the power of Great Britain in America.

“The general would be guilty of the highest ingratitude, a crime of which he hopes he shall never be accused, if he forgot to return his sincere acknowledgements to his excellency Governor Nelson for the succours which he received from him and the militia under his command, to whose activity, emulation and bravery, the highest praises are due. The magnitude of the acquisition will be ample compensation for the difficulties and dangers which they met with so much firmness and patriotism.”

The fatigues of this campaign and his arduous gubernatorial duties proved too much for the physical powers of Governor Nelson. He again sunk under disease, and on the 20th of November, 1781, he resigned his station and retired to private life. He spent the remainder of his days principally on a small estate he had saved from the wreck of his large fortune, situated at Offly, in the county of Hanover. His health continued to decline, and on the fourth of January, 1789, he was numbered with the dead.

His obituary, written by his bosom friend, Colonel Innes, fully portrays the character of this devoted patriot and deserves a place in this memoir.

The illustrious general THOMAS NELSON, is no more! He paid the last debt to nature on Sunday, the fourth of the present month, at his estate in Hanover. He who undertakes barely to recite the exalted virtues which adorned the life of this great and good man, will unavoidably pronounce a panegyric upon human nature. As a man, a citizen, a legislator and a patriot, he exhibited a conduct untarnished and undebased by sordid or selfish interests, and strongly marked with the genuine characteristics of true religion, sound benevolence and liberal policy. Entertaining the most ardent love for civil and religious liberty, he was among the first of that glorious

band of patriots whose exertions dashed and defeated the machinations of British tyranny and gave to United America freedom and independent empire. At a most important crisis during the late struggle for American liberty, when this state appeared to be designated as the theatre of action for the contending armies, he was selected by the unanimous suffrage of the legislature to command the virtuous yeomanry of his country. In this honourable employment he remained until the end of the war. As a soldier, he was indefatigably active and coolly intrepid. Resolute and undejected in misfortunes, he towered above distress and struggled with the manifold difficulties to which his situation exposed him with constancy and courage. In the memorable year of 1781, when the whole force of the southern British army was directed to the immediate subjugation of this state, he was called to the helm of government. This was a juncture which indeed “tried men’s souls.” He did not avail himself of this opportunity to retire in the rear of danger, but, on the contrary, took the field at the head of his countrymen, and, at the hazard of his life, his fame and individual fortune, by his decision and magnanimity, he saved not only his country, but all America from disgrace, if not from total ruin. Of this truly patriotic and heroic conduct, the renowned commander-in-chief, with all the gallant officers of the combined armies employed at the siege of York, will bear ample testimony. This part of his conduct even contemporary jealousy, envy and malignity were forced to approve—and this, more impartial posterity, if it can believe, will almost adore. If, after contemplating the splendid and heroic parts of his character, we shall inquire for the milder virtues of humanity and seek for the man, we shall find the refined, beneficent and social qualities of private life, through all its forms and combinations, so happily modified and united in him, that in the words of the darling poet of nature, it may be said,

“His life was gentle, and the elements
So mixed in him, that nature might stand up
And say to all the world—THIS IS A MAN.”

JAMES SMITH.

Many men, like apes, are mere imitative beings in their manner of action. They forsake the path designed for them by their Creator, and strive to assimilate their mechanical movements to some noble personage of a higher order by nature than themselves, and thus *ape* their way through the world. I refer particularly to public speakers. Some young men of respectable native talent and good acquirements, when they mount the rostrum, instead of acting perfectly natural, endeavour to imitate some orator of notoriety, and thereby render themselves ridiculous. Originality is the beauty of forensic or any other kind of eloquence. Like a piece of marble under the hands of the statuary, a more systematic form may be imparted by art, but its original composition, like that, is most beautiful unpainted. Originality must form the base, or the superstructure can never be truly beautiful. No human ingenuity can remould the work of nature and retain the strength of the grand original. We should imitate the virtues and wisdom of great and good men—our *manner* should be peculiarly our own—and still further—our language and style of writing should be original to render it forcible and interesting. Affectation in any thing is disgusting to sensible men, and a discerning man readily detects a counterfeit.

A fine picture of originality and pleasing eccentricity was exhibited by JAMES SMITH, one of the signers of the Declaration of Independence. He was a native of Ireland and came to this country with his father when quite young. The precise time of his birth is not known. According to the only record known of his age—the inscription on his tomb, he was born in 1713. His father was a respectable farmer and settled on the west side of the Susquehanna river nearly opposite to Columbia. James was educated under Dr. Allison. He acquired a good classical education, and retained a peculiar taste for authors of antiquity through life. He was very partial to mathematics, and became an expert surveyor. After finishing his course under Dr. Allison he commenced the study of law in Lancaster, Pennsylvania, some say with Thomas Cookson, but more probably with his

elder brother who was then practising at that town. When admitted to the bar he located himself on the frontiers of civilization near the present site of Shippensburg, in Cumberland county, blending the practice of law and surveying. In that section of the country the two professions were then very properly and profitably united. Large tracts of valuable land were held under hasty and inaccurate surveys, and many others were only located by mere chamber calculations upon paper. Litigation was the natural consequence, and no witnesses told the truth more accurately than the compass of Mr. Smith and the demonstration of his protractor. Possessed of a penetrating mind, he looked into future prospects and secured much valuable land and had full employment in his professional business. He soon found himself on the flood tide of prosperity. Not willing to sail alone, he took for his mate, Miss Eleanor Armor, of Newcastle, who superintended his cabin stores with great skill and prudence. In every thing he was purely original. With a strong mind, an open and honest heart, a benevolent and manly disposition, he united great conviviality and amusing drollery, yet so discreet as not to offend the most modest ear. He delighted in seeing the contortions of the risible muscles, which were uniformly in motion in all proper circles when James Smith was present. Whenever he came in contact with a pedant he would propound some ridiculous question with the utmost gravity, such as the following, "Don't you remember that terrible bloody battle which Alexander the Great fought with the Russians near the straits of Babelmandel? I think you will find the account in Thucydides or Herodotus."

His memory was retentive and stored with numerous anecdotes, which he used in court either to annoy his opponent and help his case, or in company to amuse his friends. No one could tell a story with more effect than Mr. Smith. His manner was original and beyond imitation. With all his wit and humour, he held religion in the greatest reverence, and was a communicant of the church. No one that knew him dare utter a word against it in his presence, knowing that the lash of the keenest ridicule would at once be applied by him. Such a mixture of qualities are rarely blended in one man. From the deep toned logic and the profoundest thought up to the eccentric ridiculous, all balanced by the happy equilibrium of discretion, his mind ranged with the rapidity of lightning, using each at the most appropriate time and place. His manner, his style, and his every thing, from

the most trivial circumstance to the momentous concerns of the nation in which he participated, were purely original.

Of the affairs of his country Mr. Smith was not an idle spectator. No man delights in liberty and independence more than an Irishman, and no nation is more sensitive of its rights than “sweet Ireland.” When British oppression showed its hydra head to the colonists, although advanced in age, James Smith took a terrible dislike to the beast and was for making fight unless it withdrew its visible deformity forthwith. His heart beat high for his adopted country, and he at once came boldly forward in its defence. At that time he was a resident of York and extensively engaged in iron works as well as in professional business, having become a very distinguished lawyer. He had never consented to fill public stations, and nothing but the purest patriotism and the importance of the threatened crisis, could have induced him to enter the public arena. In the language of Josiah Quincy, he had become convinced that—“We must be grossly ignorant of the importance and value of the prize for which we contend—we must be equally ignorant of the power of those who have combined against us—we must be blind to that malice, inveteracy and insatiable revenge, which actuate our enemies, public and private, abroad and in our bosoms, to hope that we shall end this controversy without the sharpest—sharpest conflicts; to flatter ourselves that popular resolves, popular harangues, popular acclamations and popular vapour will vanquish our foes. Let us consider the issue—let us look to the end.”

Mr. Smith was a man that looked at both the beginning and the end. He was a man who examined closely causes, effects, and results. He also understood human nature and knew well the disposition of the colonists. He was convinced the bone and sinew of the land would never yield to the tyranny of mother Britain without a “sharp conflict.” For that conflict he was prepared.

The first step taken in Pennsylvania relative to the existing oppressions, was the assembling of a convention of delegates from each county, in order to ascertain the feelings of the people generally relative to the course proposed by the patriots of New England, where the revolutionary storm had already commenced its precursory droppings. Of this convention Mr. Smith was a delegate, and was one of the committee that prepared the instructions to the members of the next general assembly of the province,

recommending, among other things, the appointment of delegates to the general Congress to be convened at Philadelphia, with instructions from which the following is an extract, sufficient to inform the reader of the grievances most particularly complained of at that early period.

“We desire of you therefore—that the deputies you appoint may be instructed by you strenuously to exert themselves at the ensuing Congress to obtain a renunciation on the part of Great Britain of all the powers under the statute of the 35th of Henry the Eighth, ch. 2nd—of all powers of internal legislation—of imposing taxes or duties internal or external and of regulating trade, except with respect to any new articles of commerce which the colonies may hereafter raise, as silk, wine, &c., reserving a right to carry them from one colony to another—a repeal of all statutes for quartering troops in the colonies or subjecting them to any expense on account of such troops—of all statutes imposing duties to be paid in the colonies, that were passed at the accession of his present majesty, or before this time, which ever period shall be judged most advisable—of the statutes giving the courts of admiralty in the colonies greater power than the courts of admiralty have in England—of the statutes of the 5th of George the Second, ch. 22nd, and of the 23d of George the Second, ch. 29th—of the statute for shutting up the port of Boston—and of every other statute particularly affecting the province of Massachusetts bay, passed in the last session of parliament. If all the terms above mentioned cannot be obtained, it is our opinion that the measures adopted by the Congress for our relief, should never be relinquished or intermitted, until those relating to the troops—internal legislation—imposition of taxes or duties hereafter—the 35th of Henry the Eighth, ch. 2nd,—the extension of admiralty courts—the port of Boston and the province of Massachusetts bay are obtained. Every modification, or qualification of these points, in our judgment should be inadmissible.”

By the statute of the 35th of Henry the Eighth, ch. 2nd, a citizen of America was liable to be arrested and carried to England to be tried, when accused of high crimes. By the 5th of George the Second, ch. 23d, the colonists were prohibited from exporting hats, and hatters were even limited as to the number of apprentices they should keep to learn this trade; in order, as the statute declares, “that hatting may be better encouraged in Great Britain.” The other acts referred to infringements of sundry local

arrangements of the colonies equally obnoxious with the above; and when the final list of grievances was completed at a subsequent time, many statutes under George the Third were complained of as violating the constitution of England and the charters predicated upon it, which had grown sacred by long and acknowledged usage, by learned and legal construction, and by numerous declaratory acts of the British parliament, passed when sitting under the mantle of reason, equity, justice and sound policy.

By these instructions, directly from the people, we can judge of the feeling that pervaded the great mass of the yeomanry at that time; and by referring to the instructions given to the delegates appointed by the assembly of the province to Congress, it will be seen that royal influence still pervaded that body, as they contain scarcely a definite feature or point similar to those from the primary convention of the people.^E

^E See them at large in the biography of George Ross.

So fully convinced was Mr. Smith of the issue between the colonies and mother Britain, that on his return home he immediately raised a company of volunteers, and was elected its captain by acclamation. This was the pioneer company of Pennsylvania, raised for the purpose of resisting tyranny. This company was organized about nine months before the bloody affair at Lexington; showing deep penetration and sagacious foresight in its original. He introduced thorough discipline in the corps, and imparted to its members the same holy fire of patriotism that was illuminating his own soul. Around this military nucleus accumulating force continued to increase, until it formed a regiment. Mr. Smith accepted the honorary title of its colonel, but imposed the actual commanding duties upon a younger man. He had given a momentum to the ball, and was gratified to see it rolling onward towards the temple of liberty with an increased impetus.

Mr. Smith was a member of the next convention that convened in January, 1775, at Philadelphia. He was among the foremost to oppose force to force, and peril life for freedom. He was then called an *ultra* whig, and considered as treating the government of his majesty with disrespect. His patriotism had carried him six months in advance of most of the leading men, and no one could outstrip him in zeal for the cause of equal rights. His course was onward—right onward to action. For this the time soon arrived. During the year 1775 he took a conspicuous part in public measures, and in the spring of the ensuing year was appointed upon a committee, with Dr. Rush and Colonel Bayard, to organize a camp of four thousand five hundred troops, to be raised in Pennsylvania. No man was better calculated to render efficient aid in this important business. The committee immediately prepared, and, under the sanction of Congress, published an address to the volunteer and yeomen military of Pennsylvania, urging them to rally under the standard of liberty. In order that the reader may have a sample of every kind of proceeding and address that characterized the revolution that gave to us freedom, I insert an extract from this.

“We need not remind you that you are now furnished with new motives to animate and support your courage. You are not about to contend against the power of Great Britain in order to displace one set of villains to make room for another. Your arms will not be enervated in the day of battle with the reflection that you are to risk your lives or shed your blood for a British tyrant, or that your posterity will have your work to do over again. You are about to contend for permanent freedom, to be supported by a government which will be derived from yourselves, and which will have for its object, not the emolument of one man or class of men only, but the safety, liberty and happiness of every individual in the community. We call upon you, therefore, by the respect and obedience which are due to the authority of the UNITED COLONIES, to concur in this important measure. The present campaign will probably decide the fate of America. It is now in your power to immortalize your names by mingling your achievements with the events of the year 1776—a year which, we hope, will be famed in the annals of history to the end of time, for establishing, on a lasting foundation, the liberties of one quarter of the globe. Remember the honour of our colony is at stake. Should you desert the common cause at the present juncture, the glory you have acquired by your former exertions of strength and virtue will be tarnished; and our friends and brethren, who are now acquiring

laurels in the most remote parts of America, will reproach us, and blush to own themselves natives or inhabitants of Pennsylvania. But there are other motives before you. Your houses, your fields, the legacies of your ancestors, or the dear bought fruits of your own industry and your liberty, now urge you to the field. These cannot plead with you in vain, or we might point out to you further—your wives, your children, your aged fathers and mothers, who now look up to you for aid, and hope for salvation in this day of calamity only from the instrumentality of your swords.”

This appeal had a most powerful and salutary effect, and met with a response from the people that drove the royal power from Pennsylvania like chaff before the wind. Simultaneous with the preparation of the declaration of independence in Congress, delegates were elected to raise the arch of a republican constitution and government over the keystone state. The members of the convention for this purpose convened on the 15th of July, and in the declaration of rights just promulgated from Congress Hall, had a polar star to guide them—a master piece for a pattern to direct them.

In this convention Mr. Smith took his seat, and was immediately placed upon the committee appointed to prepare a declaration of rights. His *ultraism* had become an admired quality, and assumed the baptismal name of *patriotism*. His worth and zeal were now duly appreciated, and he became one of the most influential men in his state. On the 20th of July he was called to higher duties than those of the convention, by his appointment to the Continental Congress. This was as unexpected to him as it was pleasing to his friends. He immediately enrolled his name with the apostles of liberty upon the chart of freemen. Anxious to see the foundations of the new government firmly laid in Pennsylvania, he continued his services in the convention until the constitution assumed a visible form. He was one of the committee that remodelled the penal code. He was as humane in his feelings as he was ardent in the cause of his country. Justice and mercy were blended in his heart.

Early in October he assumed fully his congressional duties. The first part of the instructions to the delegation of the keystone state is worthy of particular notice; and if general obedience could be enforced, would be quite apropos at the present day. It is as follows:

“The immense and irreparable injury which a free country may sustain by, and the great inconveniences which always arise from a delay of its councils, induce us, in the first place, strictly to enjoin and require you to give not only a *constant*, but a *punctual* attendance in Congress.”

At the commencement of our free government, the will of the people was respected and obeyed. Their public servants were not then their political masters. Committee rooms were not then diverted from their proper use by partisan caucuses. The halls of legislation were not then the forum of personal recrimination and unparliamentary procedure. The mantle of infantile purity was then spread over those in high stations. *Pro bono publico* was the order of the day—*pro libertate patriæ* was the motto of each freeman.

Mr. Smith obeyed his instructions to the letter. He entered heart and soul into the labours of the house and committee room. A dark gloom was at that time spread over the cause of liberty, and many of its warmest friends considered success a paradox. At such a time the sprightliness and drollery of Mr. Smith was a powerful antidote against despondency. Always cheerful and elastic, always seasoning his conversation and speeches in the forum with original wit and humour, he imparted convivial life to those around him. Amidst the waves of misfortune and the breakers of disappointment, he floated like a buoy on the ocean, above them all. The following letter written to his wife, when General Howe was bending his triumphant course towards Philadelphia, from which place Congress was soon after compelled to retreat before him, shows that no hyppish feelings pervaded his imagination.

“If Mr. Wilson should come through York, give him a flogging—he should have been here a week ago. I expect, however, to come home before election—my three months are nearly up. General left this on Thursday—I wrote to you by Colonel Kennedy.

“This morning I put on the red jacket under my shirt. Yesterday I dined at Mr. Morris’s, and got wet going home and my shoulder got troublesome—but by running a hot smoothing iron over it three times, it got better. This is a new and cheap cure. My respects to all friends and neighbours—my love to the children.

I am your loving husband, whilst

“JAMES SMITH.

“Congress Chamber, 11 o’clock.”

On the 23d of November, he was on the committee with Messrs. Clymer, Chase, and Stockton, appointed to devise means for reinforcing the American army, and for arresting the victorious and destructive career of General Howe. The powers of this committee were soon after very properly transferred to Washington. Mr. Smith was also on the committee that laid before Congress the testimony of the inhuman treatment of the British towards the American prisoners at New York.

Having suffered severe losses by being absent from his private business, he declined a re-election to Congress for the ensuing year, but was made to understand by his constituents that he was public property and must be used. He was continued at his post and abated none of his zeal. So devoted was he in the service of his country, that when Congress was compelled to fly to York, his place of residence, he closed his office against his clients and gave it up to the board of war. He sacrificed every private consideration that he believed would promote the public good.

In November, 1778, he resigned his seat in Congress, and once more enjoyed for a season the comforts of retirement. He deemed his advanced age an ample excuse, after he was convinced that the independence of his country was rendered doubly sure by the French alliance.

In 1780, Mr. Smith was induced to take a seat in the legislature of his state. He entered upon his duties with the same activity that had characterized his whole public career. After completing his term of service he retired finally from political life. He continued to pursue his professional business with great success and profit, until 1800, having been an active member of the bar for sixty years. His eccentricity, wit and humour, retained their originality to the last years of his existence. He was a great admirer of the illustrious Washington. A castigation from his ironical tongue, was the sure consequence to any one, at any time or place, who spoke against religion or Washington, two points upon which he was extremely sensitive. The former he adored, the latter he revered. He corresponded regularly with Franklin, Samuel Adams, and several others of the patriarch patriots, and had preserved a valuable cabinet of letters from

those apostles of liberty, which was destroyed by fire, with his office and its contents, about a year before his death. Surrounded by an affectionate family and a large circle of ardent and admiring friends, this happy son of Erin glided smoothly down the stream of life until the eleventh day of July, 1806, when his frail bark was anchored in the bay of death, and his immortal spirit was transferred to the realms of glory.

In life he had lived usefully and esteemed; in his exit from earth he left a blank not readily filled. His public and private reputation were untarnished and unsullied. He had contributed much towards the freedom of his country; he was the life of every circle in which he moved. Ennui could not live in his presence. He was warm hearted, kind, and affectionate, and a friend to the poor. He never entertained malice, but used his enemies very much as a playful kitten does a mouse—teasing without a desire to hurt them—a propensity that rendered him more formidable than a knight of the sword and pistols. Such pure originals as JAMES SMITH are like the inimitable paintings of the ancient artists—few in market and difficult to be copied.

JOSEPH HEWES.

The cardinal virtue of charity, like the patriotism of '76, is more frequently professed than practised. It is placed at the head of all the christian virtues by St. Paul, one of the ablest divines that ever graced a pulpit or wielded a pen. Charity is a child of heaven—the substratum of philanthropy, the brightest star in the christian's diadem—the connecting link between man and his Creator—the golden chain that reaches from earth to mansions of bliss. It spurns from its presence the scrofula of green-eyed jealousy—the canker of self-tormenting envy—the tortures of heart-chilling malice, and the typhoid of foaming revenge. It neutralizes and tames the fiercer passions of man and prepares him for that brighter world where this darling attribute reigns triumphant without a rival. Could its benign influence reach the hearts of all mankind, the partition walls of sectarianism would crumble and disappear—national and individual happiness would increase, and many of the dark clouds of human woe and misery would vanish before its heart-cheering and soul-enlivening rays, like the morning fog before the rising sun. It is a true and impartial mirror set in the frame of love and resting on equity and justice.

These preliminary remarks are elicited from a review of the life of the subject of this biographette, whose father was among the persecuted Quakers of New England, and was compelled to fly from Connecticut to New Jersey in consequence of his religious tenets. It is an inconsistency of human nature that when those who have suffered by religious persecution from superior force obtain the reigns of power, they often become the persecutors of all who will not succumb to their authority and dogmatical notions. In the biography of Charles Carroll the reader has recognised one example. Under the administration of the “Cambridge Platform,” commenced by the ecclesiastical convention of New England in 1646, and completed in 1648, a sterner policy was pursued towards the Quakers than against the Roman Catholics. On this “Platform” the municipal and legislative regulations were based for about sixty years. In 1656, the

legislature of Massachusetts passed a law prohibiting every master of a vessel from bringing a Quaker into the colony under a penalty of one hundred pounds. The next year a law was passed by the same body, inflicting the most barbarous cruelties upon the members of this sect, such as cutting off their ears, boring their tongues with a hot iron, &c., unless they would desist from their mode of worship and doff their straight coats and ugly bonnets. In 1669, a law was passed banishing them on pain of death, and four of them who refused to go were executed. Some historians have endeavoured to excuse this cruelty on the ground that the Quakers provoked their persecutors by promulgating their doctrines too boldly. This reason is too far-fetched, and shrinks at once from the scrutiny of charity and justice. No apology can be found until we can convert the baser passions of human nature into virtues. By recurring to the ignorance, bigotry and fanaticism of that period, we can readily discover *why* such a course was pursued, but this affords no healing balm for the mind of a true philanthropist. We can only regret the past and rejoice that charity has so far triumphed as to restore men to a degree of reason that has paralyzed persecution unto blood for opinion's sake—one of the happy traits of a free and liberal government.

To avoid the penalties of the “Platform” and the dangers of Indian incursions, Aaron Hewes and Providence his wife, the parents of the subject of this narrative, took up their residence near Kingston, New Jersey, where they lived peacefully and died happily. When they crossed the Housatonic river in their flight, they were so closely pursued by the savages that Providence was severely wounded in the neck by a bullet from one of their guns.

JOSEPH HEWES, their son, was born at the residence of his parents near Kingston, in 1730. After receiving a good education in the Princeton school, he commenced his commercial apprenticeship in the city of Philadelphia. After completing this he entered into the mercantile business and soon became an enterprising and successful merchant. For several years he spent his time alternately at Philadelphia and New York, and during that period was extensively engaged in the shipping business.

He was a man of a lively disposition, penetrating mind and industrious in all his undertakings. He was fond of social intercourse, convivial parties, and sometimes joined in the dance. His figure was elegant, his manners

polished, his countenance intelligent and attractive, and his whole course highly honourable and just.

At the age of thirty he located at Edenton, North Carolina, and was soon after called to a seat in the assembly of that province. He became a substantial and useful member, but made no pretensions to oratory. He was a faithful working man, a correct voter, and was uniformly in the assembly until elected to Congress.

When the revolutionary storm commenced, Mr. Hewes was among those who pledged their lives, fortunes and honours to support the cause of equal rights. He was a member of the Congress of 1774, and was placed upon the important committee appointed to report the rights of the American colonies, the manner they had been infringed and the best means of obtaining their restoration. From this fact, and from the report of the committee, we may infer that Mr. Hewes was possessed of a clear head, a sound and deliberate judgment, and understood well the principles of constitutional law and chartered privileges.

The report of this committee is a lucid and elaborate document. By referring to the declaration of independence the reader will learn the features of its first part—by referring to the instructions from the primary convention of the delegates of Pennsylvania, in the biography of James Smith, the nature of the second part will be seen. The preliminary means of obtaining redress are fully set forth in the following extract. After reciting the injuries of the mother country, the report proceeds,

“Therefore we do, for ourselves and the inhabitants of the several colonies whom we represent, firmly agree and associate under the sacred ties of virtue, honour and love of our country, as follows:

First. That from and after the first day of December next, we will not import into British America, from Great Britain or Ireland, any goods, wares or merchandise whatsoever, or from any other place any such goods, wares or merchandise as shall have been exported from Great Britain or Ireland; nor will we, after that day, import any East India tea from any part of the world, nor any molasses, sirups, coffee, or pimento from the British plantations or from Dominico, nor wine from Madeira or the West Indies, nor foreign indigo.

Second. We will neither import nor purchase any slaves imported after the first day of December next; after which time we will wholly discontinue the slave trade, and will neither be concerned in it ourselves, nor will we hire our vessels, nor sell our commodities or manufactures to those who are concerned in it.

Third. As a non-consumption agreement, strictly adhered to, will be an effectual security for the observation of the non-importation, we as above solemnly agree and associate, that from this day we will not purchase or use any tea imported on account of the East India Company, or any on which a duty has been or shall be paid—and from the first day of March next, we will not purchase or use any East India tea whatever; nor will we, nor shall any person for or under us, purchase or use any of these goods, wares or merchandise we have agreed not to import, which we shall know, or have cause to suspect, were imported after the first day of December, except such as come under the rules and directions of the tenth article hereafter mentioned.

Fourth. The earnest desire we have not to injure our fellow subjects in Great Britain, Ireland or the West Indies, induces us to suspend a non-importation until the tenth day of September, 1775, at which time, if the said acts and parts of acts of the British parliament thereafter mentioned^E are not repealed, we will not, directly or indirectly, export any merchandise or commodities whatsoever to Great Britain, Ireland or the West Indies, except rice to Europe.

^E See biography of James Smith, p. [260](#), for the acts referred to in substance.

Fifth. Such as are merchants, and use the British and Irish trade, will give orders as soon as possible to their factors, agents and correspondents in Great Britain and Ireland, not to ship any goods to them on any pretence whatsoever, as they cannot be received in America; and if any merchants residing in Great Britain or Ireland shall, directly or indirectly, ship any goods, wares or merchandise for America, in order to break the said non-

importation agreement, or in any manner contravene the same, on such unworthy conduct being well tested, it ought to be made public; and on the same being so done, we will not from henceforth have any commercial connexion with such merchant.

Sixth. That such as are owners of vessels will give positive orders to their captains or masters, not to receive on board their vessels any goods prohibited by the said non-importation agreement, on pain of immediate dismissal from their service.

Seventh. We will use our utmost endeavours to improve the breed of sheep and increase their number to the greatest extent, and to that end we will kill them as seldom as may be, especially those of the most profitable kind, nor will we export any to the West Indies or elsewhere; and those of us who are, or may become overstocked with or can conveniently spare any sheep, will dispose of them to our neighbours, especially to the poorer sort, on moderate terms.

Eighth. We will in our several stations encourage frugality, economy and industry, and promote agriculture, arts and the manufactures of this country, especially that of wool, and will discountenance and discourage every species of extravagance and dissipation, especially all horse racing and all kinds of gaming, cock fighting, exhibitions of shows, plays, and other expensive diversions and entertainments, and on the death of any relation or friend, none of us or any of our families will go into any further mourning dress than a black crape or ribbon on the arm or hat for gentlemen, and a black ribbon and necklace for ladies, and we will discontinue the giving of gloves and scarfs at funerals.

Ninth. Such as are venders of goods and merchandise will not take the advantage of the scarcity of goods that may be occasioned by this association, but will sell the same at the rate we have been respectively accustomed to do for twelve months last past: and if any vender of goods or merchandise shall sell any such goods on higher terms, or shall in any manner or by any device whatsoever depart from this agreement, no person ought, nor will any of us deal with any such person, or his or her factor or agent at any time hereafter, for any commodity whatever.

Tenth. In case any merchant, trader, or other persons shall import any goods or merchandise after the first day of December, and before the first

day of February next, the same ought forthwith, at the election of the owners, to be either re-shipped or delivered up to the committee of the county or town wherein they shall be imported, to be stored at the risk of the importer, until the non-importation agreement shall cease, or be sold under the direction of the committee aforesaid; and in the last mentioned case the owner or owners of such goods shall be reimbursed out of the sales, the first cost and charges, the profits, if any, to be applied towards relieving and employing such poor inhabitants of the town of Boston as are immediate sufferers by the Boston port bill, and a particular account of all goods so returned, stored or sold, to be inserted in the public paper; and if any goods or merchandise shall be imported after the said first day of February, the same ought forthwith to be sent back again without breaking any of the packages thereof.

Eleventh. That a committee be chosen in every county, city and town, by those who are qualified to vote for representatives in the legislature, whose business it shall be attentively to observe the conduct of all persons touching this association, and when it shall be made to appear to the satisfaction of a majority of any such committee, that any person within the limits of their appointment has violated this association, that such majority do forthwith cause the truth of the case to be published in the gazette, to the end that all such foes to the rights of British America may be publicly known and universally condemned as the enemies of American liberty, and henceforth we respectively will break off all dealings with him or her.

Twelfth. That the committee of correspondence in the respective colonies do frequently inspect the entries of the custom house, and inform each other from time to time of the true state thereof, and of every other material circumstance that may occur relative to this association.

Thirteenth. That all manufactures of this country be sold at reasonable prices, so that no under-advantage be taken of a future scarcity of goods.

Fourteenth. And we do further agree and resolve, that we will have no trade, commerce, dealings, or intercourse whatsoever with any colony or province in North America which shall not accede to, or which shall have hereafter violated this association, but will hold them as unworthy of the rights of freemen and inimicable to the rights of their country.

And we do solemnly bind ourselves and our constituents, under the ties aforesaid, to adhere to this association until such parts of the several acts of parliament passed since the close of the war, as impose or continue duties on tea, wine, molasses, sirups, coffee, sugar, pimento, indigo, foreign paper, glass, and painters' colours, imported into America, and extend the powers of the admiralty courts beyond their ancient limits, deprive the American subjects of trial by jury, authorize the judge's certificate to indemnify the prosecutor from damages that he might otherwise be liable to from a trial by his peers, require oppressive security from a claimant of ships or goods before he shall be allowed to defend his property, are repealed.

And we recommend it to the provincial conventions and to the committee in the respective colonies, to establish such further regulations as they may think proper for carrying into execution this association."

Upon this report all the subsequent proceedings of the Congress were predicated. We may readily suppose, that nothing but the most unparalleled violations of their rights, could induce men to enter into an agreement like the above. By every true patriot it was closely adhered to.

After a session of about two months, Congress adjourned to meet the ensuing May, when Mr. Hewes again took his seat in that body and became conspicuous as a member of important committees. He was continued at this post of honour the ensuing year and had the satisfaction of hearing the discussion upon the momentous question of a separation from Great Britain. He was decidedly in favour of the measure, and when the set time arrived to strike for liberty, he sanctioned the declaration of independence by his vote and signature.

He now became a very conspicuous actor upon committees. His industry, his accurate knowledge of business, his systematic mode of performing all his duties, gained for him the esteem and admiration of all the members. It was remarked by one of his cotemporaries: "Mr. Hewes was remarkable for a devotedness to the business of this" (the secret) "committee, as ever the most industrious merchant was to his counting-house."

He was upon the committee of claims, upon the secret committee, upon the one to consult with Washington relative to military operations, upon that of the treasury and several others. The one upon which he rendered the most

important services, was that which had charge of fitting out a naval armament. The whole business eventually devolved upon him and he was, *de facto*, the first secretary of the navy. With the funds placed in his hands he fitted out with great despatch eight armed vessels. He was also very active in obtaining supplies for his own state. Indeed so deeply did he feel for his constituents in North Carolina, that he declined his appointment to Congress in 1777, and repaired to her assistance, where he remained until July, 1779, when he again resumed his seat in the national legislature. He was then worn down with fatigue and in poor health. He endeavoured to resume his active duties, but disease had already shaken his physical powers and sown the seeds of death. He continued to attend in the house, when able, until the 29th of October, when he saw its hall for the last time. On the 10th of November, his immortal spirit left its earthly tabernacle and returned to Him who gave it. His premature death was deeply lamented and sincerely mourned. Congress passed the usual resolutions and its members wore the mourning badge for thirty days. His remains were buried in Christ Church yard, Philadelphia, followed by all the members and officers of Congress, the general assembly and supreme executive council of Pennsylvania, the minister plenipotentiary of France, the military and a large concourse of other persons. The funeral ceremony was performed by the Reverend Mr. White, since Bishop White, and the chaplain of the Continental Congress. His dust reposes in peace, his name is recorded on the chart of our liberty, his fame will live until the last vestige of American history shall be blotted from the world. Not a blemish rests upon his private character or public reputation.

JOHN ADAMS.

Genuine moral courage is a sterling quality that ennobles and dignifies the man. It invigorates the mind like an impregning cloud—shedding its gentle dews on the flowers of spring. It is a heavenly spark, animating the immortal soul with the fire of divinity that illuminates the path of rectitude. It is an attribute that opposes all wrong and propels its subject right onward to the fearless performance of all right. It is based upon virtue and equity, and spurns vice in all its borrowed and delusive forms. It courts no servile favours—it fears no earthly scrutiny. No flattery can seduce it, no eclat can allure it, no bribe can purchase it, no tyrant can awe it, no misfortune can bend it, no intrigue can corrupt it, no adversity can quench it, no tortures can subdue it. Its motto is—“*Fiat justitia, ruat cœlum.*” [Let justice be done though the heavens should fall.] Without it, fame is ephemeral and renown transient. It is the saline basis of a good name that gives richness to its memory. It is a pillar of light to revolving thought, and the polar star that points to duty and leads to merit. It is the soul of reason, the essence of wisdom, and the crowning glory of mental power. It was this that influenced the signers of the declaration of independence and nerved them for the conflict.

No one among them was more fully imbued with it than JOHN ADAMS. He was a native of Quincy, Massachusetts, and born on the 19th of October, (O. S.) 1735. He was the fourth in descent from Henry Adams, whose tomb bears this singular inscription—“He took his flight from the dragon persecution, in Devonshire, England, and alighted, with eight sons, near Mount Wollaston.” In childhood the career of John Adams was marked with a rapid developement of strong intellectual powers, which were skilfully cultivated by Mr. Marsh, at Braintree, a celebrated and successful teacher. At the age of sixteen years he entered Harvard College, at Cambridge, where he became a finished scholar and graduated at the age of twenty. He gained a high reputation for frankness, honesty and untiring industry, and was greatly esteemed by the professors and his classmates.

From college he proceeded to Worcester, commenced the study of law under Mr. Putnam, and finished with Mr. Gridley, supporting himself in the mean time by teaching a grammar class. At that early age he possessed wisdom to perceive right, and moral courage to pursue it. In view of the past and present, he made a philosophic grasp at the future, as will appear from the following extract from a letter written by him on the 12th of October, 1755, shortly after he took up his residence at Worcester.

“Soon after the reformation a few people came over into this new world for conscience sake. Perhaps this apparently trivial incident may transfer the great seat of empire into America. It looks likely to me, if we can remove the turbulent Gallics, our people, according to the exactest computations, will, in another century, become more numerous than England herself. Should this be the case, since we have, I may say, all the naval stores of the nation in our hands, it will be easy to obtain the mastery of the seas, and then the united force of all Europe will not be able to subdue us. The only way to keep us from setting up for ourselves—is to disunite us. * * * Keep us in distinct colonies, and then some men in each colony, desiring the monarchy of the whole, will destroy each other’s influence and keep the country in equilibrio.”

This broad and expansive view of the future, conceived by a youth, was very remarkable. He saw the one thing needful to render our nation powerful—the creation of a navy—for which nature has given us all the stores. The paralysis that pervades our government in its naval improvements has long astonished the nations of the old world, and a *few* of our own statesmen. The time *will* arrive when our country will be made to feel most keenly—that “a navy is the right arm of defence.”

After pursuing his studies three years, Mr. Adams was admitted to the practice of law. He then commenced his professional career at Braintree. Questions of constitutional right and law had already become the subject of investigation and a root of bitterness between the colonists and the officers of the crown. The latter, that were engaged in the custom-house, claimed unlimited power to search the private dwellings of all persons whom they suspected of having dutiable goods. This suspicion, or pretended suspicion, often arose from personal animosity, without a shadow of evidence or reasonable cause. The right of search was of course resisted as arbitrary, unconstitutional and assumed. This led to an application to the superior

court for “writs of assistance,” which may be considered as one of the first germs of the revolution. Mr. Gridley, who had led Mr. Adams to the bar, and was then his friend and admirer, maintained the legality of the proceeding, not upon the ground of constitutional law, but from the necessity of the case in order to protect the revenue. Mr. Adams took a deep interest in the question, which was finally argued before the superior court at Boston, by Mr. Gridley for the crown and Mr. Otis for the people. In listening to the latter gentleman, a fire of patriotism was kindled in the bosom of Mr. Adams, that death alone could extinguish. He asserted in after life, that “Mr. Otis’s oration against writs of assistance, breathed into this nation the breath of life. * * * American independence was then and there born. * * * Every man of an immense crowded audience appeared to me to go away, as I did, ready to take up arms against writs of assistance. Then and there was the first scene of the first act of opposition to the arbitrary claims of Great Britain.”

The court *publicly* decided against the writs, but *secretly* issued them. That people had their houses searched to satisfy revenge, will appear from the following described incident.

“Mr. Justice Wally had called Mr. Ware, one of the persons in possession of such a writ, before him, by a constable, to answer for a breach of the Sabbath-day acts, or for profane swearing. As soon as he had finished, Mr. Ware asked him if he had done. He replied—yes. Well, then, said Mr. Ware, I will show you a little of *my* power. I command you to permit me to search your house for uncustomed goods—and went on to search his house from garret to cellar—and then served the constable in the same manner.”

We can readily imagine the natural consequences of such a procedure, against which Mr. Adams at once took a bold and decided stand. The assembly also interfered in behalf of the people, and in 1762 prepared a bill to prevent these writs from being issued to any but custom-house officers, and to them only upon a specific information on oath—which bill was vetoed by the governor. As a blow at the royal authority this was well aimed, and showed a disposition in the members to do the will of their constituents. As a retaliative measure they reduced the salary of the judges.

In 1761, Mr. Adams attained the rank of barrister and rose to eminence in his profession. In 1764, he married the accomplished Miss Abigail, the daughter of the Rev. William Smith, who participated with him in the changing scenes of life for fifty-four years. The following extract from a letter written by her to a friend, after the commencement of the revolution, will exhibit the strength of her mind and the patriotic feelings of the ladies at that eventful era.

“Heaven is our witness that we do not rejoice in the effusion of blood or the carnage of the human species—but, having been forced to draw the sword, we are determined never to sheathe it—*slaves to Britain*. Our cause, sir, I trust, is the cause of truth and justice, and will finally prevail, though the combined force of earth and hell should rise against it. To this cause I have sacrificed much of my own personal happiness, by giving up to the councils of America one of my nearest connexions, and living for more than three years in a state of widowhood.”

When the stamp act was passed, the fire of indignation against lawless oppression rose in the bosom of Mr. Adams to a luminous flame. He at once became a public man, and entered into a defence of chartered rights and rational freedom. He published an “Essay on the Canon and Feudal Law,” which placed him on a lofty eminence as an able and vigorous writer. Its raciness penetrated the joints and marrow of royal power as practised, and the parliamentary legislation as assumed. He traced the former law to its original source—the Roman clergy—by them subtly planned, extensively exercised and acutely managed, to effect their own aggrandizement. He then delineated the servile dogmas of the latter, that made each manor the miniature kingdom of a petty tyrant. He then drew a vivid picture of their powerful but unholy confederacy, by which they spread the mantle of ignorance over the world, drove virtue from the earth, and commenced the era of mental obscurity. He then explored the labyrinthian mazes of the dark ages, portrayed the first glimmerings of returning light, travelled through the gigantic struggles of the reformation amidst the bloody scenes of cruel persecution, and finally placed his readers upon the granite shores of New England, where, for a century, liberty had shed its happy influence upon the sons and daughters of freemen, unmolested by canons or feuds. That liberty was now invaded, and, unless the tyranny that had already commenced its desolating course was arrested in its bold career, slavery would be the

consequence. This is the syllabus of a pamphlet of over forty pages, written in a strong, bold and nervous style.

From that time forward Mr. Adams became a leading whig. He became associated with Samuel Adams, Quincy, Otis and other kindred spirits, all much older men, but not more zealous in the cause than him. The repeal of the odious stamp act and the removal of Mr. Grenville from the ministry was the result of the labours of the patriots in 1765. A delusive calm ensued in parliamentary and ministerial proceedings, openly avowed. Mr. Adams was among those who watched closely the signs of the times. Governor Barnard occasionally showed the cloven foot, and his officers put on airs that were far from being agreeable to the yeomanry of the country. Festering wounds occasionally became irritated, and no balm was found that restored them to perfect soundness.

In 1766 Mr. Adams removed to Boston, and at the end of two years had become so conspicuous and had displayed so much talent that the governor thought him worth purchasing. The lucrative and honourable office of advocate-general in the court of admiralty was offered to him, which was deemed a sufficient bribe to allure him. In this the governor found himself mistaken. Moral courage was the firm basis on which this devoted patriot stood. He spurned the royal harness, glittering with gold, with as much disdain as the wild horse of the prairie looks upon a moping mule.

In 1769 he was one of the committee appointed by the citizens of Boston to propose instructions for their representatives in the legislative body, which were highly spiced with free principles, and were very unsavoury to the royal governor. Many of his measures were severely censured, particularly that of quartering the mercenary soldiers in the town. He was unbending in his purposes, and the people determined on maintaining their rights. The consequences were tragical. On the fifth of March, 1770, an affray occurred between the military and citizens, in which five of the latter were killed and others wounded. The following description of the scene that ensued is from the pen of Mr. Adams, the present subject of this memoir.

“The people assembled first at Faneuil Hall and adjourned to the old South Church, to the number, as was conjectured, of ten or twelve hundred men, among whom were the most virtuous, substantial, independent,

disinterested and intelligent citizens. They formed themselves into a regular deliberative body, chose their moderator and secretary, entered into discussions, deliberations and debates, adopted resolutions and appointed committees. Their resolutions in public were conformable to every man in private who dared express his thoughts or his feelings—‘that the regular soldiers should be banished from the town at all hazards.’ Jonathan Williams, a very pious, inoffensive and conscientious gentleman, was their moderator. A remonstrance to the governor, or governor and council, was ordained, and a demand that the regular troops should be removed from the town. A committee was appointed to present this remonstrance, of which *Samuel Adams* was chairman.

“This was a delicate and dangerous crisis. The question in the last resort was—whether the town of Boston should become a scene of carnage and desolation or not. Humanity to the soldiers conspired with a regard for the safety of the town, in suggesting the measure in calling the town together to deliberate, for nothing but the most solemn promises to the people, that the soldiers should, at all hazards, be driven from the town, had preserved its peace. Not only the immense assemblies of the people from day to day, but military arrangements from night to night were necessary to keep the people and the soldiers from getting together by the ears. The life of a red coat would not have been safe in any street or corner of the town; nor would the lives of the inhabitants been much more secure. The whole militia of the city was in requisition, and military watches and guards were every where placed. We were all upon a level; no man was exempted; our military officers were our only superiors. I had the honour to be summoned in my turn and attended at the State-house with my musket and bayonet, my broad sword and cartridge box, under the command of the famous Paddock. I know you will laugh at my military figure; but I believe there was not a more obedient soldier in the regiment, nor one more impartial between the people and the regulars. In this character I was upon duty all night in my turn. No man appeared more anxious or more deeply impressed with a sense of danger on all sides than our commander Paddock. He called me, common soldier as I was, frequently to his councils. I had a great deal of conversation with him, and no man appeared more apprehensive of a fatal calamity to the town, or more zealous by every prudent measure to prevent it.”^G

^G For the further proceedings, see Samuel Adams and John Hancock.

Order was finally restored and the civil authorities again assumed their functions. Captain Preston was arrested and brought before the court, charged with giving the order to the regulars to fire upon the citizens; and also the soldiers who committed the outrage. As is uniformly the case, each party was charged with blame by the respective friends of the other. Some inconsiderate citizens had thrown snowballs at the king's troops, who returned the change in blue pills. The former were imprudent, the latter were revengeful.

Mr. Adams was employed by the accused to defend them. Some of his friends were fearful that it might injure his popularity with the people, whose excitement was still very great. But so ingeniously and eloquently did he manage the case, that Captain Preston and all the soldiers but two were acquitted, and those two were only convicted of manslaughter, and Mr. Adams stood approved and applauded by the citizens, having performed his professional duty to his clients, and at the same time vindicated the rights of the people; the result of being guided entirely by the polar star of moral courage.

The same year he was elected to the legislative body, then called the "General Court," and was a bold opposer of the arbitrary measures of Lieutenant-governor Hutchinson, who undisguisedly followed the directions of the ministry in violation of the charter of the colony, in all things that were necessary to carry out the plans of the British cabinet, pleading his instructions as an excuse.

Mr. Adams was one of the committee that prepared an address to him, the style of which induces me to think it was penned by him. From the following extract the reader may judge. After vividly portraying the violations of right complained of, the address concludes, "These and other grievances and cruelties, too many to be here enumerated, and too melancholy to *be much longer borne* by this injured people, we have seen brought upon us by the devices of ministers of state. And we have, of late,

seen and heard of *instructions* to governors which threaten to destroy all the remaining privileges of our charter. Should these struggles of the house prove unfortunate and ineffectual, this province will submit, with pious resignation, to the will of *Providence*; but it would be a kind of suicide, of which we have the utmost abhorrence, to be instrumental in our own servitude.” A blind obstinacy on the part of the ministers increased the opposition of the people and operated upon them with all the power of centrifugal force, inducing them to refuse obedience to the king’s officers. Alarmed at the boldness of the people of Boston, Governor Barnard had ordered the general court to convene at Cambridge. This was contrary to the charter which fixed its place of meeting at the former place. The members convened but refused to proceed to business unless they were permitted to adjourn to the proper place, to which Lieutenant-governor Hutchinson, who had succeeded Governor Barnard, refused his assent. A war of words and paper ensued, in which the patriots were uniformly victorious. Mr. Adams was a leader of the sharp-shooters and made great havoc among the officers of the crown. They induced the senior member of their council, Mr. Brattle, to enter the field against him with pen in hand. The conflict was short, Mr. Adams put him *hors de combat*, and showed the people the fallacy of every pretext set up by the hirelings of the ministry. In 1771, Mr. Hutchinson was appointed governor, and the next year consented to the return of the legislative body to Boston as a balm for the wounds he had inflicted. But in this he gained no popularity—it was deemed an involuntary act forced upon him by the popular will, or a mere stratagem to quiet the public mind. There were other sources of complaint. The troops in the castle, that were under the pay and control of the province, had been dismissed and their place supplied by fresh regulars from the mother country: the governor and judges received their salaries from England instead of from the colony, as had always been the usage, thus aiming to render the military, executive and judiciary independent of the people whom they governed, which operated as a talisman to destroy all confidence and affection for these officers on the part of the citizens. The tax on tea was another source of grief that touched more tender chords. Woe unto the ruler that rouses the indignation of the better part of creation. He had better tempt the fury of Mars, or try his speed with Atalanta. Tea soon became forbidden fruit, and several vessel loads were sacrificed to Neptune as an oblation for the sins of ministers and an oblectation for the fishes of Boston harbour. Royal authority increased in

insolence, and the patriots increased in boldness. At the commencement of the session of the general court in 1773, Governor Hutchinson sustained the odious doctrine of supremacy of the parliament in his message, which was promptly replied to and denied by the members of that body. A reply was as promptly returned by his excellency, which was prepared with more than usual ability. Mr. Adams, although not a member at that time, was employed to write a rejoinder, which was adopted without any amendment. It paralyzed the pen and closed the mouth of the governor. It was an exposition of British wrongs and American rights so clearly exhibited, that no sophistry could impugn it or logic confront it. So highly was it appreciated by Dr. Franklin, that he had it republished in England and freely circulated. It was a luminary to the patriots and confusion to their opponents.

Shortly after, Mr. Adams was elected to the general court and placed on the list of committees. So vindictive was governor Hutchinson, that he erased his name—an act that recoiled upon himself with redoubled force and aided to hasten the termination of his power in the colony. In less than a year from that time he was succeeded by governor Gage, who was still better calculated to hasten on the revolutionary crisis—because more authoritative and ministerial than his predecessor. With the commencement of his limited administration in 1774, the Boston port bill took effect. The consequences that followed are familiar to the reader. Governor Gage embraced the first opportunity to pay a marked attention to John Adams. His name was placed on the council list at the first session of the legislature, after his excellency assumed the helm of government, who at once placed his indignant cross upon it. He also removed the assembly to Salem. The members proceeded to the preliminary business of the session, and among other things requested the governor to fix a day for general humiliation and prayer, which he peremptorily refused to do. Here again tender chords were touched. The people *en masse* venerated religion, and an insult upon that or an interruption of its usual and ancient usages, was like adding pitch to a fire already vivid and flaming. The house then proceeded to consider the project of a general Congress, and in spite of an attempt by the governor to dissolve it, the door was locked against his secretary, patriotic resolutions were passed, and five delegates appointed to meet a national convention, one of which was John Adams. So bold had been his course that some of his warmest friends and most ardent admirers advised him to decline his

appointment, as the adherents of the crown had already hinted that he evidently aimed at establishing an independent government, which they considered endangered the peace of the country and his life, as the British could and would enforce every measure they chose to adopt. But John Adams had weighed well the subject of rights and wrongs and took his stand within the citadel of MORAL COURAGE, against which the gates of hell can never prevail. He had resolved to nobly perish in defending the liberty of his country, or plant the standard of freedom on the ruins of tyranny.

At the appointed time he repaired to the city of Philadelphia and took his seat in that assemblage of sages whose wisdom has been sung by the ablest poets, applauded by the most eloquent orators, and admired by the most sagacious statesmen of the two hemispheres. On reading the proceedings of the American Congress of 1774, Lord Chatham remarked, “that he had studied and admired the free states of antiquity, the master spirits of the world—but that for solidity of reasoning, force of sagacity and wisdom of conclusion, no body of men could stand in preference to this congress.”

Mr. Adams, for whom his friends felt so much anxiety for fear his ardour might lead him to rashness, was as calm as a summer morning, but firm as the granite shores of his birth place. With all his ardent zeal he was discreet, prudent and politic. He was the last man to violate constitutional law, and the last man to submit to its violation. He kept his helm hard up and ran close to the wind, but understood well when to luff and when to take the larboard tack, and when to take in sail. His soundings were deep and his calculations relative to future storms were truly prophetic. He was one of the few that believed the ministry would induce the king and parliament of the mother country to remain incorrigible, and that petitions would be vain, addresses futile, and remonstrances unavailing. That this Congress adopted the proper course to pursue, he was fully aware—that dignity might grace the cause of the people and justice be honoured. The following extract from a letter written by him at a subsequent period, shows his, and the conclusions of others at that time.

“When Congress had finished their business as they thought, in the autumn of 1774, I had with Mr. Henry before we took leave of each other some familiar conversation, in which I expressed a full conviction that our resolves, declarations of rights, enumeration of wrongs, petitions,

remonstrances, addresses, associations and non-importation agreements, however they might be accepted in America and however necessary to cement the union of the colonies, would be waste water in England. Mr. Henry said, they might make some impression among the *people* of England, but agreed with me that they would be totally lost upon the *government*. I had just received a short and hasty letter, written to me by Major Joseph Hawley of Northampton, containing ‘a few broken hints,’ as he called them, of what he thought was proper to be done, and concluding with these words, ‘*after all we must fight.*’ This letter I read to Mr. Henry, who listened with great attention, and as soon as I had pronounced the words:—‘*after all we must fight*’—he raised his hand and with an energy and vehemence that I can never forget, broke out with—‘by G—d I am of that man’s mind.’ * * * * *

The other delegates from Virginia returned to their state in full confidence that all our grievances would be redressed. The last words that Mr. Richard Henry Lee said to me when we parted, were ‘we shall infallibly carry all our points. You will be completely relieved—all the offensive acts will be repealed, the army and fleet will be recalled and Britain will give up her foolish project.’ Washington only was in doubt. He never spoke in public. In private he joined with those who advocated a non-exportation, as well as a non-importation agreement. With *both* he thought we should prevail—with either he thought it doubtful. Henry was clear in one opinion, Richard Henry Lee in an opposite opinion, and Washington doubted between the two.”

Here is exhibited a striking picture of the minds of these four great men, which appears to have escaped the notice of the several writers that I have consulted. Adams and Henry, drawing their conclusions from the past, the present and the future, diving into the depths of human nature and grasping, at one bold view, all the multiform circumstances that hung over the two nations, concluded truly, “*after all we must fight.*” They concluded that the confidence inspired in the ministers by the overwhelming physical force of Great Britain, would prevent them from relaxing the cords of oppression, and that the independent spirit of the hardy sons of Columbia would not be subdued without a struggle. Lee, naturally bouyant, his own mind readily impressed by reason and eloquence, did not reflect that inflated power, when deluded by obstinacy and avarice, is callous to all the

refined feelings of the heart, is deaf to wisdom and blind to justice. He was as determined to maintain chartered rights as them, but did not scan human nature as closely. Washington, deep in reflection and investigation, his soul overflowing with the milk of human kindness, did not arrive as rapidly at conclusions. In weighing the causes of difference between the two countries, reason, justice and hope on the one side, power, corruption, and avarice on the other, held his mind, for a time, in equilibrio. He plainly perceived and pursued the right, and fondly but faintly hoped that England would see and pursue it too. He was as prompt to defend liberty as either of the others.

On his return, Mr. Adams was congratulated by his anxious friends upon the prudent course he had pursued, and was re-elected a member of the ensuing Congress. During the interim his pen was again usefully employed. Mr. Sewall, the king's attorney-general, had written a series of elaborate and ingenious essays, maintaining the supremacy of parliament and censuring, in no measured terms, the proceedings of the whigs. Under the name of "Novanglus," Mr. Adams stripped the gay ornaments and gaudy apparel from the high-varnished picture that Mr. Sewall had presented to the public, and when he had finished his work, a mere skeleton of visible deformity was left to gaze upon.

The attorney-general was made to tremble before the keen cuts of the falchion quill of this devoted patriot. So deep was his reasoning, so learned were his expositions, and so lucid and conclusive were his demonstrations, that his antagonist exclaimed, as he retired hissing from the conflict, "he strives to hide his inconsistencies under a huge pile of learning." The pile proved too huge for royal power, and was sufficiently large to supply the people with an abundance of light. The supremacy of parliament was an unfortunate issue for ministers. It left the sages of liberty in a position to hurl their arrows freely at *them*, without denying the allegiance of the colonists to the *king*. The British cabinet worked out its own destruction, if not with fear and trembling, it was with blindness and disgrace—a disgrace arising from the grossest impolicy and injustice, if not to say ignorance and infatuation. They were entirely mistaken in the people of America—they awoke the wrong passengers.

In May, 1775, Mr. Adams again took his seat in Congress. The members convened under quite different feelings from those that pervaded

their bosoms the previous autumn. Revolution was now rolling fearfully upon their bleeding country, hope of redress was expiring like the last flickerings of an exhausted taper, dark and portentous clouds were accumulating, the ministerial ermine was already steeped in blood, the chains of servitude were clanking in their ears, the dying groans of their fellow citizens and the mournful lamentations of widows and orphans were resounding through the land, and the prophetic conclusion of Adams and Henry, drawn at the previous session, began to force itself upon the minds of members, that "*after all we must fight.*" As a preliminary measure, it was necessary to appoint a commander of the military forces to be raised. To fix upon the *best* man was of vital importance. Many were yet chanting the song of peace and thought it premature to make such an appointment, lest it should widen the breach which they still hoped might be repaired. The New England delegates were not of this class. When the purple current was wantonly diverted from its original channel upon the heights of Lexington, they hung their syren harps upon the weeping willows that shaded the tombs of their murdered brethren. They were convinced that war was inevitable. All soon became satisfied that prudence dictated a preparation for such an event. A suitable man to lead the armies and direct their course was a desideratum. The southern members were willing to submit to any nomination made by the eastern delegates. General Artemas Ward of Massachusetts was fixed upon by most of them, except John Adams. In George Washington he had discovered the commingling qualities of a philanthropist, a philosopher, a statesman and a hero. He was prompted by the force of moral courage to at once urge his colleagues to sanction his choice. They were all opposed to it, as were also the other members of the northern and eastern delegation. Mr. Adams was firm in his purpose, and met every objection with conclusive arguments. These discussions were all private, not a word was uttered on the floor of Congress as to who should be the man. At last Samuel Adams became convinced that his junior colleague was right. The work was soon accomplished. Satisfied that his measure would be supported by a majority, John Adams rose in Congress and proposed that a commander of the American armies should be appointed. When this resolution was passed, he proceeded to portray the requisite qualities necessary to fit a man for this important station, and emphatically remarked "*such a man is within these walls.*" But few knew who he was about to nominate, and could not imagine who among their

own number was possessed of all these noble attainments. A transient pause ensued. A breathless anxiety produced a painful suspense. The next moment the name of COLONEL GEORGE WASHINGTON of Virginia, was announced, at which the colonel was more astonished than any other member of the house. He had not received an intimation of the intended honour from any person. He was nominated by John Adams about the middle of June, the nomination was seconded by Samuel Adams, the next day the vote was taken and was unanimous in his favour. This appointment originated entirely with Mr. Adams; a high encomium upon his deep penetration and discernment of human intellect, a clear demonstration of his moral courage manifested in persevering in his choice although opposed at the threshold by the entire New England delegation. So judicious and felicitous was this selection, that the revered La Fayette remarked, "it was the consequence of providential inspiration." Be it so; Mr. Adams was the happy medium through which it was communicated to the Continental Congress, thereby placing at the head of the American armies just such a man as the crisis required—prudent, dignified, bold, sagacious, patient, persevering, and universally esteemed by the patriots, and admired even by the most violent adherents of the crown.

After Mr. Adams had accomplished this important act, he remained apparently quiescent during the residue of the session, viewing, analyzing and scanning public feeling and public acts.

In the spring of 1776, he took his seat a third time in the National Assembly. The period had then arrived for more decisive action. Massachusetts had been declared out of the king's protection by parliament. England had hired legions of soldiers from German princes to subdue the rebels in America, the last note of peace had died upon the voice of echo, every ray of hope in favour of an amicable settlement was banished, and every member became convinced that the dilemma was, *resistance or slavery*; but there were many who shrunk back with astonishment when independence was named to them.

At this juncture Mr. Adams marked out a bold course and had moral courage to pursue it. On the sixth of May he offered a resolution in Congress proposing that the colonies should organize governments independent of the mother country. On the tenth of the same month its substance was adopted in a modified form, recommending the formation of

such government by the colonies “as might be conducive to the happiness and safety of their constituents in particular and America in general.”

This startling measure was at first ably opposed by many of the patriots as premature, admitting its justice, and, but for the weakness of the colonies, its propriety and necessity. But Mr. Adams knew no middle course. He had succeeded in obtaining the adoption of the preface to his broad and expanding folio of an independent compact, and he proceeded to put the main matter to press. He rose like a giant and commenced the mighty work of political regeneration. Each succeeding day brought him new aid. From the legislature of his own state he received full permission to strike for independence. North Carolina had declared first, Virginia followed, and on the seventh of June, Richard Henry Lee became the organ to lay the proposition fairly before Congress. A most animated discussion ensued. Then it was that the powers of Mr. Adams were fully developed. Mr. Jefferson said of him when alluding to his able support of the declaration of independence, “John Adams was the pillar of its support on the floor of Congress; its ablest advocate and defender against the multifarious assaults it encountered. He was our Colossus on the floor; not graceful, not elegant, not always fluent in his public addresses; yet he came out with a power, both of thought and of expression, that moved us from our seats.” Another writer remarks, I think Mr. Trumbull, “The eloquence of Mr. Adams resembled his general character. It was bold, manly and energetic, such as the crisis required.” The noblest powers of the soul of John Adams were raised to the zenith of their strength to accomplish the mighty work before him. Although on the committee to prepare the manifesto of eternal separation, he confided its preparation to his colleagues and bent his whole force, eloquence and energy upon the opponents to the measure. Most manfully did he contend, most gloriously did he triumph. He bore down upon his adversaries like a mountain torrent, a sweeping avalanche, prostrating their arguments and answering their objections in a manner that left no trace behind. He hurled the arrows of conviction so thick and fast, that every heart was pierced and a majority subdued. At length the time arrived when the momentous subject must be decided. The fourth of July, 1776, dawned upon the patriots; they assembled, the past, the present and the prospective future rushed upon their minds; moments flew, hearts beat quicker, the question was put, independence was declared,

America was free, liberty was honoured, freedom was proclaimed and a nation redeemed.

The following copy of a letter written by Mr. Adams to his wife on the 5th of July, will show the feelings of his mind on that occasion:

“Yesterday the greatest question was decided that was ever debated in America, and greater, perhaps, never was or will be decided among men. A resolution passed without one dissenting colony—‘that these United States are, and of right ought to be, free and independent states.’ The day is passed. The fourth of July, 1776, will be a memorable epoch in the history of America. I am apt to believe it will be celebrated by succeeding generations, as the great anniversary festival. It ought to be commemorated as the day of deliverance, by solemn acts of devotion to Almighty God. It ought to be solemnized with pomp, shows, games, sports, guns, bells, bonfires and illuminations, from one end of the continent to the other, from this time forward and for ever. You will think me transported with enthusiasm, but I am not. I am well aware of the toil, and blood, and treasure, that it will cost to maintain this declaration and support and defend these states; yet, through all the gloom, I can see the rays of light and glory. I can see that the end is worth more than all the means, and that posterity will triumph, although you and I may rue, which I hope we shall not.”

Early in the winter of 1776, Mr. Adams sketched a form of government to be adopted by each colony, which was substantially the same as the constitutions of the present time. It was in a letter to Richard Henry Lee, by whom it was, by permission, published without a name, and may be considered as the model of the constitutions now in force in the different states. After the form he remarks, “A constitution founded on these principles, introduces knowledge among the people and inspires them with a conscious dignity becoming freemen. A general emulation takes place which causes good humour, sociability, good manners and good morals to be general. That elevation of sentiment inspired by such a government, makes the common people brave and enterprising. That ambition which is inspired by it makes them sober, industrious and frugal. You will find among them some elegance perhaps, but more solidity; a little pleasure but a great deal of business; some politeness but more civility. If you compare such a country with the regions of domination, whether monarchical or aristocratical, you will fancy yourself in Arcadia or Elysium.”

Here, upon the canvass of truth, is a complete picture, exhibiting the blessings derived from a government like our own in its *principles*—that these principles are not strictly adhered to by all politicians, is a fact too fully and fearfully demonstrated. Among all the great men of the last century of increasing intellectual light, no one appears to have taken a more comprehensive and at the same time minute view of human nature and of human government, than John Adams. He traced causes and effects through all their labyrinthian meanderings, and drew conclusions as if by inspiration. Many of his predictions of the future bear the impress of prophecy, and show how deeply he investigated and the clearness of his perception.

On his return from Congress at the close of the session, he was chosen a member of the council of Massachusetts under the new constitution, and aided to organize a free government on a basis purely republican. He was also appointed chief justice, but declined serving.

In 1777, Mr. Adams resumed his seat in Congress, and engaged in a course of labour unparalleled in the history of legislation. He was an acting member of ninety committees, chairman of twenty-five, chairman of the board of war and of appeals, discharged all those multifarious duties promptly, besides participating in the debates of the house upon all important questions. In December of that year he was appointed a commissioner to France, and embarked on board of the frigate Boston in February following, from his native town at the foot of Mount Wollaston. During the voyage a British armed ship was discovered, and, by the consent of Mr. Adams, Captain Tucker gave chase, strictly enjoining the commissioner to keep out of danger. No sooner had the action commenced than Mr. Adams seized a musket and gave the enemy a well directed shot. The captain discovering him in his exposed situation, said to him, “I am commanded by the Continental Congress to carry you in safety to Europe, and I will do it,” and very pleasantly removed him and placed him out of danger.

On his arrival at France he had the satisfaction to learn that Dr. Franklin and his colleagues had succeeded in concluding a treaty of alliance with the French nation. He continued in Europe a little more than a year and then returned home. Soon after his arrival he was elected to a convention of his native state convened for the purpose of perfecting a constitution for the

more complete organization of its government. He was upon the committee to prepare this document, and was selected to make the draught. He produced an instrument similar to that sketched for Richard Henry Lee in January 1776, which was sanctioned and adopted. Before his duties had terminated in this convention he was appointed by Congress “a minister plenipotentiary for negotiating a treaty of peace and a treaty of commerce with Great Britain.”

In October, 1779, he embarked from Boston for Europe, and after a long and tedious passage, he arrived at Paris in February following. The British ministry were not yet sufficiently humbled to do right, and Mr. Adams had too much sagacity to be ensnared, and too much moral courage to consent to any thing wrong. Anxious to benefit his country, on hearing that Mr. Laurens, the American commissioner to Holland, had been captured, he immediately repaired to that kingdom, and in August received a commission from Congress to negotiate a loan and to conclude a treaty of amity and commerce with the States General of Holland, with instructions to accede to any treaty of neutral rights that might arise from regulations to be made by a congress of the European states, then in contemplation. In a few months he was completely overwhelmed with diplomatic powers. He was minister plenipotentiary to Great Britain—to the States General—to the prince of Orange—to all the European states for pledging the faith of the United States to the armed neutrality, with letters of credit to the Russian, Swedish and Danish envoys in Holland, and a commissioner to negotiate a loan of ten millions of dollars for the support of the home department and foreign embassies. The duties thus devolving upon him, all of which he discharged with approbation, will give the reader some idea of the gigantic mental powers of John Adams. He had the same kind of intrigue to encounter as that alluded to in the biography of Franklin, which he met at the threshold and crushed whilst in embryo.

In July, 1781, he received a summons from the court of France to repair immediately to Versailles to deliberate upon a plan of peace with England. On his arrival he had occasion for the exercise of that moral courage that sustained him in every dilemma. The terms offered did not fully recognise the rights of the United States as an independent sovereign nation—peace was anxiously desired and ardently urged by the Duke de Vergennes, who stood at the head of the French cabinet—Mr. Adams desired it too, but only

upon honourable and dignified terms. The duke, who had uniformly showed a disposition to make the United States at least *feel* deeply a dependence upon France, undertook to dictate to Mr. Adams, and placed him in the position of a subordinate agent. In this project he was greatly mistaken. Mr. Adams recognised no dictator but the Continental Congress and his own keen and penetrating judgment. So chagrined was the French duke at the independence of the American minister, that he wrote to the chevalier de la Luzerne, then minister from France in America, to lay a formal complaint against Mr. Adams before Congress. This he did in a very ingenious manner, but without success. As a matter of deference to their new and important ally, the members of Congress very partially modified the instructions to their minister, but did not place him under the control of the duke as requested. They knew the spirit of John Adams would never compromise the dignity of the American name, and they reposed entire confidence in his ability to perceive the right, and in his moral courage to pursue it. It became evident that the motives of the French court in giving assistance to the United States were based entirely on self. Her objects were to humble her inveterate foe, and when that was accomplished, to secure her own aggrandizement and that of Spain at the expense of America. I speak of the *court* of France, and not of the good Lafayette and French patriots like him.

Finding that his presence could be of no service at Versailles, Mr. Adams returned to Amsterdam. Soon after this, so powerfully did the French minister operate upon Congress, taking the advantage of the reverses of the American arms, that he induced that body to add to the commission of Mr. Adams, Dr. Franklin, Messrs. Jefferson, Jay and Laurens, with the humiliating direction, "that they should govern themselves by the advice and opinion of the ministers of the king of France." The duke de Vergennes now exulted in his power, having been made by Congress virtually the sovereign minister of the United States to Great Britain. But his exultation was delusive. Nothing could bend Mr. Adams or Franklin, and the other commissioners became convinced of the propriety of the bold stand assumed. Mr. Adams wrote to Congress and exposed the plans of the duke and his coadjutors, and was the bold medium of communication that opened the eyes of its members to see and permit the commissioner to maintain their true dignity, which enabled them to finally obtain an honourable peace. He also succeeded, after surmounting many

Alpine barriers, in negotiating a loan in Holland of eight millions of guilders, in September, 1782. The benefits of this loan were two-fold—it enabled the United States to prosecute the war with more vigour, and had a direct influence upon England, inducing her to make proposals of peace soon after this was known to lord Shelburne, then at the head of the British administration, which secured to the United States the great privileges insisted on by Mr. Adams. A provisional treaty was signed at Paris on the thirtieth of November, 1782, and a definitive treaty was signed on the third of September, 1783. This step was taken without consulting the duke de Vergennes, and completely thwarted his golden schemes of finesse. He addressed a letter of reproach to the American commissioners, because they dared to proceed without his approbation, which they did not condescend to answer. The three grand points in the plan of the court of France were—in securing to themselves the trade and fisheries of the United States, and for Spain—the sole right of navigating the Mississippi river.

After the important work of concluding peace with England was accomplished, Mr. Adams returned to Holland, where he remained a part of the year 1784, when he returned to France and assumed the duties of a commission, at the head of which he was placed, having Dr. Franklin and Mr. Jefferson associated with him, forming a trio of combined, various and exalted talent, never surpassed if ever equalled. They were empowered to negotiate commercial treaties with all foreign nations that desired such an arrangement with the United States.

In 1785, Mr. Adams was appointed the first minister to Great Britain after the acknowledgement of the independence of the United States by that kingdom. He was received with marked attention and courtesy, so far as courtly etiquette and ceremony were concerned, but found the ministry morose and bitter in their feelings towards the new republic. They were unwilling to enter into a commercial treaty, and seemed to treat the peace as a mere truce between the two nations. Mr. Adams performed the delicate duties of his mission with great sagacity and wisdom, and patiently removed subsisting difficulties between the two countries. Nor did he remain passive as to the internal affairs of his country at home. To win independence he considered one thing, to preserve it, was a different and more difficult matter. The theories of a republican form of government that had been published by Thurgot^H and others, and freely circulated in

America, he considered wild and visionary, as the transient existence of the French republic subsequently proved. To strip these delusive theories of their sophistry, Mr. Adams published a learned and able disquisition on republican constitutions, which operated as a polar light to his own countrymen and had a powerful influence in correcting error and allaying prejudices in England against the government of the United States. His “Defence of the Constitutions” also placed him on a lofty eminence in view of the literati of Europe.

[H](#) Thurgot said of Franklin—“He first snatched the thunderbolt from Jove, and then the sceptre from kings.”

In 1788, he obtained permission to return home, and in the autumn of the same year was elected the first vice-president of the United States under the federal constitution, the duties of which station he performed with dignity and great ability. He was a confidential counsellor of Washington, who consulted him on all important questions. He was re-elected in 1792, with but little opposition; and in 1796, he was elected president of the republic, to establish which he had perilled life, fortune and honour. At this time party spirit had commenced its career of venality and his election was warmly contested. His opponent, Mr. Jefferson, received sixty-eight votes and Mr. Adams seventy-one. During all the effervescence of party feeling, which arrayed father against son and cut asunder the long cherished ties of friendship between thousands, these two great men remained personal friends, showing at once the magnanimity of their minds and the folly of low minded foaming partizans. It was then that the American press first descended from its lofty and legitimate eminence and planted it before unsullied feet in the obloquious quagmire of party spirit. Since that time partisan presses have been sinking deeper and deeper, until some of them, *pro et con.*, have become so deeply planted in the filth and scum of personal abuse and political slander, that, to use a simile, Archimedes, with the mighty powers of his lever, could not raise them to their pristine elevation in half a century. So far were matters carried by his political friends against

the public measures of Mr. Adams in 1800, that Mr. Jefferson was compelled, from a sense of duty, to rebuke the slanders that were uttered, in the following emphatic language, which becomes more forcible from the fact that his own private character had been shamefully attacked by those who supported his political opponent.

“Gentlemen, you do not know that man—there is not upon earth a more perfectly honest man than John Adams. Concealment is no part of his character—of that, he is utterly incapable. It is not in his nature to meditate any thing that he would not publish to the world. The measures of the general government are a fair subject for difference of opinion—but do not found your opinions on the notion that there is the smallest spice of dishonesty, moral or political, in the character of John Adams, for I know him well, and I repeat—that a man more perfectly honest never issued from the hands of his Creator.”

Mr. Adams proceeded to the conscientious and independent discharge of his presidential duties, prompted by the best motives for the glory of his country. His administration, however, became unpopular, and at the expiration of his term the democratic party triumphed, and he retired to Quincy, to once more enjoy the long lost comforts of retirement. Much has been written upon the causes that produced the political overthrow of Mr. Adams. To my mind the solution is brief and plain. His cabinet was not of his own choosing—he was too independent to bend to party management—he opposed the humiliating demands of the then self-styled democratic France—he advocated, most earnestly, the augmentation of the navy of the United States, and recommended the law for suppressing the venality of the press. In the two first points he was impolitic as the head of a *party*—in the two next, he did what all now acknowledge to be right—and in the last, he took the wrong method to correct one of the most alarming evils of that day—an evil that still hangs over our country like an incubus. The three last were the strong points seized upon by partisans, and were rendered extremely unpopular, and enabled his opponents to defeat his re-election. He retired with a good grace, and remained the personal friend of his rival until the day of his death. He supported the policy of Mr. Jefferson towards England, and approved of the declaration of war in 1812. In writing to a friend, in July of that year, he remarked:

“To your allusion to the war, I have nothing to say—but that it is with surprise that I hear it pronounced, not only in the newspapers, but by persons in authority, ecclesiastical and civil, and political and military—that the declaration of it was altogether unexpected * * * How it is possible that a rational, a social or a moral creature can say the war is unjust, is to me utterly incomprehensible. How it can be said to be unnecessary, is very mysterious. I have thought it necessary for five or six years. How it can be said to be unexpected, is another wonder. I have expected it more than five-and-twenty years, and have great reason to be thankful that it has been postponed so long.”

He attributed the opposition of the eastern states to the war to the impolicy of the government in not cherishing the navy, and compared them to Achilles, who, in consequence of his being deprived of Briseis, withdrew from the Grecian confederacy. The augmentation of the navy was the *ne plus ultra* of his national policy, and had his views upon this point been carried out by our government, our nation would now have been mistress of the seas, instead of having scarcely armed vessels enough to protect the expanding commerce of our enterprising merchants—a fact that has become a by-word among other nations, and has often crimsoned the cheeks of liberal minded Americans.

Soon after his retirement he was offered the gubernatorial chair of his native state, but declined the honour on account of his advanced age—but continued to take a deep interest in the welfare of his country, and wrote many essays and letters in favour of liberal principles and American rights. After the retirement of Mr. Jefferson, a most happy and interesting correspondence was continued between these two great apostles of liberty. In 1815, Mr. Adams had the gratifying pleasure of seeing his son at the head of the diplomatic commission to conclude a second treaty with Great Britain, which carried his mind back, with all the enthusiastic force of an old man’s memory, to the scenes of 1782–3, when he had performed and executed a similar mission. In 1817, he was placed at the head of the list of presidential electors, and three years after was elected president of the convention that revised the constitution he had written forty years previous. The compliment was duly appreciated by him, but his infirmities did not permit him to preside over the deliberations of that body, although he imparted his counsels and aided greatly in the revision. This was the last

public act of this great man—the curtain of the political drama then closed upon him for ever. Two years previous the partner of his bosom had gone to her final rest, which was an affliction most keenly felt by him. For more than half a century she had shared with him the pains and pleasures of their eventful career, and had always met the events of life with christian fortitude. Surrounded by friends who delighted to honour him, his country prosperous and happy, enjoying the full fruition of divine grace, which had produced the fruits of unsophisticated piety through a long life, political animosities buried in oblivion, his now frail bark glided smoothly down the stream of time until the fiftieth anniversary of independence dawned upon his beloved country. On the morning of the fourth of July, 1826, an unexpected debility seized him, and he was unable to leave his bed, but no one imagined he was standing on the last inch of his time. He was asked for a sentiment, to be given for him at the celebration on that day —“INDEPENDENCE FOR EVER,” burst from his dying lips, which were the last words that he ever uttered, with a loud and animated voice. About four o’clock in the afternoon he expired—without an apparent pain, a groan, a murmur or a sigh, with a full assurance of a happy reception in that brighter world, where sin and sorrow never cross the peaceful path of the angelic throng. On the same day, and but a few hours previous, the immortal spirit of the illustrious Jefferson had left its prison of clay, thrown off its mortal coil, and perhaps took its kindred in its flight, and they together “ascended in essence to an ecstatic meeting with the friends they had loved and lost, and whom they should still love and never lose,” there to enjoy, through the rolling ages of eternity, the blissful scenes of angelic purity—the smiles and favours of their Saviour and their God.

This unparalleled combination of extraordinary circumstances produced a deep and unusual sensation in the United States and in Europe. The simultaneous departure of two of the noblest spirits that ever graced the great theatre of human life, illuminating the world around them with freedom—whose actions had resounded through the universe—whose mighty deeds had been and will continue to be a theme of wonder and admiration to the end of time—was an incident that seemed designed by the great Jehovah, to impress their precepts, their examples and their names upon the minds of men with all the force of god-like divinity.

Mr. Adams was a plain man; low in stature, not graceful in his movements, and was sometimes abrupt and repulsive. His manners were rather austere and unbending in public, but in the social circle, with his relatives and friends, he was familiar, pleasing and entertaining. He was not partial to ceremonious etiquette, and was averse to pedantry. Plain strong common sense he practised and admired. He spoke his sentiments freely, and could never have been transformed into a *technical* politician, even had he enjoyed the magic advantages of modern schools. His open frankness was proverbial, and he often alluded to it as one of his failings. When once in Stewart's room of paintings, he fixed his eyes upon the portrait of Washington, and then upon his own, and observing the compressed mouth of the former and the open lips of the latter, facetiously remarked as he pointed to it—"Ah! that fellow never could keep his mouth shut." This circumstance alone did much to enhance his unpopularity as a party politician.

In the brilliant career of this great and good man the reader must discover a higher and holier eulogy than language can express. For more than fifty years he served his country ably and faithfully in a public capacity, and continued to impart his counsels until the curtain of death shut him from the world. In all the relations of private life he stood upon a lofty eminence—beyond the reach of slander. The escutcheon of his social name was too pure for the approach of the foulest of all pestiferous atmospheres—that of party spirit. And now, as his ashes rest in the peaceful grave, that hydra monster dare not impute to his actions in life a spark of political dishonesty or impurity of motive, however much he differed from other great men in his views, lest the voice of Jefferson should proclaim to them from the tomb—AN HONESTER MAN THAN JOHN ADAMS NEVER ISSUED FROM THE HANDS OF THE CREATOR.

GEORGE WASHINGTON.

This revered name stands associated with every amiable and noble quality to which mortal man can attain on this dim revolving ball of human action. A sacred halo encircles it, that renders it dear to every philanthropist and respected by the whole civilized world. I am aware that his merits cannot be enhanced by eulogy, nor could detraction ever tarnish the glory of his fame. I am aware that the whole magazine of language has been exhausted in his praise. I am aware that talents of the highest order, hearts of the warmest devotion, imaginations of the happiest conception, united with the most refined and thrilling eloquence, have portrayed, in bold and glowing colours, the fair fame of WASHINGTON. To delineate fully and clearly the virtues of this great and good man, would require an angel's pen dipped in ethereal fire, and an angel's hand to guide it. His life cannot be too often reviewed; his examples cannot be too closely imitated. Like some magnificent scenes of nature, his history is

“Ever charming, ever new,
The prospect never tires the view.”

The lustre of his virtues was of that celestial character, that, like the luminary of day, it is seen and felt, but cannot be fully described. His picture is one on which we may gaze with increased delight, and discover new beauties to the last. His memory should be rehearsed by every print in our land; every new press and fount of type should spread, in glowing capitals, the name of the beloved, the illustrious WASHINGTON. The aged sire should impress it on the hearts of the rising generation; the mother should teach it to her lisping babe; the preceptor should point his pupils to this polar star of virtue, goodness and magnanimity; and the friends of union, liberty and order, should read often, carefully and attentively, the biography of the father of our country. These are deemed reasons sufficiently strong to prompt this humble effort to delineate the interesting career of the man who was first in peace—terrible in war—the friend of

humanity—the HERO OF AMERICAN INDEPENDENCE—and the founder of our country's glory. To me, the subject possesses a peculiar zest, fraught with pleasure and delight.

GEORGE WASHINGTON was born in the county of Fairfax, Virginia, on the 22nd of February, 1732. He lost his father at an early age, and to the wisdom of his mother he declared himself indebted for the correct formation of his youthful mind. Matrons of America, if the mother of Washington moulded *his* mind with such beauty and greatness, how much may *you* do to perpetuate, through your sons, the prosperity and happiness of your favoured country! Train their youthful minds in wisdom's ways; guide them in the paths of virtue and patriotism; teach them to love their country and its liberty; and to prize, dearer than life, the sacred boon of freedom that was nobly won and sacredly transmitted by the sages and patriots of '76.

Washington, during his childhood and youth, exhibited a strong and enquiring mind. His habits were those of industry, perseverance and stability. He was assiduous in his studies and enriched his memory with solid and useful knowledge. He possessed a large share of merit and modesty, which gained for him the love and esteem of all who had the pleasure of his acquaintance. He was frank, open, generous, humane and honest. Nothing could induce him to utter a falsehood, practice deceit, or disobey his fond mother. He soared above the vain and trifling amusements that so often divert youth from wisdom's ways. He was designed to be a star of the first magnitude on the great theatre of action; he studied well his part before he entered upon the stage, and when the curtain rose, he was prepared for his audience, acquitted himself nobly, and retired amidst the plaudits and cheers of astonished and admiring millions.

His talents and merit attracted the attention of Governor Dinwiddie, who then presided over Virginia, the frontiers of which were greatly annoyed by the French and Indians. It was deemed necessary to send a messenger to them, demanding the reasons for their unprovoked hostility, and, if possible, to induce them to evacuate their forts, smoke the pipe of peace and disperse. Young Washington, then only twenty-one years of age, was selected to perform this important mission, which was fraught with dangers on every side. His path lay through a dense wilderness for four hundred miles, inhabited by roving Indians seeking for prey. He undertook

the hazardous enterprise and arrived at his place of destination in safety. Whilst the French commandant was writing an answer to Governor Dinwiddie, Washington, unobserved, took the dimensions of the fort and returned unmolested. It was soon found necessary to raise a regiment of troops to arrest the bloody career of the savages on the frontiers. Washington was placed in command over them with the commission of colonel, and marched towards the Great Meadows in April, 1754. On his way he surprised and captured a body of the enemy. On his arrival at the Great Meadows he erected a small stockade fort, very appropriately naming it Fort Necessity. Here he was reinforced, swelling his little army to four hundred men. He then made preparations to attack Fort Du Quesne (now Pittsburgh,) but soon learned that the enemy was advancing upon him to the number of 1500 men, commanded by M. de Villiers. The attack was soon commenced with great fury, and continued for several hours, when the French commander offered terms of capitulation and was glad to permit the young champion to march away unmolested. This brilliant and bold adventure placed the talents of Washington high on the scale of eminence, as a bold, skilful and prudent officer. It occurred on the 4th of July, a happy prelude to the glorious 4th of '76, the grand birthday of American Independence.

The following year another expedition was sent against Fort Du Quesne of about two thousand troops, under the command of the unfortunate General Braddock, who had more courage than prudence, more self-conceit than wisdom. He spurned the advice of the "beardless boy," and rushed into a snare, where he and nearly half of his army met the cold embrace of death. The deliberate courage and superior skill of Washington, by a judicious retreat, saved the remainder from the bloody tomahawk and scalping-knife. He arrived with them safe at Fort Cumberland. By his rashness, Braddock led his men into an ambushade of about five hundred French and Indians, who were secreted in three deep ravines forming a triangle, secure from danger unless charged, where he remained with them until he had five horses shot under him, nearly half of his men cut down, himself mortally wounded, and not an enemy to be seen. One hundred men headed by Washington, with fixed bayonets, would have dispersed them in ten minutes.

Washington, unwilling to witness again such waste of human life, resigned his military command and retired to private life. But his sterling talents were not suffered to remain long inactive. He was elected to the legislature from Frederick, and subsequently from Fairfax, and was highly respected as a wise, discerning legislator, exhibiting a mind imbued with philanthropy and liberal principles, guided by a clear judgment and a sound discretion, adorned by a retiring modesty, too rare in men of talent.

From this field of action, Washington entered one of greater magnitude and importance, big with events, involving consequences of the deepest interest to himself, to his country, and to the world. After serving the mother country in the French war with blood and treasure, after submitting to taxation, oppression, and insult for years, the colonists resolved to burst the chains of slavery, throw off the shackles of tyranny, and assume their native dignity. Every source of redress had been exhausted; every avenue of conciliation had been explored; more than reason could demand had been offered; all that was clearly *right*, and much that was clearly *wrong*, the pilgrims had submitted to, and still their ungracious, their unfeeling, their blinded mother, cried give—give—give. They had not dreamed of independence; they had only demanded sheer justice; this being denied, they resorted to the last, the only alternative. Instead of submitting to taxation, without representation—instead of yielding obedience to the pernicious stamp act, they stamped their names with unfading glory, their country with lasting fame. In the autumn of 1774, the first great Congress of the American nation assembled at Philadelphia, of which Washington was a member. The solemnities of that thrilling scene have been repeatedly alluded to as of the most imposing character. No one felt them more deeply than the father of our country. When the proceedings were opened by prayer, Washington alone was upon his knees. His mind, on all occasions, seems to have reached to heaven, his soul seemed to dwell in the bosom of his God. Devoted, unsophisticated and humble piety marked his whole life—a piety sincere in its motives and consistent in all its exhibitions. But Washington was not to remain in the hall of the Continental Congress. A mighty work was in store for him. On the memorable 19th of April, 1775, on the heights of Lexington, American blood was spilt by order of Major Pitcairn. Justice looked at the purple current as it flowed, and sighed; mercy carried the sad news to the etherial skies; the eagle of liberty caught the mournful sound, descended in a stream of liquid fire, planted the torch of

freedom in the serum of the bleeding patriots and bid eternal defiance to the British lion.

The effect was electrical. The alarm spread with the rapidity of lightning. It was sounded from church-bells and signal-guns; echo carried it from hills to dales, from sire to son. Vengeance was roused from its lair; the hardy yeomanry left their ploughs in the furrow; the merchant forsook his counting-house; the professional man his office; the minister his pulpit; and with powder-horn and slug, shouldered their rusty muskets, hastened to the scene of action determined to avenge their injured rights, defend their bleeding country, or perish in the attempt. The implements of husbandry were exchanged for those of war; the mechanic shop, the bar, the desk and the forum, were exchanged for the dangers and fatigues of the army. A band of veterans arose, with "hearts of oak and nerves of steel," headed by that bright luminary the illustrious WASHINGTON, who stood forth the champions of LIBERTY, the advocates of FREEDOM; resolved upon emancipation or death; pledging their lives, their fortunes, and their sacred honours in defence of their common country; looking to Heaven for strength, guidance and support. Illustrious heroes! disinterested patriots! yours exceeded all Greek, all Roman fame.

In June following, Washington was appointed by the unanimous voice of the Continental Congress commander-in-chief of the American armies. This appointment he accepted with diffidence and reluctance, feeling that it involved responsibilities, consequences and results too mighty for him to assume, too vast for him to encounter.

He did not view it as the field of glory, of conquest, of ambition, or of fame. He did not thirst for human blood or exult in the profession of arms. Love of country, of liberty, of human rights, of liberal principles, and the oppressive chains of tyranny, prompted him to action.

Before his arrival at Cambridge, to enter upon the important duties of his command, the fortress of Crown Point and Ticonderoga had fallen into the hands of the colonists.

The sanguinary battle of Bunker Hill had been fought, which convinced the British that men contending for their just rights, their dearest interests, their bosoms fired with indignation and patriotism, could not be made to yield to the glittering arms of a haughty monarch without a bold and daring

effort to maintain that liberty which they had received at their birth from the hands of their Creator.

War now assumed a serious aspect, the bloody toils of the revolution commenced. England poured in her legions by thousands, and, to cap the climax of the terrific scene, called to her aid the blood-thirsty Indian with his tomahawk and scalping-knife. The welkin rang with the savage war-whoop and the expiring groans of mothers and babes. The contest seemed to be that of an infant with a giant, a lamb with a lion. The dark clouds blackened as they rose, charged with the fury of demons and the lightning of revenge.

Washington viewed their fiery aspect with calm serenity, heard their portentous roar without a tremor. With a soul reaching to heaven, he met the awful crisis with firmness and wisdom before unknown; his gigantic mind soared above the highest pinnacle difficulty could rear; his course was onward towards the goal of LIBERTY; beneath his conquering arm monarchy trembled, tottered and fell.

His whole energy was now directed to the organization of the army and a preparation for future action. An important expedition was planned against Canada, which was attended with great hardship, boldness and perseverance. It was entrusted to Generals Montgomery and Schuyler, who were subsequently followed by Arnold. It was crowned with success, until an unfortunate attack was made upon Quebec, where the brave Montgomery fell with many other valuable officers and soldiers. The ensuing spring the American army evacuated Canada. The royal governors in some of the colonies, by the aid of the king's troops, still maintained the authority of the crown, but they were soon compelled to flee on board of the British ships of war, where they issued their proclamations with about as much effect as the puffing of a porpoise.

Early in March, 1776, Washington appeared before Boston, where lord Howe had concentrated his army, and took a position that induced the English general to evacuate the town on the 17th of the same month. In July, the fort on Sullivan's Island was attacked by General Clinton and Sir Peter Parker, and after an action of ten hours, Sir Peter was compelled to retire with his silk breeches disfigured by the rudeness of a cannon ball, his ships badly torn to pieces by the rebel artillery, and two hundred of his men

killed and wounded. The fort was defended by Colonel Moultrie with about five hundred men, with twenty-six nine and eighteen pounders. Sir Peter had two fifty gun ships, four frigates and several small vessels, with three thousand veteran troops. There was so much elasticity in the southern climate on this occasion, that the royalists did not venture there again for nearly two years.

On the 7th of June, Richard Henry Lee, a member from Virginia, made a motion in Congress to break off all allegiance with the mother country, and assume the rightful dignity of a free and independent nation. This resulted in the appointment of Thomas Jefferson, John Adams, Benjamin Franklin, Roger Sherman and Philip Livingston, a committee to draft a declaration of independence; and, on the 4th of July, they arose in all the majesty of greatness, and in view of an admiring heaven and an astonished world, published that master-piece of composition which gave us national birth, absolved us from kingly power, planted the tree of liberty deep in our soil, and showed to anxious and gazing millions, that a nation could be born in a day and live. Language can never express, and none but those who witnessed the thrilling scene can fully conceive with what enthusiastic joy this declaration was received by the people. The bells sounded a requiem and funeral knell for monarchy; illuminations and roaring artillery quickly conveyed the glad news from the central arch of the union to its remotest bounds; the blazing torch of liberty rose, like a pillar of fire, to guide the patriots in their onward march; on the wings of thanksgiving and praise the happy tidings ascended to the throne of heaven, received the sanction of Jehovah's high authority, and were recorded by the hand of justice, with an angel's pen, in the book of everlasting fame. Kindred hearts mingled in joy and gratitude, and every FREEMAN shouted a hearty response—a loud AMEN.

On the 2nd of July, Admiral and General Howe landed near the narrows, nine miles below the city of New York, with twenty-four thousand men. They sent an insulting communication to Washington, which he very properly refused to receive. That part of the American army stationed at Brooklyn, under the command of General Sullivan, was attacked and defeated with great loss, on the 27th of August; and Generals Sullivan, Sterling and Woodhull were taken prisoners. Two days after, Washington planned and effected a retreat, and landed the troops from Long Island

safely in New York, before the movement was discovered by the enemy. Chagrined and mortified at the loss of their prey, the British prepared to attack the city, which induced the Americans to evacuate it and retire to White Plains. Here they were attacked on the 28th of September; the British were repulsed, a considerable loss was sustained on both sides, neither party gaining a decided advantage. The disasters of the patriots multiplied rapidly; fort Washington and fort Lee fell into the hands of the English, and the American army was flying before a barbarous and conquering foe.

Washington crossed the Hudson, and retreated through New Jersey into Pennsylvania, with Lord Cornwallis pressing on his rear. His army was now reduced to three thousand men, who were destitute of almost every comfort of life; they could be tracked by blood from their naked feet on the frozen ground; disaster had chilled the zeal of many leading men who at first espoused the cause of liberty; a cloud of fiery indignation hung over the bleeding colonies, ready to devour them. But in the archives of heaven their FREEDOM was recorded; guardian angels directed their destiny; the bold career of the lion was arrested; this Spartan band was crowned with victory, and the red coats, in their turn, beat a retreat.

On the night of the 25th of December, Washington recrossed the Delaware amidst the floating ice, surprised and took one thousand of the enemy prisoners at Trenton, pushed on to Princeton, killed sixty more, took three hundred prisoners, and spread consternation in the ranks of the British army. These successes removed much of the gloom and despondency that hung over the cause. Washington retired to Morristown for the winter; the English occupied Brunswick. In the spring of 1777, the army of Washington amounted to about seven thousand men. No action occurred between the main armies until in August, when the British landed in Maryland with the intention of capturing Philadelphia.

On the 11th of September the two armies met at Brandywine; a desperate battle ensued, and partial victory attended the English army. On the approach of the enemy Philadelphia was abandoned and Congress retired to Lancaster. Another severe battle was fought at Germantown on the 4th of October, which proved disastrous to Washington, owing to a thick fog, by which his troops became separated and thrown into confusion. These keen misfortunes were much alleviated by the capture of the whole British army in the north under Burgoyne, by General Gates, on the 17th of

October. The surrender of Burgoyne had a happy effect at home and abroad. France, on the reception of this news, recognised the independence of the United States, entered into a treaty of alliance, and furnished important aid in advancing the glorious cause, and sent many of her bravest sons to the rescue.

The treaty of alliance between the United States and France, and the loss of their northern army, induced the English to evacuate Philadelphia in the spring of 1778, and retreat to New York. From there they made frequent descents upon various places, burning and destroying property, murdering the inhabitants, and spreading desolation wherever they went.

An expedition was sent to Georgia which proved successful, and the south now became the principal theatre of action. Many feats of bravery were performed, but no decisive battle occurred between the main armies. The same mode of warfare characterized the campaign of 1779, the British seeming to aim more at predatory excursions than pitched battles, which they performed with a savage barbarity, disgraceful to themselves and heart-rending to humanity.

The exertions of Washington were almost paralyzed for the want of men and money; the French Admiral, D'Estaing, was unfortunate in all his movements, and the British lion was prowling through the land in all the majesty of cruelty. The anchor of hope could scarcely keep the shattered bark of liberty to its moorings; the cable of exertion lost thread after thread, until a small band of sages and heroes, who formed the nucleus, were left to contend with the fury of the storm that rolled its fiery and foaming surges over them.

The campaign of 1780 opened favourably to the royal arms, but more exertion was used on the part of the Americans. General Sumpter gave the British much trouble in the south, and a considerable force from the north was on its march to avenge the blood of slaughtered victims. The cruelties of the enemy had re-illuminated the cause of freedom, and the people once more rallied around her sacred banner, determined on death or victory.

The southern army was now put under the command of General Gates, the hero of Saratoga—fresh aid arrived from France and the conflict was renewed with fury and desperation. On the 18th of August the two armies met near Camden, S. C.,—a decided advantage was gained by Lord

Cornwallis. But defeat and misfortune no longer disheartened the friends of liberty. In the midst of adversity they rose like a phoenix from ashes, and hurled, with the fury of Mars, the thunderbolts of vengeance amongst their enemies.

The battle of the Cowpens, on the 17th of January, 1781, shed new lustre on the American arms. General Morgan there met the high-toned Colonel Tarleton, killed rising of one hundred men, wounded two hundred, took five hundred prisoners, two pieces of cannon, twelve standards, eight hundred muskets, thirty-five baggage wagons, one hundred dragoon horses, with a loss of only twelve killed and sixty wounded. His force amounted to only five hundred militia and a few regulars—that of Tarleton to over one thousand regulars, the flower of the British army.

Morgan now effected a junction with General Green, who had succeeded General Gates, and on the 8th of March they met the forces of Lord Cornwallis at Guilford court-house, where an obstinate battle was fought and the Americans compelled to leave the field. On the 9th of April General Green again put his troops in motion—on the 25th the two armies once more measured arms,—Green was compelled to retreat—not before a pursuing foe, but towards the British garrison Ninety-Six, which he reached and besieged on the 22nd of May, and gave it a hearty salute; but on the approach of Lord Rawdon with a large force, he modestly retired to the Santee hills to spend the hot and sickly season. In the meantime the English army encamped at Eutaw Springs, where Green renewed the attack on the 8th of September, and after a hard fought action, in which neither gained a decided victory, the enemy retired to Charleston, with a loss in killed, wounded and prisoners, of eleven hundred men. The Americans lost five hundred and fifty-five.

Although General Green had not gained any decided victory, he had gained many advantages and greatly weakened the enemy. Generals Lee and Wayne had been more successful, and the British were annoyed and harassed in every quarter—volunteers flocked around their beloved Washington, and the tide of war turned in his favour.

The patriotic Lafayette was now in the field. Morgan, Wayne, Greene and Lee were at their posts. Count de Grasse was co-operating with his fleet; and, in their turn, the English lords, admirals and generals, found

themselves surrounded with impending danger. An awful crisis awaited them—retribution stared them in the face—their deeds of blood haunted their guilty souls, and consternation seized their troubled minds. Lord Cornwallis hastened to concentrate his forces at Yorktown, which he fortified in the best possible manner.

On the 6th of October the combined forces of Washington and Rochambeau commenced a siege upon this place, which surrendered on the 19th of the same month. The grand Rubicon was now passed, the colonies were free—the work was finished. This was the dying struggle of British monarchy in America. The last expiring hope of conquering the colonies now fled for ever. Heaven had decreed they should be free—that decree was now consummated. The eagle of liberty, like Jordan's dove, descended—pronounced a benediction upon the conquering heroes—snatched the laurels from Britain's brow and placed them triumphantly upon the CHAMPIONS OF AMERICAN INDEPENDENCE. To the friends of FREEDOM the scene was grand and joyful—to the enemies of LIBERTY, it was painful and humiliating.

The result of this victory was hailed with joy, and placed Washington on the lofty summit of immortal fame—gave freedom to his bleeding country—sealed the foundations of our republic, now towering to the skies—prepared an asylum for the oppressed, and planted deep in Columbia's soil the long nursed tree of LIBERTY.

On the 30th of September, 1783, a definitive treaty was signed at Paris by Mr. Fitzherbert and Mr. Oswald, on the part of Great Britain, and by John Adams, Benjamin Franklin, John Jay and Henry Laurens, on the part of the United States.

On the second of November, Washington issued his farewell orders to his army, in terms of affectionate eloquence and parental solicitude. On the 3d, the troops were disbanded by Congress, and, with mingling tears of joy and gratitude, they once more repaired to their homes to meet the warm embrace of friends, and reap the fruit of their toils and fatigues—no longer embittered by the iron scourge of despotism. On the 23d of December, Washington appeared in the hall of Congress and resigned his commission. This last act was one of grandeur and thrilling interest. The past, the present and the future, were all in the mind of this great and good man, as he

invoked the blessings of Heaven to descend and guide the destinies of his beloved, his emancipated country. Every heart beat quicker and higher—his commission was laid upon the table—a burst of applause rent the air, a flood of tears closed the scene.

The people of the United States, no longer under the paternal care of their old mother, were now left to try the experiment of self-government. Difficulties arose from local jealousies and interests—a debt of forty millions of dollars had been contracted—government paper became greatly depreciated—the public credit could not be sustained, and the liberty that the patriots had fought and bled to obtain, seemed doomed to a premature dissolution and to be lost in the whirlpool of anarchy and confusion. In view of these accumulating difficulties, commissioners from every state, except Rhode Island, convened at Philadelphia, for the purpose of devising means to preserve and perfect that freedom which had cost millions of treasure and fountains of noble blood. Washington was unanimously elected president of this august body. After long deliberation, the labours of the delegates resulted in the production of the federal constitution, one of the brightest specimens of legislation on record. It is the polar star of freedom, the great palladium of our liberty, the golden chain that connects our union, the grand rallying point of republicans, a shield against innovation and corruption, a terror to tyrants, a shining light to patriots, and stamps with immortal and lasting fame the names of its illustrious authors.

This was reported to Congress on the 17th of September, received their warm approbation, and was immediately sent to the several states for their consideration, all of which gave it their sanction, except North Carolina and Rhode Island—the former of which acceded to it in 1789, the latter in 1790. A degree of confidence was then restored, and from that time down to the present our nation has rolled on in the full tide of successful experiment, and enjoyed an increasing and towering prosperity without a parallel in the annals of history. The star-spangled banner waves on every sea, and is respected by every nation in the civilized world: our improvements at home have marched in advance of the boldest views of the most visionary projector, the fondest anticipations of their most ardent friends.

By the unanimous voice of a free and grateful people, Washington was elected the first president of the new republic, and, with the same modest diffidence that had marked his whole career, he took the oath of office on

the 30th of April, 1789, in the city of New York, in the presence of the first Congress under the new constitution, and in the presence of a crowded assembly, who deeply felt and strongly expressed their love and gratitude to him. He then entered upon the important duties that devolved upon him.

A revenue was to be raised, the judiciary system to be organized, its officers to be appointed, a cabinet to be formed and every department of government to be established on a basis at once firm, impartial, just and humane. In performing these various and arduous duties he exhibited great wisdom, a sound discretion, a clear head and good heart. In the cabinet, as in the field, prudence and deliberation guided his every action. He was found equal to every emergency and duty that his country demanded at his hands—he acted up to, but never exceeded the bounds of delegated authority—an angel could do no more—Washington did no less. During his administration of eight years he put forth the noblest energies of his lucid mind to advance the prosperity of his country—meliorate the condition of those who were suffering from the effects of a protracted war—improve the state of society, arts, science, agriculture and commerce—disseminate general intelligence—allay local difficulties—and render the infant republic as happy and glorious as it was free and independent.

His exertions were crowned with success; his fondest anticipations were realized; he finished the work his country had called him to perform; the government stood on a basis firm as the rock of ages, and, on the 4th of March, 1797, he resigned his power to the sovereign people, retired from public life, honoured and loved by his fellow-citizens, respected and admired by a gazing world, and crowned with an unsullied fame that will endure unimpaired the revolutions of time.

He then retired to Mount Vernon to enjoy once more the felicity of domestic retirement and the sweets of his own fireside. He had served his country long and ably; he could look back upon a life well and nobly spent in the cause of human rights, liberal principles and universal philanthropy.

For his arduous services during the revolution Washington took no compensation, and virtually paid about three-fourths of his own expenses. He only charged his actual disbursements, for each item of which he produced a written voucher. He made a book entry of every business transaction with as much system as if he had enjoyed the quiet of a

counting-room. A fac simile of his journal is now before me, which has been politely furnished by Timothy Caldwell, Esq. of the city of Philadelphia, one of the few survivors of “the times that tried men’s souls.”

The first entry is dated the 22nd of June, 1775, and marked No. 1. £239. It commences with the outfit of the commander-in-chief and his staff at Philadelphia, and the expenses of the journey to Cambridge, immediately after his appointment by Congress, amounting to £466 2s. 10*d.* lawful money. But £3 of this amount was drawn from government at that time. The balance was furnished from his own pocket and credit, having received from Thomas Mifflin, Esq., £129 8s. 2*d.* The account current which is before me runs through a period of eight years, at the end of which time a balance was due to him of £1972 9s. 4*d.* His expenses for the eight years amounted to £16311 17s. 1*d.* He received \$104,364 paper money, after March 1780, and passed it to the credit of the United States at forty for one, agreeably to the scale of depreciation, for which he did not obtain one for a hundred, by reason of which a large proportion of his expenses were actually paid with his own private money, for which he refused any remuneration. His expenses during his presidential terms exceeded his salary over five thousand dollars a year, which he paid from his private funds.

Had I time and power to trace the fair lines of Washington’s private worth and routine of life, I would present the picture of a man graced with native dignity, reducing all things around him to as perfect a system of order, economy, harmony and peace, as was ever devised by man. It should be chastened with sterling merit and magnanimity, and mellowed with benevolence and charity. It should be enlivened by the richest colours of virtue and consistency, and finished with the finest touches of a master’s hand. I would crown it with an amaranthine bouquet, richer and sweeter than the epic or civic wreath that decked his brow in the public view of an admiring world. He was a pattern of all that was great and good—the widow’s solace, the orphan’s father, the bountiful benefactor, the faithful friend, the kind husband, the true patriot, the humble christian, the worthy citizen and the honest man.

With the exception of his appointment to preside over the American army in 1798, when France threatened an invasion, Washington was relieved from any further participation in public affairs. He continued to

live at Vernon's sacred mount until the 14th of December, 1799, when his immortal spirit left its tenement of clay, soared aloft on angel's wings to realms of ceaseless bliss, there to receive a crown of unfading glory, as the reward of a spotless life spent in the service of his country and his God.

His body was deposited in the family tomb, where its ashes slumber in peace, amidst the groves of his loved retreat.^I This hallowed spot is visited yearly by large numbers, who approach it with veneration, gratitude and awe. Foreigners are proud to say they have visited the tomb of Washington—all nations revere his memory, unborn millions will perpetuate his praise.

^I Since writing this sketch I have been informed, that when the remains of Washington were placed in the sarcophagus prepared for their reception, in the autumn of 1837, his face retained its fleshy appearance and was but slightly changed—a fact as remarkable as the history of his life.

His history, like that of our nation, is without a parallel. Unblemished virtue marked his whole career, philanthropy his whole course, justice and integrity his every action. A calm resignation, to the will of God, under the most trying circumstances and under every dispensation, added a brilliant lustre to all his amiable qualities. His course was not tarnished with bold strides of misguided ambition, or base attempts at self-aggrandizement. He was consistent to the last. His character, like a blazing luminary, outdazzles the surrounding stars, and illuminates, with meridian splendour, the horizon of biography. His brilliant achievements were not stained with that unnecessary effusion of human blood which characterized the ambitious Cæsar, the conquering Alexander and the disappointed Bonaparte. His fame is beyond the reach of slander or the attacks of malice. He has left an example of human conduct worthy the contemplation and imitation of all who move in the private walks of life or figure on the stage of public action. His sacred memory will live through the rolling ages of time, until the wreck of worlds and the dissolution of nature shall close the drama of human action, Gabriel's dread clarion rend the vaulted tomb, awake the

sleeping dead, and proclaim to astonished millions—TIME SHALL BE NO LONGER.



PATRICK HENRY.

This distinguished name stands conspicuous upon the pages of the history of our country, and shines with peculiar brilliancy amidst the constellations of the revolution. Time and the critic's pen have not detracted from the lustre of its fame—the patriot delights to dwell upon the bright and bold career of PATRICK HENRY.

He was a native of Studley, Hanover county, Virginia, born on the 29th of May, 1736. His father was a highly respectable man, of Scotch descent; his mother was the sister of Judge Winston, who was justly celebrated as an eloquent and forcible orator.

During his childhood and youth Patrick Henry was remarkable for indolence and a love of recreation—consequently, he arrived at manhood with a limited education and unaccustomed to industry. His native talents were not developed, his mind was not cultivated, nor his genius expanded, until after he was a husband and a father. His friends endeavoured in vain to direct his course to a close application to business by setting him up in the mercantile line. In this he soon failed, preferring his fishing rod and gun to the business of his store. After finding himself a bankrupt, he concluded that the toils of life and the troubles of his pilgrimage were too much to bear alone, and accordingly married a wife, the daughter of a respectable planter, and became a tiller of the ground. Unacquainted with this new vocation, he soon found himself in the quagmire of adversity, and again tacked about and entered into the mercantile business. Still he was unfortunate, and poverty claimed him as one of her favourite children. An increasing family needed increased means of support, creditors became clamorous, duns showered in upon him, and in a short time Patrick Henry was reduced to misery and want. At last he was driven to his books, and resolved on the study of law. He now felt most keenly the misspent time of his childhood and youth, and saw many of his age who had already ascended high on the ladder of fame, whose native powers of mind he knew to be inferior to his.

He accordingly commenced the study he had chosen, and in six weeks after, at the age of twenty-four, he was admitted to the bar, more as a compliment to his respectable connexions and his destitute situation, than from the knowledge he had obtained of this lucid but laborious science during the brief period he had been engaged in its investigation.—The ensuing three years, folded in the coil of extreme want, he made but slow advances in his profession, and obtained the necessaries of life by assisting his father-in-law at a *tavern* bar, instead of shining at the bar of the court. He was still ardently attached to his gun, and often carried his knapsack of provisions and remained several days and nights in the woods. On his return, he would enter the court in his coarse and blood-stained hunting dress, when he would take up his causes, carry them through with astonishing adroitness and skill, and finally succeeded in gaining a popular reputation as an advocate.

In 1764, he was employed as counsel in a case of contested election to be tried at the seat of the government of his native state, which introduced him among the fashionable and gay, whose exterior appearance and manners formed a great contrast with his. He made no preparation for meeting his learned and polished adversaries, and as he moved awkwardly around among them, was looked upon by some who were gazing at his coarse habiliments and his eccentric actions, as *non compos mentis*. When the case came up for trial, the astonished audience and the court were completely electrified by his bursts of native eloquence and the cogency of his logic. Judges Tyler and Winston who tried the case, declared they had never before witnessed so happy and triumphant an effort, in point of sublime rhetoric and conclusive argument, by any man. From that time forward the fame of Patrick Henry spread its expansive wings, and he was enabled to banish want and misery from his door by a lucrative and increasing practice. From his childhood he had been a close observer of human nature; the only remarkable trait in favour of his juvenile character. He had always cultivated and improved this advantageous propensity, which was of great use to him in after life. So well versed had he become with the nature, propensities, and operations of the human mind, that he seemed to comprehend and divine, at a single glance, all its intricacies, impulses and variations. This gave him a great advantage over many of his professional brethren, who had studied Latin and Greek *more*, but human nature *less*, than this self-made man. He took a deep and comprehensive

view of the causes that impel men to action, and of the results produced by the multifarious influences that control and direct them. He investigated the designs of creation, the duty of man to his fellow and his God, the laws of nature, reason and revelation, and became a bold advocate for liberty of conscience, equal rights and universal freedom. Nor did he bury these principles of philanthropy in his own bosom. In the expansive view he had taken of the rights of man, of the different modes of government, of the oppression of kings, of the policy pursued by the mother country towards the American colonies, he came to the conclusion, that any nation to be great and happy, must be free and independent.

He had viewed, with a statesman's eye, the growing oppressions of the crown; they had reached his very soul, and roused that soul to action. In Virginia, Patrick Henry first charged the revolutionary ball with patriotic fire, and gave it an impetus that increased and gathered new force as it rolled along. Had not the mighty theme of freedom engaged the mind of this bold and elevated patriot, he might have closed his career with its gigantic powers half unspent, and left his noblest qualities of soul to expire in embryo. Nature had so moulded him, that the ordinary concerns of life never roused him to vigorous action. It required occasions of deep and thrilling interest to awaken and put in motion his stronger energies. The exciting cause of the revolution was exactly calculated to bring him out in all the majesty of his native greatness.

In 1765, he was chosen a member of the Virginia Assembly, and at once took a bold and decisive stand against British oppression. He introduced resolutions against the stamp act that were so bold and independent as to alarm the older members, who, although they approved and applauded the principles and liberal views of this young champion of liberty, wanted his moral courage to design and execute. To impart this to them, and stamp the impress of his own upon their trembling hearts, was now the great business of Patrick Henry. In this he succeeded, and his resolutions were passed. Each resolution was drawn from the translucent fountain of eternal justice, equity and law, and was based upon the principles of Magna Charta, which had been the polar star of England for centuries. The following is a correct copy:

“Resolved, That the first adventurers and settlers of this his majesty's colony and dominion, brought with them, and transmitted to their posterity,

and all other his majesty's subjects, since inhabiting in this, his majesty's said colony, all the privileges, franchises and immunities, that have, at any time, been held, enjoyed and possessed by the people of Great Britain.

“Resolved, That by two royal charters granted by King James I., the colonists aforesaid are declared entitled to all the privileges, liberties and immunities of denizens and natural born subjects, to all intents and purposes, as if they had been abiding and born within the realm of England.

“Resolved, That the taxation of the people by themselves, or by persons chosen by themselves to represent them, who can only know what taxes the people are able to bear, and the easiest mode of raising them, and are equally affected by such taxes themselves, is the distinguishing characteristic of British freedom, and without which the ancient constitution cannot subsist.

“Resolved, That his majesty's liege people of this most ancient colony, have uninterruptedly enjoyed the right of being thus governed by their own Assembly, in the article of their taxes and internal police, and that the same hath never been forfeited, or in any other way given up, but hath been constantly recognised by the King and people of Great Britain.

“Resolved therefore, that the general assembly of this colony has the sole right and power to lay taxes and impositions upon the inhabitants of this colony: and that every attempt to vest such power in any person or persons whosoever, other than the general assembly aforesaid, has a manifest tendency to destroy British as well as American freedom!”

The justice of these resolutions, based as they were upon the well known principles of the English constitution, confined within the limits of the ancient landmarks of that sacred instrument, could not be denied by the cringing sycophants of a corrupt and corrupting ministry, and were hailed by every patriot as the firm pillars of the temple of American liberty. They were enforced by the overwhelming eloquence and logic of the mover, and seconded by Mr. Johnston, who sustained them by arguments and conclusions that imparted new strength and courage to many a bosom that was, a few moments before, poising on the agonizing pivot of hesitation. They were strongly opposed by several members, who subsequently espoused the cause of equal rights, and affixed their names to the great charter of our independence. This opposition brought forth, for the first

time, the gigantic powers of Patrick Henry. In all the sublimity of his towering genius, he stood among the great, the acknowledged champion of that legislative hall which he had but recently entered. Astonishment and admiration held his electrified audience in deep suspense as he painted, in bold and glowing colours, the increasing infringements of the hirelings of the crown upon the chartered rights and privileges of the colonists, who had waded through torrents of blood and seas of trouble and toil, to plant themselves in the new world. He pointed to the chains forged by the hands of tyranny, already clanking, with terrific sound, upon every ear. To be free or slaves, was the great, the momentous question. He, for one, was prepared and determined to unfurl the banner of freedom, drive from his native soil the task masters of oppression, or perish in the glorious attempt. His opponents were completely astounded, and found it impossible to stem the strong current of popular feeling put in motion by the proceedings of that eventful crisis. Seconded and supported by the cool and deep calculating Johnston, the resolutions passed amidst the cry of "*treason*," from the tories, and "*liberty or death*," from the patriots.

The seeds of freedom were deeply planted on that glorious day, and old Virginia proved a congenial soil for the promotion of their future growth. From that time forward, Patrick Henry was hailed as the great advocate of human rights and rational liberty. He stood on the loftiest pinnacle fame could rear, unmoved and unscathed by the fire of persecution, calmly surveying the raging elements of the revolutionary storm, already in commotion around him.

In August, 1774, the Virginia convention met at Williamsburg, and passed a series of resolutions, pledging themselves to sustain their eastern brethren in the common cause of their common country. As delegates to the first colonial Congress they appointed Peyton Randolph, Richard Henry Lee, George Washington, Richard Bland, Patrick Henry, Benjamin Harrison and Edmund Pendleton.

On the 4th of September following, this august assembly of patriotic sages and heroes met in Carpenters' Hall, at the city of Philadelphia. The object for which they had convened was one of imposing and thrilling interest, big with events, absorbing in character and full of importance. The eyes of gazing millions were turned upon them, the kindling wrath of the crown was flashing before them, the anathemas of tyranny were

pronounced against them. But they still resolved to go on. Liberty or death had become the watchword—the hallowed fire of freedom had warmed their bosoms and impelled them to action. After an address to the throne of grace, they commenced their proceedings by appointing Peyton Randolph, of Virginia, president of their body. A deep and solemn silence ensued, as if each member was appealing to Heaven for aid and direction. At length Patrick Henry rose, as echo lingered to catch a sound. With the eloquence of a Demosthenes, the philosophy of a Socrates, the justice of an Aristides, and the wisdom of a Solon, he took a broad, impartial and expansive view of the past, the present and the future; exhibited, in their true light, the relations between the mother country and her distant colonies; unveiled the designs of the base and unprincipled ministry that claimed the high and unwarranted prerogative of wielding an iron sceptre over America, and of reducing her sons to unconditional submission, and painted, in the most vivid and lively colours, a nation's rights and a nation's wrongs. The dignity and calmness of his manner, the clearness of his logic, the force of his eloquence and the solemnity of his voice and countenance combined to inspire an admiration and awe until then unknown to the astonished audience. On that occasion his powers of thought seemed supernatural; he seemed commissioned by Heaven to rouse his countrymen to a sense of approaching danger. He sat down amidst repeated bursts of applause, the acknowledged Demosthenes of the new world, the most powerful orator of his day and generation.

The succeeding year he was a member of the convention of Virginia that convened at Richmond, where he proposed immediate measures of defence, sufficient to repel any invasion from the mother country. In this he was strenuously opposed by several of the most influential members, who still felt a disposition to cringe to royal power.

That power, based as it was upon wrongs and injury, Patrick Henry held in utter contempt. His dauntless soul soared above the trappings of a crown, backed by military pomp and show, and looked for rest only in the goal of liberty.

The following extract from his speech in that convention will best convey a correct idea of his feelings and emotions, deeply felt and strongly told.

“Mr. President, it is natural for man to indulge in the illusions of hope. We are apt to shut our eyes against a painful truth, and listen to the song of that syren till she transforms us into beasts. Is this the part of wise men engaged in a great and arduous struggle for liberty! Are we disposed to be of the number of those, who, having eyes see not, and having ears hear not the things that so nearly concern their temporal salvation? For my part, whatever anguish of spirit it may cost, I am willing to know the whole truth—to know the worst and provide for it.

“I have but one lamp to guide my feet, and that is the lamp of experience. I know of no way of judging the future but by the past. Judging from the past, I wish to know what there has been in the conduct of the British ministry for the last ten years to justify those hopes with which gentlemen are pleased to solace themselves and the house? Is it that insidious smile with which our petition has lately been received? Trust it not, sir; it will prove a snare to your feet. Suffer not yourselves to be betrayed by a kiss. Ask yourselves how this gracious reception of our petition comports with those warlike preparations that cover our waters and darken our land. Are fleets and armies necessary to a work of love and reconciliation? Have we shown ourselves so unwilling to be reconciled that force must be called in to win back our love? Let us not deceive ourselves, sir. These are the implements of war and subjugation—the last arguments to which kings resort. I ask gentlemen, sir, what means this martial array if its purpose be not to force us to submission? Can gentlemen assign any other possible motive for it? Has Great Britain any enemy in this quarter of the world to call for all this accumulation of navies and armies? No, sir; she has none. They are meant for us—they can be meant for no other. They are sent over to bind and rivet upon us those chains which the British ministry have been so long forging. And what have we to oppose to them? Shall we try argument? Sir, we have been trying that for the last ten years. Have we any thing new to offer upon the subject? Nothing. We have held the subject up in every light of which it is capable, but it has been all in vain. Shall we resort to entreaty and humble supplication? What terms shall we find which have not already been exhausted? Let us not, I beseech you, sir, deceive ourselves longer. Sir, we have done every thing that could be done to avert the storm that is coming on. We have petitioned—we have remonstrated—we have supplicated—we have prostrated ourselves before the throne and have implored its interposition to arrest the tyrannical hands of the ministry

and parliament. Our petitions have been slighted, our remonstrances have produced additional violence and insult, our supplications have been disregarded, and we have been spurned with contempt from the foot of the throne.

“In vain after these things, may we indulge the fond hope of peace and reconciliation. *There is no longer any room for hope.* If we wish to be free; if we mean to preserve inviolate those inestimable privileges for which we have been so long contending; if we mean not basely to abandon the noble struggle in which we have been so long engaged, and which we have pledged ourselves never to abandon until the glorious object of our contest shall be obtained, *we must fight!* I repeat it, sir, *we must fight!* An appeal to arms and the God of Hosts is all that is left us! It is vain, sir, to extenuate the matter. Gentlemen may cry peace, peace; but there is no peace. The war is actually begun. The next gale that comes from the north, will bring to our ears the clash of resounding arms! Our brethren are already in the field. Why stand we here idle? What is it that gentlemen wish? What would they have? Is life so dear, or peace so sweet, as to be purchased at the price of chains and slavery? Forbid it, Almighty God! I know not what course others may take, but as for me, *give me liberty or death!*”

The effect of this speech was electrical. The cry, “*to arms,*” burst from every quarter—“*liberty or death,*” resounded and rang through every ear and was responded by every patriot. The resolutions were seconded and supported by Richard Henry Lee, and were adopted without further opposition. A committee was immediately appointed to carry them into effect. From that time forward, the old dominion was renewed, regenerated, and free. Her richest blood was poured out freely in the cause of liberty and equal rights.

Soon after this convention had adjourned, Lord Dunmore removed a part of the powder from the magazine at Williamsburg on board of one of his majesty’s ships. On being informed of this transaction, Patrick Henry collected a military force in Hanover and King William counties, and repaired to the seat of government, demanding the restoration of the powder or its equivalent in cash. An order for the amount in money was received, and no blood shed. A proclamation was issued against these daring rebels, which only seemed to unite the people more strongly in favour of their

orator and soldier, whose conduct they highly approved at several public meetings convened on the occasion.

In August, 1775, Mr. Henry was again chosen a delegate to the Continental Congress, and in June of the following year, governor of his native state. He held this important office during that and the ensuing year, but declined serving the third year, although unanimously re-elected. His zeal in the glorious cause he had espoused did not languish or grow cold. In 1780 he took his seat in the assembly of his state, and manifested all the activity and vigour that characterized the commencement of his bold and useful career. In 1788 he was a member of the Virginia convention convened for the consideration of the constitution of the United States, then submitted for approval or rejection. To that instrument Mr. Henry was then strongly opposed, because, as he contended, it consolidated the states into one government, thereby destroying the sovereignty of each. His eloquence on that occasion was raised to its highest pitch, but could not prevail. His resolution against it was lost. His closing speech on that now revered instrument, was said to have surpassed either of his former efforts, and operated so powerfully, that but a small majority voted for the new constitution. During his remarks an incident occurred which enabled him to almost paralyze his audience. After describing the magnitude of the question, on the determination of which hung the happiness or woe of the present generation, and millions yet unborn, with a voice and countenance solemn as eternity, and his eyes raised upwards, he appealed to the God of heaven and to angels then hovering over their heads, to witness the thrilling scene, and invoked their aid in the mighty work before him. At that moment a sudden thunder gust commenced its fury and shook the very earth. Upon the wings of the tempest his stentorian voice continued to rise—he figuratively seized the artillery of the elements as by supernatural power, hurled the liquid lightning at the heads of his opponents, and seemed commissioned by the great Jehovah to execute a deed of vengeance. The scene was awfully sublime, the effect tremendous. The purple current rushed back upon the fountain of life, every countenance was pale, every eye was fixed, every muscle was electrified, every vein was contracted, every heart was agonized, the scene became insupportable, the members rushed from their seats in confusion and left the house without the formality of an adjournment.

He remained in the assembly until 1791, when he declined a re-election, and expressed a strong desire to retire from public life. He had toiled long, faithfully and successfully, and wished for that repose found only in the bosom of our families.

In 1795, president Washington, for whom he had an unbounded veneration, offered him the high station of secretary of state. With becoming gratitude to his friend and the father of his country, he declined the proffered honour, and chose to remain in retirement. The following year he was again elected governor of his native state, but declined serving. In 1799 he was appointed by president Adams an envoy to France in conjunction with Messrs. Murray and Ellsworth. His declining health would not permit him to accept of this last appointment with which he was honoured. Disease was fast consummating the work of death, and destroying rapidly the hardy constitution and athletic frame that had enabled him to perform his duty so nobly during the trying scenes of the revolution. He was aware that the work of dissolution was going on, and awaited his final exit with calm submission and Christian fortitude. On the 6th of June, 1799, he resigned his spirit to Him who gave it, threw off the mortal coil and was numbered with the dead, aged but 61 years. His loss was deeply mourned by the American nation, and most strongly felt by those who knew him best. The following affectionate tribute is from the pen of one who knew him well.

“Mourn, Virginia, mourn! your Henry is gone. Ye friends to liberty in every clime, drop a tear. No more will his social feelings spread delight through his happy house. No more will his edifying example dictate to his numerous offspring the sweetness of virtue and the majesty of patriotism. No more will his sage advice, guided by zeal for the common happiness, impart light and utility to his caressing neighbours. No more will he illuminate the public councils with sentiments drawn from the cabinet of his own mind, ever directed to his country’s good, and clothed in eloquence sublime, delightful and commanding. Farewell, first rate patriot, farewell. As long as our rivers flow, or mountains stand, so long will your excellence and worth be the theme of our homage and endearment; and Virginia, bearing in mind her loss, will say to rising generations—imitate my Henry.”

In reviewing the character of this truly great man from the commencement of his public career, his examples in public and private life

are worthy of veneration and the closest imitation. The rust of his youth was soon removed, and he became in all respects a brilliant and polished man. His habits were rigidly temperate, his conduct, as a gentleman, a public functionary, an amiable citizen and a devoted christian, was beyond reproach. Although when he believed himself in the right, he maintained his position with great zeal and ardour, he was always open to conviction. Although he opposed the adoption of the federal constitution when it was under consideration, he subsequently became convinced of its utility, and highly approved of its form and substance.

As a husband, a father, a master, a neighbour and a friend, he had no superior. As an advocate, an orator, a statesman and a patriot, his fame stands in all its glory, uneclipsed and unsurpassed. As Grattan said of Pitt, there was something in Patrick Henry that could create, subvert, or reform; an understanding, a spirit, an eloquence to summon mankind to society, or to break the bonds of slavery asunder, and to rule the wilderness of free minds with unbounded authority; something that could establish or overwhelm empire, and strike a blow in the world that should resound through the universe.

He was twice married and the father of fifteen children. The closing paragraph of his will is worthy of record, and shows the veneration he felt for the religion of the Cross.

“I have now disposed of all my property to my family; there is one thing more I wish I could give them, and that is the christian religion. If they had this and I had not given them one shilling, they would be rich; and if they had not that, and I had given them all the world, they would be poor.” This short paragraph, coming from one of the most gigantic minds that ever investigated the truths of revelation, speaks volumes in favour of that religion which is despised by some—neglected by millions—and is the one thing needful to fit us for heaven and prepare us for the

“Great day for which all other days were made,
For which earth rose from chaos,—man from earth,
And an eternity—the date of gods,
Descended on poor earth-created man!”

APPENDIX.



WASHINGTON'S FAREWELL ADDRESS

TO THE PEOPLE OF THE UNITED STATES.

Friends and Fellow Citizens,

The period for a new election of a citizen to administer the executive government of the United States being not far distant, and the time actually arrived when your thoughts must be employed in designating the person who is to be clothed with that important trust, it appears to me proper, especially as it may conduce to a more distinct expression of the public voice, that I should now apprise you of the resolution I have formed—to decline being considered among the number of those out of whom a choice is to be made.

I beg you, at the same time, to do me the justice to be assured, that this resolution has not been taken without a strict regard to all the considerations appertaining to the relation which binds a dutiful citizen to his country, and that, in withdrawing the tender of service, which silence in my situation might imply, I am influenced by no diminution of zeal for your future interest, no deficiency of grateful respect for your past kindness—but am supported by a full conviction that the step is compatible with both.

The acceptance of, and continuance hitherto in, the office to which your suffrages have twice called me, have been a uniform sacrifice of inclination to the opinion of duty, and to a deference for what appeared to be your desire. I constantly hoped, that it would have been much earlier in my power, consistently with motives which I was not at liberty to disregard, to return to that retirement from which I had been reluctantly drawn. The strength of my inclination to do this, previous to the last election, had even led to the preparation of an address to declare it to you. But mature reflection on the then perplexed and critical posture of our affairs with

foreign nations, and the unanimous advice of persons entitled to my confidence, impelled me to abandon the idea.

I rejoice that the state of your concerns, external as well as internal, no longer renders the pursuit of inclination incompatible with the sentiment of duty or propriety; and am persuaded, whatever partiality may be retained for my services, that, in the present circumstances of our country, you will not disapprove my determination to retire.

The impressions with which I first undertook the arduous trust, were explained on the proper occasion. In the discharge of this trust I will only say, that I have with good intentions contributed towards the organization and administration of the government the best exertions of which a very fallible judgment was capable. Not unconscious, in the outset, of the inferiority of my qualifications, experience in my own eyes, perhaps still more in the eyes of others, has strengthened the motives to diffidence of myself: and every day the increasing weight of years admonishes me more and more that the shade of retirement is as necessary to me as it will be welcome. Satisfied that if any circumstances have given peculiar value to my services, they were temporary, I have the consolation to believe, that while choice and prudence invite me to quit the political scene, patriotism does not forbid it.

In looking forward to the moment which is intended to terminate the career of my public life, my feelings do not permit me to suspend the deep acknowledgement of that debt of gratitude which I owe to my beloved country, for the many honours it has conferred upon me; still more for the steadfast confidence with which it has supported me; and for the opportunities I have thence enjoyed of manifesting my inviolable attachment, by services faithful and persevering, though in usefulness unequal to my zeal. If benefits have resulted to our country from these services, let it always be remembered to your praise, and as an instructive example in our annals, that, under circumstances in which the passions, agitated in every direction, were liable to mislead; amidst appearances sometimes dubious; vicissitudes of fortune often discouraging; in situations in which not unfrequently want of success has countenanced the spirit of criticism, the constancy of your support was the essential prop of the efforts, and a guarantee of the plans by which they were effected. Profoundly penetrated with this idea, I shall carry it with me to my grave, as

a strong incitement to unceasing vows that Heaven may continue to you the choicest tokens of its beneficence; that your union and brotherly affection may be perpetual! that a free constitution, which is the work of your hands, may be sacredly maintained, that its administration, in every department, may be stamped with wisdom and virtue; that, in fine, the happiness of the people of these states, under the auspices of Heaven, may be made complete by so careful a preservation and so prudent a use of liberty, as will acquire to them the glory of recommending it to the applause, the affection and the adoption of every nation which is yet a stranger to it.

Here, perhaps, I ought to stop. But a solicitude for your welfare, which cannot end but with my life, and the apprehension of danger, natural to that solicitude, urge me, on an occasion like the present, to offer to your solemn contemplation, and to recommend to your frequent review, some sentiments, which are the result of much reflection, of no inconsiderable observation, and which appear to me all-important to the permanency of your felicity as a people. These will be offered to you with the more freedom, as you can only see in them the disinterested warnings of a parting friend, who can possibly have no personal motive to bias his counsel. Nor can I forget, as an encouragement to it, your indulgent reception of my sentiments on a former, and not dissimilar occasion.

Interwoven as is the love of liberty with every ligament of your hearts, no recommendation of mine is necessary to fortify or confirm the attachment.

The unity of government which constitutes you one people, is also now dear to you. It is justly so; for it is a main pillar in the edifice of your real independence; the support of your tranquillity at home, your peace abroad—of your safety—of your prosperity—of that very liberty which you so highly prize. But as it is easy to foresee, that from different causes and from different quarters, much pains will be taken, many artifices employed, to weaken in your minds the conviction of this truth; as this is the point in your political fortress against which the batteries of internal and external enemies will be most constantly and actively (though often covertly and insidiously) directed, it is of infinite moment, that you should properly estimate the immense value of your national Union, to your collective and individual happiness; that you should cherish a cordial, habitual, and immovable attachment to it; accustoming yourselves to think and speak of it

as of the Palladium of your political safety and prosperity; watching for its preservation with jealous anxiety; discountenancing whatever may suggest even a suspicion that it can in any event be abandoned; and indignantly frowning upon the first dawning of every attempt to alienate any portion of our country from the rest, or to enfeeble the sacred ties which now link together the various parts.

For this you have every inducement of sympathy and interest. Citizens, by birth or choice, of a common country, that country has a right to concentrate your affections. The name of AMERICAN, which belongs to you in your national capacity, must always exalt the just pride of patriotism, more than any appellation derived from local discrimination.—With slight shades of difference, you have the same religion, manners, habits and political principles. You have, in a common cause, fought and triumphed together. The independence and liberty you possess are the work of joint councils and joint efforts; of common dangers, sufferings and successes.

But these considerations, however powerfully they address themselves to your sensibility, are greatly outweighed by those which apply more immediately to your interest. Here every portion of our country finds the most commanding motives for carefully guarding and preserving the union of the whole.

The NORTH, in an unrestrained intercourse with the SOUTH, protected by the equal laws of a common government, finds in the productions of the latter, great additional resources of maritime and commercial enterprise, and precious materials of manufacturing industry. The SOUTH, in the same intercourse benefitting by the agency of the NORTH, sees its agriculture grow, and its commerce expand. Turning partly into its own channels the seamen of the North, it finds its particular navigation invigorated; and while it contributes, in different ways, to nourish and increase the general mass of the national navigation, it looks forward to the protection of a maritime strength, to which itself is unequally adapted. The EAST, in a like intercourse with the west, already finds, and in the progressive improvement of interior communications, by land and water, will more and more find a valuable vent for the commodities which it brings from abroad, or manufactures at home. The WEST derives from the EAST supplies requisite to its growth and comfort; and what is, perhaps, of still greater consequence, it must of necessity owe the secure enjoyment of indispensable outlets for its own

production, to the weight, influence, and the future maritime strength of the Atlantic side of the union, directed by an indissoluble community of interest, as one nation. Any other tenure, by which the west can hold this essential advantage, whether derived from its own separate strength, or from an apostate or unnatural connexion with any foreign power, must be intrinsically precarious.

While then every part of our country thus feels an immediate and particular interest in union, all the parties combined cannot fail to find, in the united mass of means and efforts, greater strength, greater resource, proportionably greater security from external danger, a less frequent interruption of their peace by foreign nations. And, what is of inestimable value, they must derive from union an exemption from those broils and wars between themselves, which so frequently afflict neighbouring countries, not tied together by the same government; which their own rivalships alone would be sufficient to produce, but which opposite foreign alliances, attachments and intrigues, would stimulate and embitter. Hence, likewise, they will avoid the necessity of those overgrown military establishments, which under any form of government are inauspicious to liberty, and which are to be regarded as particularly hostile to republican liberty. In this sense it is, that your union ought to be considered as a main prop of your liberty, and that love of the one ought to endear to you the preservation of the other.

These considerations speak a persuasive language to every reflecting and virtuous mind, and exhibit the continuance in the UNION as a primary object of patriotic desire. Is there a doubt, whether a common government can embrace so large a sphere? Let experience solve it. To listen to mere speculation, in such a case, were criminal. We are authorized to hope that a proper organization of the whole, with the auxiliary agency of governments for the respective subdivisions, will afford a happy issue to the experiment. It is well worth a fair and full experiment. With such powerful and obvious motives to Union, affecting all parts of our country, while experience shall not have demonstrated its impracticability, there will always be reason to distrust the patriotism of those, who, in any quarter, may endeavour to weaken its bands.

In contemplating the causes which may disturb our union, it occurs, as a matter of serious concern, that any ground should have been furnished for

characterizing parties by GEOGRAPHICAL discriminations; NORTHERN and SOUTHERN; ATLANTIC and WESTERN; whence designing men may endeavour to excite a belief that there is a real difference of local interests and views. One of the expedients of party to acquire influence within particular districts, is to misrepresent the opinions and aims of other districts. You cannot shield yourselves too much against the jealousies and heart burnings which spring from these misrepresentations; they tend to render alien to each other those who ought to be bound together by fraternal affection. The inhabitants of our western country have lately had a useful lesson on this head; they have seen, in the negotiation by the executive, and in the unanimous ratification by the senate of the treaty with Spain, and in the universal satisfaction at that event throughout the United States, a decisive proof how unfounded were the suspicions propagated among them, of a policy in the general government, and in the Atlantic states, unfriendly to their interest in regard to the Mississippi. They have been witnesses to the formation of two treaties: that with Great Britain and that with Spain; which secure to them every thing they could desire, in respect to our foreign relations, towards confirming their prosperity. Will it not be their wisdom to rely for the preservation of these advantages on the union by which they were procured? Will they not henceforth be deaf to those advisers, if such there are, who would sever them from their brethren and connect them with aliens?

To the efficacy and permanency of your Union, a government for the whole is indispensable. No alliances, however strict, between the parts, can be an adequate substitute; they must inevitably experience the infractions and interruptions which all alliances in all times have experienced. Sensible of this momentous truth, you have improved upon your first essay by the adoption of a constitution of government better calculated than your former for an intimate union, and for the efficacious management of your common concerns. This government, the offspring of our own choice, uninfluenced and unawed, adopted upon full investigation and mature deliberation, completely free in its principles, in the distribution of its powers, uniting security with energy, and containing within itself a provision for its own amendment, has a just claim to your confidence and your support. Respect for its authority, compliance with its laws, acquiescence in its measures, are duties enjoined by the fundamental maxims of true liberty. The basis of our political systems is the right of the people to make and alter their

constitutions of government. But the constitution which at any time exists, till changed by an explicit and authentic act of the whole people, is sacredly obligatory upon all. The very idea of the power and the right of the people to establish government, presupposes the duty of every individual to obey the established government.

All obstructions to the execution of the laws, all combinations and associations, under whatever plausible character, with a real design to direct, control, counteract, or awe the regular deliberation and action of the constituted authorities, are destructive of this fundamental principle, and of fatal tendency. They serve to organize faction; to give it an artificial and extraordinary force; to put in the place of the delegated will of the nation, the will of a party, often a small, but artful and enterprising minority of the community; and, according to the alternate triumphs of different parties, to make the public administration the mirror of the ill-concerted and incongruous projects of faction, rather than the organ of consistent and wholesome plans, digested by common counsels, and modified by mutual interests.

However combinations or associations of the above description may now and then answer popular ends, they are likely, in the course of time and things, to become potent engines, by which cunning, ambitious and unprincipled men, will be enabled to subvert the power of the people and to usurp for themselves the reins of government; destroying afterwards the very engines which have lifted them to unjust dominion.

Towards the preservation of your government, and the permanency of your present happy state, it is requisite, not only that you steadily discountenance irregular oppositions to its acknowledged authority, but also that you resist with care the spirit of innovation upon its principles, however specious the pretexts. One method of assault may be to effect in the forms of the constitution, alterations which will impair the energy of the system, and thus to undermine what cannot be directly overthrown. In all the changes to which you may be invited, remember, that time and habit are at least as necessary to fix the true character of governments as of other human institutions; that experience is the surest standard by which to test the real tendency of the existing constitution of a country; that facility in change upon the credit of mere hypothesis and opinion, exposes to perpetual change from the endless variety of hypothesis and opinion; and

remember, especially, that for the efficient management of your common interests in a country so extensive as ours, a government of as much vigour as is consistent with the perfect security of liberty, is indispensable. Liberty itself will find in such a government, with powers properly distributed and adjusted, its surest guardian. It is, indeed, little else than a name, where the government is too feeble to withstand the enterprises of faction, to confine each member of the society within the limits prescribed by the laws, and to maintain all in the secure and tranquil enjoyment of the rights of person and property.

I have already intimated to you the danger of parties in the state, with the particular reference to the founding of them on geographical discriminations. Let me now take a more comprehensive view, and warn you in the most solemn manner against the baneful effects of the spirit of party generally.

This spirit, unfortunately, is inseparable from our nature, having its root in the strongest passions of the human mind. It exists under different shapes in all governments, more or less stifled, controlled, or repressed. But in those of the popular form, it is seen in its greatest rankness, and is truly their worst enemy.

The alternate dominion of one faction over another, sharpened by the spirit of revenge natural to party dissension, which, in different ages and countries, has perpetrated the most horrid enormities, is itself a frightful despotism. But this leads at length to a formal and permanent despotism. The disorders and miseries which result, gradually incline the minds of men to seek security and repose in the absolute power of an individual: and, sooner or later, the chief of some prevailing faction, more able or more fortunate than his competitors, turns this disposition to the purposes of his own elevation, on the ruins of public liberty.

Without looking forward to an extremity of this kind, (which, nevertheless, ought not to be entirely out of sight,) the common and continual mischiefs of the spirit of party are sufficient to make it the interest and duty of a wise people to discourage and restrain it.

It serves always to distract the public councils and enfeeble the public administration. It agitates the community with ill founded jealousies and false alarms; kindles the animosity of one part against another; foment

occasionally riot and insurrection; and opens the door to foreign influence and corruption, which find a facilitated access to the government itself through the channels of party passions. Thus the policy and will of one country are subjected to the policy and will of another.

There is an opinion that parties in free countries are useful checks upon the administration of the government, and serve to keep alive the spirit of liberty. This, within certain limits, is probably true: and in governments of a monarchical cast, patriotism may look with indulgence, if not with favour, upon the spirit of party. But in those of the popular character, in governments purely elective, it is a spirit not to be encouraged. From their natural tendency, it is certain there will always be enough of this spirit for every salutary purpose. And there being constant danger of excess, the effort ought to be, by force of public opinion, to mitigate and assuage it. A fire not to be quenched, it demands a uniform vigilance to prevent its bursting into a flame, lest, instead of warming, it should consume.

It is important, likewise, that the habits of thinking, in a free country, should inspire caution in those intrusted with its administration, to confine themselves within their respective constitutional spheres, avoiding, in the exercise of the power of one department, to encroach upon another. The spirit of encroachment tends to consolidate the powers of all the departments in one, and thus to create, whatever the form of government, a real despotism. A just estimate of that love of power, and proneness to abuse it, which predominates in the human heart, is sufficient to satisfy us of the truth of this position. The necessity of reciprocal checks, in the exercise of political power, by dividing and distributing it into different depositories, and constituting each the guardian of public weal against invasions by the others, has been evinced by experiments ancient and modern; some of them in our country and under our own eyes. To preserve them must be as necessary as to institute them. If, in the opinion of the people, the distribution or modification of the constitutional powers be in any particular wrong, let it be corrected by an amendment in the way which the constitution designates. But let there be no change by usurpation; for though this, in one instance, may be the instrument of good, it is the customary weapon by which free governments are destroyed. The precedent must always greatly overbalance, in permanent evil, any partial or transient benefit which the use can at any time yield.

Of all the dispositions and habits which lead to political prosperity, religion and morality are indispensable supports. In vain would that man claim the tribute of patriotism, who should labour to subvert these great pillars of human happiness, these firmest props of the duties of men and citizens. The mere politician, equally with the pious man, ought to respect and to cherish them. A volume could not trace all their connexions with private and public felicity. Let it be simply asked, where is the security for property, for reputation, for life, if the sense of religious obligations desert the oaths, which are the instruments of investigation in courts of justice? And let us with caution indulge the supposition, that morality can be maintained without religion. Whatever may be conceded to the influence of refined education on minds of peculiar structure, reason and experience both forbid us to expect that national morality can prevail in exclusion of religious principle. It is substantially true, that virtue or morality is a necessary spring of popular government. The rule indeed extends with more or less force to every species of free government. Who that is a sincere friend to it can look with indifference upon attempts to shake the foundation of the fabric?

Promote, then, as an object of primary importance, institutions for the general diffusion of knowledge. In proportion as the structure of a government gives force to public opinion, it is essential that public opinion should be enlightened.

As a very important source of strength and security, cherish public credit. One method of preserving it, is to use it as sparingly as possible; avoiding occasions of expense by cultivating peace; but remembering also that timely disbursements to *prepare* for danger frequently prevent much greater disbursements to repel it; avoiding likewise the accumulation of debt, not only by shunning occasions of expense, but by vigorous exertions, in time of peace, to discharge the debts which unavoidable wars may have occasioned; not ungenerously throwing upon posterity the burden which we ourselves ought to bear. The execution of these maxims belongs to your representatives; but it is necessary that public opinion should co-operate. To facilitate to them the performance of their duty, it is essential that you should practically bear in mind, that towards the payment of debts there must be revenue; that to have revenue there must be taxes; that no taxes can be devised which are not more or less inconvenient and unpleasant; that the

intrinsic embarrassment inseparable from the selection of the proper object, (which is always a choice of difficulties,) ought to be a decisive motive for a candid construction of the conduct of the government in making it, and for a spirit of acquiescence in the measures for obtaining revenue, which the public exigencies may at any time dictate.

Observe good faith and justice towards all nations; cultivate peace and harmony with all. Religion and morality enjoin this conduct: and can it be that good policy does not equally enjoin it? It will be worthy of a free, enlightened, and at no distant period, a great nation, to give to mankind the magnanimous and too novel example of a people always guided by an exalted justice and benevolence. Who can doubt that in the course of time and things, the fruits of such a plan would richly repay any temporary advantages which might be lost by a steady adherence to it? Can it be that providence has not connected the permanent felicity of a nation with its virtue? The experiment at least is recommended by every sentiment which ennobles human nature. Alas! is it rendered impossible by its vices!

In the execution of such a plan, nothing is more essential than that permanent inveterate antipathies against particular nations, and passionate attachment for others, should be excluded; and that in place of them, just and amicable feelings towards all should be cultivated. The nation, which indulges towards another an habitual hatred, or an habitual fondness, is in some degree a slave. It is a slave to its animosity or to its affections, either of which is sufficient to lead it astray from its duty and its interest. Antipathy in one nation against another, disposes each more readily to offer insult and injury, to lay hold of slight causes of umbrage, and to be haughty and intractable, when accidental or trifling occasions of dispute occur. Hence frequent collisions, obstinate, envenomed and bloody contests. The nation, prompted by ill-will and resentment, sometimes impels to war the government, contrary to the best calculations of policy. The government sometimes participates in the national propensity, and adopts through passion, what reason would reject; at other times, it makes the animosity of the nation subservient to projects of hostility instigated by pride, ambition and other sinister and pernicious motives. The peace, often, sometimes perhaps the liberty, of nations has been the victim. So likewise, a passionate attachment of one nation for another produces a variety of evils. Sympathy for the favourite nation, facilitating the illusion of an imaginary common

interest, in cases where no real common interest exists, and infusing into one the enmities of the other, betrays the former into a participation in the quarrels and wars of the latter, without adequate inducement or justification. It leads also to concessions to the favourite nation, of privileges denied to others, which is apt doubly to injure the nation making the concessions, by unnecessarily parting with what ought to have been retained; and by exciting jealousy, ill-will, and a disposition to retaliate, in the parties from whom equal privileges are withheld: and it gives to ambitious, corrupted, or deluded citizens, (who devote themselves to the favourite nation,) facility to betray or sacrifice the interests of their own country, without odium, sometimes even with popularity; gilding with the appearances of a virtuous sense of obligations, commendable deference for public opinion, or a laudable zeal for public good, the base or foolish compliances of ambition, corruption or infatuation.

As avenues to foreign influence in innumerable ways, such attachments are particularly alarming to the truly enlightened and independent patriot. How many opportunities do they afford to tamper with domestic factions, to practise the arts of seduction, to mislead public opinion, to influence or awe the public councils! Such an attachment of a small or weak, towards a great and powerful nation, dooms the former to be the satellite of the latter.

Against the insidious wiles of foreign influence, (I conjure you to believe me, fellow citizens,) the jealousy of a free people ought to be **CONSTANTLY** awake; since history and experience prove that foreign influence is one of the most baneful foes of republican government. But that jealousy, to be useful, must be impartial; else it becomes the instrument of the very influence to be avoided, instead of a defence against it. Excessive partiality for one foreign nation, and excessive dislike of another, cause those whom they actuate to see danger only on one side, and serve to veil and even second the arts of influence on the other. Real patriots, who may resist the intrigues of the favourite, are liable to become suspected and odious; while its tools and dupes usurp the applause and confidence of the people, to surrender their interests.

The great rule of conduct for us, in regard to foreign nations, is, in extending our commercial relations, to have with them as little *political* connection as possible. So far as we have already formed engagements, let them be fulfilled with perfect good faith. Here let us stop.

Europe has a set of primary interests, which to us have none, or a very remote relation. Hence she must be engaged in frequent controversies, the causes of which are essentially foreign to our concerns. Hence, therefore, it must be unwise in us to implicate ourselves by artificial ties, in the ordinary vicissitudes of her politics, or the ordinary combinations and collisions of her friendships or enmities. Our detached and distant situation invites and enables us to pursue a different course. If we remain one people, under an efficient government, the period is not far off when we may defy material injury from external annoyance; when we may take such an attitude as will cause the neutrality we may at any time resolve upon, to be scrupulously respected; when belligerent nations, under the impossibility of making acquisitions upon us, will not lightly hazard the giving us provocation; when we may choose peace or war, as our interest, guided by justice, shall counsel.

Why forego the advantages of so peculiar a situation? Why quit our own to stand upon foreign ground? Why, by interweaving our destiny with that of any part of Europe, entangle our peace and prosperity in the toils of European ambition, rivalship, interest, humour, or caprice.

It is our true policy to steer clear of permanent alliances with any portion of the foreign world; so far, I mean, as we are now at liberty to do it; for let me not be understood as capable of patronizing infidelity to existing engagements. I hold the maxim no less applicable to public than to private affairs, that honesty is always the best policy. I repeat it, therefore, let those engagements be observed in their genuine sense. But in my opinion it is unnecessary and would be unwise to extend them.

Taking care always to keep ourselves, by suitable establishments, in a respectable defensive posture, we may safely trust to temporary alliances for extraordinary emergencies.

Harmony and a liberal intercourse with all nations, are recommended by policy, humanity and interest. But even our commercial policy should hold an equal and impartial hand; neither seeking nor granting exclusive favours or preferences; consulting the natural course of things; diffusing and diversifying by gentle means the streams of commerce, but forcing nothing: establishing, with powers so disposed, in order to give trade a stable course, to define the rights of our merchants, and to enable the

government to support them, conventional rules of intercourse, the best that present circumstances and mutual opinion will permit, but temporary, and liable to be from time to time abandoned or varied, as experience and circumstances shall dictate; constantly keeping in view, that it is folly in one nation to look for disinterested favours from another; that it must pay with a portion of its independence for whatever it may accept under that character; that by such acceptance, it may place itself in the condition of having given equivalents for nominal favours, and yet of being reproached with ingratitude for not giving more. There can be no greater error than to expect or calculate upon real favours from nation to nation. It is an illusion which experience must cure—which a just pride ought to discard.

In offering to you, my countrymen, these counsels of an old and affectionate friend, I dare not hope they will make the strong and lasting impression I could wish; that they will control the usual current of the passions, or prevent our nation from running the course which has hitherto marked the destiny of nations! but, if I may even flatter myself, that they may be productive of some partial benefit, some occasional good; that they may now and then recur to moderate the fury of party spirit; to warn against the mischiefs of foreign intrigue; to guard against the impostures of pretended patriotism; this hope will be a full recompense for the solicitude for your welfare, by which they have been dictated.

How far, in the discharge of my official duties, I have been guided by the principles which have been delineated, the public records and other evidences of my conduct must witness to you and to the world. To myself, the assurance of my own conscience is, that I have at least believed myself to be guided by them.

In relation to the still subsisting war in Europe, my proclamation of the 22nd of April, 1793, is the index to my plan. Sanctioned by your approving voice, and by that of your representatives in both houses of Congress, the spirit of that measure has continually governed me, uninfluenced by any attempts to deter or divert me from it.

After a deliberate examination, with the aid of the best lights I could obtain, I was well satisfied that our country, under all the circumstances of the case, had a right to take, and was bound in duty and interest, to take a neutral position. Having taken it, I determined, as far as should depend

upon me, to maintain it with moderation, perseverance and firmness. The considerations which respect the right to hold this conduct, it is not necessary on this occasion to detail. I will only observe, that according to my understanding of the matter, that right, so far from being denied by any of the belligerent powers, has been virtually admitted by all.

The duty of holding a neutral conduct may be inferred without any thing more, from the obligation which justice and humanity impose on every nation, in cases in which it is free to act, to maintain inviolate the relations of peace and amity towards other nations.

The inducements of interest for observing that conduct will be best referred to your own reflections and experience. With me, a predominant motive has been to endeavour to gain time to our country to settle and mature its yet recent institutions, and to progress, without interruption, to that degree of strength and consistency, which is necessary to give it, humanly speaking, the command of its own fortunes.

Though in reviewing the incidents of my administration, I am unconscious of intentional error, I am nevertheless too sensible of my defects, not to think it probable that I may have committed many errors. Whatever they may be, I fervently beseech the Almighty to avert or mitigate the evils to which they may tend. I shall also carry with me the hope that my country will never cease to view them with indulgence; and that, after forty-five years of my life dedicated to its service, with an upright zeal, the faults of incompetent abilities will be consigned to oblivion, as myself must soon be to the mansions of rest.

Relying on its kindness in this as in other things, and actuated by that fervent love towards it which is so natural to a man who views in it the native soil of himself and his progenitors for several generations, I anticipate with pleasing expectation that retreat, in which I promise myself to realize, without alloy, the sweet enjoyment of partaking in the midst of my fellow-citizens the benign influence of good laws under a free government; the ever favourite object of my heart, and the happy reward, as I trust, of our mutual cares, labours and dangers.

G. WASHINGTON.

United States, 17th September, 1796.

IN CONGRESS, PHILADELPHIA, JULY 5, 1775.

A DECLARATION

BY THE REPRESENTATIVES OF THE UNITED COLONIES OF
NORTH AMERICA, SETTING FORTH THE CAUSES AND
NECESSITY OF THEIR TAKING UP ARMS.

*Directed to be published by General Washington, upon his arrival before
Boston.*

If it was possible for men, who exercise their reason, to believe that the Divine author of our existence intended a part of the human race to hold an absolute property in and an unbounded power over others, marked out by his infinite goodness and wisdom as the objects of a legal domination never rightfully resistible, however severe and oppressive, the inhabitants of these colonies might at least require from the parliament of Great Britain some evidence that this dreadful authority over them has been granted to that body. But a reverence for our great Creator, principles of humanity and the dictates of common sense, must convince all those who reflect upon the subject, that government was instituted to promote the welfare of mankind, and ought to be administered for the attainment of that end. The legislature of Great Britain, however, stimulated by an inordinate passion for a power, not only unjustifiable, but which they know to be peculiarly reprobated by the very constitution of that kingdom, and desperate of success in any mode of contest, where regard should be had to truth, law or right, have at length, deserting those, attempted to effect their cruel and impolitic purpose of enslaving these colonies by violence, and have thereby rendered it necessary for us to close with their last appeal from reason to arms. Yet, however blinded that assembly may be, by their intemperate rage for unlimited domination, so to slight justice and the opinion of mankind, we

esteem ourselves bound by obligations of respect to the rest of the world, to make known the justice of our cause.

Our forefathers, inhabitants of the island of Great Britain, left their native land to seek on these shores a residence for civil and religious freedom. At the expense of their blood, at the hazard of their fortunes, without the least charge to the country from which they removed, by unceasing labour and an unconquerable spirit, they effected settlements in the distant and inhospitable wilds of America, then filled with numerous and warlike nations of barbarians. Societies or governments, vested with perfect legislatures, were formed under charters from the crown, and an harmonious intercourse was established between the colonies and the kingdom from which they derived their origin. The mutual benefits of this union became in a short time so extraordinary as to excite astonishment. It is universally confessed that the amazing increase of the wealth, strength and navigation of the realm arose from this source; and the minister, who so wisely and successfully directed the measures of Great Britain in the late war, publicly declared, that these colonies enabled them to triumph over her enemies. Towards the conclusion of that war it pleased our sovereign to make a change in his counsels. From that fatal moment the affairs of the British empire began to fall into confusion, and gradually sliding from the summit of glorious prosperity, to which they had been advanced by the virtues and abilities of one man, are at length distracted by the convulsions that now shake it to its deepest foundations. The new ministry finding the brave foes of Britain, though frequently defeated, yet still contending, took up the unfortunate idea of granting them a hasty peace, and of then subduing her faithful friends.

These devoted colonies were judged to be in such a state as to present victories without bloodshed, and all the easy emoluments of statuteable plunder. The uninterrupted tenor of their peaceable and respectful behaviour from the beginning of colonization, their dutiful, zealous and useful services during the war, though so recently and amply acknowledged in the most honourable manner by his majesty, by the late king and by parliament, could not save them from the meditated innovations. Parliament was influenced to adopt the pernicious project, and, assuming a new power over them, have, in the course of eleven years, given such decisive specimens of the spirit and consequences attending this power, as to leave no doubt

concerning the effects of acquiescence under it. They have undertaken to give and grant our money without our consent, though we have ever exercised an exclusive right to dispose of our own property; statutes have been passed for extending the jurisdiction of courts of admiralty and vice-admiralty beyond their ancient limits; for depriving us of the accustomed and inestimable privilege of trial by jury, in cases affecting both life and property; for suspending the legislature of one of the colonies; for interdicting all commerce to the capital of another; and for altering, fundamentally, the form of government established by charter, and secured by acts of its own legislature solemnly confirmed by the crown; for exempting the “murderers” of colonists from legal trial, and, in effect, from punishment; for erecting in a neighbouring province, acquired by the joint arms of Great Britain and America, a despotism dangerous to our very existence; and for quartering soldiers upon the colonists in time of profound peace. It has also been resolved in parliament that colonists, charged with committing certain offences, shall be transported to England to be tried.

But why should we enumerate our injuries in detail? By one statute it is declared, that parliament can “of right make laws to bind us in all cases whatsoever.” What is to defend us against so enormous, so unlimited a power? Not a single man of those who assume it is chosen by us, or is subject to our control or influence; but, on the contrary, they are all of them exempt from the operation of such laws, and an American revenue, if not diverted from the ostensible purposes for which it is raised, would actually lighten their own burthens in proportion as they increase ours. We saw the misery to which such despotism would reduce us. We for ten years incessantly and ineffectually besieged the throne as supplicants; we reasoned, we remonstrated with parliament in the most mild and decent language.

The administration, sensible that we should regard these oppressive measures as freemen ought to do, sent over fleets and armies to enforce them. The indignation of the Americans was roused, it is true—but it was the indignation of a virtuous, loyal and affectionate people. A Congress of delegates from the united colonies was assembled at Philadelphia on the fifth day of last September. We resolved again to offer an humble and dutiful petition to the king, and also addressed our fellow subjects of Great Britain. We have pursued every temperate, every respectful measure; we

have even proceeded to break off our commercial intercourse with our fellow subjects, as the last peaceable admonition, that our attachment to no nation upon earth should supplant our attachment to liberty. This we flattered ourselves was the ultimate step of the controversy: but subsequent events have shown how vain was this hope of finding moderation in our enemies.

Several threatening expressions against the colonies were inserted in his majesty's speech; our petition, though we were told it was a decent one, and that his majesty had been pleased to receive it graciously, and to promise laying it before his parliament, was huddled into both houses among a bundle of American papers and there neglected. The lords and commons in their address, in the month of February, said, that a rebellion at that time actually existed within the province of Massachusetts Bay; and that those concerned in it had been countenanced and encouraged by unlawful combinations and engagements, entered into by his majesty's subjects in several of the other colonies; and therefore they besought his majesty that he would take the most effectual measures to enforce due obedience to the laws and authority of the supreme legislature. Soon after, the commercial intercourse of whole colonies with foreign countries and with each other was cut off by an act of parliament: by another, several of them were entirely prohibited from the fisheries in the seas near their coast, on which they always depended for their sustenance; and large reinforcements of ships and troops were immediately sent over to General Gage.

Fruitless were all the intreaties, arguments, and eloquence of an illustrious band of the most distinguished peers and commoners, who nobly and strenuously asserted the justice of our cause, to stay, or even to mitigate the heedless fury with which these accumulated and unexampled outrages were hurried on. Equally fruitless was the interference of the city of London, of Bristol, and many other respectable towns in our favour. Parliament adopted an insidious manœuvre calculated to divide us, to establish a perpetual auction of taxations, where colony should bid against colony, all of them uninformed what ransom would redeem their lives; and thus to extort from us, at the point of the bayonet, the unknown sums that would be sufficient to gratify, if possible to gratify, ministerial rapacity, with the miserable indulgence left to us of raising, in our own mode, the

prescribed tribute. What terms more rigid and humiliating could have been dictated by remorseless victors to conquered enemies? In our circumstances to accept them, would be to deserve them.

Soon after the intelligence of these proceedings arrived on this continent, General Gage, who in the course of the last year had taken possession of the town of Boston, in the province of Massachusetts Bay, and still occupied it as a garrison, on the 19th day of April, sent out from that place a large detachment of his army, who made an unprovoked assault on the inhabitants of the said province, at the town of Lexington, as appears by the affidavits of a great number of persons, some of whom were officers and soldiers of that detachment, murdered eight of the inhabitants, and wounded many others. From thence the troops proceeded in warlike array to the town of Concord, where they set upon another party of the inhabitants of the same province, killing several and wounding more, until compelled to retreat by the country people suddenly assembled to repel this cruel aggression. Hostilities, thus commenced by the British troops, have been since prosecuted by them without regard to faith or reputation. The inhabitants of Boston being confined within that town by the general, their governor, and having, in order to procure their dismissal, entered into a treaty with him, it was stipulated that the said inhabitants, having deposited their arms with their own magistrates, should have liberty to depart, taking with them their other effects. They accordingly delivered up their arms; but, in open violation of honour, in defiance of the obligation of treaties, which even savage nations esteem sacred, the governor ordered the arms deposited as aforesaid, that they might be preserved for their owners, to be seized by a body of soldiers; detained the greatest part of the inhabitants in the town, and compelled the few who were permitted to retire, to leave their most valuable effects behind.

By this perfidy, wives are separated from their husbands, children from their parents, the aged and the sick from their relations and friends, who wish to attend and comfort them; and those who have been used to live in plenty and even elegance, are reduced to deplorable distress.

The general, further emulating his ministerial masters, by a proclamation bearing date on the 12th day of June, after venting the grossest falsehoods and calumnies against the good people of these colonies, proceeds to “declare them all, either by name or description, to be

rebels and traitors, to supersede the course of the common law, and instead thereof to publish and order the use and exercise of the law martial.” His troops have butchered our countrymen, have wantonly burnt Charlestown, besides a considerable number of houses in other places; our ships and vessels are seized; the necessary supplies of provisions are intercepted, and he is exerting his utmost power to spread destruction and devastation around him.

We have received certain intelligence, that general Carleton, the governor of Canada, is instigating the people of that province, and the Indians, to fall upon us; and we have but too much reason to apprehend, that schemes have been formed to excite domestic enemies against us. In brief, a part of these colonies now feel, and all of them are sure of feeling, as far as the vengeance of administration can inflict them, the complicated calamities of fire, sword and famine. We are reduced to the alternative of choosing an unconditional submission to the tyranny of irritated ministers, or resistance by force. *The latter is our choice. We have counted the cost of this contest, and find nothing so dreadful as voluntary slavery.* Honour, justice, and humanity, forbid us tamely to surrender that freedom which we received from our gallant ancestors, and which our innocent posterity have a right to receive from us. We cannot endure the infamy and guilt of resigning succeeding generations to that wretchedness which inevitably awaits them, if we basely entail hereditary bondage upon them.

Our cause is just. Our union is perfect. Our internal resources are great, and, if necessary, foreign assistance is undoubtedly attainable. We gratefully acknowledge, as a signal instance of the divine favour towards us, that his providence would not permit us to be called into this severe controversy until we were grown up to our present strength, had been previously exercised in warlike operations, and possessed the means of defending ourselves. With hearts fortified with these animating reflections, we most solemnly before God and the world DECLARE, that, exerting the utmost energy of those powers which our beneficent Creator hath graciously bestowed upon us, the arms we have been compelled by our enemies to assume, we will, in defiance of every hazard, with unabating firmness and perseverance, employ for the preservation of our liberties—*being with one mind resolved to die FREEMEN rather than to live SLAVES.*

Lest this declaration should disquiet the minds of our friends and fellow subjects in any part of the empire, we assure them that we mean not to dissolve that union which has so long and so happily subsisted between us, and which we sincerely wish to see restored. Necessity has not yet driven us into that desperate measure, or induced us to excite any other nation to war against them. We have not raised armies with ambitious designs of separating from Great Britain and establishing independent states. We fight not for glory or for conquest. We exhibit to mankind the remarkable spectacle of a people attacked by unprovoked enemies, without any imputation or even suspicion of offence. They boast of their privileges and civilization, and yet proffer no milder conditions than servitude or death.

In our own native land, in defence of the freedom that is our birthright, and which we ever enjoyed till the late violation of it, for the protection of our property, acquired solely by the honest industry of our forefathers and ourselves, against violence actually offered, we have taken up arms. We shall lay them down when hostilities shall cease on the part of the aggressors, and all danger of their being renewed shall be removed, and not before.

With an humble confidence in the mercies of the supreme and impartial Judge and Ruler of the universe, we most devoutly implore his divine goodness to protect us happily through this great conflict, to dispose our adversaries to reconciliation on reasonable terms, and thereby to relieve the empire from the calamities of civil war.

ARTICLES OF CONFEDERATION.

IN CONGRESS, JULY 8, 1778.

ARTICLES OF CONFEDERATION AND PERPETUAL UNION

Between the States of New Hampshire, Massachusetts Bay, Rhode Island and Providence Plantations, Connecticut, New York, New Jersey, Pennsylvania, Delaware, Maryland, Virginia, North Carolina, South Carolina, and Georgia.

ARTICLE 1. The style of this confederacy shall be, “*The United States of America.*”

Art. 2. Each state retains its sovereignty, freedom, and independence, and every power, jurisdiction, and right, which is not by this confederation expressly delegated to the United States, in Congress assembled.

Art. 3. The said states hereby severally enter into a firm league of friendship with each other, for their common defence, the security of their liberties, and their mutual and general welfare, binding themselves to assist each other against all force offered to, or attacks made upon them, or any of them, on account of religion, sovereignty, trade, or any other pretence whatever.

Art. 4. § 1. The better to secure and perpetuate mutual friendship and intercourse among the people of the different states in this union, the free inhabitants of each of these states, paupers, vagabonds, and fugitives from justice excepted, shall be entitled to all privileges and immunities of free citizens in the several states; and the people of each state shall have free ingress and regress to and from any other state, and shall enjoy therein all the privileges of trade and commerce, subject to the same duties, impositions, and restrictions, as the inhabitants thereof respectively; provided that such restrictions shall not extend so far as to prevent the

removal of property imported into any state, to any other state, of which the owner is an inhabitant; provided also, that no imposition, duties, or restriction, shall be laid by any state on the property of the United States, or either of them.

§ 2. If any person guilty of, or charged with, treason, felony, or other high misdemeanor in any state, shall flee from justice, and be found in any of the United States, he shall, upon the demand of the governor or executive power of the state from which he fled, be delivered up, and removed to the state having jurisdiction of his offence.

§ 3. Full faith and credit shall be given, in each of these states, to the records, acts, and judicial proceedings of the courts and magistrates of every other state.

Art. 5. § 1. For the more convenient management of the general interests of the United States, delegates shall be annually appointed in such a manner as the legislature of each state shall direct, to meet in Congress on the first Monday in November, in every year, with a power reserved to each state to recall its delegates, or any of them, at any time within the year, and to send others in their stead, for the remainder of the year.

§ 2. No state shall be represented in Congress by less than two, nor more than seven members: and no person shall be capable of being a delegate for more than three years, in any term of six years; nor shall any person, being a delegate, be capable of holding any office under the United States, for which he, or any other for his benefit, receives any salary, fees, or emolument of any kind.

§ 3. Each state shall maintain its own delegates in a meeting of the states, and while they act as members of the committee of these states.

§ 4. In determining questions in the United States in Congress assembled, each state shall have one vote.

§ 5. Freedom of speech and debate in Congress shall not be impeached or questioned in any court or place out of Congress, and the members of Congress shall be protected in their persons from arrests and imprisonments during the time of their going to and from, and attendance on, Congress, except for treason, felony, or breach of the peace.

Art. 6. § 1. No state, without the consent of the United States, in Congress assembled, shall send any embassy to, or receive any embassy from, or enter into any conference, agreement, alliance, or treaty, with any king, prince, or state; nor shall any person holding any office of profit or trust under the United States, or any of them, accept of any present, emolument, office, or title of any kind whatever, from any king, prince, or foreign state; nor shall the United States, in Congress assembled, or any of them, grant any title of nobility.

§ 2. No two or more states shall enter into any treaty, confederation, or alliance whatever, between them, without the consent of the United States, in Congress assembled, specifying accurately the purposes for which the same is to be entered into, and how long it shall continue.

§ 3. No state shall lay any imposts or duties which may interfere with any stipulations in treaties entered into by the United States, in Congress assembled, with any king, prince, or state, in pursuance of any treaties already proposed by Congress to the courts of France and Spain.

§ 4. No vessels of war shall be kept up in time of peace, by any state, except such number only as shall be deemed necessary by the United States, in Congress assembled, for the defence of such state, or its trade: nor shall any body of forces be kept up, by any state, in time of peace, except such number only as, in the judgment of the United States, in Congress assembled, shall be deemed requisite to garrison the forts necessary for the defence of such state; but every state shall always keep up a regular and well disciplined militia, sufficiently armed and accoutred, and shall provide and constantly have ready for use, in public stores, a due number of field pieces and tents, and a proper quantity of arms, ammunition, and camp equipage.

§ 5. No state shall engage in any war without the consent of the United States, in Congress assembled, unless such state be actually invaded by enemies, or shall have received certain advice of a resolution being formed by some nation of Indians to invade such state, and the danger is so imminent as not to admit of delay till the United States, in Congress assembled, can be consulted; nor shall any state grant commissions to any ships or vessels of war, nor letters of marque or reprisal, except it be after a declaration of war by the United States, in Congress assembled, and then

only against a kingdom or state, and the subjects thereof, against which war has been so declared, and under such regulations as shall be established by the United States, in Congress assembled, unless such state be infested by pirates, in which case vessels of war may be fitted out for that occasion, and kept so long as the danger shall continue, or until the United States, in Congress assembled, shall determine otherwise.

Art. 7. When land forces are raised by any state for the common defence, all officers of, or under the rank of colonel, shall be appointed by the legislature of each state respectively by whom such forces shall be raised, or in such manner as such state shall direct, and all vacancies shall be filled up by the state which first made the appointment.

Art. 8. All charges of war, and all other expenses that shall be incurred for the common defence or general welfare, and allowed by the United States, in Congress assembled, shall be defrayed out of a common treasury, which shall be supplied by the several states, in proportion to the value of all land within each state, granted to, or surveyed for, any person, as such land and the buildings and improvements thereon shall be estimated, according to such mode as the United States, in Congress assembled, shall, from time to time, direct and appoint. The taxes for paying that proportion shall be laid and levied by the authority and direction of the legislatures of the several states, within the time agreed upon by the United States, in Congress assembled.

Art. 9. § 1. The United States, in Congress assembled, shall have the sole and exclusive right and power of determining on peace and war, except in the cases mentioned in the sixth article, of sending and receiving ambassadors, entering into treaties and alliances, provided that no treaty of commerce shall be made, whereby the legislative power of the respective states shall be restrained from imposing such imposts and duties on foreigners, as their own people are subjected to, or from prohibiting the exportation or importation of any species of goods or commodities whatsoever; of establishing rules for deciding, in all cases, what captures on land or water shall be legal, and in what manner prizes taken by land or naval forces in the service of the United States, shall be divided or appropriated; of granting letters of marque and reprisal in times of peace; appointing courts for the trial of piracies and felonies committed on the high seas; and establishing courts for receiving and determining finally

appeals in all cases of captures; provided that no member of Congress shall be appointed a judge of any of the said courts.

§ 2. The United States, in Congress assembled, shall also be the last resort on appeal, in all disputes and differences now subsisting, or that hereafter may arise between two or more states concerning boundary, jurisdiction or any other cause whatever, which authority shall always be exercised in the manner following: Whenever the legislative or executive authority, or lawful agent of any state in controversy with another, shall present a petition to Congress stating the matter in question, and praying for a hearing, notice thereof shall be given by order of Congress to the legislative or executive authority of the other state in controversy, and a day assigned for the appearance of the parties by their lawful agents, who shall then be directed to appoint, by joint consent, commissioners or judges to constitute a court for hearing and determining the matter in question; but if they cannot agree, Congress shall name three persons out of each of the United States, and from the list of such persons each party shall alternately strike out one, the petitioners beginning, until the number shall be reduced to thirteen; and from that number not less than seven, nor more than nine names, as Congress shall direct, shall, in the presence of Congress, be drawn out by lot; and the persons whose names shall be so drawn, or any five of them, shall be commissioners or judges, to hear and finally determine the controversy, so always as a major part of the judges, who shall hear the cause, shall agree in the determination; and if either party shall neglect to attend at the day appointed, without showing reasons which Congress shall judge sufficient, or being present, shall refuse to strike, the Congress shall proceed to nominate three persons out of each state, and the secretary of Congress shall strike in behalf of such party absent or refusing; and the judgment and sentence of the court, to be appointed in the manner before prescribed, shall be final and conclusive; and if any of the parties shall refuse to submit to the authority of such court, or to appear or defend their claim or cause, the court shall nevertheless proceed to pronounce sentence or judgment, which shall in like manner be final and decisive; the judgment or sentence and other proceedings being in either case transmitted to Congress, and lodged among the acts of Congress, for the security of the parties concerned; provided, that every commissioner, before he sits in judgment, shall take an oath, to be administered by one of the judges of the supreme or superior court of the state where the cause shall be tried, “well

and truly to hear and determine the matter in question, according to the best of his judgment, without favour, affection or hope of reward.” Provided also, that no state shall be deprived of territory for the benefit of the United States.

§ 3. All controversies concerning the private right of soil claimed under different grants of two or more states, whose jurisdiction, as they may respect such lands, and the states which passed such grants are adjusted, the said grants or either of them being at the same time claimed to have originated antecedent to such settlement of jurisdiction, shall, on the petition of either party to the Congress of the United States, be finally determined, as near as may be, in the same manner as is before prescribed for deciding disputes respecting territorial jurisdiction between different states.

§ 4. The United States, in Congress assembled, shall also have the sole and exclusive right and power of regulating the alloy and value of coin struck by their own authority, or by that of the respective states; fixing the standard of weights and measures throughout the United States; regulating the trade and managing all affairs with the Indians, not members of any of the states; provided that the legislative right of any state, within its own limits, be not infringed or violated; establishing and regulating post offices from one state to another, throughout all the United States, and exacting such postage on the papers passing through the same as may be requisite to defray the expenses of the said office; appointing all officers of the land forces in the service of the United States, excepting regimental officers; appointing all the officers of the naval forces, and commissioning all officers whatever in the service of the United States; making rules for the government and regulation of the said land and naval forces, and directing their operations.

§ 5. The United States, in Congress assembled, shall have authority to appoint a committee, to sit in the recess of Congress, to be denominated, “*A Committee of the States*,” and to consist of one delegate from each state; and to appoint such other committees and civil officers as may be necessary for managing the general affairs of the United States under their direction; to appoint one of their number to preside; provided that no person be allowed to serve in the office of president more than one year in any term of three years; to ascertain the necessary sums of money to be raised for the

service of the United States, and to appropriate and apply the same for defraying the public expenses; to borrow money or emit bills on the credit of the United States, transmitting every half year to the respective states an account of the sums of money so borrowed or emitted; to build and equip a navy; to agree upon the number of land forces, and to make requisitions from each state for its quota, in proportion to the number of white inhabitants in such state, which requisition shall be binding; and thereupon the legislature of each state shall appoint the regimental officers, raise the men, clothe, arm, and equip them, in a soldier-like manner, at the expense of the United States; and the officers and men so clothed, armed, and equipped, shall march to the place appointed, and within the time agreed on by the United States, in Congress assembled; but if the United States, in Congress assembled, shall, on consideration of circumstances, judge proper that any state should not raise men, or should raise a smaller number than its quota, and that any other state should raise a greater number of men than the quota thereof, such extra number shall be raised, officered, clothed, armed, and equipped in the same manner as the quota of such state, unless the legislature of such state shall judge that such extra number cannot be safely spared out of the same, in which case they shall raise, officer, clothe, arm, and equip as many of such extra number as they judge can be safely spared, and the officers and men so clothed, armed, and equipped, shall march to the place appointed, and within the time agreed on by the United States in Congress assembled.

§ 6. The United States, in Congress assembled, shall never engage in a war, nor grant letters of marque and reprisal in time of peace, nor enter into any treaties or alliances, nor coin money, nor regulate the value thereof, nor ascertain the sums and expenses necessary for the defence and welfare of the United States, or any of them, nor emit bills, nor borrow money on the credit of the United States, nor appropriate money, nor agree upon the number of vessels of war to be built or purchased, or the number of land or sea forces to be raised, nor appoint a commander-in-chief of the army or navy, unless nine states assent to the same, nor shall a question on any other point, except for adjourning from day to day, be determined, unless by the votes of a majority of the United States in Congress assembled.

§ 7. The Congress of the United States shall have power to adjourn to any time within the year, and to any place within the United States, so that

no period of adjournment be for a longer duration than the space of six months, and shall publish the journal of their proceedings monthly, except such parts thereof relating to treaties, alliances, or military operations, as in their judgment require secrecy; and the yeas and nays of the delegates of each state, on any question shall be entered on the journal, when it is desired by any delegate; and the delegates of a state, or any of them, at his or their request, shall be furnished with a transcript of the said journal, except such parts as are above excepted, to lay before the legislatures of the several states.

Art. 10. The committee of the states, or any nine of them, shall be authorized to execute, in the recess of Congress, such of the powers of Congress as the United States, in Congress assembled, by the consent of nine states, shall, from time to time, think expedient to vest them with; provided that no power be delegated to the said committee, for the exercise of which, by the articles of confederation, the voice of nine states, in the Congress of the United States assembled, is requisite.

Art. 11. Canada acceding to this confederation, and joining in the measures of the United States, shall be admitted into, and entitled to all the advantages of this Union: but no other colony shall be admitted into the same, unless such admission be agreed to by nine states.

Art. 12. All bills of credit emitted, moneys borrowed, and debts contracted by or under the authority of Congress, before the assembling of the United States, in pursuance of the present confederation, shall be deemed and considered as a charge against the United States, for payment and satisfaction whereof the said United States and the public faith are hereby solemnly pledged.

Art. 13. Every state shall abide by the determination of the United States, in Congress assembled, in all questions which, by this confederation, are submitted to them. And the articles of this confederation shall be inviolably observed by every state, and the Union shall be perpetual; nor shall any alteration at any time hereafter be made in any of them, unless such alteration be agreed to in a Congress of the United States, and be afterwards confirmed by the legislature of every state.

And whereas it hath pleased the Great Governor of the world to incline the hearts of the legislatures we respectively represent in Congress, to

approve of, and to authorize us to ratify the said articles of confederation and perpetual union, Know ye, that we, the undersigned delegates, by virtue of the power and authority to us given for that purpose, do, by these presents, in the name and in behalf of our respective constituents, fully and entirely ratify and confirm each and every of the said articles of confederation and perpetual union, and all and singular the matters and things therein contained. And we do further solemnly plight and engage the faith of our respective constituents, that they shall abide by the determination of the United States, in Congress assembled, in all questions which by the said confederation are submitted to them; and that the articles thereof shall be inviolably observed by the states we respectively represent, and that the Union shall be perpetual. In witness whereof, we have hereunto set our hands, in Congress.

Done at Philadelphia, in the State of Pennsylvania, the 9th day of July, in the year of our Lord, 1778, and in the third year of the Independence of America.

NEW HAMPSHIRE.

Josiah Bartlett,
John Wentworth, Jr.

MASSACHUSETTS BAY.

John Hancock,
Samuel Adams,
Elbridge Gerry,
Francis Dana,
James Lovel,
Samuel Holten.

RHODE ISLAND, &c.

William Ellery,
Henry Marchant,
John Collins.

CONNECTICUT.

Roger Sherman,
Samuel Huntingdon,

Oliver Wolcott,
Titus Hosmer,
Andrew Adams.

NEW YORK.

Jas. Duane,
Fra. Lewis,
Wm. Duer,
Gouv. Morris.

NEW JERSEY.

Jno. Witherspoon,
Nath. Scudder.

PENNSYLVANIA.

Robert Morris,
Daniel Roberdeau,
Jona. Bayard Smith,
William Clingan,
Joseph Reed.

DELAWARE.

Thos. M'Kean,
John Dickinson,
Nicholas Van Dyke.

MARYLAND.

John Hanson,
Daniel Carroll.

VIRGINIA.

Richard Henry Lee,
John Bannister,
Thomas Adams,
John Harris,
Francis Lightfoot Lee.

NORTH CAROLINA.

John Penn,
Cons. Harnett,
Jno. Williams.

SOUTH CAROLINA.

Henry Laurens,
William Henry Drayton,
Jno. Matthews,
Richard Hutson,
Thomas Heyward, Jr.

GEORGIA.

Jno. Walton,
Edwd. Telfair,
Edwd. Langworthy.

CONSTITUTION OF THE UNITED STATES.

PREAMBLE.

We, the people of the United States, in order to form a more perfect union, establish justice, insure domestic tranquillity, provide for the common defence, promote the general welfare, and secure the blessings of liberty to ourselves and our posterity, do ordain and establish this constitution for the United States of America.

ARTICLE I.

Of the Legislature.

SECTION I.

1. All legislative powers herein granted, shall be vested in a congress of the United States, which shall consist of a Senate and House of Representatives.

SECTION II.

1. The House of Representatives shall be composed of members chosen every second year by the people of the several states; and the electors in each state shall have the qualifications requisite for electors of the most numerous branch of the state legislature.

2. No person shall be a representative who shall not have attained to the age of twenty-five years, and been seven years a citizen of the United

States, and who shall not, when elected, be an inhabitant of that state in which he shall be chosen.

3. Representatives and direct taxes shall be apportioned among the several states which may be included within this union, according to their respective numbers, which shall be determined by adding to the whole number of free persons, including those bound to service for a term of years, and excluding Indians not taxed, three-fifths of all other persons. The actual enumeration shall be made within three years after the first meeting of the Congress of the United States, and within every subsequent term of ten years, in such manner as they shall by law direct. The number of representatives shall not exceed one for every thirty thousand, but each state shall have at least one representative; and until such enumeration shall be made, the state of *New Hampshire* shall be entitled to choose three; *Massachusetts* eight; *Rhode Island and Providence Plantations* one; *Connecticut* five; *New York* six; *New Jersey* four; *Pennsylvania* eight; *Delaware* one; *Maryland* six; *Virginia* ten; *North Carolina* five; *South Carolina* five; and *Georgia* three.

4. When vacancies happen in the representation from any state, the executive authority thereof shall issue writs of election to fill up such vacancies.

5. The House of Representatives shall choose their speaker and other officers, and shall have the sole power of impeachment.

SECTION III.

1. The Senate of the United States shall be composed of two senators from each state, chosen by the legislature thereof, for six years; and each senator shall have one vote.

2. Immediately after they shall be assembled in consequence of the first election, they shall be divided, as equally as may be, into three classes. The seats of the senators of the first class shall be vacated at the expiration of the second year, of the second class at the expiration of the fourth year, and of the third class at the expiration of the sixth year, so that one third may be chosen every second year; and if vacancies happen, by resignation or otherwise, during the recess of the legislature of any state, the executive

thereof may make temporary appointments until the next meeting of the legislature, which shall then fill such vacancies.

3. No person shall be a senator who shall not have attained to the age of thirty years, and been nine years a citizen of the United States, and who shall not, when elected, be an inhabitant of that state for which he shall be chosen.

4. The Vice President of the United States shall be President of the Senate, but shall have no vote, unless they be equally divided.

5. The Senate shall choose their other officers, and also a president pro tempore, in the absence of the Vice President, or when he shall exercise the office of President of the United States.

6. The Senate shall have the sole power to try all impeachments. When sitting for that purpose, they shall be on oath or affirmation. When the President of the United States is tried, the chief justice shall preside; and no person shall be convicted without the concurrence of two-thirds of the members present.

7. Judgment in case of impeachment shall not extend further than to removal from office, and disqualification to hold and enjoy any office of honour, trust, or profit, under the United States; but the party convicted shall, nevertheless, be liable and subject to indictment, trial, judgment, and punishment according to law.

SECTION IV.

1. The times, places, and manner of holding elections for senators and representatives, shall be prescribed in each state by the legislature thereof; but the Congress may at any time, by law, make or alter such regulations, except as to the place of choosing senators.

2. The Congress shall assemble at least once in every year, and such meeting shall be on the first Monday in December, unless they shall by law appoint a different day.

SECTION V.

1. Each House shall be the judge of the elections, returns, and qualifications of its own members; and a majority of each shall constitute a quorum to do business; but a smaller number may adjourn from day to day, and may be authorized to compel the attendance of absent members, in such manner and under such penalties as each House may provide.

2. Each House may determine the rule of its proceedings, punish its members for disorderly behaviour, and, with the concurrence of two-thirds, expel a member.

3. Each House shall keep a journal of its proceedings, and from time to time publish the same, excepting such parts as may in their judgment require secrecy; and the yeas and nays of the members of either House, on any question, shall, at the desire of one-fifth of those present, be entered on the journal.

4. Neither House during the session of Congress shall, without the consent of the other, adjourn for more than three days, nor to any other place than that in which the two houses shall be sitting.

SECTION VI.

1. The senators and representatives shall receive a compensation for their services, to be ascertained by law, and paid out of the treasury of the United States. They shall in all cases, except treason, felony, and breach of the peace, be privileged from arrest during their attendance at the session of their respective Houses, and in going to or returning from the same; and for any speech or debate in either House, they shall not be questioned in any other place.

2. No senator or representative shall, during the time for which he was elected, be appointed to any civil office under the authority of the United States which shall have been created, or the emoluments whereof shall have been increased, during such time; and no person holding any office under the United States shall be a member of either House during his continuance in office.

SECTION VII.

1. All bills for raising revenue shall originate in the House of Representatives; but the Senate may propose or concur with amendments, as on other bills.

2. Every bill which shall have passed the House of Representatives and the Senate shall, before it become a law, be presented to the President of the United States; if he approve, he shall sign it; but if not, he shall return it, with his objections, to that House in which it shall have originated, who shall enter the objection at large on their journal, and proceed to reconsider it. If, after such reconsideration, two-thirds of that House shall agree to pass the bill, it shall be sent, together with the objections, to the other House, by which it shall likewise be reconsidered, and if approved by two-thirds of that House, it shall become a law. But in all such cases the votes of both Houses shall be determined by yeas and nays, and the names of the persons voting for and against the bill shall be entered on the Journal of each House respectively. If any bill shall not be returned by the President within ten days (Sundays excepted) after it shall have been presented to him, the same shall be a law in like manner as if he had signed it, unless the Congress by their adjournment prevent its return, in which case it shall not be a law.

3. Every order, resolution, or vote to which the concurrence of the Senate and House of Representatives may be necessary, (except a question of adjournment,) shall be presented to the President of the United States; and before the same shall take effect, shall be approved by him, or being disapproved by him, shall be repassed by two-thirds of the Senate and House of Representatives, according to the rules and limitations prescribed in the case of a bill.

SECTION VIII.

The Congress shall have power—

1. To lay and collect taxes, duties, imposts, and excises, to pay the debts and provide for the common defence and general welfare of the United States; but all duties, imposts, and excises shall be uniform throughout the United States:

2. To borrow money on the credit of the United States:

3. To regulate commerce with foreign nations, and among the several states, and with the Indian tribes:

4. To establish a uniform rule of naturalization, and uniform laws on the subject of bankruptcies, throughout the United States:

5. To coin money, regulate the value thereof, and of foreign coin, and fix the standard of weights and measures:

6. To provide for the punishment of counterfeiting the securities and current coin of the United States:

7. To establish post offices and post roads:

8. To promote the progress of science and useful arts, by securing for limited times to authors and inventors the exclusive right to their respective writings and discoveries:

9. To constitute tribunals inferior to the supreme court:

10. To define and punish piracies and felonies committed on the high seas, and offences against the law of nations:

11. To declare war, grant letters of marque and reprisal, and make rules concerning captures on land and water:

12. To raise and support armies; but no appropriation of money to that use shall be for a longer term than two years:

13. To provide and maintain a navy:

14. To make rules for the government and regulation of the land and naval forces:

15. To provide for calling forth the militia to execute the laws of the Union, suppress insurrections, and repel invasions:

16. To provide for organizing, arming, and disciplining the militia, and for governing such part of them as may be employed in the service of the United States, reserving to the states respectively the appointment of the officers and the authority of training the militia according to the discipline prescribed by Congress:

17. To exercise exclusive legislation, in all cases whatsoever, over such district (not exceeding ten miles square,) as may, by cession of particular

states and the acceptance of Congress, become the seat of government of the United States, and to exercise like authority over all places purchased, by the consent of the legislature of the state in which the same shall be, for the erection of forts, magazines, arsenals, dock-yards, and other needful buildings: and

18. To make all laws which shall be necessary and proper for carrying into execution the foregoing powers, and all other powers vested by this constitution in the government of the United States, or any department or officer thereof.

SECTION IX.

1. The migration or importation of such persons as any of the states now existing shall think proper to admit, shall not be prohibited by the Congress prior to the year one thousand eight hundred and eight, but a tax or duty may be imposed on such importation, not exceeding ten dollars for each person.

2. The privilege of the writ of habeas corpus shall not be suspended unless when, in case of rebellion or invasion, the public safety may require it.

3. No bill of attainder, or ex-post-facto law, shall be passed.

4. No capitation or other direct tax shall be laid, unless in proportion to the census or enumeration hereinbefore directed to be taken.

5. No tax or duty shall be laid on articles exported from any state. No preference shall be given by any regulation of commerce or revenue to the ports of one state over those of another; nor shall vessels bound to or from one state be obliged to enter, clear, or pay duties in another.

6. No money shall be drawn from the treasury but in consequence of appropriations made by law; and a regular statement and account of the receipts and expenditures of all public money shall be published from time to time.

7. No title of nobility shall be granted by the United States, and no person holding any office of profit or trust under them shall, without the

consent of Congress, accept of any present, emolument, office, or title of any kind whatever, from any king, prince, or foreign state.

SECTION X.

1. No state shall enter into any treaty, alliance, or confederation; grant letters of marque and reprisal; coin money; emit bills of credit; make any thing but gold and silver coin a tender in payment of debts; pass any bill of attainder, ex-post-facto law, or law impairing the obligation of contracts; or grant any title of nobility.

2. No state shall, without the consent of Congress, lay any imposts or duties on imports or exports, except what may be absolutely necessary for executing its inspection laws; and the nett produce of all duties and imposts laid by any state on imports or exports shall be for the use of the treasury of the United States, and all such laws shall be subject to the revision and control of Congress. No state shall, without the consent of Congress, lay any duty on tonnage, keep troops or ships of war in time of peace, enter into any agreement or compact with another state, or with a foreign power, or engage in war, unless actually invaded, or in such imminent danger as will not admit of delay.

ARTICLE II.

Of the Executive.

SECTION I.

1. The executive power shall be vested in a President of the United States of America. He shall hold his office during the term of four years, and, together with the Vice President, chosen for the same term, be elected as follows:—

2. Each state shall appoint, in such manner as the legislature thereof may direct, a number of electors, equal to the whole number of senators and representatives to which the state may be entitled in Congress; but no

senator or representative, or person holding any office of trust or profit under the United States, shall be appointed an elector.

3. The electors shall meet in their respective states, and vote by ballot for two persons, of whom one at least shall not be an inhabitant of the same state with themselves. And they shall make a list of all the persons voted for, and of the number of votes for each; which list they shall sign and certify, and transmit sealed to the seat of the government of the United States, directed to the President of the Senate. The President of the Senate shall, in the presence of the Senate and House of Representatives, open all the certificates, and the votes shall then be counted. The person having the greatest number of votes shall be the President, if such number be a majority of the whole number of electors appointed; and if there be more than one who have such majority, and have an equal number of votes, then the House of Representatives shall immediately choose by ballot one of them for President; and if no person have a majority, then, from the five highest on the list, the said House shall in like manner choose the President. But in choosing the President, the votes shall be taken by states, the representation from each state having one vote; a quorum for this purpose shall consist of a member or members from two-thirds of the states, and a majority of all the states shall be necessary to a choice. In every case after the choice of the President, the person having the greatest number of votes of the electors shall be Vice President. But if there should remain two or more who have equal votes, the Senate shall choose from them by ballot the Vice President.

4. The Congress may determine the time of choosing the electors and the day on which they shall give their votes, which day shall be the same throughout the United States.

5. No person except a natural-born citizen, or a citizen of the United States at the time of the adoption of this constitution, shall be eligible to the office of President; neither shall any person be eligible to that office who shall not have attained to the age of thirty-five years, and been fourteen years a resident within the United States.

6. In case of the removal of the President from office, or of his death, resignation, or inability to discharge the powers and duties of the said office, the same shall devolve on the Vice President; and the Congress may

by law provide for the case of removal, death, resignation, or inability, both of the President and Vice President, declaring what officer shall then act as President; and such officer shall act accordingly, until the disability be removed or a President shall be elected.

7. The President shall, at stated times, receive for his services a compensation, which shall neither be increased nor diminished during the period for which he shall have been elected, and he shall not receive within that period any other emolument from the United States, or any of them.

8. Before he enter on the execution of his office, he shall take the following oath or affirmation:—

“I do solemnly swear (or affirm) that I will faithfully execute the office of President of the United States, and will, to the best of my ability, preserve, protect, and defend the constitution of the United States.”

SECTION II.

1. The President shall be commander-in-chief of the army and navy of the United States and of the militia of the several states, when called into the actual service of the United States; he may require the opinion in writing of the principal officer in each of the executive departments, upon any subject relating to the duties of their respective offices; and he shall have power to grant reprieves and pardons for offences against the United States, except in cases of impeachment.

2. He shall have power, by and with the advice and consent of the Senate, to make treaties, provided two-thirds of the senators present, concur: and he shall nominate, and by and with the advice and consent of the Senate, shall appoint ambassadors, other public ministers and consuls, judges of the supreme court, and all other officers of the United States, whose appointments are not herein otherwise provided for, and which shall be established by law. But the Congress may by law vest the appointment of such inferior officers as they think proper in the President alone, in the courts of law, or in the heads of departments.

3. The President shall have power to fill up all vacancies that may happen during the recess of the Senate, by granting commissions, which shall expire at the end of the next session.

SECTION III.

1. He shall, from time to time, give to Congress information of the state of the Union, and recommend to their consideration such measures as he shall judge necessary and expedient; he may, on extraordinary occasions, convene both Houses, or either of them; and in case of disagreement between them, with respect to the time of adjournment, he may adjourn them to such time as he shall think proper; he shall receive ambassadors and other public ministers; he shall take care that the laws be faithfully executed; and shall commission all the officers of the United States.

SECTION IV.

1. The President, Vice President, and all civil officers of the United States, shall be removed from office on impeachment for and conviction of treason, bribery, or other high crimes and misdemeanors.

ARTICLE III.

Of the Judiciary.

SECTION I.

1. The judicial power of the United States shall be vested in one Supreme Court, and in such inferior courts as Congress may, from time to time order and establish. The judges, both of the supreme and inferior courts, shall hold their offices during good behaviour; and shall, at stated times, receive for their services a compensation, which shall not be diminished during their continuance in office.

SECTION II.

1. The judicial power shall extend to all cases in law and equity arising under this Constitution, the laws of the United States, and treaties made, or which shall be made, under their authority; to all cases affecting ambassadors, other public ministers, and consuls; to all cases of admiralty and maritime jurisdiction; to controversies to which the United States shall

be a party; to controversies between two or more states; between a state and citizens of another state; between citizens of different states; between citizens of the same state claiming lands under grants of different states; and between a state, or the citizens thereof and foreign states, citizens, or subjects.

2. In all cases affecting ambassadors, other public ministers, and consuls, and those in which a state shall be a party, the Supreme Court shall have original jurisdiction. In all the other cases before mentioned the Supreme Court shall have appellate jurisdiction, both as to law and fact, with such exceptions, and under such regulations as Congress shall make.

3. The trial of all crimes, except in cases of impeachment, shall be by jury, and such trial shall be held in the state where the said crimes shall have been committed; but when not committed within any state, the trial shall be at such place or places as Congress may by law have directed.

SECTION III.

1. Treason against the United States shall consist only in levying war against them, or in adhering to their enemies, giving them aid and comfort. No person shall be convicted of treason, unless on the testimony of two witnesses to the same overt act, or confession in open court.

2. Congress shall have power to declare the punishment of treason; but no attainder of treason shall work corruption of blood, or forfeiture, except during the life of the person attainted.

ARTICLE IV.

Miscellaneous.

SECTION I.

1. Full faith and credit shall be given in each state to the public acts, records, and judicial proceedings of every other state. And Congress may, by general laws, prescribe the manner in which such acts, records, and proceedings shall be proved, and the effect thereof.

SECTION II.

1. The citizens of each state shall be entitled to all the privileges and immunities of citizens in the several states.

2. A person charged in any state with treason, felony, or other crime, who shall flee from justice and be found in another state, shall, on demand of the executive authority of the state from which he fled, be delivered up, to be removed to the state having jurisdiction of the crime.

3. No person held to service or labour in one state, under the laws thereof, escaping into another shall, in consequence of any law or regulation therein, be discharged from such service or labour; but shall be delivered up on claim of the party to whom such service or labour may be due.

SECTION III.

1. New states may be admitted by Congress into this union; but no new state shall be formed or erected within the jurisdiction of any other state, nor any state be formed by the junction of two or more states, or parts of states, without the consent of the legislatures of the states concerned, as well as of Congress.

2. Congress shall have power to dispose of, and make all needful rules and regulations respecting the territory, or other property belonging to the United States; and nothing in this constitution shall be so construed as to prejudice any claims of the United States or of any particular state.

SECTION IV.

1. The United States shall guarantee to every state in this union a republican form of government, and shall protect each of them against invasion; and, on application of the legislature, or of the executive (when the legislature cannot be convened), against domestic violence.

ARTICLE V.

Of Amendments.

1. Congress, whenever two-thirds of both houses shall deem it necessary, shall propose amendments to this constitution; or, on the application of the legislatures of two-thirds of the several states, shall call a convention for proposing amendments, which, in either case, shall be valid to all intents and purposes, as part of this constitution, when ratified by the legislatures of three-fourths of the several states, or by conventions in three-fourths thereof, as the one or the other mode of ratification may be proposed by Congress; provided, that no amendment which may be made prior to the year one thousand eight hundred and eight, shall in any manner affect the first and fourth clauses in the ninth section of the first article; and that no state, without its consent, shall be deprived of its equal suffrage in the senate.

ARTICLE VI.

Miscellaneous.

1. All debts contracted, and engagements entered into, before the adoption of this constitution, shall be as valid against the United States under this constitution, as under the confederation.

2. This constitution, and the laws of the United States which shall be made in pursuance thereof, and all treaties made, or which shall be made, under the authority of the United States, shall be the supreme law of the land; and the judges in every state shall be bound thereby, any thing in the constitution or laws of any state to the contrary notwithstanding.

3. The senators and representatives before mentioned, and the members of the several state legislatures, and all executive and judicial officers, both of the United States and of the several states, shall be bound by oath or affirmation to support this constitution: but no religious test shall ever be required as a qualification to any office, or public trust, under the United States.

ARTICLE VII.

Of the Ratification.

1. The ratification of the conventions of nine states shall be sufficient for the establishment of this constitution between the states so ratifying the same.

Done in Convention, by the unanimous consent of the states present, the seventeenth day of September, in the year of our Lord one thousand seven hundred and eighty-seven, and of the independence of the United States of America the twelfth. In witness whereof, we have hereunto subscribed our names.

GEORGE WASHINGTON,
President, and Deputy from Virginia.

NEW HAMPSHIRE.

John Langdon,
Nicholas Gilman.

MASSACHUSETTS.

Nathaniel Gorman,
Rufus King.

NEW JERSEY.

William Livingston,
David Brearly,
William Patterson,
Jonathan Dayton.

PENNSYLVANIA.

Benjamin Franklin,
Thomas Mifflin,
Robert Morris,
George Clymer,
Thomas Fitzsimmons,
Jared Ingersoll,
James Wilson,
Gouverneur Morris.

DELAWARE.

George Read,
Gunning Bedford, jun.
John Dickinson,
Richard Bassett,
Jacob Broom.

CONNECTICUT.

William Samuel Johnson,
Roger Sherman.

NEW YORK.

Alexander Hamilton.

MARYLAND.

James M'Henry,
Daniel of St. Tho. Jenifer,
Daniel Carroll.

VIRGINIA.

John Blair,
James Madison, jun.

NORTH CAROLINA.

William Blount,
Richard Dobbs Spaight,
Hugh Williamson.

SOUTH CAROLINA.

John Rutledge,
Chas. Cotesworth Pinckney,
Charles Pinckney,
Pierce Butler.

GEORGIA.

William Few,
Abraham Baldwin.

Attest,

WILLIAM JACKSON, *Secretary.*

AMENDMENTS TO THE CONSTITUTION.

Art. 1. Congress shall make no law respecting an establishment of religion, or prohibiting the free exercise thereof; or abridging the freedom of speech or of the press; or the right of the people peaceably to assemble, and to petition the government for a redress of grievances.

Art. 2. A well regulated militia being necessary to the security of a free state, the right of the people to keep and bear arms shall not be infringed.

Art. 3. No soldier shall, in time of peace, be quartered in any house without the consent of the owner; nor in time of war, but in a manner to be prescribed by law.

Art. 4. The right of the people to be secure in their persons, houses, papers and effects, against unreasonable searches and seizures, shall not be violated; and no warrants shall issue but upon probable cause, supported by oath or affirmation, and particularly describing the place to be searched, and the persons or things to be seized.

Art. 5. No person shall be held to answer for a capital or otherwise infamous crime, unless on a presentment or indictment of a grand jury, except in cases arising in the land or naval forces, or in the militia when in actual service in time of war or public danger; nor shall any person be subject for the same offence to be put twice in jeopardy of life or limb; nor shall be compelled, in any criminal case, to be witness against himself; nor be deprived of life, liberty, or property, without due process of law; nor shall private property be taken for public use without just compensation.

Art. 6. In all criminal prosecutions the accused shall enjoy the right to a speedy and public trial, by an impartial jury of the state and district wherein the crime shall have been committed, which district shall have been previously ascertained by law, and to be informed of the nature and cause of the accusation; to be confronted with the witnesses against him; to have

compulsory process for obtaining witnesses in his favour; and to have the assistance of counsel for his defence.

Art. 7. In suits at common law, where the value in controversy shall exceed twenty dollars, the right of trial by jury shall be preserved; and no fact tried by jury shall be otherwise re-examined in any court of the United States than according to the rules of the common law.

Art. 8. Excessive bail shall not be required, nor excessive fines imposed, nor cruel and unusual punishments inflicted.

Art. 9. The enumeration in the constitution of certain rights, shall not be construed to deny or disparage others retained by the people.

Art. 10. The powers not delegated to the United States by the constitution, nor prohibited by it to the states, are reserved to the states respectively or to the people.

Art. 11. The judicial power of the United States shall not be construed to extend to any suit in law or equity commenced or prosecuted against one of the United States by citizens of another state, or by citizens or subjects of another state, or by citizens or subjects of any foreign state.

Art. 12. § 1. The electors shall meet in their respective states, and vote by ballot for president and vice-president, one of whom, at least, shall not be an inhabitant of the same state with themselves; they shall name in their ballots the person voted for as president, and in distinct ballots the person voted for as vice-president; and they shall make distinct lists of all persons voted for as president and of all persons voted for as vice-president, and of the number of votes for each, which list they shall sign and certify, and transmit sealed to the seat of the government of the United States, directed to the president of the senate; the president of the senate shall, in the presence of the senate and house of representatives, open all the certificates, and the votes shall then be counted; the person having the greatest number of votes for president shall be the president, if such number be a majority of the whole number of electors appointed; and if no person have such a majority, then from the persons having the highest numbers, not exceeding three, on the list of those voted for as president, the house of representatives shall choose immediately by ballot the president. But in choosing the president, the votes shall be taken by states, the representation from each

state having one vote; a quorum for this purpose shall consist of a member or members from two-thirds of the states, and a majority of all the states shall be necessary to a choice. And if the house of representatives shall not choose a president whenever the right of choice shall devolve upon them, before the fourth day of March next following, then the vice-president shall act as president, as in the case of the death or other constitutional disability of the president.

2. The person having the greatest number of votes as vice-president shall be the vice-president, if such number be a majority of the whole number of electors appointed; and if no person have a majority, then from the two highest numbers on the list the senate shall choose the vice-president: a quorum for the purpose shall consist of two-thirds of the whole number of senators, and a majority of the whole number shall be necessary to a choice.

3. But no person constitutionally ineligible to the office of president shall be eligible to that of vice-president of the United States.

The following is the original copy of the Declaration of Independence as written by Thomas Jefferson. The part printed with quotations was erased by Congress and the words in brackets supplied.

A DECLARATION BY THE REPRESENTATIVES OF THE
UNITED STATES OF AMERICA IN GENERAL CONGRESS
ASSEMBLED.

When in the course of human events, it becomes necessary for one people to dissolve the political bands which have connected them with another, and to assume among the powers of the earth, the separate and equal station to which the laws of nature and of nature's God entitle them, a decent respect to the opinions of mankind, requires that they should declare the causes which impel them to the separation.

We hold these truths to be self-evident, that all men are created equal; that they are endowed by their Creator with [certain] "inherent and" unalienable rights; that amongst these are, life, liberty and the pursuit of happiness; that to secure these rights, governments are instituted among men, deriving their just powers from the consent of the governed; that whenever any form of government becomes destructive of these ends, it is the right of the people to alter or to abolish it, and to institute a new government, laying its foundation on such principles, and organizing its powers in such form, as to them shall seem most likely to effect their safety and happiness. Prudence, indeed, will dictate, that governments long established, should not be changed for light and transient causes; and accordingly all experience hath shown, that mankind are more disposed to suffer, while evils are sufferable, than to right themselves by abolishing the

forms to which they are accustomed. But when a long train of abuses and usurpations, “begun at a distinguished period and” pursuing invariably the same object, evinces a design to reduce them under absolute despotism, it is their right, it is their duty, to throw off such government, and to provide new guards to their future security. Such has been the patient sufferance of these colonies; and such is now the necessity which constrains them to [alter] “expunge” their former systems of government.

The history of the present king of Great Britain is a history of [repeated] “unremitting” injuries and usurpations, “among which appears no solitary fact to contradict the uniform tenor of the rest; but all have” [all having,] in direct object, the establishment of an absolute tyranny over these states. To prove this, let facts be submitted to a candid world, “for the truth of which we pledge a faith yet unsullied by falsehood.”

He has refused his assent to laws the most wholesome and necessary for the public good.

He has forbidden his governors to pass laws of immediate and pressing importance, unless suspended in their operation till his assent should be obtained; and when so suspended, he has utterly neglected to attend to them.

He has refused to pass other laws for the accommodation of large districts of people, unless those people would relinquish the right of representation in the legislature, a right inestimable to them and formidable to tyrants only.

He has called together legislative bodies at places unusual, uncomfortable, and distant from the depository of their public records, for the sole purpose of fatiguing them into compliance with his measures.

He has dissolved representative houses repeatedly “and continually,” for opposing with manly firmness his invasions on the rights of the people.

He has refused for a long time after such dissolutions to cause others to be elected; whereby the legislative powers, incapable of annihilation, have returned to the people at large for their exercise; the state remaining in the mean time exposed to all the danger of invasion from without, and convulsions within.

He has endeavoured to prevent the population of these states; for that purpose obstructing the laws for naturalization of foreigners, refusing to pass others to encourage their migrations hither, and raising the conditions of new appropriations of lands.

He has “suffered” [obstructed] the administration of justice “totally to cease in some of these states,” [by] refusing his assent to laws for establishing judiciary powers.

He has made “our” judges dependent on his will alone for the tenure of their offices, and the amount and payment of their salaries.

He has erected a multitude of new offices, “by a self-assumed power,” and sent hither swarms of officers to harass our people and eat out their substance.

He has kept among us in times of peace standing armies, “and ships of war,” without the consent of our legislatures.

He has affected to render the military independent of and superior to the civil power.

He has combined with others to subject us to a jurisdiction foreign to our constitution, and unacknowledged by our laws; giving his assent to their acts of pretended legislation.

For quartering large bodies of armed troops among us:

For protecting them, by mock trial, from punishment for any murders which they should commit on the inhabitants of these states:

For cutting off our trade with all parts of the world:

For imposing taxes on us without our consent:

For depriving us, [in many cases,] of the benefits of trial by jury:

For transporting us beyond seas to be tried for pretended offences:

For abolishing the free system of English laws in a neighbouring province, establishing therein an arbitrary government, and enlarging its boundaries, so as to render it at once an example and fit instrument for introducing the same absolute rule into these “states” [colonies:]

For taking away our charters, abolishing our most valuable laws, and altering fundamentally the forms of our governments:

For suspending our own legislatures, and declaring themselves invested with power to legislate for us, in all cases whatever:

He has abdicated government here “withdrawing his governors, and” [by] declaring us out of his [allegiance] protection, [and waging war against us:]

He has plundered our seas, ravaged our coasts, burnt our towns, and destroyed the lives of our people:

He is at this time transporting large armies of foreign mercenaries to complete the works of death, desolation, and tyranny, already begun with circumstances of cruelty and perfidy, [scarcely paralleled in the most barbarous ages, and] totally unworthy the head of a civilized nation.

The three next paragraphs in the original draught, were as follows:

“He has endeavoured to bring on the inhabitants of our frontiers the merciless Indian savages, whose known rule of warfare is an undistinguished destruction of all ages, sexes, and conditions of existence.

“He has incited treasonable insurrections of our fellow-citizens, with the allurements of forfeiture and confiscation of our property.

“He has constrained others, taken captives on the high seas, to bear arms against their country, to become the executioners of their friends and brethren, or to fall themselves by their hands.”

In place of the three paragraphs erased, the two following were introduced:

[He has constrained our fellow-citizens taken captive on the high seas, to bear arms against their country, to become the executioners of their friends and brethren, or to fall themselves by their hands.]

[He has excited domestic insurrections amongst us, and has endeavoured to bring on the inhabitants of our frontiers, the merciless Indian savages, whose known rule of warfare is an undistinguished destruction of all ages, sexes and conditions.]

The next paragraph, which related to the slave trade, was entirely erased. It was as follows:

“He has waged cruel war against human nature itself, violating its most sacred rights of life and liberty in the persons of a distant people, who never offended him, captivating and carrying them into slavery, in another hemisphere, or to incur miserable death in their transportation thither. This piratical warfare, the opprobrium of infidel powers, is the warfare of a Christian king of Great Britain. Determined to keep open a market where **MEN** should be bought and sold, he has prostituted his negative for suppressing every legislative attempt to prohibit or restrain this execrable commerce; and that this assemblage of horrors might want no fact of distinguished dye, he is now exciting those very people to rise in arms among us, and to purchase that liberty of which he has deprived them, by murdering the people upon whom he also obtruded them; thus paying off former crimes committed against the liberties of one people, with crimes which he urges them to commit against the lives of another.”

In every stage of these oppressions, we have petitioned for redress in the most humble terms: our repeated petitions have been answered only by repeated injury. A prince whose character is thus marked by every act which may define a tyrant, is unfit to be the ruler of a [free] people “who mean to be free. Future ages will scarce believe that the hardness of one man adventured within the short compass of twelve years only, to build a foundation so broad and undisguised, for tyranny over a people fostered and fixed in principles of freedom.”

Nor have we been wanting in attentions to our British brethren. We have warned them from time to time, of attempts by their legislature “to extend a jurisdiction over these our states,” [to extend an unwarrantable jurisdiction over us.] We have reminded them of the circumstances of our emigration and settlement here, “no one of which could warrant so strange a pretension: that these were effected at the expense of our own blood and treasure, unassisted by the wealth or the strength of Great Britain: that in constituting indeed our several forms of government, we had adopted one common king, thereby laying a foundation for perpetual league and amity with them: but that submission to their parliament was no part of our constitution, nor ever in idea, if history may be credited; and” we [have] appealed to their native justice and magnanimity, “as well as to” [and we

have assured them by] the ties of our common kindred, to disavow these usurpations, which “were likely to” [would inevitably] interrupt our connexions and correspondence. They too, have been deaf to the voice of justice and of consanguinity; “and when occasions have been given them by the regular course of their laws, of removing from their councils, the disturbers of our harmony, they have by their free election re-established them in power. At this very time too, they are permitting their chief magistrate to send over not only soldiers of our common blood, but [Scotch and] foreign mercenaries to invade and destroy us. These facts have given the last stab to agonizing affection; and manly spirit bids us to renounce forever these unfeeling brethren. We must endeavour to forget our former love for them, and to hold them as we hold the rest of mankind, enemies in war, in peace friends. We might have been a free and a great people together; but a communication of grandeur and of freedom it seems, is below their dignity. Be it so, since they will have it. The road to happiness and to glory is open to us too: we will climb it apart from them, and acquiesce in the necessity which denounces our eternal separation.” [We must therefore acquiesce in the necessity which denounces our separation, and hold them, as we hold the rest of mankind, enemies in war, in peace friends.]

We, therefore, the representatives of the *United States of America, in General Congress assembled*, [appealing to the supreme judge of the world for the rectitude of our intentions] do, in the name, and by authority of the good people of these “states [colonies,] reject and renounce all allegiance and subjection to the kings of Great Britain, and all others, who may hereafter claim by, through, or under them; we utterly dissolve all political connexion which may heretofore have subsisted between us and the parliament of Great Britain; and finally we do assert” [solemnly publish and declare] That these United Colonies are, [and of right ought to be,] free and independent states; [that they are absolved from all allegiance to the British crown, and that all political connexion between them and the state of Great Britain is, and ought to be, totally dissolved,] and that as free and independent states, they have full power to levy war, conclude peace, contract alliances, establish commerce, and to do all other acts and things which independent states may of right do. And for the support of this Declaration, [with a firm reliance on Divine Providence,] we mutually pledge to each other, our lives, our fortunes, and our sacred honour.

THE END.

Transcriber's Notes

Punctuation, hyphenation, and spelling were made consistent when a predominant preference was found in this book; otherwise they were not changed; spelling variants were not changed.

Simple typographical errors were corrected; occasional unbalanced quotation marks retained.

Ambiguous hyphens at the ends of lines were retained.

Page [185](#): the dates "1663" and "1773" must refer to two different people.

Page [330](#): "IN CONGRESS, JULY 8, "1778" was misprinted as 1788"; corrected here. Some apparently incorrect dates on other pages of the original book have not been noted or corrected.

*** END OF THE PROJECT GUTENBERG EBOOK A BIOGRAPHY OF
THE SIGNERS OF THE DECLARATION OF INDEPENDENCE, AND
OF WASHINGTON AND PATRICK HENRY ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the

collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™

License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format

other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, “Information about donations to the Project Gutenberg Literary Archive Foundation.”
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the

electronic work is discovered and reported to you within 90 days of receipt of the work.

- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE

LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability,

costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other

ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility: www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.